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ARISTOTLE'S *Politics*

A Critical Guide

Edited by
Thornton Lockwood
and Thanassis Samaras

ARISTOTLE'S *POLITICS*

Arguably the foundational text of Western political theory, Aristotle's *Politics* has become one of the most widely and carefully studied works in ethical and political philosophy. This volume of essays offers fresh interpretations of Aristotle's key work and opens new paths for students and scholars to explore. The contributors embrace a variety of methodological approaches that range across the disciplines of classics, political science, philosophy, and ancient history. Their essays illuminate perennial questions such as the relationship between individual and community, the nature of democratic deliberation, and how to improve political institutions. Offering groundbreaking studies that both set Aristotle within the context of his own time and draw on contemporary discussion of his writings, this collection will provide researchers with an understanding of many of the major scholarly debates surrounding this key text.

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AND

THANASSIS SAMARAS

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CAMBRIDGE
UNIVERSITY PRESS

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University Printing House, Cambridge CB2 8BS, United Kingdom

Cambridge University Press is part of the University of Cambridge.

It furthers the University's mission by disseminating knowledge in the pursuit of education, learning and research at the highest international levels of excellence.

www.cambridge.org
Information on this title: www.cambridge.org/9781107052703

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First published 2015

A catalogue record for this publication is available from the British Library

Library of Congress Cataloguing in Publication Data
Aristotle's Politics: a critical guide / edited by Thornton Lockwood and Thanassis Samaras.
pages cm. – (Cambridge critical guides)
ISBN 978-1-107-05270-3 (hardback)
1. Aristotle. Politics. 2. Political science – Early works to 1800. 3. State, The.
I. Lockwood, Thornton, editor of compilation. II. Samaras, Thanassis, 1967 – editor of compilation.
JC71.A7A768 2015
320.01′1–dc23
2015014016

ISBN 978-1-107-05270-3 Hardback

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Introduction

Thornton Lockwood and Thanassis Samaras

Aristotle's *Politics* is the second part of what the *Nicomachean Ethics* calls "a philosophy of human things" (X.9.1181b15). Its analyses range over the nature of the household, criticisms of previous thinkers and legislators, the underlying structure of different forms of political organization, the varieties of different governments, the causes and curatives of political dissolution or revolution, and the nature of the best political organization. Scholarship on Aristotle's *Politics* in the last twenty-five years – datable, perhaps, to the eleventh Symposium Aristotelicum (1987),[1] which was devoted to the *Politics* – has undergone an almost unprecedented resurgence. During that period, Anglophone authors alone published over twenty book-length studies and over ten (either whole or in part) translations of the *Politics*; during the same period, seven other collections of scholarly articles were devoted to topics in the *Politics*, along with several hundred journal articles.[2] No other work in Aristotle's corpus – with the exception of the *Nicomachean Ethics* – has been the object of such scrutiny. However, whereas the scholars who convened to study the *Politics* at the eleventh Symposium Aristotelicum largely came from the academic discipline of classics, the seeds contained within their works spread to several cognate fields, perhaps especially philosophy and political theory.

Our critical guide provides a collection of learned articles, all previously unpublished, that continues the harvest of scholarly insight on the *Politics*

[1] The thirteen papers of the 1987 Symposium Aristotelicum XI are published in whole in Patzig (1990); several were subsequently republished in Kraut and Skultety (2005). Keyt and Miller (1991) and Lord and O'Connor (1991) were published in close chronological proximity to the Symposium, and together the two edited collections included twenty-four chapters (including both previously published and unpublished works) about the *Politics* from several different interpretative frameworks. Two years later, Aubenque and Tordesillas (1993) published twenty-two newly written articles in French about the *Politics*. Thus, between 1990 and 1993 (admittedly, an unusually fruitful period in scholarship on Aristotle's *Politics*) almost sixty book chapters were published simply in anthologies.

[2] See further Lockwood (2013), which is a fully annotated online bibliography devoted to scholarship on Aristotle's *Politics*.

and provides a showcase of the state of scholarly reflection on Aristotle's *Politics* from several different disciplines and embracing several different methodological approaches to the work. The contributors range across the university disciplines of classics, political science, philosophy, and ancient history; their approaches can be variously classified as historical-critical, philological, analytical, theoretical, and even literary. Indeed, at their best, the chapters in this volume combine several of these approaches and speak to debates one finds in many of the aforementioned disciplines. Although the contributors to our volume embrace the highest standards of the various disciplines to which they speak, homogeneity of opinion about Aristotle's *Politics* is not one of their shared characteristics. In February 2014, one of our contributors – Eckart Schütrumpf – generously organized and hosted a conference in Boulder, Colorado, at which many of our chapter authors presented drafts of their papers (either in person or electronically). Although presentation, discussion, and debate of the volume's chapters provided each author with an excellent chance to reflect upon and defend his or her claims, the event also made clear the range of disagreement over the interpretation of Aristotle's *Politics*, perhaps especially with respect to its understanding of justice. Such diversity and disagreement reflects the healthy state of scholarship on the work, a snapshot of which we aim to provide in our edited volume.

Although the scholars invited to contribute chapters to this book were free to write upon the topics of their choosing, a somewhat "spontaneous order" emerged from their papers, which clustered rather evenly around three central divisions of *Politics* as a whole (although often with good bits of spillover). The subject matter of the first two books of Aristotle's *Politics* (the topic of our first four chapters) is pre-political in the sense that those books take up questions about the material conditions of political life, for instance, the nature of the household (and its members, including women and slaves), the nature of property, its accumulation, and its status as a "private" or "public" good. Books III and IV of the *Politics* are especially concerned with articulating the different senses of what Aristotle calls "*politeia*" (the topic of our next four chapters), which in its general sense is variously translated as "constitution," "regime," or "citizenship," but which is also the term that Aristotle uses for a specific kind of political institution, usually translated as "polity," namely one that is both good and inclusive (characteristics that do not always fit together for allegedly anti-democratic thinkers such as Aristotle). The remainder of the *Politics*, Books IV through VIII, are all concerned with the classification and "improvement" of constitutions (the topic of our final four chapters); but tensions

emerge because such improvement is at times "pragmatic" and at other times "idealistic" (and, paradoxically, often both). Let us characterize each chapter in greater detail.

The first two books of the *Politics* include some of Aristotle's most famous (and subsequently contested) claims and discussions, such as the claims that humans are political animals possessing *logos*, that the polis exists by nature, and that both women and slaves are in some sense inferior to men by nature. Aristotle also situates his own notion of the best constitution against the most reputed theoretical and existing constitutions in his time, including the constitution proposed by Socrates in Plato's *Republic* and the constitution the quasi-mythical lawgiver Lycurgus bestowed upon the Spartans. In our book's first chapter, "On *logos* and politics in Aristotle," Jill Frank takes up the twin challenges of both determining what Aristotle means by the notoriously complicated term *logos* (sometimes translated as "reason," "principle," "explanatory account") and elucidating the relationship between the claims that humans are both "*logos* beings" and "political animals." First, Frank examines Aristotle's account of *logos* intrapersonally, in the way he characterizes the interaction of the "having *logos*" and the "not having *logos* but capable of hearing *logos*" parts of the soul (i.e., the rational and appetitive parts of the soul); second, she turns to Aristotle's account of interpersonal *logos*, namely the way that persuasive and political speech is characterized in Aristotle's *Rhetoric*; finally, she asks what light intra- and interpersonal *logos* shed on the political nature of humans. Frank argues that Aristotle's notion of the enthymeme – a form of rhetorical reasoning in which a speaker both guides and is dependent upon an audience to supply premises to the speaker's argument (a form of persuasion Frank identifies with the middle voice of the Greek verb *peithô* ["to persuade"] and entitles "middle-voice persuasion") – captures what Aristotle thinks is most characteristic of the human capacity to use *logos*. Such an account deflates the abstractness of "reason" in Aristotle's claims about political human nature and views the excellent human life as a sort of dynamic relationship, both within one's own soul and among one's fellow citizens.

In the book's second chapter, "Is politics a natural science?," Pierre Pellegrin explores the claims that humans are political animals and that the city exists by nature by considering the relationship between the principles and methods of Aristotle's biological sciences and those of his practical science. Although Aristotle uses the explanatory scheme of the biological sciences in *Politics* I.2, Pellegrin denies that Aristotle's use of that scheme calls into question his categorical division between theoretical and practical

science. Rather, he concludes that although nature provides humans with what could be called their "biological equipment," they – unlike any other natural beings – realize such equipment in practice or actions. As Pellegrin puts it at one point, "The foundation of a city is surely a practical activity that has taken place at a given moment and that could conceivably not have taken place. In contrast, there is no bee that has founded the first hive."

That Aristotle's household and polis include natural hierarchies or forms of "rule" (*archê*) between men and women is problematic not only to modern egalitarian sentiments, but also within Aristotle's writings as a whole, since in some places he likens the relationship between men and women as approximating a political or reciprocal relationship, but in others he likens the relationship to a static aristocratic one between natural superiors and inferiors. In the book's third chapter, "Political rule over women in *Politics* I," Marguerite Deslauriers elucidates Aristotle's apparently conflicting claims that rule between men and women is both "political" and "aristocratic" by examining both its "metaphysical" status, that is, what Aristotle says about male and female souls with respect to deliberation, and its "functional" status, that is, how Aristotle describes the roles of men and women in the household. The ambiguity of Aristotle's characterization of male-female rule in part reflects the ambiguous status of free women within his political thought. Although women have no political role outside the household, Aristotle ascribes to them significant deliberative responsibilities and tasks within the household. On a practical level, Deslauriers concludes that "women's status would then be analogous (at a first approximation) to that of those who have a voice but not a vote on a committee: They would be entitled to express an opinion, and in principle that opinion should be taken into account by those who do have a vote."

Before Aristotle turns to his analysis of citizenship and *politeia*, he devotes an entire book of the *Politics* to the examination of both the theoretical and previously existing constitutions reputed to be well governed, such as those articulated in Plato's *Republic* or *Laws* or those existing in Sparta, Crete, and Carthage. In the fourth chapter of the book, "*Politics* II: Political critique, political theorizing, political innovation," Thornton Lockwood argues that viewing *Politics* II as a series of disjointed criticisms of his predecessors loses sight both of the underlying structure of *Politics* II as a whole and its substantive political theorizing, which goes beyond mere criticism. He argues that *Politics* II includes self-contained philosophical excurses on the organization of property in a polis, the problem of political innovation, and the relationship between chance and deliberation. Although such sustained reflections originate in criticisms of the

constitutions of the *Republic*, Hippodamos, and Sparta/Crete, nonetheless they substantively go beyond those critiques. The theme that unites all three excurses is the problematic nature of political innovation, namely that although it is true that political knowledge and expertise advance over time, innovating or criticizing political institutions has deleterious effects upon obedience toward those institutions. In such a context, it is especially surprising that *Politics* II elevates the constitution of Carthage – a non-Greek, Phoenician city – above any of its proposed or existing Greek competitors for the "best" best regime.

One of the central problems running through *Politics* Books III and IV concerns the possibility of articulating a political institution that simultaneously incorporates human virtue and inclusive civic participation. Insofar as a polis seeks to promote the well-being of its citizens, it needs to be based on excellences of character and deliberation; but insofar as a polis bases participation on such excellences, it raises the bar for civic involvement and becomes exclusionary. In a word, Aristotle's solution to this tension is what he entitles "*politeia*"; but as is clear from the fifth chapter in our book, J. J. Mulhern's "*Politeia* in Greek literature, inscriptions, and in Aristotle's *Politics*: Reflections on translation and interpretation," any single word for translating *politeia* in English is inadequate to denote all the possible meanings of the term. Based partly on his published annotated catalogue of 522 occurrences of *politeia* in the *Politics* (Mulhern 2014) and partly on a review of the history of the translation of the term, Mulhern demonstrates both the complexity of the term "*politeia*" and the need for the translator-interpreter of Aristotle's thought to be alert to the many possible uses and senses of the word. Remarkably, *politeia*'s original sense is citizenship, the issue with which Book III begins, but it can also mean citizen body, arrangement of offices, and regime. Using the same translation (usually "constitution" or "regime") in all cases, Mulhern warns, is likely to attribute to Aristotle an exaggerated emphasis on the structural element of the *politeia* and thus to impoverish our understanding of his thought.

In Chapter 6, "The 'mixed regime' in Aristotle's *Politics*," Ryan Balot offers a multifaceted account of the "mixed regime" or "polity." Although he acknowledges that, according to Aristotle's analysis in the middle books of the *Politics*, there are limitations to the degree of political excellence that this constitutional type can achieve, Balot emphasizes its many positive qualities: For Aristotle, the "mixed regime" is the best most cities can realistically hope for, because it ensures stability, it involves citizens who overcome their class divisions in order to achieve *homonoia*, it is open to

government informed by reason, and it gives political expression to what Ian Morris has named "middling or *metrios* ideology" (Morris 1996). Far from being an uneasy and fragile combination of oligarchy and democracy, Balot concludes, the "mixed regime" is a constitutional form that the aspiring Aristotelian legislator would be well advised to pursue for its own sake.

Chapter 7, Thanassis Samaras's "Aristotle and the question of citizenship," also focuses on "polity," that is, the specific kind of constitution that shares the name of *politeia* in its general sense and that is typified by the rule of the many for the common good. Whereas the many who are the ruling element in this type of *politeia* are commonly taken to be the same many who rule in democracy, Samaras argues that they are actually a different, smaller group: a "middling" class of *hoplitai* (namely, those able to afford the requirements of participating in the hoplite military class) and, mostly, independent farmers. These *mesoi* are socially and economically distinct from the majority of the citizens in a democracy. The exclusion of most native adult males from polity, Samaras claims, makes this constitution distinct from fourth century BC Greek democracy, which enfranchised all such persons, including those who did not own property and worked for a living.

One of the most hotly debated contemporary topics in scholarship on Aristotle's *Politics* concerns the political status of the many and Aristotle's discussion of the virtues of collective deliberation in *Politics* III.11. In Chapter 8, "Aristotle, political decision making, and the many," Christopher Bobonich provides a detailed close reading of III.11, which offers Aristotle's most positive assessment of the abilities of the many anywhere in his corpus. Bobonich notices that not only does the depiction of the many in *Politics* III.11 contradict many other passages in Aristotle, but it is philosophically difficult to determine its main point. By focusing on the analogies used in III.11, Bobonich carefully examines their philosophical consequences, and concludes that this chapter is "a curious text indeed": the arguments that can be developed out of Aristotle's analogies do not clearly support his optimistic appraisal of the abilities of the many.

The final four chapters in our book cluster around a pair of overlapping perennial problems in Aristotle scholarship: On the one hand, the "empirical" books of *Politics* IV through VI, which focus upon actual and historical constitutions, seem in tension with the "ideal" books of *Politics* VII and VIII, which focus on the best regime.[3] On the other hand, the *Politics* at

[3] See, for instance, Barker (1946), Jaeger (1948), Lord (1981), Rowe (1991), and Pellegrin (1996).

times exhibits a tension between the promotion of political stability – regardless of whether a constitution is good or bad – and the promotion of justice, virtue, and as much citizen well-being as possible.[4] Both problems emerge out of the complicated and indeed even problematic nature (or perhaps natures) of justice in the *Politics*. Chapter 9, Eckart Schütrumpf's "Little to do with justice: Aristotle on distributing political power," serves as a good introduction to this grouping of papers by calling into question whether *dikaiosunê*, namely the ethical virtue of *Nicomachean Ethics* Book V, which is usually translated as "justice," does any significant work in Aristotle's *Politics* (as contrasted with "what is just" or *dikaion*, which is invoked in the *Politics*, albeit problematically). Schütrumpf pays close attention to the different arguments that are offered throughout *Politics* III.9–13 about contested claims to political participation, and shows convincingly that the text undermines interpretations that read the passage as a debate on "distributive justice." Both the many and the wealthy have legitimate claims to participate in a polis that escape the framework of merit-based notions of distributive justice.

If Schütrumpf challenges the reader's presuppositions about the place of justice in the *Politics*, our tenth chapter, Arlene Saxonhouse's "Aristotle on the corruption of regimes: Resentment and justice" challenges the optimistic reader's presuppositions about the possibility of political improvement in Aristotle's *Politics*. Like Schütrumpf, Saxonhouse finds Aristotle's discussion of irresolvable claims to political participation in *Politics* III.9–13 to be crucial to understanding the work as a whole, especially her focus text, which is the account of regime transformation (both decay and amelioration) in *Politics* V. At one point she writes, "The imprecision of knowing what one deserves and multiple possible claims mean some will always feel the prick of exclusion. And since no one is satisfied when deprived of the honors one thinks one deserves, unrest always lies just beneath the surface." Saxonhouse shows the close connections between *Politics* III and V, and ultimately concludes by suggesting that Aristotle finds more hope for stability in inter-polis relations than in intra-polis disagreements.

If Schütrumpf and Saxonhouse together present a perspective on the *Politics* that focuses upon the disagreements and dissents that are so central to the analyses in *Politics* III, IV, and V, the chapters by Pierre Destrée and Josiah Ober together present a perspective on the *Politics* that places greater weight on its discussion of the best regime as a guide to institutional

[4] See Kahn (1990) for a classic statement of the problem. The contrast is perhaps clearest in the different "Aristotelian" interpretations of Yack (1993) and Miller (1995).

reform. In Chapter 11, "Aristotle on improving imperfect cities," Destrée argues that implicit in practical science – which, as *EN* I.2 (1094b5–9) notes, has as its aim the human good (both for the individual and the polis) – is an orientation (indeed, perhaps even a duty) toward improving one's own polis, with improvement understood not solely to consist in stability. Such improvement, Destrée continues, cannot avoid operating without some sort of "best regime" as the constitution that is most constitutive of its citizens' well-being. Thus orientated toward the purpose of the best regime in the *Politics*, Destrée focuses his analytical attention on the controverted program for the different aims of political science in *Politics* IV.1 and the "physical trainer" metaphor that Aristotle uses to illuminate it. His chapter concludes with a careful reading of Aristotle's "advice" to a tyrant in *Politics* V.10–11 – advice that after his close examination looks much less Machiavellian.

Certainly one reason that thoughtful readers of Aristotle's *Politics* can arrive at such divergent views of its contents is the work's interweaving of actual fifth- and fourth-century polis history (which often chronicles gritty intrapolis conflict and *stasis*) and a natural teleology claiming that a human being, when perfected, is the best of all animals (although also the worst of all animals when separated from law and justice [I.2, 1253a31–33]). In our book's final chapter, "Nature, history, and Aristotle's best possible regime," Josiah Ober takes up the problem of nature and history in Aristotle's *Politics* and argues that "the best possible polis described in *Politics* VII and VIII is the *telos* of the natural polis of Book I, outfitted with institutions by a legislator who has employed the empirical evidence of the history of real poleis." His chapter is thus a capstone and fitting conclusion to our volume in two ways: Ober brings together and synthesizes discussions from all three parts of the *Politics*, which we have described above, but he also takes a stand – a stand that is well aware of alternative interpretations – on one of the most contentious questions in our book, namely the tension between the pragmatic and idealistic strands in Aristotle's thought. If the reader of our book is left with more questions than answers, surely she will better understand those questions and possess exempla of how one might begin to answer them.

CHAPTER 1

On logos *and politics in Aristotle*

Jill Frank

It is not uncommon to take Aristotle's political philosophy to be "founded" on a "*principle of natural rule*" (Miller 2013: 39, emphasis in original), according to which, as Aristotle puts it, "Whenever a number of constituents . . . are combined into one common thing (*hen ti koinon*), a ruling element and a ruled (*archomenon*) element appear and this characteristic of living things is an outcome of nature" (*Pol.* 1254a28–33). It is also not uncommon to take this "principle of natural rule" to lead to something like "the principle of *the rule of reason*" (Miller 2013: 39, emphasis in original), and from there to "levels of natural rule" based on the relative "effective deliberative capabilit[ies]" of ruler and ruled (Miller 2013: 45–46).

Support for this reading of Aristotle's political philosophy is sometimes drawn from Aristotle's invocation of a passage from Hesiod's *Works and Days* to describe the appropriate judge and practitioner of the art of politics (*politikê*) and also the intended audience of his study of *politikê*: "He is best of all who thinks out everything for himself (*autos panta noêsê[i]*), while he too is worthy who is persuaded by another speaking well (*eu eiponti pithêtai*); but he who neither thinks for himself nor takes to heart what he hears from another (*mêt' autos noeê[i] mêt' allou akouôn / en thumô[i] ballêtai*) is a worthless man" (*EN* 1095b10–13, quoting Hes. *WD* 293–296). Aristotle's endorsement of Hesiod's taxonomy, it is argued, shows that he defends "a class structure of human beings" based on "how one comes to understand. This is a distinction among different natures" (Burger 2008: 21).

"Reason" in "the rule of reason" and "how one comes to understand" in the previous quotations translate the Greek *logos* and/or *nous*.[1] My focus in this essay is on *logos*, whose centrality to Aristotle's account of *politikê* is

[1] For Miller (2013), reason sometimes translates *nous* (39) and sometimes *logos* (40). Burger (2008) speaks sometimes of "how one comes to understand" (21) and sometimes, as we will see later, of

evidenced by his dual description of the human being as a political being (*zô[i]on politikon*) (*Pol.* 1253a7) and also as the being with *logos* (*zô[i]on logon echon*) (*Pol.* 1253a10–11, 1332b5–6, *Rh.* 1355b3), and by his claim that being led by *logos* is distinctive of the appropriate student of *politikê* (*EN* 1095a10–12), the one positioned to judge well with respect to the political (*EN* 1095a4–6), and the one positioned to take his study of *politikê* in its proper spirit (*EN* 1095a12–13). *Logos* and *politikê* are thus bound together in Aristotle's political thought, to be sure.

Reading that relation as justifying a class structure of human beings based in nature, understood as what sorts people into fixed classes, confounds rather than clarifies Aristotle's study of politics, however. For then the one led by *logos*, being able, in Hesiod's terms, to "[think] out everything for himself," turns out to have no use for that study. With the one led by *pathos* unsuitable as well, being unable, in Hesiod's terms, to "be persuaded by another speaking well" or to "take to heart what he hears from another," Aristotle's study of *politikê* becomes a "work for nobody" (Burger 2008: 4).[2] And the only suitable practitioner and judge of *politikê* is the one who, in virtue of his *logos*, is a law unto himself (*Pol.* 1284a14).

It is true that Aristotle authorizes the regime of absolute kingship under certain limited conditions (*Pol.* 1287b37–1288a30). He also endorses cities in which "citizens rule and are ruled *in turn* (or by part, *to ana meros toinun hôsautôs*)" (*Pol.* 1287a18–20, 1332b16–27). He claims, moreover, that his study of *politikê* is about how to *become* good (*EN* 1103b26–30). Aristotle's interests in the possibilities of rotational rule and ethical change over time suggest that his political philosophy – both his study of *politikê* and his account of its practice – seeks less to sort out already established "classes of its complex audience" (Burger 2008: 4) or to hierarchize human beings into fixed ethical and political registers (Miller 2013: 38), both of which suppose that human beings and their capabilities are set, than to explore, and to guide change in the direction of what is good for human beings. This, in turn, implies, as I have argued elsewhere, an understanding of human nature as dynamic not static.[3]

"mind" (182), both of which translate *nous*, and sometimes of "reasoning" (21), "rationality," or "speech" (19, 41–43, 182), which translate *logos*. The Hesiod passage speaks of *nous*.

[2] Burger (2008) highlights and responds to the "paradoxical" (3) nature of Aristotle's invitation to his "multi-layered audience" (21) by putting his ethical and political writings into an immensely illuminating dialogue with Plato's Socrates with a view to creating the "perplexity" that might orient a reader to seek "'the why' beyond 'the that' of his moral education" (4).

[3] See Frank (2004).

Interpreting Aristotle's political philosophy as dynamic turns his study of *politikê* from "a work for nobody" into a work addressed to and also about those who may become otherwise than they are. Who falls into that category? And how might Aristotle's study of *politikê*, his speeches or *logoi* about *politikê*, bring about change? How, more specifically, might *logos* itself function to affect and possibly alter human natures?

To explore these questions, I take as my point of departure the following passage in *Politics* I.

> Why a human being is . . . meant for a city, more than every sort of bee and every sort of herd animal, is clear. For nature, as we claim, does nothing uselessly (*ouden gar, ôs phamen, matên hê phusis poiei*) and a human being, alone . . . has *logos*. And while voice (*phônê*) is a sign of pain and pleasure, and belongs also to the other animals on that account . . ., *logos* is for disclosing (*epi tô[i] dêloun*) what is advantageous and what is harmful, and so too what is just and unjust. For this is distinctive of human beings in relation to the other animals, to be alone in having a perception (*aisthêsin echein*) of good and bad, just and unjust, and the rest, and it is an association (*koinônia*) involving these things that makes a household and a city. (*Pol.* 1253a8–1253a18)

Every translation I have seen treats *logos* in this passage as speech. That makes sense in light of the contrast Aristotle sets up with voice (*phônê*). It also makes sense given that he says that it is by way of *logos* that the advantageous and harmful, just and unjust are *disclosed*, and that it is by way of *logos* that common associations form. *Logos* is also generally translated as speech when it appears in Aristotle's account of the "living together" characteristic of friendship in *Nicomachean Ethics* IX, where, "perceiving together," as in the *Politics* I passage, is said to be accomplished by way of *logos*, understood as the sharing of speeches and thoughts (*EN* 1170b13–14), that is, "through dialogue" (Burger 2008: 182).

It may be that "this defining activity of friendship [sharing of thoughts and speeches] explains how it can be that the self, which emerges together with the recognition of the friend as an other self, is mind, or mind most of all," and that Aristotle's account of speech in friendship confirms that this "realization of our political nature" is "at the same time the realization of our rational nature" (Burger 2008: 182, 188). However, I would like to pause over the identification of politicality with rationality to ask: What might happen to our appreciation of Aristotle's political philosophy if we stay, for a while, with *logos* as speech?[4] To perform this thought

[4] In a comprehensive and valuable treatment of *logos* in Plato and Aristotle, Moss (2014) argues that *logos* is best understood as "account" and, more specifically, as an explanatory verbal account, where this may be silent or spoken (192, 205–206). In ethics and politics, she claims that *logos*, as account,

experiment, I turn first to the work of *logos* in Aristotle's account of soul; then to the work of *logos* across different and separate souls; and lastly to the impact on the study and practice of Aristotelian *politikê* of treating intra- and inter-soul *logos* as speech.

Speaking of souls

For Ronna Burger, Aristotle's "distinction among natures" is reflected in "a duality in the structure" of his account of the human soul in the *Nicomachean Ethics*, "between self-initiating reason and the capacity for obedience to reason" (Burger 2008: 21).[5] Dividing the soul into a part with *logos* and a part without *logos* (1102a29–30), Aristotle does indeed present the soul as a duality in *Nicomachean Ethics* I.13 (also *Pol.* 1333a16–23, 1334b18–19). He also, however, subdivides these parts: the part of the soul with *logos* he divides into a speculative subpart and a practical one (*Pol.* 1333a23–30); and the part of the soul without *logos* he divides in two, with one subpart associated with nutrition and growth, and the other with appetite, affect, and desire (*EN* 1102a28–1103a38, 1098a4–8).

For scholars interested in the ruler-ruled orderings they take to be established by *logos* as reason, the important duality in Aristotle's account of soul seems to be between the part(s) of the soul with *logos* and the affective or desiring subpart. It is this duality that, when distributed across souls as "a distinction among natures," produces a politics in which those in whom reason leads rule, while those in whom reason is not "self-initiating" obey.

Aristotle, however, complicates the duality of soul even as he puts it forward, not only by proliferating the parts of the soul with and without *logos*, as just noted, but also by asking, in what seems to be a digression, whether the parts with and without *logos* comprising his initial duality are themselves "truly distinct." Analogizing the parts of the soul with and without *logos* to "the concave and convex sides of a curve," Aristotle appears to present them as integrated aspects of a whole (*EN* 1102a30–35). Breaking

takes the form of a practical syllogism (211, 213, 219). I agree that *logos* is best understood as a verbal account. However, as I argue later, in my view the form *logos* takes in Aristotle's ethical and political studies is not the syllogism but the enthymeme. Only after completing this essay did I become aware that Martin Heidegger also advocates for reading Aristotelian *logos* as speech so I do not here take his treatment into account. For a helpful discussion, see Elden (2005).

[5] See also Grönroos (2007: 254–55), for whom "in following reason's lead the non-rational part does not attend to any arguments or considerations, but obeys reason in authority. Hence, the non-rational part does not understand what speaks in favour of a certain course of action, but abides by the prescriptions of reason without questioning, as it were."

down the soul's duality by way of the very feature he introduced to secure it, he describes the affective or desiring part as "participating in *logos*" (*EN* 1098a4–7, 1102b25–26) or, in the words of one translator, as "not without *logos*" (Sachs, 2008), and wonders whether it might "be more correct" to speak of the part associated with nutrition and growth as having *logos* as well (*EN* 1103a2–3).

In what sense might the parts of the soul have or participate in *logos*? A familiar answer, as we have seen, is that the part with *logos* is the reasoning or rational part and the other parts participate in *logos* by being obedient. However, Aristotle describes the part of the soul with *logos* as "exhorting (*paraklêsis*)," "admonishing (*nouthetêsis*)," and "rebuking (*epitimêsis*)" (*EN* 1102b14–16, 1102b34–1103a1), and he calls the soul "harmonious" when its parts "chime together" or "speak in the same voice" (*homophônei*) (1102b29–30). Moreover, he characterizes the affective or desiring part not only as "obeying (*peithetai*)" but as "paying heed (*katêkoon*)," "taking account (*peitharchikon*)" (*EN* 1102b32–33), and listening (*akoustikon*) (*EN* 1103a4) to *logos*. By his words, at least, Aristotle seems to invite us to hear the *logos* of the part of the soul with *logos* not as reason but as speech.

How might the desiring or affective part of the soul participate in or have *logos*? It is worth noting that the Greek word consistently translated as "obey" in these passages is *peithesthai*, the middle/passive voice of *peithô*, and its derivations (*EN* 1102b27, 32, 34). The middle/passive of *peithô* signifies "to obey, trust, and/or believe" and also "to be persuaded."[6] Whether *peithô* takes its middle or passive voice is determined largely by context.[7] By using *peithesthai* and its derivations, Aristotle may be saying, as advocates of the command-obedience model assume, that the affective or desiring part of the soul participates in *logos* in the mode of passive persuasion, which is to say, by obeying, trusting, or believing the *logos* part. Or he may be saying that the affective or desiring part of the soul participates in *logos* in the mode of middle-voice persuasion, which is to say, by obeying, trusting, or believing, if it does, because, and only insofar as, it has been persuaded.[8]

Which is it? That in these passages in the *Nicomachean Ethics* Aristotle attributes to the affective or desiring part of the soul not only the capacity to "pay heed" but also the capacity to refuse to listen or to resist (1102b18–19)

[6] See Liddell and Scott, *Greek-English Lexicon*, s.v. *peithô*.

[7] Except in the future and aorist tenses, which, insofar as they have distinct middle and passive conjugations, are distinguishable by appearance.

[8] Allen (2004: 142), also distinguishes, by way of Aristotle, mere obedience from obedience following on persuasion, calling the latter "legitimate persuasion" and a practice of "democratic equality."

gives reason to hear *peithesthai* in its middle voice. For if it were *peithesthai* as passive obedience, refusal and resistance would be foreclosed. That Aristotle analogizes the relation between the parts with and "not without" *logos* to the relation between father and child (*EN* 1102b32–35) gives further reason to hear *peithesthai* in its middle voice: as any parent knows who has ever "exhorted," "admonished," or "rebuked" their child, it is possible to perform these speech acts and still be disobeyed.

What follows? If the *logos* part of the soul relates to the "not without *logos*" part by way of speech, and specifically, by way of speech oriented to middle-voice persuasion, then this fundamentally alters the distribution of power across a soul: insofar as in the absence of persuasion the authority of the *logos* part of the soul will be nil, power lies not only with the part of the soul that speaks through admonition, rebuke, and exhortation but also with the part of the soul that may pay heed or resist, which is to say, with the affective or desiring part. The part of the soul not without *logos*, this means, is as important to the activity of soul as is the part with *logos*, a point Aristotle also makes when he insists that there can be no movement without desire (*EN* VI.2).

If, as noted, *peithô* in its passive voice positions the subject of the verb, here the desiring or affective part of the soul, as the patient, *peithô*, in its active voice (*peithein*), signifying "to deceive, make believe, persuade," positions the subject of the verb, here the speaking part of the soul, as the commanding agent. When we take *peithô* in its middle voice, the subject, again the affective or desiring part of the soul, is both active and passive at the same time: as Bryan Garsten (2006: 7) has put it in reference to persuasion across separate souls, the persuadee "is not merely describing something that has happened to him. . . . He is describing something he has done."

Attending to the presence in Attic Greek of the middle voice, Michael Davis remarks that it "is almost irresistible to think of the middle as a hybrid," "a mean between active and passive produced by splitting the difference" (2011: 206). He argues, by contrast, that the "middle does not allow itself to be deconstructed into active and passive elements" (2011: 207). Instead of "deriving from the combination of active and passive," the middle, he insists, is "fundamental" (2011: 209). For Davis, this is a point about "the grammar of soul" and it is also a point about the soul itself "as simultaneously and necessarily both active and passive" (2011: 220). Insofar as "action is always reaction *to*" and, I would add, reaction is always action, active and passive generate each other as corollaries, with "the two together obscur[ing] the middle voice, which is their common origin" (2011: 220).

On my reading of *Nicomachean Ethics* I.13, understanding the soul "as simultaneously and necessarily both active and passive" alters not only the distribution of power across its parts away from the model of command and obedience, as already noted, but also its very structure. Neither an asymmetrical relation of ruler-subject nor a hierarchizing opposition between reason as rule and affect or desire as subject to reason's rule, soul, as a "both-and" discursive formation, is instead structured by the simultaneously active-and-passive relation of speaking and listening exemplified in middle-voice persuasion.

Speaking of persuasion

Hesiod's *Works and Days* directs us to the importance of persuasion when it is positioned between "he who thinks out everything for himself," on the one hand, and, on the other, "he who neither thinks for himself nor takes to heart what he hears from another." In Hesiod's words, "he too is worthy who is persuaded by another speaking well." Garsten asks: "how similar is the experience of talking to oneself to the experience of being persuaded by someone else?" (2013b: 212). Against the backdrop of my thought experiment so far, we might ask: how might separate human beings relate to one another in the way of the soul, that is by way of persuasion in the middle voice?[9] To answer, I turn to a consideration of the enthymeme in Aristotle's *Rhetoric*.

Treating the enthymeme as "one of [Aristotle's] greatest and most original achievements" (1996: 91), Myles Burnyeat seeks to orient readers of the *Rhetoric* away from the "idea that an enthymeme is an abbreviated syllogism" (1996: 91). Maintaining that the enthymeme is, nonetheless, "fundamentally argument" (1996: 93), Burnyeat takes "the task of a speaker" to be "above all a matter of demonstrating various things" "by presenting considerations for the audience to think about," *enthumêma* in Greek.[10] Claiming that by way of the enthymeme Aristotle fashions "a concept of degenerate deduction that can be applied to contexts where conclusive proof is not to be had" (1996: 99). Burnyeat parses the enthymeme as a "relaxed argument" (1996: 96–99), or "a proof of a kind," by which he means "a proof from which you cannot expect everything you would expect from a valid argument with true premises that are known to

[9] I discuss middle-voice persuasion in Plato in "On persuasion in Plato's *Republic*," forthcoming.

[10] For *enthumêma* as referring "to anything with a connection of thought in it," see also Sachs (2008: 134, n. 4).

be true" (1996: 110). Focused on what he calls giving "good reasons for deciding one way or the other" (1996: 91) or the "thought content of a speech" (1996: 93), Burnyeat treats enthymemes as the arguments a speaker offers to prove his case to the best of his ability (1996: 93).

Burnyeat positions the enthymeme not only against the syllogism but also against what he calls "(mere) persuasion" and attributes to Aristotle's predecessors (1996: 94). That Aristotle distinguishes his project in the *Rhetoric* from the work of "those who have composed the current 'art of speeches'" (1354a12–13) is plain. However, his complaint does not seem to be that his predecessors are interested in "(mere) persuasion," whereas he is interested in something else. His concern is rather that their compositions "say nothing about enthymemes" (1354a11–12), which he calls the "most decisive means of persuasion (*kuriôtaton tôn pisteôn*)" (1355a6, 1356b25–26, 1394a10), the "rhetorical demonstration (*apodeixis rhetorikê*)" (1355a5), which makes up "the body of persuasion" (1354a17, 1356b5). He charges that in failing to address what "might make someone become skilled with enthymemes," his predecessors "show nothing about the means of persuasion intrinsic to the art (*entechnôn*)" of rhetoric, busying themselves instead with things "extraneous to the matter at hand (*exô tou pragmatos*)" (1354b18–22). It appears, then, that Aristotle does not counterpose enthymeme and "(mere) persuasion" but rather aligns them.

Treating the enthymeme as "fundamentally argument," albeit "degenerate" or "relaxed," Burnyeat seems to measure enthymeme by the standard of the syllogism even while orienting away from conflating the two. Focused on "thought content," he seems concerned foremost, as his title suggests, with "the Rationality of Rhetoric." On Aristotle's account, however, enthymemes are not only what a speaker offers to make *his* case to the best of his ability. They are also, as Aristotle puts it twice, "citing an oath taken by Athenian juror-judges," what the audience must consider to the best of *their* ability (1375a29–30, 1402b33–35).[11] Moreover, while it is true that "persuasion is by means of speech whenever we show something that is true, or appears so, from things that are persuasive on each subject" (1356a20), the *only* truth value of enthymemes, as Burnyeat notes too (1996: 93), is what they are accorded by their audience, and even that is only "as if" truth, for, as Aristotle says again and again, when it comes to matters of rhetoric certainty and conclusive proof are not to be had (1358a36–1358b8, 1377b21–1378a6, 1391b8–10, 1420b2–3). If, then, in Aristotle's account of persuasion, the speaker's arguments matter to be

[11] The primary context for the enthymeme is the courtroom (*Rh*. 1368a31–33).

sure, the character of the speaker and also "the one to whom he speaks" (1358b1–2) matter as well.

The verb cognate to enthymeme – *enthumeisthai* – signifies to think about something, or consider it (Burnyeat 1996: 92). Like *peithesthai* discussed in the last section, *enthumeisthai* is a middle/passive verb. Unlike *peithô*, however, which, as we saw, can take an active or a middle/passive voice, *enthumeomai* is a deponent verb: it has no active voice. This means that although, as Burnyeat says, it is the task of a speaker to present considerations, *enthumêmata,* the activity of considering those considerations is the task of the audience. As Aristotle puts it in his definition of enthymeme, it is up to the audience to consider whether "when certain things being the case, something else besides these follows from these by their being the case either universally or for the most part" (1356b13–19). *Enthumeisthai* thus positions the audience not as the passive recipient of the speaker's considerations but as active, a point Aristotle makes again and again in the *Rhetoric* (1358b2–4; 1377b20–35; 1391b8–12).

As the word *enthumeisthai* itself implies, the audience is active, in the first instance, by, in Hesiod's words, bringing into its heart or spirit (*en thumô[i]*) (*EN* 1095b13) what the speaker says. As Aristotle puts it: "persuasion is by means of the hearers whenever they are led on into passion by the speech" (*Rh*. 1356a15). Speeches that are full of enthymemes, he says, get the strongest reaction (1356b25). As with the intra-soul practice of middle-voice persuasion discussed in the last section, which depends on the *logos* part of the soul "speaking in the same voice (*homophônei*)" (*EN* 1102b29–30) as the desiring and affective part, so, too, does inter-soul persuasion depend on the "thought content" or "rationality" of a speech insofar as this is able to reach the *thumos* of its audience. In full recognition of this, Aristotle devotes *Rhetoric* II to an elaborate account of the emotions/passions/affects.[12]

The audience is active in a second sense as well. As Aristotle notes, good enthymemes often omit "premises that the audience can supply for themselves" (*Rh*. 1357a18). On Burnyeat's reading, this "restriction to a small number of premises" is to ensure the enthymeme's "effectiveness" "with an audience of limited mental capacity" (1996: 100). It is true that Aristotle takes the one doing the considering to be, in general, "a simple person," and that he rejects speeches with long trains of reasoning on the ground that they can be difficult to follow (*Rh*. 1357a12–13). However,

[12] For discussion, see the essays by Stephen Leighton, John Cooper, Dorothea Frede, Gisela Striker, and Martha Nussbaum in Rorty (1996); and Aggelopoulou (2012).

Aristotle's examples of enthymemes, taken from dramatists and, perhaps, a philosopher,[13] suggest that at issue is not brevity for its own sake or for the sake of the audience's "limited mental capacity," but rather that the very persuasiveness of enthymemes depends not only on their being taken in by the audience but, as Aristotle says, on audience members *supplying something themselves*.

What the audience supplies are what Aristotle calls in the *Nicomachean Ethics* the "premises and subject matter" or "*logoi*" of the speeches, based on their own life experiences (*EN* 1095a3–4). It is this active role for the audience in supplying what enthymemes omit that explains why Aristotle maintains that enthymemes that "bring the most applause are the sort people see coming as soon as they begin, if they are not superficial (for at the moment that they grasp what is coming they are also pleased with themselves)" (*Rh*. 1400b30–33); why he insists that those who "argue from what they know and things near at hand," the latter of which are also likely to be known to the audience, are more persuasive among crowds than those who "make general arguments in universal terms" (1395b28–32); and why he maintains that "it is necessary (*anangkê*) for means of persuasion (*tas pisteis*) and speeches (*tous logous*) to be made (*poieisthai*) by way of things shared in common (*dia tôn koinôn*)" (1355a28).

Remarking that Aristotle's examples of enthymemes are "impossible to represent" as syllogisms, Burnyeat (1996: 100) offers as his case in point the enthymeme: "No man who is sensible ought to have his children taught to be excessively clever, for, quite apart from becoming idle, they earn jealous hostility from the citizens" (1394a26–34). Burnyeat explains: "the children have to appear both as the subjects who earn hostility and as the objects of the verb 'to teach' inside the predicate of the maxim, and this is something that syllogistic cannot represent" (1996: 101). What Burnyeat shows to be distinctive of the grammar of the enthymeme mirrors what Davis, as we saw in the last section, shows to be distinctive of "the grammar of soul": as "simultaneously and necessarily both active and passive" (Davis 2011: 220), both the enthymeme and the soul exemplify the grammar of persuasion in the middle voice.

In the case of the soul, this grammatical point was also a point about the structure of soul as a fundamentally discursive formation and about how

[13] Aristotle's examples of enthymemes in *Rhetoric* II.21 are mostly from Euripides (*Hecuba, Medea, Trojan Women*), although two of them are "sometimes attributed to Epicharmus," a philosopher (Sachs 2008: 225, n. 143).

that goes missing when it is parsed into an asymmetrical active-passive binary, with reason leading and desire/affect obeying. Analogously, in the case of the enthymeme, this is a point about the grammar of the enthymeme and also about the discursivity of the relation structured by the enthymeme – its dependence on both active and passive speaking and listening – and how that goes missing when it is analyzed solely in terms of what Burnyeat calls its "rationality." Enthymeme involves activity on the part of the speaker, whose task is to come up with the *logos* to be heard, and also passivity, for the speaker must take into consideration what will be taken to heart by his audience. Enthymeme involves activity and passivity on the part of the audience, whose task is to listen and take in and also to supply the enthymeme's missing premises. In these ways, enthymeme exemplifies the intra-soul practice of middle-voice persuasion distributed across souls.

Speech in the city

In *Politics* I, Aristotle says, as noted, that "*logos* is for disclosing what is advantageous and what is harmful, and so too what is just and unjust . . . and it is an association involving these things that makes a household and a city" (1253a14–1253a18). In *Rhetoric* I, Aristotle calls speeches about what is advantageous and harmful, advisory (*symbouleutikos*) speeches, maintains that these kinds of speeches proceed by way of ethical modes of proof, and that for these speeches, oriented to future possibility and conducted by way of exhortation and admonition, it is the character of speakers that matters most. He calls speeches about what is just and unjust, forensic, judicial, or courtroom (*dikanikos*) speeches, maintains that such speeches proceed by way of logical proof, and that for speeches in this category, oriented to the past and conducted by way of accusation and defense, the speech itself matters most. He also describes epideictic, ceremonial, or display speeches that, proceeding by way of emotional proofs, are about praise and blame, and are oriented to the present. The focus of epideictic speeches, he says, is the audience (*Rh.* 1358a34–b30).

After setting up this careful taxonomy, Aristotle proceeds over the course of the *Rhetoric*, just as he did in his account of the soul in the *Nicomachean Ethics*, to destabilize the distinctions he has introduced: advisory speeches turn out to be about present and future (*Rh.* 1366a18); it turns out that "most decisive" for persuasion, regardless of the kind of speech, is sometimes the speaker (1356a14–15, 1365b25), sometimes the speech itself (1355a7–80), and sometimes the audience (1358b3–5, 1391b11–12); and, as noted in the last section, it turns out that emotions matter a lot

for every kind of speech, for the audience's emotions affect how they hear what is said (1356a16–19, 1377b31–35). Aristotle's destabilizations of his own categories help bring to light the ways in which city speech, like the *logos* of soul and enthymeme, is a practice of middle-voice persuasion.

According to Aristotle, the speaker matters in an advisory speech because his trustworthiness affects his capacity to persuade.[14] A speaker inspires trust by appearing to entertain appropriate feelings toward his audience, and he appears in this way in virtue of his good character, goodwill, and good sense (*Rh*. 1378a5–15, 1366a12, 1356a5). Insofar as the speaker need only *appear* to entertain the appropriate feelings and *appear* good (1378a15), Aristotle's account may seem to put the speaker, as the one who controls how he appears, in control of his audience as well, as long as he is an expert in emotions, as elaborated in *Rhetoric* II. So read, Aristotle's *Rhetoric* is a how-to guide for persuasion that, analogous to the model of *logos* as reason in the soul, positions the speaker as the commanding agent.

Consider, however, Aristotle's description of advisory speech as least given to unscrupulous practices and to talk about inessentials owing to the fact that those forming judgments are making decisions about their own interests (*Rh*. 1354b30). Who forms judgments? There is the speaker who must form a judgment about what to say and how to say it; his interest, it seems, is in persuading his audience to his point of view. The audience, too, must form a judgment about what they hear, and their being moved by their own interests is, in Aristotle's view, not a bad but a good thing (*Rh*. 1355a3–4). Indeed, that the audience is moved by their own interests appears to hold the speaker accountable to them. How?

As we have seen, to be persuaded an audience must trust that a speaker has their interests at heart when he advocates a particular course of action. If, by contrast, he appears to care more about his own material advancement or power, or if he appears to care about these in a way that may adversely affect the interests of the audience, then the audience will be less inclined to trust the speaker and therefore to support that for which the speaker is advocating. Thus, a speaker must appear *to his audience* to be entertaining appropriate feelings toward *them* and his character, goodwill, and good sense will show themselves (or not) in the *logoi* they hear. It is the audience's capacity to trust or to withhold their trust based on that appearance and those words that holds the speaker accountable. The capacity to trust or withhold trust also alters the distribution of power

[14] On the imperative of "trust production" for politicality and on the role of speech in generating the goodwill that conditions trust, see Allen (2004), Part II.

across speaker and audience. Like soul speech and like the enthymeme, the speaking and listening characteristic of city speech imply simultaneous and necessary activity and passivity on the part of both speaker and audience.

Aristotle describes advisory speech as "of greater beauty and greater civic importance" (1354b24) than other kinds of speech insofar as it has to do with the well-being of the city as a whole (1354b28). How, against the backdrop of the play of interests just described, might such speech orient to the well-being of the city *as a whole*? Given Aristotle's own frequent recourse to the tragedies, let me answer by way of an example from Aeschylus' *Eumenides*, which I take to illustrate advisory speech in broadly Aristotelian terms, before I return, by way of conclusion, to Aristotle.

Toward the end of the *Eumenides*, after Athena has cast the tie-breaking ballot that acquits Orestes of the murder of his mother Clytemnestra, Aeschylus stages Athena's engagement with the Erinyes, who represented Clytemnestra at the trial. It is an understatement to say that these chthonic gods, avengers of patricide and matricide, are not satisfied with the verdict. Accusing Athena of riding "down the laws of the elder time," and describing themselves as "disinherited, suffering, and heavy with anger," they threaten to "let loose on the land" a "vindictive poison" that will tear Athens apart (778–91). In response to their threats, Athena commands: "Listen to me. I would not have you be so grieved." She reasons: "For you have not been beaten. This was the result of a fair ballot which was even." She exhorts: "Do not be angry any longer with this land nor bring the bulk of your hatred down on it. Do not render it barren of fruit, nor spill the dripping rain of death in fierce and jagged lines to eat the seeds." She promises: "In complete honesty I promise you a place of your own, deep hidden under ground that is yours by right" (792–805).

Athena's speech is an utter failure. We know because, like children who ignore their parents by chanting the same thing again and again with their hands over their ears, the Erinyes, when they speak next, repeat their first speech (778–91) verbatim (808–22).

Athena tries again. "Do not in too much anger make this place of mortal men uninhabitable," she rebukes. Then she threatens: "I have Zeus behind me. Do we need speak of that? . . . Be reasonable," she exhorts, adding "here is a big land, and from it you shall win first fruits in offerings for children and the marriage rite for always. Then you will say my argument was good" (824–36).

The Erinyes do not say that her argument was good, however. Instead they reconfirm their "fury" and "hate." Still, insofar as they do not merely

repeat their first two speeches and, in their response, refer, for the first time, to their "agony," something appears to have changed (837–47).

Athena replies: "I will bear your anger." Appealing to the Erinyes not to "engraft" among Athens' "citizens that spirit of war," she acknowledges their wisdom and offers them not merely a place of their own, as she had in her first speech, but a "place of eminence," saying: "Such life I offer you, and it is yours to take. Do good, receive good, and be honored as the good are honored. Share our country, the beloved of god" (848–69).

Continuing to resist, the Erinyes answer this time (870–80) with the exact words of their third speech (837–47).

Athena comes back again: "I will not weary of telling you all the good things I offer, so that you can never say that you . . . were driven unfriended from the land." And then: "If you hold Persuasion has her sacred place . . . then you might stay with us . . . if you wish to stay" (881–91).

To this, the Erinyes reply: "What is this place you say is mine?" Athena answers: "A place free from all grief and pain. Take it for yours" (892–93). Accepting "this home at Athena's side" (916), the Erinyes, it appears, are persuaded. By what exactly? Not by the commands, reasons, exhortations, or promise of Athena's first speech, nor by the exhortations, rebuke, or threat of her second. Or, more accurately, not by these alone, for to these, as we saw, the Erinyes are depicted as refusing to pay heed.

Invoking Persuasion separately (885), and crediting "Persuasion, who guided the speech of my mouth toward [the Erinyes], when they were reluctant and wild" (970–71), Athena persuades insofar as she appears to the Erinyes to be entertaining the appropriate feelings toward them ("I will bear your anger" [847]) and to have their interests at heart. Inspiring their trust, she is able to orient their interests (their inheritance [780]) as well as her own (the stability and security of Athens [857–62]) to the well-being of Athens as a whole ("Do good, receive good, and be honored as the good are honored. Share *our* country, the beloved of god," emphasis added, [868–69]). She does so by way of a redistribution of power, giving to them "the handling entire of men's lives" (929–30).

Nothing guarantees that the "difficult to soften" (929) Erinyes will remain persuaded. On the contrary, symbolizing the always ongoing possibility of their threat to Athens, the sanctuary of the Erinyes, placed under the site of the court, is under the Hill of Ares (685–90), the god of war. And yet, against the backdrop of the cycle of revenge killing and retaliation that structured the first two parts of the *Oresteia*, the verdict appears to be final and authoritative, for now a rule of law.

The suggestion seems to be that the rule of law is constituted not by command (not even of the goddess of wisdom) nor by obedience to command (the Erinyes refuse to obey even when threatened by force until they are persuaded), but by the *logos* of a political speaker, which receives its authority by being granted authority by way of the simultaneous active and passive speaking and listening characteristic of middle-voice persuasion. The activity of Athena was to "not weary in telling [the Erinyes] all the good things" and her passivity was to "bear [the Erinyes'] anger," a repercussion of taking into consideration what they could take to heart. The activity on the part of the Erinyes was twofold: to be guided by their own interests, which supply to Athena some of her missing premises;[15] and also to take to heart Athena's words and the goodwill, good sense, and good character those words made manifest as they changed over time.

The Erinyes, who had been intent on tearing Athens apart, become, over the course of their persuasion, the Eumenides, committed to Athens' preservation (976–78). Athena changes too, as is implied not only by the way the content of her speeches changes, as we have seen, but also by the form of her speech: after the Eumenides accept their "home at Athena's side," her speeches for the remainder of the play are chanted (927–1047), as those of the Erinyes have been from the start. Appointed by Athena to be preservers of Athenian society – of home and city – the Eumenides at the end of the play and "for always" (835) will rule side by side with Athena. The play ends with Athena and the Eumenides chanting together (1032–49), that is, as Aristotle puts it describing middle-voice persuasion in the soul in the *Nicomachean Ethics*, "speaking in the same voice (*homophônei*)" (1102b29–30).

In the context of Aeschylus' drama, the *logos* of politics appears not to mark out and consolidate static hierarchies but, as a practice of middle-voice persuasion, to alter both the natures of political agents and political rule. Disclosing what is advantageous and what is harmful against the backdrop of plural and conflicting interests, *logos*, insofar as it is a practice of middle-voice persuasion, is able to orient those interests toward a "common thing" (*Pol.* 1254a28), and thus to the constitution of a shared political association (*Pol.* 1253a18), capable of taking into account the good of the whole (*Rh.* 1354b28).[16]

[15] As is evidenced by the fact that their advocacy to "Refuse the life of anarchy; refuse the life devoted to one master" (526–29) is mirrored in Athena's "No anarchy, no rule of a single master" (696).

[16] The structure and process models here "use friendship," as explored by Aristotle in *Nicomachean Ethics* VIII (Frank 2005: chapter 5).

Politics and persuasion

In *Politics* I Aristotle maintains that the relation between the parts of the soul is a good model for relations between citizens (1260a4) (Garsten 2013b: 212). For those who take *logos* as reason to legislate and affect to obey, Aristotle's soul-city analogy, as we saw, produces a static and stratified hierarchy between citizens who rule and those who are ruled. However, Aristotle is critical of constitutions in which some citizens only rule and some only are ruled. These, he says, tend toward oligarchy and other modes of governance oriented to mastery (*Pol.* 1295b15–25; 1327b24–29). Maintaining that "he who has never learned to obey cannot be a good commander" (*Pol.* 1277b12–13) and that "he who would learn to command well must . . . first learn how to obey" (*Pol.* 1333a1–2), Aristotle says that "the same person must first be ruled and then rule" (*Pol.* 1333a12). Those who are ruled, it seems, must have the capacity to rule, and those who rule, it seems, must have the capacity to be ruled.

How can the capacity to rule emerge from the activity of being ruled?[17] Middle-voice persuasion offers an answer: Involving not merely taking in what has been said, which mirrors and instantiates the capacity to be ruled, but also making what has been taken in into a rule for oneself, which mirrors and instantiates the practice of ruling, the simultaneous and necessary activity and passivity of middle-voice persuasion thus develops the capacity for ruling even as it secures the obedience required to be ruled. So understood, the *logos* of middle-voice persuasion turns out to be especially important for the kind of rule that Aristotle associates with good constitutions – rule in the common good (*to koinê[i] sumpheron*) (*Pol.* 1279a16–20, 1283b43, 1289a26–30) – for in the absence of such persuasion, although rule may secure and be secured by mere obedience, that rule will not be authorized, and when rule is not authorized, the polity will be without *homonoia* or political friendship. At stake, then, in the relation of *logos* and politics is, as Aristotle tells us, and as Aeschylus demonstrates in the *Eumenides*, the common thing (*hen ti koinon*) (*Pol.* 1254a28–33) that is the political association (*koinônia*) itself (*Pol.* 1253a18).

Where, against this backdrop, does Aristotle's study of *politikê*, his speeches or *logoi* about *politikê*, fit?[18] Offering no blueprints for correct ethical or political behavior or abstract or formal doctrines, Aristotle's *logoi*

[17] For detailed discussion of the reciprocal and dynamic relation between capacity/power (*dunamis*) and activity (*energeia*) in Aristotle's ethics and politics, see Frank (2005: chapter 1).

[18] This paragraph and the next three overlap with material in Frank (2006).

produce no transparent prescriptions or commands. They also demand no obedience. Instead, insofar as they use paradox and inconsistency; insofar as they incorporate or refer to the works of earlier Greek poets, historians, and philosophers; and insofar as they bring the particular, different, and conflicting opinions of the many and the wise into dialog with one another by way of the endoxic (from *doxa*, opinion) method, Aristotle's speeches about *politikê* themselves model the practice of middle-voice persuasion.

Consider, for example, Aristotle's treatment of natural slavery in the first book of the *Politics*. Judged by the standard of *logos* as reason, Aristotle offers a defense of natural slavery that is incoherent because it is full of inconsistencies: He says that slaves lack the deliberative element (*to bouleutikon*) (1260a12–13) and also that if they did not participate in reason (*koinônôn logou*) (1254b22–23, 1259b29, 1260b6–7), they would not be able to execute their masters' orders (1255b34). He says that slaves are not capable of self-rule (1254b21) and also that they have the excellence necessary to fulfill their functions (1259b22–29, 1260a35–36). He distinguishes slaves from children on the ground that children possess the deliberative element, albeit in an immature form (1260a13), and, in language resonant with *Nicomachean Ethics* I.13, insists that the proper response to slaves, even more than to children, is admonishing (*nouthetêteon*) rather than command (*epitaxis*) (1260b5–7).

In the face of these inconsistencies, it could be that Aristotle invokes the following passage from Euripides' *Iphigeneia in Aulis* (1252b8–9) to establish a clear distinction between foreigners as natural slaves and Greeks as naturally free: "'It is meet that Hellenes should rule over non-Greeks'; as if they thought that the foreigner and the slave were by nature one." However, what if, against the backdrop of the argument of this essay, we treat Aristotle as engaging *his* audience enthymematically?[19] What if, by incorporating this passage from "the poets" (1252b7), as, we saw, is typical of his examples of enthymemes in the *Rhetoric*, and hence by way of "things shared in common (*dia tôn koinôn*)" with his audience (*Rh.* 1355a28), Aristotle is opening an opportunity for his audience "to supply for themselves" (*Rh.* 1357a18) the "premises and subject matter (*logoi*)" (*EN* 1095a3–4) of his *logos*?

If we take up this opportunity, we might ask, with Michael Davis, whether this passage might call into question rather than secure any straightforward opposition between foreigners as natural slaves and Greeks as naturally free: "Iphigeneia, who is speaking, is about to be sacrificed by her father, Agamemnon, to propitiate the gods so that the Greeks can

[19] Lockwood (Chapter 4 in this volume) raises the same question in his examination of Aristotle's praise of Carthage.

continue their expedition against Troy. Is this less barbaric than treating women as slaves? Iphigeneia is a living instrument used for the sake of an action" (1996: 17).[20]

And what if Aristotle's inconsistencies in his accounts of natural slavery, and also in his account of the rule of law (*Pol.* III.10–11, 15–18) for example, invite not recourse to the standard of *logos* as reason and the conclusion that Aristotle is incoherent but invite instead recourse to *logos* as speech and to the possibility that Aristotle's *logos*, like the enthymeme (*Rh.* 1358a36–1358b8, 1377b21–1378a6, 1391b8–10, 1420b2–3), is, in virtue of the uncertainty of *its* subject matter (*EN* 1104a4, 1094b21–30), unable to determine conclusively who, if anyone, may be a slave by nature or which is better, the rule of law or the rule of men?

Finally, what if, by bringing conflicting opinions between the many and the wise into conversation with one another and orienting them in a way that draws on both sets of opinions but appears to fully endorse neither, Aristotle's endoxic method, visible in his treatment of citizenship (*Pol.* III.1–2), for example, models the play of interests characteristic of advisory speech, as discussed in the last section?

Reading Aristotle's study of *politikê* in this way, that is, as exemplifying what Hesiod calls the "speaking well" oriented not to mere obedience but to persuasion in the middle voice, invites the audience of his study into a simultaneously passive and active relation to his *logoi*: Hearing his speeches, we may take them to heart (*en thumô[i]*), and considering them, we may be persuaded to become otherwise than we are. If we change, that is because of what Aristotle's texts say, to be sure, and also, and perhaps more so, because of how we hear them. Thus, it is by inviting readers into "conversations about the advantages and limitations of individual ways of life . . . and specified forms of common partnerships" (Mara 2000: 855–56), that Aristotle's study of *politikê*, comprising his *Nicomachean Ethics, Politics*, and *Rhetoric*, like the other examples of middle-voice persuasion explored in this essay, may bring about change not only in the natures of those who engage his texts, but also in the political associations those audiences participate in and (re)produce.[21]

[20] Davis (1996: 17) analyzes Aristotle's subsequent (1252b12) quotation from Hesiod's *Work and Days* (1.405) to raise a similar question.

[21] For their comments, questions, and suggestions, I thank Daniela Cammack, Bryan Garsten, Michael Kicey, Thornton Lockwood, and Gerald Mara. I thank the editors of this volume for inviting my contribution. The translations I have used are Rackham (1932), Rackham (1934), Grene and Lattimore (1992), Everson (1993), and Sachs (2008). Modifications are indicated by square brackets.

CHAPTER 2

Is politics a natural science?

Pierre Pellegrin

In the endlessly rich chapter I.2 of Book I of Aristotle's *Politics*, two intertwined doctrines deserve attention for at least three reasons: they have sometimes been misinterpreted to the point of caricature, they play a cardinal role in the political philosophy of Aristotle, and they have extremely important epistemological consequences for Aristotelianism in general. The first of these doctrines concerns the origin of the social bond. The second provides, in a remarkable form, a *natural* foundation for some human associations, notably the family and the city. Moreover, it involves not only a reference to nature, but also a recourse to a methodology that is normally applied in natural science. For this reason, one may wonder here if Aristotle – who, we should remember, is the founder both of biology (a term that he does not employ) and of political science – does not advocate in this chapter a kind of natural (or, more precisely, biological) science of human societies. However, even if he is the only one who has the theoretical resources to do so, Aristotle *cannot* conceive of a political science that would be included in the natural sciences, because, according to him, different genera give rise to different sciences. In fact, if one was obliged to find one absolutely fundamental difference between Plato and Aristotle, he or she would without doubt focus on this point, namely that Aristotle refuses to refer to a universal science based on the model of the dialectic of the *Republic* or the tree of knowledge of Descartes, according to which all particular sciences are parts of a whole and therefore the same principles apply to all things.

If this is true of two theoretical sciences such as geometry and arithmetic, it must be even more so for a theoretical science like biology, which is a major part of physics, and politics, which is a practical science. Theoretical and practical sciences differ in fact, not only in terms of their methods and of the concepts that they employ, but also in terms of the status of their objects as well. How then should we understand the famous formulation according to which "a man is by nature a political animal," especially given

that our chapter compares human beings with other animals in this respect? In fact, the naturalization of social and political relations goes quite far and is founded upon a conception of the origin of human societies that almost no one has shared.

An original conception of the origins of human society

Historians of political philosophy are used to insisting on a basic opposition that, in antiquity, contrasted those who considered social bonds and ethical and political norms to be natural, with those who believed that these bonds and values were conventional. Thus, certain sophists had claimed that everything social is conventional, whereas Aristotle or the Stoics argued that it is Nature that induces human beings to live together. In fact, this divergence is slight when compared to a more fundamental consensus. According to William Guthrie, notably in his famous *History of Greek Philosophy*, this consensus was established as early as the fifth century BC and was characteristic of the "scientific" period, which followed the "mythical" one. During this later period, the dominant scheme described the establishment of the actual human societies as the result of a fall or a degeneration following a golden age. This fall, which was due to an error by humans, produced the subsequent era. According to Guthrie, one finds summarized in a famous passage of Diodorus Siculus an "evolutionary view of culture as the daughter of necessity [which] is to be found, identical in outline and in many of its details, in Aeschylus, Euripides, Critias, Protagoras, the Hippocratic *On Ancient Medicine*, and the evidently fifth century source of the prehistory in Diodorus I, 8."[1] One must add to this list Plato and many of the subsequent philosophers and historians.

According to this common assumption, which, we should note, is roughly that shared by the majority of our contemporaries, human beings *learn* from their needs and through their mistakes how to survive. For example, those who were cold invented clothing, those who had trouble digesting raw meat invented cooking, and, above all, when they realized to what extent they were vulnerable in their isolated state, human beings formed communities. In the *Republic*, for example, Plato demonstrates that human beings form associations because "none of us is self-sufficient, but has many needs" (II, 369B). People get together in cities, then, because

[1] Guthrie (1965: 473). There is much to be learned from the remarkable small work, which Guthrie published in London in 1957: *In the Beginning: Some Greek Views on the Origins of Life and the Early State of Man.*

they think "it is going to be better for us," and that is what "produces the city is our needs." In the myth of Protagoras, the gods themselves must learn from human history, since Zeus and Prometheus are obliged to "revise their script" after noting that the situation they had established was leading to the extinction of the human species. So they had to give to humans the qualities that would impel them to live in society. Only the Cynics (and, as we shall see, up to a certain extent Aristotle) thought that human beings are *naturally* self-sufficient. However, since all thinkers attributed a natural basis to human needs (which does not signify that *all* needs can be said to be natural), one realizes that the naturalists and the conventionalists are not so different from each other, because institutions and social values, whether they are conventional or not, have a natural foundation.

Aristotle surely recognizes that needs play a role in establishing and developing of human associations.[2] The family, which we shall discuss in more detail later, secures the satisfaction of some of the needs of its members. Aristotle even shares Plato's point of view in the *Republic*, according to which there is a development of needs, in which the satisfaction of one need creates another one. Thus, in our chapter I.2 of the *Politics* he says that the family is "for the satisfaction of the purposes of every day" and the village "for the satisfaction of other than daily purposes" (1252b12, 16).[3] The text appears to be stating that it is the appearance of new needs that brings about the appearance of the village and not the opposite. Nevertheless, Aristotle does not say enough about the village to allow us to affirm that for him the existence of the village does not become a factor in the creation of new needs. However, need is only one of the causes, and it is not the principal cause that leads human beings to found families and cities. In a well-known passage of *Politics* III, Aristotle, after having repeated the famous formulation that makes its first appearance in chapter I.2 and according to which "a man is by nature a political animal," affirms that "even when they need no help from each other, [human beings] none the less seek companionship. At the same time their common interest brings them together, in so far as there falls to each of them some part of the good life" (III.6, 1278b20).

Moreover, Aristotle recognizes that there is progress in human history. Although, for him, there is not a specific moment when human beings

[2] Cf. *Pol.* VII.10, 1329b27: "it seems that our needs teach us what is necessary to us."

[3] English translations used (occasionally adapted): Saunders (1995), Robinson (1995), Rowe and Broadie (2002), and Thompson (1910).

make their appearance, as is the case in myths, he is among those who think that periodic cataclysms bring humanity back to a primitive condition and force it to go through the path of culture from the beginning.[4] Far from regretting the loss of a "golden age," Aristotle shows no reverence for the old, and, for him, human beings in their original state resemble "ordinary, simple-minded people" (*Pol.* 1269a6). The admiration of human beings who are "close to nature" that one finds in authors like Plato is definitely not Aristotle's cup of tea. Therefore, in this story, the human needs, which generate further needs, and also human ingenuity are a driving force in the development of communities. Aristotle does not say explicitly, to my knowledge, that this is something uniquely true of humans; however, he does not attribute this sort of development of needs to any of the other animal species.

If it is neither the needs, nor the inventiveness, nor the experience of humans that ultimately explain what makes human beings live in society, what answer does our chapter I.2 of the *Politics* give to the question of the origins of society? In this chapter Aristotle is certainly not acting as a historian, but his text is still presented in the form of a sequence in which the stages follow each other according to a necessary order. Human beings "at first" (*prôton*, 1252a26) form an association called "family" (or "household," as the Greek term *oikia* is often translated) having two principal goals: to reproduce and to secure their "protection." In this first stage, Aristotle differentiates himself from the received view discussed earlier, because he nowhere claims that it is these needs that give rise to the creation of the family; he does not say that the family was a *response* to the needs for reproduction and mutual protection among human beings either. These relations are described as *"necessary"* relations of people who "are incapable of existing without each other" (1252a26).

When Aristotle declares that, in human beings, reproduction is not a "considered choice" (1252a28), this cannot be understood except within the framework of a causal explanation including several levels, some of which are more important than others. Not only is Aristotle aware that human beings can produce offspring when they want, at least most of the time, he also thinks, like Plato, that a well-governed city must control the period and the timing of births. Nor does Aristotle assert that nature might make use of sexual pleasure as a ruse to achieve its end, that is to say, in order to secure the survival of the species. It is true that some animals, and, at any rate, some human beings, mate in order to have pleasure and this search for

[4] Cf. *Metaph.* XII.8, 1074b10; *Mete.* I.3, 339b27; *Cael.* I.3, 270b19; *Pol.* VII.10, 1329b25.

pleasure is indeed one of the causes for the resulting child. However, the principal cause of human reproduction is that people possess "a tendency to leave behind another such as one is" (1259a29), a tendency that they share with all living things, including plants.[5]

The same is true for the second function assigned to the family, "protection." Supplementary evidence that Aristotle does not do either history or sociology comes from the fact that he bases protection only on the relationship between master and slave, without indicating whether there exist other means for securing protection and what they might be. Undoubtedly, this is the case because the question of slavery, to which Aristotle devotes more than half of Book I of the *Politics*, is among the problems that are discussed in his era and demand a response on his part.[6] One might repeat two points that we have already made: slaves serve to satisfy the needs of free people and Aristotle does not hesitate to endorse the view that the only dignified life for a free man is a life of leisure. In *Politics* I.7, 1255b35, Aristotle even advises men who are able to assign to a supervisor the task of commanding their slaves to do so, "while they themselves engage in politics or philosophy." Nevertheless, it should once again be emphasized that this does not explain slavery, and certainly does not justify slavery, at least that form of slavery that Aristotle calls "natural."

The domination of the master over his slave in natural slavery, but also the authority of the husband over his wife, are only particular applications of a hierarchical structure that encompasses the whole of Nature (I.5, 1254a31). The functioning of this structure requires the cooperation of elements that are hierarchically ordered and extend even to nonnatural realities like harmony. The animal kingdom reveals such relationships of natural subordination, such as the protection of the whole of animal society, for example, among bees. Collective tasks follow from these natural relations and, in the end, every individual finds a kind of self-fulfillment of his or her proper nature. The principal cause of the existence of legitimate slavery is therefore that there exist *by nature* some human beings who are made for freedom and some who are made for slavery.

[5] Other texts of Aristotle offer the true perspective of this doctrine. So, in *De Anima* II.4, 415a26, one reads that "the most natural function of living things which are complete and not defective and which are not reproduced spontaneously is to produce another being similar to them, animal producing animal, plant producing plant, so that they can participate in eternity in the measure that it is possible; because they all desire this and it is for the sake of this that they do all they do by nature." Cf. also *GA* II.1, 735a17; I.23, 731a24–b8; III.10, 760a35.

[6] There is one more reason for such a long study of slavery: One understands better the paradoxical form of power that is power among equals (political power), when one knows the form that is most distant from it, despotic power. Cf. Pellegrin (2013).

The family thus exists *principally* because Nature has given humans a tendency to leave offspring similar to themselves and because Nature produces humans with different qualities. By doing this Nature invites humans, in some way, to create hierarchical associations in order to produce a common result, some of them working so that others can maintain a life of leisure. Is not Aristotle then happy to use a tautology that borders on the ridiculous? Does he not propose an explanation hardly better than the explanation that opium brings sleep because it has sleeping effects?

Our perplexity can only grow when we move to the next stage of the Aristotelian narrative, the village (*kômê*). When, in fact, Aristotle affirms that the village is a "fully natural reality" (1252b16), we must understand that this naturalness is different from that of the family. For example, Aristotle does not invoke any "village tendency" independent of the voluntary choice of the agents, rather, as we have seen, a development of needs that are no longer simply the needs "of every day." Without doubt, and this despite the fact that Aristotle says little about the village and is scarcely interested in it, the village is natural because it consists of associations, namely the families, which are natural. This is a valid, but feeble, reason, since in the *Politics* Aristotle gives examples of nonnatural associations formed by natural parties, such as military alliances or economic unions, which are entirely conventional although they are formed from the natural societies that are cities (III.9, 1280a34). The logic of the formation of those associations is the same as that of the formation of the village: It is need. One realizes that need, even if it has a natural basis, is not automatically an indicator of naturalness.

The last of the natural societies, envisaged in our chapter I.2, is the city (polis) or "political community" (*koinônia politikê*). Aristotle first proposes a demonstration of the naturalness of the city similar to that of the naturalness of the village: "every city exists by nature since the first associations did too" (I.2, 1252b30). This demonstration falls under the point of criticism made earlier. However, the fundamental reason of the naturalness of the city comes almost immediately, as if Aristotle corrects himself: The city is natural because it is the end and the nature (the end, namely the nature) of the communities of which it is composed. This is true of no military alliance. The city is the perfect natural society because it is an organic composite that gives meaning to its parts and is not itself the composite part of any higher *natural* reality. Aristotle explains these two characteristics by saying that the city is prior to families and individuals (1253a19), and that it is perfect (*teleia*) and "autarkic." The former

characteristic refers to the famous doctrine of the two priorities:[7] from the point of view of their generation, the parts come before the whole (priority for us); and from a conceptual point of view, it is the whole that is prior, because the parts find their function and are defined in relation to the whole (priority by nature).[8] As for "*autarkeia*," this Greek term has, as its English equivalent "self-sufficiency," an economic meaning, according to which, Aristotle says in the *Politics*, "self-sufficiency is having everything and needing nothing" (VII.5, 1326b29). However, the concept possesses, in Aristotle, a more developed sense, and it is this sense that is pertinent to the description of the autarky of the city, so that the autarky of different communities is relative. The family is regarded as autarkic above all because it can by itself guarantee the subsistence of its members. Whereas the city is said to have "reached the limit of total self-sufficiency, so to say" (1252b28), the limit that signifies that it is not only economically independent, but it also has an autarky that one might call political. *Politics* VII proposes a distinction that somewhat clarifies this notion of "political autarky" – an expression that Aristotle does not use. Aristotle writes that a city with insufficient population will not be self-sufficient, in the ordinary sense of "autarkic," because this city will not be able to secure the sustenance of its citizens. He adds that the city with a large number of citizens "is self-sufficient in its supply of necessities, as is a nation, [but] is none the less no city," because a really political life is impossible for them (VII.4, 1326b2 ff.). A city is autarkic when it is the master of itself, does not receive its *sense* of community from the outside, and functions as a city really does. Therefore, one knows that for Aristotle, as it is the case for Rousseau, a city in which the citizens cannot assemble in one place and do not know each other loses the character of a (political) city.

In the case of the formation of the city, needs play a part as well. That is how, in my opinion, one must understand the remark that Aristotle makes in 1259b29: "the city comes into existence for the sake of life,

[7] Cf., among other texts, *APo.* I.2, 71b34.

[8] One often misinterpreted passage of the *Nicomachean Ethics* cannot possibly be understood except in light of this distinction between the two types of priority. In VIII.14, 1162a17, one reads: "for man is naturally a coupler more than he is naturally a civic being, to the extent that a family is something prior to and more necessary than a city." The *Eudemian Ethics* advances the same idea when it says that man is "an economic animal" (VII.10, 1242a23), that is, that he is naturally a member of the family. This is evidently a priority for us or a chronological priority. As for the fact that the family is more necessary than the city, Aristotle undoubtedly means that before one is able to aspire to the "happy life," which is the objective pursued by the city, it is necessary to live, and this necessarily presupposes the existence of the family.

[but] it exists for the sake of the good life." It is to live, and to live better than before, which is to say to better satisfy numerous and more sophisticated needs, that people constitute a city. They therefore conceive the passage from the village, or the association of villages (cf. 1252b27), to the city on the model of the passage from the household to the village. However, Aristotle finds that once elevated to the status of citizens, people are offered the possibility of an ethical self-realization that was not available to them either in the life of the household or in that of the village; this is what Aristotle calls the "happy life," which is another name for happiness. However, as in the case of the family, the principal cause of the appearance and the existence of cities is that "the impulse towards this kind of association exists by nature in all human beings" (1253a29) or, to state the same thing in another way, "man is a political animal by nature."[9]

"Human Beings as Political Animals in Aristotle"

A 1980 article by Wolfgang Kullmann with this title can serve as our point of departure.[10] It rightly points out that "political" is one of the properties that Aristotle attributes to certain animals in his zoological treatises. The *History of Animals*, in fact, in its division of animals according to their characteristic differences, calls "political" the animals that not only live together (and in this view are distinguished from solitary animals), but that also accomplish some "communal work." This work distinguishes political animals from gregarious ones that merely live in proximity to each other. Therefore, bees are political animals, whereas eagles are solitary and sheep are gregarious. We must therefore explain the "political" character of human beings in the way that one explains that living things are endowed by nature with a determining characteristic. Kullmann finds, then, that the "political" character does not form part of the definition of the human being, because it is neither his or her essence, nor one part of his or her essence (and Kullman rightly criticizes those who talk about the "definition of the human being as a political animal"). According to the *History of Animals*, this is not even an essential characteristic of human beings. Since,

[9] For Aristotle, men are naturally superior to women and this is true in almost every realm, and notably in the ethical realm, as he explains in the last chapter of Book I of the *Politics*. Only men can be citizens and it is the men who manifest the "political" character to the highest extent. Similarly, barbarians are excluded from the political field. One can therefore say that women and barbarians are "political" in a sense less complete than men but undoubtedly more developed than bees.

[10] Translated into English as Kullman (1991).

moreover, one cannot accept that human beings are political by accident, in the sense that they can be political at certain moments but not at others, the remaining possibility is that "political" is what Aristotle terms an "accident in-itself," that is, a property that belongs in itself to a subject, without being part of its essence. In Aristotelian epistemology, "accidents in-themselves" are the proper objects of demonstrative science. *Prima facie*, one should therefore think that the famous passage of *Politics* I.2, 1253a7 signifies that human beings are "*more* political than any bee," not that they are "political *rather than* any bee," both meanings being possible in Greek. I will return to this point.

The property of being "political" falls, for the animals, under the category of their "manner of life," the other three categories being "their activities, their character, and their parts" (*HA* I.1, 487a10). The main goal of the study of animals undertaken by Aristotle is to propose a causal explanation of all the characteristics listed in the *History of Animals*. This is what Aristotle endeavors to accomplish mainly in *On the Parts of Animals* and in *Generation of Animals.* Thus, for the "parts," a principal object of Aristotle's zoology, one needs to know why this organ possesses these properties, why it belongs to this animal, and how it cooperates with the other organs in the harmonious functioning of the whole organism. For this purpose, Aristotle uses several processes of explanation. For example, to explain why horned animals have horns, he says that they have in them a large quantity of earthly material, which needs to end up in some part of them. However, the cardinal procedure, and the one dominant in the zoological treatises of Aristotle, consists of an analysis of the situation of every species in terms of positive and negative factors, the sum total of which makes its eternal survival possible. This is in fact the source of Aristotle's teleology: Nature has always provided living things with organs, capacities, and relationships (both among themselves and to their environment) in such a way that the relation between advantages and disadvantages provides each living species with a niche for survival. In this way, claims Aristotle, Nature proceeds as when one gives a flute to someone who knows how to play it: It gives to different living organisms the physical, psychological, and behavioral instruments from which they can profit. It is clear, for example, why Nature has provided fish with fins: They are organs that fish will use in the best possible manner, given their way of life. This is an illustration, by a specific example, of the teleological Aristotelian principle according to which "Nature always does what is best." On the other hand, to give fins to a bird or wings to a fish would be to give them

in vain:[11] Another of the great teleological principles of Aristotle is precisely that "Nature does nothing in vain." Therefore, to make a point as precise as it is famous among commentators, human beings do not build up their intelligence by employing their manual capacities, as Anaxagoras thought: "Anaxagoras says that it is because of their possession of hands that human beings are the most intelligent animals, whereas it is rational to assume that because they are the most intelligent they have been provided with hands" (*PA* IV.10, 687a8). Anaxagoras is thus part of the consensus pointed out by Guthrie.

Every living thing has therefore received from Nature the organs and capacities that allow its species to perpetuate itself and to live in the best possible conditions, and this has been true since the beginning of time and will be forever true. Responding, without mentioning it, to the myth of Protagoras, which showed that Prometheus and Zeus were obliged to intervene in order to prevent human beings from dying, Aristotle, in the same passage of *On the Parts of Animals* where he talks about the hand, shows that the hand is, in a certain way, all the organs together, "claw, hoof, horn, spear, sword" (687b3). Thus, Nature has provided human beings with the instruments of survival that are capable of serving them, precisely because they are more intelligent than the other animals. So, Nature does not have to "correct" the first, defective version of a living thing. And so it is for the attribute of being "political," which is given to those animal kinds capable of using it in order to lead the best possible life and without which, given their other characteristics, they could not survive if they were solitary or gregarious. Eagles or sheep, on the other hand, would be political in vain, because they would not be able to use this capacity, since their survival does not depend on accomplishing a common task. In Aristotle's biology, living things do not adapt to their environment to live better, but have been adapted to their environment from the beginning of time. The "political" character, a biological property accorded to animals that can benefit from it, is therefore not *acquired*, but given. If it is true that young people, for example, have *learned* to be truly "political" by playing this role in the city, it is in the same way that birds learn to fly, by actualizing a potentiality already naturally present in them.

[11] Among the numerous examples, cf. *PA* II.13, 657b27: "so the birds who remain on the ground and are incapable of flying, like the chicken and similar animals, do not have acute vision, because nothing in their way of life requires it."

It is the same with language. Aristotle broaches this subject also in chapter I.2 of the *Politics* because there is an essential connection between language and politics.[12] Language is part of the means that Nature gives to certain animals for communication, and this communication occurs through *signification* (Aristotle uses the term *sêmeion* in 1253a11). Animals use numerous procedures for transmitting messages to each other, whether to animals of the same kind or to those of different species. Therefore, to restrict the discussion to vocal signals, when cranes migrate, those at the back of the group whistle so that the others know that they are there (*HA* IV.9, 536a27); quail emit different cries before fighting each other, and their leader indicates by a cry that the time of departure has come. This cry of departure is well known to hunters (*HA* VII.12, 597b18).[13] In our chapter I.2 of the *Politics*, Aristotle restricts the range of signification in animals by considering only the cries that serve to manifest pleasure or pain; he is interested in contrasting a cry (*phonê*) with language (*logos*).

Cries are used by all political, and even by gregarious, animals (cf. 1253a8), and therefore by humans, to signify to each other the pleasure or pain that they experience, what one may call their "vital values." However, human beings can also speak, that is, they are capable of expressing pragmatic values (the advantageous and the harmful) and ethical ones (the just and the unjust, the good and the bad). Here Aristotle differentiates himself again from the other philosophers who had confronted the problem of the origin of language and for whom Guthrie believed that he saw a common and vulgar version of the answer these philosophers gave to this problem in Diodorus Siculus. According to this widely shared approach, it is need that has induced humans to create language in order to communicate among themselves and to secure their survival. As is the case also for human associations, this deceptively evident solution in fact poses problems that it does not resolve, because it is faced with the question of the passage from the simple to the complex. In other words, it is vulnerable to the Parmenidian critique. This difficulty has not disappeared with Aristotle, because, contrary to empirical approaches like that of Condillac, linguists like Noam Chomsky have found it necessary to attribute to all human beings a universal grammar – and this before any learning.

Cries, which differ from species to species and from one set of circumstances to another, are biological traits, such as anatomical characteristics

[12] See further Frank (Chapter 1 in this volume).
[13] However, it is doubtful that Nature meant this cry to warn the hunters.

or ways of life. Aristotle must therefore discuss them within the framework of his "eternalist" and teleological approach to nature: Because it is vitally important for a certain species to signify to other animals what I have called vital values, Nature, for all time, has given these animals the possibility of producing the appropriate cries. However, and this is obviously a crucial point for my thesis, chapter I.2 of the *Politics* proposes an identical approach for language: Given that human beings are the only animals endowed with perception of pragmatic and ethical values (Aristotle expresses this with an insistence that borders on redundancy "by contrast with the other animals human beings have this *peculiarity*: they *alone* have sense of good and evil, just and unjust" [1253a15]), they need a means so that they can mutually manifest these. This means is language. Aristotle thus proposes the same *biological* analysis for language that he produced for "political character": since Nature gives organs and capacities to those who can use them, it provides the ability for speech to human beings and not to beasts, because only human beings can use it, whereas beasts, which do not have ethical values to communicate to each other, have enough by way of cries for what they want to express, namely the vital values of the pleasurable and the painful.

The procedure for explaining the presence of a trait in an animal is most of the time mainly teleological; however, it can also enlist other causes, material and efficient. In order to realize its "intentions," Nature makes the best it can of the material it has at its disposal. So, for large animals, it *makes use* of the abundant earthly material that they contain in order to give them horns for their defense. This will lead to a situation where there will not be enough material for teeth to chew their food properly. However, as this inconvenience can be palliated by a system of several stomachs permitting rumination, it is better for them to have horns so that they can defend themselves. Finally, let us remark, with Robert Bolton, that in all, or at least most, cases of explanations through a combination of a final cause and another cause, the material or efficient cause does not demonstrate a *necessary* connection, but only a sufficient one.[14] It would have been possible to find other means of defense for bulls, and other animals utilize different means for their defense, but in the case of the bulls, the horns *do the job*.

This explanatory system can be found again operating on several levels in the case of language. The capacity to speak demands certain dispositions of the organism. This is why Nature uses, in human beings, besides the

[14] Bolton (1997).

lungs and the larynx that are necessary for the production of a voice, the teeth and the tongue that allow humans to articulate sounds, those that produce a "speech" (*dialektos*). Several texts of *History of Animals* and *On the Parts of Animals* explain this: The human tongue is at the same time soft, sensitive, and broad. The scheme that we have already identified in biology appears here once again, in that the disposition of the lips and the teeth "do the job" of allowing the articulation of sounds, but other dispositions would have made it possible to obtain the same result. This is effectively the case with parrots, which do not have either lips or teeth, but *do articulate* sounds.

The example of the parrots is actually of considerable importance for one who wants to read Aristotle's biological texts accurately, although the problem it raises is in fact marginal for our present purposes. In their case, it seems that Nature gives them this capacity of articulation in vain, because this speech does not appear to be fulfilling any function that simple cries could not fulfill. We have here an example of the plasticity of the main Aristotelian teleological principles that those who have sufficiently studied the biological corpus have often spotted. The liver is useful for little or nothing, newts are a kind of monster, many characteristics are harmful to those who possess them, etc. There are cases where certain animals show themselves to be capable of a performance that is not useful to them in any way: This is the case for parrots.

So far we are, both for the political character of human beings and for language, in a purely biological perspective. Nature gives to other living things the *biological* means to communicate and even for some to articulate speech, and the means to live in societies accomplishing communal work, with the fundamental difference that the articulated speech is not useful in any way to parrots, whereas bees simply could not survive if they were not political. However, we are now going to see that the fact that human beings do not constitute an exception to this natural rule does not at all mean that politics and ethics fall within the scope of natural science. Human beings, and actually only human beings, use speech to communicate their pragmatic and ethical values and only human beings live in *political communities*. Therefore, when Kullman writes that "the political is a characteristic which necessarily results from the special biological nature of man" (100), he is quite right, but he must add that there are two ways of being political, living together and producing communal work, which is the way shared by all political animals, and living together and producing communal work inside a city, which is the proper way for human beings; not, however, the proper way for all humans, because

only Greek men have a political destiny in the full sense of the term. Aristotle actually says in the *Politics* that there are no cities of animals, or of slaves "because these beings do not enjoy happiness or choose their ways of living" (III.9, 1280a32). *Pace* Aristophanes, there are no cities of women either, not even cities where women have full political rights.

Moreover, there are two ways to articulate speech: one for the parrots, whose words signify nothing for them or, at least, nothing more than their cries; and one for human beings whose speech signifies something, and does not signify simply what the cry does (pleasure and pain), but also pragmatic and ethical values. The last stage of Aristotle's reasoning is to be found in 1253a18, with a phrase that is ambiguous in Greek and means either "having such values in common (pragmatic and most of all ethical) is what makes a family and a city" or "the community of such people (who have these values in common) is what makes a family and a city." It matters little for us here. We see therefore that human speech and human political character are closely related, and this is why they appear together in chapter I.2 of the *Politics.*

More precisely, Nature has given human beings *human* speech and a *human* political character in order to allow them in the first instance to communicate to each other ethical and pragmatic values and second to lead a happy life. These values and this life are specifically human and cannot be considered biological realities, which are dependent on causality that is ultimately organic. Between the animal and the human forms of political character the whole machinery of deliberation and choice intervenes. One sees this in the way that Aristotle attributes to certain animals capacities that, *prima facie*, appear to be specifically human. This is the case with regard to the intellectual virtue that crowns ethics, prudence (*phronêsis*): *Nicomachean Ethics* tells us, effectively, that "certain animals are called prudent because they manifest in their way of life a capacity to foresee" (VI.6, 1141a26). In an article dedicated to animal prudence, Jean-Louis Labarrière subtly analyzes the passages in which Aristotle attributes to certain animals not only prudence, but also faculties that he otherwise reserves for human beings, such as thought and even *logos*, and even wisdom.[15] If one of the goals of

[15] Labarrière (1990). Cf. this important passage from *History of Animals*: "just as in man we find knowledge, wisdom and sagacity, so in certain animals there exists some other natural potentiality akin to these. The truth of this statement will be the more clearly apprehended if we have regard to the phenomena of childhood: for in children may be observed the traces and seeds of what will one day be settled psychological habits, though psychologically a child hardly differs for the time being from an animal; so that one is quite justified in saying that, as regards man and animals, certain

Labarrière's article is to show that one should proceed beyond a simply metaphorical approach to animal prudence, he nonetheless strongly emphasizes the difference between animal and human prudence: Since animal prudence cannot be applied to judgments or deliberation, "it does not govern any *praxis*."[16]

Animal prudence is definitely an indication of the excellence of Nature in that it is a sign of the adaptation of animals to their environment. Let us take one example. In *History of Animals* (IX.29, 618a25 ff.), Aristotle writes: "The cuckoo shows great sagacity in the disposal of its progeny; the fact is the cuckoo is quite conscious of its own cowardice and of the fact that it could never help her young in an emergency, and so, for the security of the young ones, she makes of him a supposititious child in an alien nest. The truth is, this bird is pre-eminent among birds in the way of cowardice; it allows itself to be pecked at by little birds, and flies away from their attacks." We should not be deceived by the form of this text, which gives the impression that the cuckoo, noticing that it would be incapable of feeding its young, adopts a "prudent" strategy so that it can save them, as human beings would do in analogous circumstances. In fact, the situation is similar to those texts where Aristotle seems to attribute intentions to Nature. When he says, for example, that "the class of fish is prolific, because Nature fights losses with numbers" (*GA* III.4, 755a31), this does not at all mean that Nature, after analyzing the situation and deliberating about it, has *decided* to compensate for the substantial losses that fish suffer from their predators with a higher fertility rate, as Zeus and Prometheus, seeing the situation of human beings, have decided to do by giving them additional means of survival. In fact, from the beginning of time, fertility was given to fish according to the relation of advantages and disadvantages, which was discussed above. It is the same for the cuckoo: The disadvantage of "cowardliness" (another picturesque and anthropocentric way of describing a biological characteristic of the cuckoo) is compensated by the "prudent" behavior of squatting in the nests of others.

The natural impulses that secure the survival of one animal produce behavior, but not *actions* properly speaking, or, to speak Greek, not *praxis*. In Aristotelian terminology, an action (*praxis*) in the proper sense of the term is an act accomplished voluntarily by a free subject, one that has no end other than itself, in contrast to production (*poiêsis*), which has for its

psychical qualities are identical with one another, whilst others resemble, and others are analogous to, each other" (VIII.1, 588a29).

[16] Labarrière (1990: 415).

aim a product (cf., for example, *EN* VI.5, 1140b6). There is therefore in human action an inherent indeterminacy that is the mark of human freedom. Certainly, Aristotle does not consider animals to be mechanisms whose behavior is absolutely determined and predictable. Not only are animals able to learn, like the elephants that learn to kneel before the Great King, but they can also deviate from the usual manifestations of their natural capacities, like the small birds that, deprived of their parents, learn the songs of other species.[17] The fact remains that this vital plasticity does not contradict what is essential, namely that living in a community by engaging in a collective task is, for bees, a vital innate character that is indispensable for their survival. This innate character is effected automatically and is not the result of *actions* in the proper sense of the term. This is one of the many examples of the Aristotelian thesis according to which "Nature does not deliberate."[18] So, animals do not produce political actions. It is not the same for humans. In chapter I.2 of the *Politics*, Aristotle makes the often quoted remark that "the impulse towards this kind of association [the city] exists by nature in all men, but the first person to have set one up is responsible for very good benefits" (1253a29). This remark is true in general and for every particular city that is in fact founded at a given moment by one or more individuals. The foundation of a city is surely a practical activity that has taken place at a given moment and that could conceivably not have taken place. In contrast, there is no bee that has founded the first hive.

The passage at 1253a7 mentioned above should, without doubt, ultimately be taken to mean that human beings are "political *rather than* any bee," not that they are "*more* political than any bee." Since Aristotle distinguishes two senses, a basic and a full sense of "political," we must call "political" the being who fulfills the conditions of the full sense, by knowing how to live in a city, rather than the being who simply lives in a group by accomplishing communal work.

Let us return for a moment to the family and the birth of the city. Eduard Meyer, in the beginning of a work dating back to 1884, argues that the analysis of the formation of the city beginning with families and villages is conceptual and has nothing to do with history, because the city is the

[17] Cf. *HA* IV.9, 536b14: "Of little birds, some sing a different note from the parent birds, if they have been removed from the nest and have heard other birds singing; and a mother-nightingale has been observed to give lessons in singing to the young bird, from which spectacle we might obviously infer that the song of the bird was not equally congenital with mere voice, but was something capable of modification and of improvement." For the elephants that kneel, cf. *HA* IX.46, 630b20.

[18] Cf. *Ph.* II.8, 199b27; *PA* II.13, 657b1.

original form of human association, at least in the Greek world, and that there could not be, at least for Aristotle, a pre-political phase of history (1953: I, 11 ff.). Maurice Defourny thinks, on the contrary, that for Aristotle the organization into cities appears only after a long time during which cities did not yet exist. On this particular point, Defourny is correct (1932: 383 ff.). The exposition of Aristotle in Book I of the *Politics* is by no means a historical account of events that took place, but a conceptual analysis; however, it is no less true that Aristotle indicates many times that there is indeed a pre-political period, and this is the case even in chapter I.2 of the *Politics*: Initially people lived dispersed, then pre-political monarchies appeared, then cities governed by kings, and then, we are told in subsequent books, democracy and oligarchy have become the only two actually existing constitutions, with some intermediate periods of tyranny.[19] It is appropriate to mention that the vast majority of the members of the human species, barbarians, do not and never will live in cities.

In contrast, there is not a pre-family stage of human history, and the family is surely the most "biological" of human associations, in that it is founded in procreation and produces strong affection of a quasi-organic type among its members. However, the natural tendency of human beings to leave behind offspring, which has been provided to them as well as to all living things, is realized through conscious projects and designs, that is to say actions. This is what is said in a passage from the *Eudemian Ethics*, where Aristotle glosses the expression "economic animal," that is "familial," which he attributes to human beings, by writing that "human beings do not mate randomly and with the first one who comes by" (VII.10, 1242a24). This must surely be understood as a difference with the other animals. There is also, among human beings, a "community"[20] and "a kind of justice, even if there is no city." The fact that rational calculation, which is taking into account advantages and disadvantages, can also regulate human reproduction does not invalidate the fact that human beings have a tendency to reproduce that is independent from their voluntary choice. Nonetheless, animals do not form families in the proper sense of the term.

In other words, if one wants to consider economics, in the etymological and Aristotelian sense of the term, as a science (something entirely legitimate from the point of view of Aristotle), one must place it, along with

[19] Cf., for example, *Pol.* III.14, 1285b13; 15, 1268b8; V.10, 1313a3. See further Ober (Chapter 12 in this volume).

[20] Even though in *History of Animals* (VIII.1, 588b33), Aristotle says that certain animals discontinue their "community" with their young ones, once they are able to take care of themselves, the term "community" appears to apply properly only to human associations.

politics and ethics (and within the relations to politics and ethics that one needs to determine more precisely), in the class of *practical* sciences and not in that of theoretical sciences like the study of biology. One must add that, as in the case of the city, the human family does not take the same form in the entire human species. Thus, chapter I.2 of the *Politics* notes that barbarians treat their women like slaves, but they nonetheless form families.

Conclusion

The natural character of the human city and of human political character and what makes this political character possible (notably, language) are explained according to a scheme that finds its full deployment in the biological works. One may therefore ask what repercussions this fact can have on the Aristotelian architecture of sciences. Ultimately, the employment in chapter I.2 of the *Politics* of an explanatory scheme that comes from the natural sciences, and more particularly from biology, does not truly call into question the fundamental distinction between theoretical and practical sciences. As good mother to living things, Nature gives to human beings language and to men the political character that they are the only ones able to use. And, from this point of view, the human political tendency is part of what one could call "the biological equipment" of men. Without doubt, this trait is connected to other natural characteristics of human beings, such as the fact that they are incapable of living alone, since Nature provides each living thing with what it needs to survive. However, this biological tendency is realized in a *practice*, that is in actions that are not uniquely, or even principally, determined by what we would call the laws of nature. As a result, if it is true that it is the sharing of ethical and on occasion of pragmatic values that *makes* a city, as Aristotle claims, it follows that the political impulse of human beings does not automatically make citizens and does not automatically establish a city.

The concepts, the methods, and the models of biology are not absent from the political speculation of Aristotle, but they do not *reduce* this speculation to a particular case of natural speculation. Thus, the ethical, and therefore political, *values* that the citizen and the legislator deal with (the just and the unjust, the good and the bad) are not vital values in disguise. In 1253a4, Aristotle refrains from describing the advantageous and the harmful, the just and the unjust as sophisticated forms of the pleasurable and the painful. However, the text of *Politics* I.2 *derives* the just and the unjust from the pleasurable and the painful ("speech, on the other hand,

serves to make clear what is beneficial and what is harmful, *and so also* what is just and what is unjust" [1253a14]), in what appears to correspond to an attitude that one could call "sociobiological." However, it is a misleading resemblance, because the advantageous and the harmful discussed here are objects of rational deliberation. This is the case, for example, in the examination of the question whether virtue is advantageous in practice or not – a recurring issue among ancient philosophers. It is not, or it is not fundamentally, a biological advantage that our text speaks of and there is no biological reason hidden in the notions of justice and injustice, good and evil that human beings claim. Similarly, on a more general level, there is no biological explanation of either human ethical choices or the birth of and the history of cities. Nature is content to give that which is surely not insignificant, the physical conditions necessary for the ethical development of human beings and the birth and development of cities, by giving to human beings capacities that they can use, while at the same time leaving them free to make whatever use of them they want, or indeed not to use them at all. One of the consequences of this, well spotted by Kullman, is that although it is wholly natural, the city is not a *natural substance (ousia*), and Aristotle strongly resists the tendency to "naturalize" the city to the point of making it a natural organism.

CHAPTER 3

Political rule over women in Politics *I*

Marguerite Deslauriers

Introduction

When Aristotle mentions the rule of men over women at the opening of the *Politics*, he treats it as one of a number of different natural relations of rule exercised in the household.[1] It is compared to, and distinguished from, the rule of free men over slaves, and that of fathers over children.[2] These claims about rule have their origin in Aristotle's analysis of the household into certain fundamental relationships. He tells us that "the first and fewest parts of a household are master and slave (*despotês kai doulos*), husband and wife (*posis kai alochos*), father and children (*patêr kai tekna*)" (I.3, 1253b5–7). Later in Book I he repeats that the household includes three pairings of ruler and ruled, and elaborates on the different forms of rule appropriate to these pairs:

> Of household management we have seen that there are three parts – one is the rule of master over slaves (*despotikê*) . . . another of a father (*patrikê*), and the third of a husband (*gamikê*). [A husband and father] rules over wife and children, both free, but the rule is different in kind, the rule over women being political (*politikôs*), and the rule over his children being royal (*basilikôs*). (I.12, 1259a37–b4)[3]

It is the free adult man who engages in household management, and he must recognize that this management involves three distinct forms of rule,

[1] I speak of the rule of men over women, rather than of the rule of husbands over wives, because Aristotle justifies the legitimacy of this rule not in terms of what is true of husbands and wives, but in terms of what is true of men and women. Aristotle would not have expected a man to rule over free women outside his household, but he understood a man's entitlement to rule over his wife (and other dependent women in his household) not so much as a legal right acquired through marriage, but as a natural claim of authority based on differences in the deliberative faculties of men and women.

[2] Children, slaves, and women are treated together here, as in many other ancient texts, almost certainly because of their shared civil status as minors under the control of some male citizen. See Halperin (1990: 30).

[3] The point is reiterated at I.13, 1260a9–10. English translations used: Lord (1984) and Irwin (1999).

comparable insofar as each is a form of natural rule, but distinct nonetheless. In effect, he must assume three identities, as master, husband, and father. In each case the ruler and the ruled need each other, but the nature of the dependency differs. For example, the sense in which the slave and the master need one another is different from the sense in which a free man and his wife need one another.[4] This is, for Aristotle, a fundamental point, and one that links his discussion of relations of rule within the household to relations of rule in the polis.[5]

The question of this chapter is how Aristotle characterizes the rule of men over women as a particular form of natural rule. An adequate answer must help to resolve some interpretive difficulties in the text. Most notably, Aristotle describes the rule of men over women as both political (as we have just seen) and aristocratic, and yet his political theory suggests that these should be in some tension, since political rule is "of free and equal persons" (*Politics* I.7, 1255b20) (or, as Aristotle says elsewhere, of those who are "similar in kind and free" (*Politics* III.4, 1277b9), whereas aristocratic rule is based on the unequal merit of ruler and ruled. Moreover, when Aristotle distinguishes women, children, and natural slaves from free adult men in *Politics* I.13, and argues that they have virtues that are different in kind, he uses an opaque expression – "lacking in authority" (*akuros*) – to describe the difference between men and women: He says that "The parts of the soul are present in all [people], but they are present in a different way. The slave is wholly lacking the deliberative element; the female has it but it lacks authority; the child has it but it is incomplete" (1260a10–14). However men rule over women, we must account for this puzzling doctrine in interpreting the claim that the rule of men over women is political as well as aristocratic.

If we take for granted that Aristotle is mistaken in his assessment of the difference in rational capacities of men and women, and disagree with the

[4] "Now the female is distinguished by nature from the slave . . . The barbarians, though, have the same arrangement for female and slave. The reason for this is that they have no naturally ruling element; with them, the partnership [of man and woman] is that of female slave and male slave" (*Pol.* I.2, 1252a34–b7).

[5] One such connection is that between political justice (*politikon dikaion*) and household justice (*oikonomikon dikaion*), which Aristotle identifies as the justice manifested toward a wife (*EN* V.6, 1134b15–17). He has said that political justice "belongs to those who share in common a life aiming at self-sufficiency, who are free and either proportionately or numerically equal" (*EN* V.6, 1134a26–28). He says that "relations with a wife more than with children or possessions allow something to count as just" (*EN* V.6, 1134b13–14). Although Aristotle distinguishes household justice from political justice here (where he does not in the passage at *Politics* I.12, 1259a37–b4), he clearly suggests that because the wife of a free man will herself be free and in some sense his equal, we can understand the relation between a man and his wife in terms of justice, whereas his relation to children and slaves (and other possessions) in his household, because they are parts of him, should not be characterized as just or unjust. For more analysis of the claims of *EN* V.6, see Lockwood (2003).

claim that men ought to rule over women in the household (as I do), we might not notice what is politically and philosophically important in his discussion of men and women in Book I. He is not arguing that women are politically inferior to men, although he believes that. He is arguing that free women are not *simply* inferior to men, and that they ought to have a role in the household that is consistent with their status as free persons and adults. While this role will not be on a level of equality with the male head of the household, it will require that women engage in deliberation on some matters, and that will represent an important distinction between women on the one hand, and children and slaves on the other.

Rule and natural rule

The first question is whether we can be precise about what Aristotle means by "rule" (*archê*) in the *Politics*.[6] It is a term with many senses, detailed in *Metaphysics* V.1. If we can rely on that discussion, we can determine with some certainty how Aristotle understands rule as a domestic and political activity. Most of the senses of *archê* set out in *Metaphysics* V.1 are variations on the notion of acting as a source or origin, and in many cases, these origins are sources of change without being the sort of thing that might intend to cause change. So, for example, the causes of an event in the natural world will be an *archê* of that event. The male parent is in this sense an origin of the generation of his offspring (as an efficient cause), and the materials from which the offspring are made are also an *archê*. Those origins require no intention on the part of the originating element. However, Aristotle also cites a sense in which an *archê* is "that by whose choice that which is moved is moved and that which changes changes, e.g. the magistracies in cities, and oligarchies and monarchies and tyrannies are called *archai* and so are the arts and of these especially the architectonic arts" (1013a9–14). The context here is clearly political or, more generally, social and cooperative: In a political context the one who decides which actions will be taken is the origin of those actions. This social sense of *archê* is continuous with the other senses that Aristotle sets out: A decision is a starting point for a change, and so the person who makes a decision is one of the origins of the actions that follow on that decision. To say, then, that men exercise rule over women is to say that men make decisions that determine the actions of women, and in that sense serve as the origin of the actions of women – or at least it is to say that this is what *should* happen.

[6] I am indebted to E. Zoli Filotas for his discussion of the concept of rule in Filotas (2014).

Rule can be exercised in many different ways, and forms of rule distinguished in a number of ways. One foundational way to start is by distinguishing natural rule from nonnatural. Natural rule is a broad category that includes different relations of rule, among which are the forms of rule exercised in the household: the rule of adult free men over women, over slaves, and over children. Before we distinguish the natural rule of men over women from these others, consider the features that characterize any kind of natural rule.[7] The first is that it is exercised within a composite entity, in which the parts are different in kind: "for whatever is constituted out of a number of things (*ek pleionôn*) . . . and becomes a single common thing (*hen ti koinon*) always displays a ruling and a ruled element (*to archon kai to archomenon*)" (*Pol.* I.5, 1254a28–31).[8] These "single common things" or composite wholes are many and various: the soul of a living thing, an individual animal, the relation between people and animals, and the various household relations.

The second feature of natural rule is that the better element in the composite whole rules over the worse. The rule of men over women in the household is a manifestation of this principle: "the relation of male to female is by nature a relation of superior (*kreitton*) to inferior (*cheiron*) and ruler to ruled" (1254b13–14). And in general, while it is possible that the worse part should come to have control over the better part in a composite whole, that is an unnatural state of affairs (1254a37–b2).

The third feature of natural rule is that it must aim to benefit the whole. This is implied by the term that Aristotle uses to describe the composite whole (*koinon*), which suggests that there is a common purpose to the different parts. What is *koinos* is shared, and a *koinon* is a community of some sort, small or large. We can understand this on the model of organic bodies: in a healthy individual the parts perform tasks that advance somehow the work of the whole (so the liver performs a task that will benefit the animal as a whole, and the faculty of desire operates, or should operate, in a

[7] Keyt (1987: 54–79) in an influential article concluded that Aristotle's claims about nature in *Politics* I are incoherent. Miller, responding to that, developed an account of an extended sense of natural. He argues, following Susemihl, Newman, Bradley, and Barker, that the polis is natural in the extended sense that "[a] thing exists by nature if, and only if, it has as its function the promotion of an organism's natural ends and it results, in whole or in part, from the organism's natural capacities and impulses" (1995: 32). This is the "teleological interpretation" of the claim that the polis is natural, which I am arguing should be extended to claims about natural rule.

[8] This passage asserts that whenever there is a whole constituted from parts that form a *koinon*, these composite wholes will include a ruling and ruled part; it does not rule out the possibility that there might be a ruler and a ruled that do not together constitute a *koinon*. However, Aristotle does seem to assume that, when rule is natural, ruler and ruled will always form a whole.

way that serves the soul). Moreover, what benefits the whole will be established by the ruling part – so reason decides what will benefit the soul as a whole, and the soul decides what will benefit the composite of body and soul.[9]

These three features must all be obtained if rule is to be natural. So, to say that a man rules over a woman by nature is to say (i) that they together form something that is a *koinon*, a composite whole; (ii) that the man is better than the woman; and (iii) that he rules over her not with the aim of furthering his own interests rather than hers, but with the aim of benefiting the whole that they constitute together.

Rule over women is both political and aristocratic

While we might suppose that this account of natural rule is established in contrast to rule in the political realm, in fact Aristotle draws an analogy between different forms of natural rule and different forms of rule in the city. He is generally, although not perfectly, consistent in drawing these parallels, but in the case of women a tension arises, since he claims both that the rule of men over women is aristocratic (*aristokratikê*) and also that it is political (*politikôs*).

The evidence that the rule of men over women is aristocratic – that is, that it is founded on the superiority of men – is both implicit and explicit. In a passage at I.5 Aristotle says, as we have seen, that "the male is by nature (*phusei*) superior, and the female inferior, and the one rules, and the other is ruled" (1254b13–14). And in a passage in the *Nicomachean Ethics* VIII.10, 1160b32–3, Aristotle identifies the rule of a man over his wife as aristocratic: "[The community] of man and woman appears aristocratic. For the man rules because of his worth (*kat' axian*), and over those things that a man should rule." When worth – in the sense of moral worth, as in this passage – is the foundation of rule, that rule is aristocratic.[10] And natural rule in all its different forms is based, as we have seen, on the superiority of the ruling part.

[9] One might think that rule over slaves presents an exception to this feature, insofar as the aim of the master in such rule is to further his own interests. However, Aristotle understands the slave to be a kind of part of the master (1255b10–13), and hence would find it incoherent to suggest that the slave might have interests distinct from those of the master. In the same way, we might say that the hand can only have interests as a part of the body as a whole.

[10] One might suppose that Aristotle thought men were superior with respect to force rather than moral worth (see, e.g., Stauffer 2008: 935). Although some of the words Aristotle uses to designate that superiority might be construed to mean that men are stronger rather than morally better (e.g., *kreitton*), other words and phrases (e.g., *kat' axian*) clearly refer to moral worth.

However, Aristotle also claims that the rule of men over women is political (*politikôs*). That claim is made explicit in a passage at *Politics* I.12, 1259b1, quoted above, where he distinguishes the political rule over women from the kingly rule over children. Aristotle goes on to justify the claim:

> For the male (*to arren*) is by nature more expert at leading than the female (*thêleos*), unless he is constituted in some respect contrary to nature, and the elder and more complete [is by nature more expert at leading] than the younger and incomplete. In most political offices, it is true, there is an alternation of ruler and ruled, since they tend by their nature to be on an equal footing (*ex isou*) and to differ in nothing (*diapherein mêden*); all the same, when one rules and the other is ruled, [the ruler] seeks to establish differences in external appearance, forms of address, and prerogatives, as in the story Amasis told about his footbath. (1259b1–9)[11]

This is the passage that might seem to support the view that Aristotle believes the sexes are "complementary," or that the political differences between them are merely conventional.[12] As I will argue below, if we consider the story of Amasis, we are led to a different conclusion.

The claim that the rule of men over women is aristocratic might seem incompatible with the claim that it is political, but Aristotle himself will say that it is both, which suggests that this is not an unforeseen implication of his remarks, but rather a considered position.[13] In the passage at *Politics* I.5 in which the different forms of natural rule are distinguished, Aristotle says that the rule of the intellect over desire is "political and kingly" (*politikên ê basilikên*) (1254b4–5). Since at 1254b6–14 he compares the rule of men over women with the rule of intellect over desire, we should expect to find

[11] Notice that the comparison of forms of household rule with various political constitutions is useful to Aristotle in distinguishing the case of women from that of slaves and that of children. In this passage the political rule of women is contrasted with the kingly rule of children. The rule of a king is appropriate when the ruler is superior in all things to those ruled; by contrast, as Aristotle makes clear at *EN* VIII.10, 1160b32–3, quoted above, aristocratic rule is appropriate when the superiority is limited in some way.

[12] See Dobbs (1996: 74–89), who says: "As an expression of sex complementarity, the husband's status as household head exemplifies domestic justice. The husband's headship is not a reward for moral or intellectual excellence. As such, it is in no way inconsistent with his wife's being his moral and intellectual superior" (84). I disagree with him on this point. Aristotle certainly did think that a man should be his wife's moral and intellectual superior, and that such superiority was precisely the justification for the rule of men over women. For this reason I reject the suggestion that Aristotle advocated "sex complementarity," since that notion implies equality between the sexes despite differences in their roles.

[13] I once argued that there was no way to reconcile the claim that men rule over women both politically and naturally; see Deslauriers (2002: 187–211).

similarities between these forms of rule. The similarity seems to reside in the way in which in both cases the rule is based on some sameness between ruler and ruled (and so is political) and also on some difference in worth between them (and so is aristocratic or kingly).[14] So the claim that the deliberative faculty of women is without authority has to be interpreted in light of the form of rule exercised over women: a mixed form in which there is both some claim to superiority on the part of men and some claim to sameness between men and women. This tension reflects perhaps the peculiar legal status of free women in Athens in Aristotle's time: as free, they were politically distinct from slaves, and yet as women there were politically disenfranchised.[15]

The question is, then: How can we construe the notion of political rule such that it is compatible with aristocratic rule, and is consistent with the claim that the deliberative faculty of women is without authority? In answering that question I propose to distinguish two issues. The first is metaphysical: Since political rule is rule over people who are "equal and free," what does Aristotle think about the nature of men and women? That is, if women are free (which means just that they are not slaves), does it follow that they are the equals of free men?[16] What kind of similarities must ruler and ruled have when the rule is political, and what kinds of differences are permissible? The second is functional: How is political rule exercised? That is, what exactly does a political ruler do, and what do those ruled politically do?

The metaphysical question: sexual difference and sameness

Aristotle says that in political city-states the citizens rule and are ruled in turn, because they are similar by nature, and do not differ from one another: "there is also a sort of rule in accordance with which one rules those who are similar in kind (*genei*) and free. For this is what we speak of as

[14] There is a parallel case at *Politics* VII.14, 1332b35–38, where Aristotle allows that older and younger [men] are the same in kind, but argues that the older should rule over the younger because they have a kind of superiority gained through experience.

[15] See Cantarella (1987: 51): "At Athens only those who were able to defend the city in arms could be citizens (*politai*), with a sole exception. The man who committed a particularly serious crime was considered unworthy to defend the city and was declared *atimos*. Deprived of political rights, the *atimos* became not a second-class citizen but a citizen of the very lowest rank. As such he was called *astos*, to indicate his belonging to the city (*astu*) in the physical sense but his exclusion from the citizen organization. Women were called by the same term – *astê*."

[16] See Hansen (2010: 1–27).

political rule, and the ruler learns it by being ruled" (III.4, 1277b7–10).[17] This and the passage at I.12, 1259b5, cited earlier, suggest that the exchange of rule is a mark of the similarity between ruler and ruled in political regimes, and we might draw the inference that women and men enjoy the same equality. Aristotle is not, however, arguing that women should rule by turns with men in the household, nor is he asserting that men and women are equals with respect to merit; on the contrary, as he argues in *Politics* I.13, there are differences in kind between the virtues of the sexes.

To understand how women might be subject to rule that is political despite these differences in kind, consider the allusion to Amasis and his footbath in the passage at *Politics* I.12 where Aristotle says that women should be ruled politically. He points out that even in political city-states, that is, even when ruler and ruled are by nature equal, one seeks to establish differences between ruler and ruled, in "external appearances (*schemasi*), words (*logois*), and honours (*timais*), as in the story Amasis told about his footbath. The male always stands thus (*touton echei ton tropon*) in relation to the female" (I.12, 1259b8–9). To understand how exactly the male stands in relation to the female, consider the story Herodotus tells of Amasis:

> Amasis came to the throne . . . at first the Egyptians were inclined to be contemptuous, and did not think much of him because of his humble and undistinguished origin; but later on he cleverly brought them to heel, without having recourse to harsh measures. Amongst his innumerable treasures, he had a gold footbath, which he and his guests used on occasion to wash their feet in. This he broke up, and with the material had a statue made to one of the gods, which he then set up in what he thought the most suitable spot in the city. The Egyptians constantly coming upon the statue, treated it with profound reverence, and as soon as Amasis heard of the effect it had upon them, he called a meeting and revealed the fact that the deeply revered statue was once a foot-bath, which they washed their feet and pissed and vomited in. He went on to say that his own case was much the same, in that once he had been only an ordinary person (*dêmotês*) and was now their king (*basileus*); so that just as they had come to revere the transformed foot-bath, so they had better pay honour and respect (*timan te kai promêtheesthai*) to him too. In this way the Egyptians were persuaded to accept him as their master (*hôste dikaioun douleuein*). (Herodotus, *Histories* II.172)

We have to be careful in interpreting Aristotle's intentions in invoking this story to explain political rule over women. The parallel drawn between the

[17] See also *Politics* II.2, 1261a32–34: "This [the need for reciprocal equality] is necessarily the case even among persons who are free and equal, for all cannot rule at the same time, but each rules for a year or according to some other arrangement or period of time."

footbath and Amasis is certainly intended to suggest that just as the gold might be shaped either into a footbath or into the image of a god, so too a person might either be a common man or a king. Some commentators have understood Aristotle to be suggesting that the differences between the common man and the king are trivial and hence that the king demands deference without in fact being superior. If the analogy with women and men holds, then Aristotle intended to say that men rule women although they are not superior to women.[18]

There are several objections to this interpretation. First, it cannot have been what Amasis intended (at least as Herodotus reports it) in pointing out to his subjects the difference in their attitudes to the footbath and the statue. His claim is certainly not that the deference they show to the statue is ill-placed or unfounded, because if that were what he meant he would also be suggesting that his own status as king was without foundation in his worth. Aristotle, of course, might have intended to use the story for a different purpose. However, a further objection tells against that. If the moral of the story were that the rule of men over women was merely conventional, and that men's authority rested only on an appearance of superiority, then we could not make sense of the reiterated claim that men also rule over women aristocratically and by nature.[19]

Interpretation of the passage seems to depend on how we understand the term "*schemasi*." Although it could refer to appearances, it might also refer to the different arrangements or configurations of materials such that the arrangement constitutes what they are (e.g., the *schemata* in a logical context are different syllogistic figures), where the point is not that these differences are merely apparent, but on the contrary, that they are important and constitutive. This makes better sense of the reference to Amasis in I.12. The lesson that Amasis wishes to convey is not that the statue of the

[18] See Saxonhouse (1982: 202–19) and Stauffer (2008: 929–41). Saxonhouse says "The male, always being in the position of rule, receives the external honors and accoutrements of a ruler (though in fact he may be no more worthy of reverence than Amasis' footpan)" (1982: 206). Stauffer says "Amasis comes to power by chance, and he seeks deference on the grounds of his insight that the distinction between the high and the low, or between the ruler and the ruled, is a matter of form rather than of substance. But if Amasis' insight applies to men and women – if men are not intrinsically superior to women – then how is the permanent rule of men over women justified?" (2008: 936) and cites Dobbs (1996: 78), Mulgan (1994: 188), Nagle (2006: 167–70), Nichols (1992: 29–31), Saxonhouse (1985: 72), and Swanson (1999: 237–38).

[19] We might also extrapolate from the case of a king to the case of a political ruler. If the story is supposed to suggest that in political regimes of all kinds (not only the political rule of men over women, which will be a special case) the authority of the ruler is something more than an appearance – which I think it must be – then the point is that the political ruler, like the king, is transformed (if only temporarily) into a better person than his fellow-citizens.

god is no different from the footbath, nor that Amasis himself is no different from his subjects. It is, on the contrary, that the statue is importantly different from the footbath, in a way that justifies the difference in status of the two objects, even though they have an underlying substrate that is the same. When the gold is fashioned into the image of a god, and when Amasis is established as king, a transformation occurs in which something belongs in common to the object before and after the change, and yet the value of the transformed object is increased. Amasis as a king really is better than his subjects, although as a man he is the same as them.

The question is then what free men and women have in common, such that they are in some respect the same, although in another respect (a respect that justifies rule) men are superior. I contend that it must be their shared status as free and adult. This is what sets women off from both children and slaves, neither of whom should be ruled politically. It is her status as free and adult that entitles a woman to some form of political rule. Just as the statue of a god really is better than the footbath even though they are both made from gold, so too, Aristotle suggests, the free man who heads the household really is superior to his wife, although they are both free and adult; but his superiority is tempered by their shared status. Now, the superiority of men lies, according to Aristotle, in the greater authority of their deliberative faculty, since that is the difference he picks out in distinguishing the sexes in *Politics* I.13, 1260a12–14. He is arguing, then, that the rule of men over women should be characterized as political because men and women are both free and adult; he also is arguing that, because men are superior to women in a politically relevant way, it is legitimate that rule should not alternate between them. The *schemasi* in the sense of the configurations of freedom and adulthood in the case of men and women are different, and the difference in these configurations need not be trivial.[20]

The Amasis anecdote then suggests one way in which rule that is aristocratic might also be political. There is a second passage that helps in understanding how men in ruling women might combine the superiority of natural rule with the sameness characteristic of political rule. Just as Aristotle compares the different forms of household rule to different forms of rule in the city-state in *Politics* I, in the passage at *Nicomachean Ethics* VIII.10 mentioned earlier he says that the rule of men over women should be aristocratic, but that if a man oversteps the boundaries of his

[20] Newman (1887–1902: 2.211).

authority, it becomes oligarchic. The point, although he does not mention political rule in this passage, is that there are limits on the aristocratic rule of men:

> [The community] of man and woman appears aristocratic. For the man rules because of his worth (*kat' axian*), and over those things that a man should rule. He commits to the woman what is fitting for her (*hosa de gunaiki harmozei*). If, however, the man has authority over (*kurieuôn*) everything, he changes it into an oligarchy; for then his action conflicts with the worth of each (*para tên axian gar auto poiei*), and does not correspond to his superiority (*ameinôn*). (*EN* VIII.10, 1160b32–1161a1)[21]

The legitimacy of the rule of men over women is founded on the superior worth of men, but Aristotle indicates here that men should rule women only within a limited sphere, suggesting both that men's superiority is limited, and also that women too have some worth. It is striking here that Aristotle compares the rule of a man who exercises his authority over everything to oligarchic rule, since oligarchy is one of the deviant forms of constitution, characterized by a mistaken aim; an oligarchy aims at the interests of those who rule rather than of those who are ruled. The implication is that a man who fails to give a woman authority over those matters in which she should govern is no longer ruling the household in the interests of those over whom he rules, but in pursuit of his own interests. This is to say that such a man is no longer ruling legitimately.

If, then, women have some worth, and if they ought to exercise authority in some matters, which matters are those? In a passage at *Politics* III.4 Aristotle gives us some indication. He has been arguing (as he does in I.13) that there are different forms of virtue, including differences between the virtues appropriate to men and those appropriate to women:

> For a man would be held a coward if he were as courageous as a courageous woman, and a woman talkative if she were as modest as the good man; and

[21] See also *Nicomachean Ethics* VIII.11, 1161a22–33. As we have seen earlier (n. 5), at *Nicomachean Ethics* V.6 Aristotle suggests that the justice in the relation between husband and wife resembles political justice in some ways. At *Nicomachean Ethics* VIII.10, he again proposes a parallel between household relations and constitutions (1160b22–24); here, however, he describes the relation of husband and wife as aristocratic (not political), and the relation between brothers as "timocratic," adding "since they are equal except insofar as they differ in age" (1161a3–5). This suggests that timocratic rule between brothers is similar to political rule because of a kind of equality that obtains between brothers, just as in *Nicomachean Ethics* V.6 household justice (in the relation of husbands and wives) was said to be like political justice because free men and women are in some sense equals. For a discussion of the relation between brothers, and its resemblance to political rule, see Lockwood (2003: 13–15). My argument in this chapter is that Aristotle sees the aristocratic nature of the rule of men over women (mentioned in both the *Politics* and the *Nicomachean Ethics*) as compatible with its resemblance to political rule (mentioned, again, in both the *Politics* and the *Nicomachean Ethics*).

> household management differs for a man and a woman as well, for it is the work of man to acquire (*ktasthai*) and of the woman to guard (*phulattein*). But phronesis is the only virtue peculiar to the ruler. The others, it would seem, must necessarily be common to both rulers and ruled, but phronesis is not a virtue of one ruled, but rather true opinion (*doxa alêthês*); for the one ruled is like a flute maker, while the ruler is like a flute player, the user [of what the other makes]. (1277b24 –30)

If we interpret this in light of the passage at *EN* VIII.10, the point is that a man ought to give to a woman authority in the household in matters concerned with guarding or preserving while retaining for himself authority in matters of acquiring. Insofar as this arrangement involves sharing or dividing power and authority, it offers some insight into the claim that men rule over women politically. Aristotle is drawing on the sense in which political rule is shared rule. While it usually involves sharing rule by turn among citizens who are free and equal in some politically salient way, Aristotle is suggesting that there is another way to share rule. Rather than sharing by exercising authority over everything in turn, one might share by exercising authority over some things rather than others. In other words, the sharing might occur across domains of authority rather than over time.[22] Sharing structured in this way is consistent with the superiority of men, because (and this is clearly implied by Aristotle's remarks) the tasks and the domain in which men exercise authority will be better than those in which women exercise authority.

The rule of men over women in the household is then political in two senses. First, insofar as ruler and ruled share a status as free and adult, it resembles political rule. Second, rule over women is political insofar as it is shared; women hold some responsibility and exercise some power within the household. It is important to emphasize that both these points are consistent with the claim that men are better than women, and hence that political rule understood in these ways is consistent with aristocratic rule. In general, it is clear that ruler and ruled might be the same in some respect and different in another, so that rule might be justified both on the grounds of similarity and on the grounds of greater worth. In the next section I turn to the question of how ruler and ruled function under political rule, in order to show that Aristotle's account of women's deliberative faculty as lacking in authority can be elaborated based on his account of political rule.

[22] There is more to say about the passage just cited, in particular about the claim that only the ruler has the virtue of practical wisdom. I'll return to that point later.

The functional question: ruler and ruled under political rule

I have been arguing that Aristotle might reconcile the claims that rule over women is political and that it is aristocratic insofar as these are claims about the kind of persons who rule and are ruled, and about rule as a shared activity. The question now is how rule that is both political and aristocratic would function: How should free men exercise their authority over women, and how should women conduct themselves so as both to recognize their similarity (of freedom and adulthood) to men, while acknowledging the greater worth of men? In answering that question we will be able to see what it means for Aristotle to say that the deliberative faculty of women is without authority.

We have seen that the rule of men over women is natural because (i) in the organic whole that is the relation of men to women, men are the better part and (ii) the decisions that determine the actions of all those in the household are to be made by the man. The deliberative authority of men can be elaborated in light of these characteristics of male rule, in such a way that its character as both aristocratic and political emerges. My contention is that the deliberative faculty of women is without authority in the sense that it is subject to the authority of the person who establishes the aims of the household, that is, the male head of the household. When Aristotle says that the deliberative faculty of women is without authority, he is not, then, making a claim about the capacity of women to submit their desires or passions to reason; rather, he is making a claim about the position of a free woman relative to the free man who rules the household.[23] The evidence for this lies in the account of deliberation and decision making under political rule later in the *Politics*.

Consider first the structure of the rule of men over women, and the way in which that structure differs from the rule of free men over natural slaves. At *Politics* I.5, 1254a24–b16, Aristotle distinguishes, as we have seen, a number of different kinds of wholes: a person (composed of body and soul), the soul (with its faculties as parts), the relation of people to animals, and the relation of men to women. To understand what he means by "whole" here we must turn to *Metaphysics*, where, at V. 6, 1016b11–16, Aristotle says:

[23] For some discussion of the interpretation of the claims about authority of the deliberative faculty in *Politics* I.13, see Fortenbaugh (1977: 135–39), Spelman (1983: 17–30), Bradshaw (1991: 557–73), Modrak (1994: 207–22), and Karbowski (2014: 435–60).

> . . . while in a sense we call anything one if it is a quantity and continuous, in a sense we do not unless it is a whole, i.e. unless it has one form; for example, if we saw the parts of a shoe put together anyhow we should not call them one all the same . . . we do this only if they are put together so as to be a shoe and have thereby one form.

Having one form is a question of function as well as shape, if "to be a shoe" means to function as a shoe and not only to have the shape of a shoe. So something is a whole if it both has parts and those parts are organized so as to function as a single thing.[24]

The different wholes named in *Politics* I.5 are all constituted by a ruling part and a ruled part, and whenever one thing rules and another is ruled these parts are engaged in some collective task (1254a27–8). The collective task will be determined by the form of the whole in question, where that form includes the function of the whole.[25] The form, the function, and hence the aim and the excellence of each of these wholes will be distinct. In the wholes that Aristotle mentions in *Politics* I.5 there are two basic structures underlying the relation of ruler and ruled. In one, X is naturally subject to Y if Y is the whole of which X is a part. For example, natural slaves are parts of their masters, and children are parts of their fathers, and this status as parts of the free adult male is the basis for the subjection of both slaves and children to the authority, the rule, of that male.[26]

Women are not, however, on Aristotle's account, parts of men in the same way that slaves are parts of their masters, or children of their fathers, and it is striking that he does not speak of women as the possessions of

[24] At V.25, 1023b19–22, he reiterates the point that being a whole is a question of having a form, in naming one of the senses of "part": "The elements into which the whole is divided or of which it consists – 'the whole' meaning either the form or that which has the form; for example, of the bronze sphere or of the bronze cube both the bronze – i.e. the matter in which the form is – and the characteristic angle are parts." Also in the *Metaphysics*, at H.3, 1043a31, Newman points out that "*to koinon* is used as equivalent to *hê sunthetos ousia ex hulês kai eidous*, and such a *sunthetos ousia* may be composed not only of *sunechê*, but also of *diê(i)rêmena*, like *to holon* in 4 (7). 8 1328a21 sqq." Newman (1887–1902: 1.142).

[25] In the case of the city-state, the form will be the constitution, which Aristotle identifies with the form of the polis. And the form of the city-state determines not only the aim and the excellence of the polis, but also influences the *telos* of households and of the relationships that constitute the household, and the excellence proper to them: "For every household is part of a city-state, these [men and women and fathers and children] are parts of a household, and the virtue of a part must be determined by looking to the virtue of the whole" (*Pol.* I.13, 1260b13–15). So the master-slave relation, the male-female partnership, and the relation of father to children in the household contribute to the virtue and the function of the polis. The collective aim, and hence the collective task, and the excellence of each of these "wholes" will be determined by the larger wholes – first the household, and then the city-state – in which they are found, and will contribute to the excellence of those wholes.

[26] For a more extended account of the part/whole relations of Book I, see Deslauriers (2003: 213–31).

men. This means that the authority men exercise over women is not to be justified in the same way as that exercised over slaves; it is not because women are part of men that they are subject to the rule of men. However, the passage in *Politics* I.5 offers a second structure that can underlie the relation of ruler and ruled in a whole. This is one in which, when X and Y are both parts of the whole Z, and Y is better than X, then X is naturally subject to Y. It is the structure modeled by the relation of the faculty of reason to the faculty of desire in the soul. In this structure, the ruler is not the whole of which the ruled is a part; rather, both ruler and ruled are parts of some whole, but the ruler is the better part. So, just as both desire and reason are parts of the soul, so too both the free man and the free woman are parts of the relation between man and woman. How then should the free adult male exercise authority over those who are not parts of himself, but independent, if inferior, people?

Recall that to rule in a social context is to make decisions that determine which actions will be taken by the social whole. In the case of the household, then, the male head rules over his wife, children, and slaves in the sense that he makes decisions that bind them as well as himself. He chooses not only those actions that he will undertake as an individual, but also those that the household as a collective will undertake, and hence, indirectly if not directly, those that other individual members of the household will take. The male head of the household rules then insofar as he is the origin of the actions of everyone in his household. This is a general account of rule in the household, but there must be some feature of the way in which men rule over women – make decisions for women – that distinguishes that form of rule from the rule exercised over children or natural slaves. That distinctive feature is that women do participate in deliberation about household matters, although they do not participate in decision making, whereas neither slaves nor children are involved in the deliberations that precede decision making. In practice, women's status would then be analogous (at a first approximation) to that of those who have a voice but not a vote on a committee: They would be entitled to express an opinion, and in principle that opinion should be taken into account by those who do have a vote.[27] This is the implication of the claim that women have a deliberative faculty, but one that is without authority.

[27] I say "at a first approximation" because if the courts and the assembly could place limits on the decisions of the magistrates, then Aristotle might have envisioned that women should have something like a vote on certain questions, and even something like veto power over certain decisions.

The evidence for this interpretation of "without authority" lies in the account of political rule that Aristotle offers in later books of the *Politics*. First, we should notice that under political rule it is customary that free citizens should be ruled, but that those who are ruled should participate in deliberation and in judging even though they are ruled. That is, rule over those who are "similar in kind and free" is political rule, and under such a constitution the citizens will participate in deliberation and in making judgment.[28] But deliberating and judging are not, under this constitution, identical with ruling. So that one is ruled rather than ruling does not imply that one cannot participate in deliberation and judgments – on the contrary, it suggests that one will participate in these activities so long as one is a citizen, whether or not one is ruling.

Moreover, under political rule those who are ruled need not have practical wisdom. "For the virtue of ruler and citizen is not the same" (*Pol.* III.4, 1277a24). Aristotle elaborates on the difference in the virtues of ruler and ruled when these are "similar in kind and free," that is, under political rule:

> practical wisdom is the only virtue peculiar to the ruler. The others, it would seem, must necessarily be common to both rulers and ruled, but practical wisdom is not a virtue of one ruled, but rather true opinion (*doxa alêthês*); for the one ruled is like a flute maker, while the ruler is like a flute player, the user [of what the other makes]. (*Pol.* III.4, 1277b25–30)

This means that in the case of political rule, those who are ruled need not have practical wisdom, although they should have all the other virtues. If, then, citizens under political rule do not have practical wisdom but do have the other virtues, we should expect that women ruled politically by men should similarly have the other virtues. And Aristotle says just this in I.13 when he argues that natural subjects do have virtue, although it is not the same in kind as the virtue of natural rulers; and he reiterates the point in III.4:

> For it is clear that a virtue – of justice, for example – would not be a single thing for [a ruler and for] a ruled but free person (*archomenou men eleutherou*) who is good, but has different kinds in accordance with which

[28] Garsten makes this point: "Although Aristotle treats citizens as equals, he also preserves a distinction between citizens who are ruling and those who are being ruled. He stipulates that all citizens can participate in deliberating and judging, but he also insists that 'all cannot rule at the same time' (II.2, 1261a31–32). Moreover, he directly discusses the fact that free citizens are often in the circumstance of being ruled (III.4, 1277a21, 25 ff.). These statements seem to indicate that participating in the citizenly activities of judging and deliberating does *not* amount to ruling. Perhaps this is why he is willing to say that juries and assemblies open to all citizens can be spoken of as some kind of indefinite office but not simply as an office (*archê*) (III.1, 1275a31)" (2013a: 337).

> one will rule or be ruled, just as moderation and courage differ in a man and a woman (1277b18–21).

The difference in the virtues of ruler and ruled is the presence or absence of practical wisdom; those ruled politically, those who are similar in kind (with their rulers) and free need to have "true opinion" rather than practical wisdom. This "true opinion" is clearly an intellectual virtue, related to, but not identical with, practical wisdom. What is it, and what does it allow one to do well? It seems to correspond to the virtue that Aristotle calls *sunesis*: "[*Sunesis*] is about the same objects as practical wisdom; but *sunesis* and practical wisdom are not the same. For practical wisdom issues commands (*epitaktikê estin*), since its end is what ought to be done or not to be done; but understanding only judges (*kritikê monon*)" (*EN* VI.10, 1143a7–9). If *sunesis* is true opinion, it follows then that while practical wisdom commands, true opinion judges. This fits well with the claim that practical wisdom is the virtue peculiar to the ruler, who must command insofar as he makes decisions not only for himself, but also for those over whom he rules, and it indicates that those who are free but ruled have a role to play in judging. Aristotle elaborates on the activity of which *sunesis* is the excellence:

> Now *sunesis* is neither the having nor the acquiring of practical wisdom; but as learning is called *sunesis* when it means the exercise of the faculty of knowledge (*tê[i] epistêmê[i]*), so *sunesis* is applicable to the exercise of the faculty of opinion (*tê[i] doxê[i]*) for the purpose of judging (*epi to krinein*) of what someone else says about matters with which practical wisdom is concerned – and of judging soundly (*kalôs*). (*EN* VI.10, 1143a11–16)

This account of *sunesis* seems then to be an account of true opinion, of the virtue that those who are ruled politically need to have instead of practical wisdom – a capacity to judge, and to judge well, whether a proposal is a sound one. Since it is a capacity to judge "what someone else says," it does not include a capacity to formulate such proposals. In this way those with true opinion might participate in deliberation without making the decisions that are the ultimate outcome of deliberation. The virtue of those ruled politically in a polis, and of women ruled politically within the household, is then a capacity for judging well.[29] And if that is right, then

[29] Garsten points out that "Judging well what others are saying about deliberative questions seems a fair rendering of what most citizens sitting in the Assembly need to do. The deliberation occurring in these institutions is the sort in which a few speakers address a large audience of listeners and judges . . . The intellectual virtue that is required of citizens when they are deliberating but not ruling seems to be the ability to judge well the arguments that are made in the Assembly about what the city should do" (2013a: 338–39).

women in the household do participate in deliberation although they do not command or decide.[30]

We can now discern the difference between women's faculty of deliberation characterized as without authority and the lack of a deliberative faculty in slaves. Unlike free men, women will not command or make decisions; they will, however, participate in deliberation in the sense that they will evaluate the proposals offered by others (free men). That participation distinguishes their role in the household from that of slaves, who will be excluded from such deliberations altogether.[31] Both women and slaves will be subject to the decisions made by free men, and hence both are natural subjects, who should cultivate the virtues of the natural subject, in particular the virtue of obedience. However, the difference in the deliberative faculties of women and slaves requires that the obedience they practice should be different. The obedience required of women should not be slavish; rather, it resembles the obedience of those who are ruled in a political state. It is an obedience consistent with participation in deliberation. This makes sense of the two problematic claims with which I began: (i) that women have a faculty of deliberation (unlike slaves) although it is without authority and (ii) that women are ruled by men politically and also aristocratically. Rule over women is political because women do engage in deliberation in the sense of judgment, and it is aristocratic because men, in virtue of being better than women, make the decisions for the household and command the actions of its inhabitants.[32]

[30] If I am right that the virtue of "true opinion" that women must have insofar as they are ruled is a question of judging well, it is worth noting that at *Politics* VIII.6, in the discussion of musical education, Aristotle emphasizes one must participate in a task in order to acquire a capacity for judging that task: "It is not unclear that it does indeed make a great difference with a view to becoming of a certain quality if one participates in the work oneself; for it is an impossible or a difficult thing for them to become excellent judges (*kritas . . . spoudaious*) without participating in the works" (1340b22–25). We should expect, then, that women would have to participate in deliberation in order to be able to make good judgments on deliberative matters.

[31] Heath notes that slaves must deliberate about technical matters, even if they do not deliberate about moral matters, so it may be more precise to say that free women participate in deliberations about moral matters, although they do not participate in the decision making, whereas slaves only participate in deliberations about technical matters within their purview. See Heath (2008: 243–70).

[32] I am grateful to the editors of this volume, and to the participants at the conference, *Aristotle's Politics: Critical Appraisals*, Department of Classics, University of Colorado, Boulder (February 2014), for their insightful comments on earlier drafts of this chapter.

CHAPTER 4

Politics II: *Political critique, political theorizing, political innovation*

Thornton Lockwood

The second book of Aristotle's *Politics* is generally taken to examine *politeiai* or constitutions that either exist in cities that are said to be well governed or were proposed by theoreticians and are thought to be well organized (II.1, 1260b30–32; II.12, 1274b26–28).[1] Prominent are Aristotle's examinations of Plato's *Republic* and the constitution of Sparta; but Aristotle also devotes chapters to the examination of Plato's *Laws*, the proposed constitutions of Phaleas of Chalcedon and Hippodamos of Miletus, and the existing constitutions of Crete, Carthage, and Solon's Athens.[2] Prominent, also, is scholarly analysis of Aristotle's remarks about the *Republic* and Sparta – whether his criticisms of Plato are insightful and fair or whether his remarks about Sparta are historically accurate and hit upon the causes of Sparta's fourth-century decline.[3] Far less prominent, though, is scholarly discussion of Aristotle's remarks about the other constitutions analyzed in *Politics* II, how *Politics* II as a whole is organized, or what light – if any – the book sheds on the *Politics* as a whole.[4]

[1] Unless otherwise noted, parenthetical references within my paper refer to book, chapter, and Bekker page numbers of the *Politics*. Translations are my own, based on Ross (1957), but are significantly informed by the translations of Reeve (1998) and Saunders (1995).

[2] Although Aristotle's analysis of the *Republic* is the longest in *Politics* II and takes up 223 Bekker lines of text, that is only one-fifth of the book as a whole (which comprises 1134 Bekker lines of text). The discussion of Sparta is the next longest passage (189 lines), followed by those of Hippodamos (132 lines), the *Laws* (127 lines), Phaleas (112 lines), Carthage (86 lines), Crete (85 lines), the investigation of property (72 lines), and Solon (35 lines). *Politics* II.12 takes up, in rapid succession, the proposals of seven additional legislators, each for only a line or two. In this chapter I focus primarily on Aristotle's critiques within *Politics* II, but he has extensive critiques of both the *Republic* and Sparta outside of *Politics* II; see, for instance, Saxonhouse (Chapter 10 in this volume) and my unpublished "Servile Spartans and Free Citizen-Soldiers in Aristotle's *Politics* 7–8."

[3] Bornemann (1923–24) is the landmark work critical of Aristotle's treatment of Plato; Mayhew (1997), Stalley (1991), and Simpson (1991) and (1998) provide extended analyses and defenses of many of Aristotle's remarks about the *Republic*. Schütrumpf (1994) presents a judicious overview of the debates that Aristotle's remarks about Sparta have generated and Rubin (2012) is the most recent study of Aristotle's treatment of Sparta.

[4] Bertelli (1977) is the sole book-length study of *Politics* II in its entirety. Although Morrow (1960b) and Schofield (2010) both address Aristotle's critique of the *Laws*, the 50-year gap between them

Such scholarly neglect is unfortunate for at least two major reasons. First, *Politics* II claims that since the *Politics* proposes to study which political community is best of all for people who are most able to live in accord with one's prayers (*kat' euchên*), it is necessary to investigate other constitutions reputed to be best (II.1, 1260b27–29). Such a claim suggests a close link between *Politics* II and *Politics* VII/VIII, but such a link needs elaboration. In what way does *Politics* II prepare the way for *Politics* VII/VIII?[5] Second, *Politics* II contains not only criticism of other constitutions, but also substantive political theorizing – most noticeably about the organization of property in the best regime, the problem of political innovation, and the relationship between political theorizing and chance. Aristotle's critiques of Plato's *Republic*, the constitution of Hippodamos, and the constitution of Carthage generate a series of substantive theoretical reflections about the problematic nature of political innovation and political theorizing that rise above mere examinations of the views of his predecessors.[6] Viewing *Politics* II solely as a repository of criticism loses sight of the theoretical insights Aristotle offers therein, self-conscious insights about the very nature of political theorizing.

The vantage point that makes visible the relationship between political critique and political theorizing is the structural analysis of

speaks for itself (so too the gap between Balot [2001] and Lana [1950] in the case of Phaleas). Aristotle's remarks on Hippodamos have received more attention (in part because of his importance as a city planner), for instance, see Boyer (2008), Gorman (1995), Hogan (1959), and Lana (1949); but Huxley (1971) is a rare study of Aristotle's remarks on Crete and an appendix to Newman (1887–1902: 2.401–408) is the sole study I can find devoted to Aristotle's remarks on Carthage. Kraut (2001), Kraut (2002), and Lisi (2008) provide semi-complete analyses of *Politics* II as a whole; Pangle (2013), Saunders (1995), Schütrumpf (1991–2005), and Simpson (1998) provide running commentaries on the entire book. Nichols (1992), Davis (1996), and Garver (2011) each provide a more or less selective chapter on *Politics* II; Miller (1995) and Frank (2005) include chapters devoted almost solely to the issue of property in *Politics* II.

[5] Although the last two books of Aristotle's *Politics* present a number of textual problems – including their incompleteness, unfulfilled forward references, and the fragmentary nature of *Politics* VIII.7 – the division of the text into two "books" (i.e., *Politics* VII and *Politics* VIII) is arbitrary and interrupts a clear division of analysis (articulated most clearly at VII.4, 1325b33–26a4; VII.13, 1331b23–32b10; and VIII.2.1337a32–37b2). Thus, I refer to *Politics* VII/VIII as a unified text throughout my paper. On the problems concerning the textual status of *Politics* VII/VIII, see Kraut (1997: 169).

[6] Schofield (2010) reflects on the disconnect between Aristotle's criticisms of Plato's *Laws* in *Pol.* II.6 and his unacknowledged but extensive borrowing from the *Laws* in *Politics* VII/VIII and writes that "whether this is because [*Pol.* VII/VIII] constitute a stratum of the *Politics* earlier than Book 2, or because Aristotle does criticism and construction in entirely different modes, almost as if they had nothing to do with each other, is a question to which one might return on another occasion" (15). Although I do not address the situation of Aristotle's apparently inconsistent approaches to the *Laws*, I do nonetheless want to explain the relationship between how he "does criticism and construction," especially in the final part of this chapter.

Politics II. The way that the book is organized – both with respect to the order in which constitutions are examined and with respect to what I will call the philosophical excurses Aristotle incorporates therein – underscore Aristotle's self-conscious reflection on the way in which political theorizing itself is both politically salutary and politically problematic.[7] *Politics* II as a whole exhibits a reoccurring rhetorical or argumentative structure: An initial critique of one of Aristotle's predecessors (e.g., is Hippodamos right to reward people who propose changes to the constitution?) gives rise to a more general philosophical excursus (e.g., should we replace existing laws when better ones are available?).[8] Although the excurses originate in critique, they go beyond mere criticisms and taken together, the excurses on property, political innovation, and the relationship between chance and theorizing problematize the very practice of political critique, political theorizing, and political innovation (which is, of course, the subject matter of *Politics* II, a book devoted to the thoughts and actions of previous political theorists). Scholarly focus on individual critiques in *Politics* II – for instance, those of the *Republic* or Sparta – have failed to notice such excurses since they only become clear from the overall structure of *Politics* II as a whole. A structural analysis of *Politics* II also shows how and why many of the proposals articulated in *Politics* VII/VIII have their origins in *Politics* II. Although most of the criticisms in *Politics* II are briefer, aporetic anticipations of more developed discussion in the last two books of the *Politics* – similar in function to the endoxic surveys that often begin Aristotle's treatises – most striking are the theoretical resolutions that take place within *Politics* II and that *Politics* VII/VIII presupposes. The first part of my chapter provides a structural analysis of *Politics* II as a whole. The second part argues that political innovation is the central problematic of the book by focusing on those excurses in which Aristotle goes beyond political criticism to substantive political theorizing. The final part locates the place of *Politics* II within the *Politics* as a whole.

[7] *Pace* Stalley (1991), who claims that *Politics* II "does not look like a finished work" but is rather "a set of notes" (186).

[8] Although I agree with Pangle that "Aristotle's public theorizing about political practice is a highly self-conscious form of political practice" (2013: 1) – one in which he uses the structural organization of passages or carefully interrelated *aporiai* or puzzles to occasion thought in his reader – what I call "structural analysis" does not presuppose or endorse any sort of esotericism or veiling of Aristotle's thought.

The internal structure of *Politics* II

At first glance, the second book of the *Politics* is divided between what Kraut (2001) calls "failed utopias" – namely, the constitutions of Plato, Phaleas, and Hippodamos – and those existing constitutions that are reputed to be "well governed" (*eunomeisthai*) – namely those of Sparta, Crete, Carthage, and Athens; *Politics* II opens and closes by invoking such a bipartite division of the text (II.1, 1260b30–32; II.12, 1274b26–28).[9] Nonetheless, Aristotle problematizes the bipartite division of *Politics* II in two ways. First, Aristotle also distinguishes constitutions based upon the experience of the person proposing or legislating the constitution. Thus, in II.12, before examining the constitution of Solon, Aristotle notes that

> some of those who have had something to say about a constitution took no part in political actions (*praxeôn politikôn*), but have always lived privately (*idiôteuontes ton bion*).[10] About them, pretty much everything worth saying has been said. Others became legislators (*nomothetai*), engaging in politics themselves (*politeuthentes autoi*), some in their own city-states, others in foreign ones as well. (1273b27–32)

At first glance, the division remains the same: Plato, apparently Phaleas, and Hippodamos lived private lives and are not themselves legislators;[11] Lycurgus, Minos, and Solon actually participated in politics and had experience in making laws.

However, Aristotle further problematizes the division between constitutions proposed by private persons and actual legislators. At II.7, he prefaces

[9] That *Politics* II is organized around the twofold division between proposed and existing constitutions is commonplace in secondary literature. See, for instance, Saunders (1995: xi, 104), Kraut (2002: 306–07), Simpson (1998: 72), Newman (1887–1902: 2.226), and Rubin (2012: 12). Davis (1996: 35–37) seems alone in recognizing three divisions within the text (although he and I do not identify the same three subsections).

[10] Newman notes that Aristotle uses the notion of the *idiôtês* in two senses: either as a "private" person – in opposition to one in office (e.g., II.11, 1273a35; II.12, 1273b29; III.4, 1277a24; IV.16, 1300b21) – or as a "layperson" – in opposition to one possessing expert knowledge (e.g., III.1, 1282a11; VII.2, 1324b1). I concur with Newman that in II.7–8, Aristotle brings the two senses together, suggesting that the "failed utopias" of Phaleas and Hippodamos were the result of their layperson ignorance about the affairs of office (Newman 1887–1902: 2.281–282).

[11] Plato, of course, is reputed to have travelled to the court of the Syracusean tyrant Dionysius II; but even if one trusts the report of the *Seventh Epistle* (326B–330B), he was denied an opportunity to serve as any sort of a legislator. Since Aristotle is the sole source for our knowledge of Phaleas, it is uncertain whether he lived a private or political life (see further Lana [1950], Schütrumpf [1991–2005: 1.238–40], and Balot [2001: 33–34]). But as Saunders notes, "the sweeping and somewhat naïve simplicity of his proposals" suggest that he was neither a practicing statesman nor a philosopher (1995: 135).

the transition between his analysis of Plato's proposed constitutions (in the *Republic* and the *Laws*) and that proposed by Phaleas with the following remarks:

> There are other constitutions, too, proposed either by private individuals or by philosophers and statesmen (*hai <politeiai> men idiôtôn hai de philosophôn kai politikôn* [1266a31–32]). But all of them are closer to the established constitutions under which people are now governed than either of Plato's. (II.7, 1266a31–34)

Aristotle's use of the *men/de* construction makes clear that although philosophers may in fact be private individuals, nonetheless they form their own class distinct from "mere" private individuals and are more like statesmen (a point *Politics* II.8 underscores by noting that Hippodamos was the first person to propose a constitution even though he himself had never participated in politics [1267b29–30]). Constitutions proposed by philosophers (i.e., those found in the *Republic* and the *Laws*) thus constitute a third grouping – a grouping that presumably also includes Aristotle's own best regime, since he was a philosopher who lived the private life of a metic.[12] It would seem, then, that *Politics* II is divided into three parts: constitutions proposed by a private citizen who is a philosopher (*Politics* II.2–6), constitutions proposed by non-philosophers who are private citizens (*Politics* II.7–8), and constitutions legislated by statesmen or lawgivers (*Politics* II.9–12).

A second structural feature of *Politics* II reinforces the claim that Aristotle divides *Politics* II into three parts. Three times in *Politics* II Aristotle undertakes an analysis that, while related to the section in which it is placed, is a sort of excursus or independent analysis within the critique of constitutions. In the first division of the text – namely, that devoted to analyzing a philosopher's proposed constitutions – *Politics* II.5 provides a sustained analysis that resolves the question of how property should be organized in the best regime. *Politics* II.5 begins by stating that "the next topic to investigate is property, and how those in the best constitution should arrange it. Should it be owned in common or not? One could investigate these questions even in isolation from the legislation dealing with women and children" (II.5, 1262b37–41). The section in question, which runs from 1262b37–63b29, occupies almost three Bekker pages and although it obviously "fits" within the critique of the community of women, children, and property in Plato's

[12] Compare Saunders (1995: 140–41), who sees a strong resemblance of Aristotle in his depiction of Hippodamos. For the relevance of Aristotle's metic status, see Whitehead (1975).

Republic, the excursus on property in the best regime makes no reference to Socrates' proposal.[13] The section's conclusion – that "evidently (*phaneron*), then, it is better for property to be private and its use communal" (II.5, 1263a37–39) – is stated in a provisional fashion, which is understandable since Aristotle will return to the same discussion in his analysis of the best regime in *Politics* VII.10 (at 1329b36 and following). The passage in question is not political criticism of the *Republic*, but political theorizing about the nature of property as such in the best regime.

The second section of *Politics* II – namely, that concerning the constitutional proposals of private individuals with no experience in politics – includes another excursus. Hippodamos, the first nonstatesman to propose a constitution (1267b29–30), sought the enactment of a law that honored those who had discovered something beneficial to the polis (II.8, 1268a6–8). Aristotle criticizes the law – on the grounds that it would encourage sycophancy and repeated changes in the constitution (II.8, 1268b24–25) – but notes that its evaluation is part of a different problem and inquiry, namely whether it is beneficial or harmful for cities to change their traditional laws if some other law is better (1268b26–28). Aristotle spends the remainder of *Politics* II.8 considering aporetic arguments in favor of and against changing laws in an excursus that is far more general in scope than the criticisms of Hippodamos. As I will discuss later in the next part of this chapter, Aristotle's excursus on the costs and benefits of constitutional change stands at the heart of *Politics* II, since it theorizes the dangers political criticism poses for existing constitutions, including presumably the criticisms within *Politics* II.

Aristotle's examination of the constitution of Carthage is itself an analogous excursus, which falls at the end of the third section of *Politics* II, namely that part of the book that considers existing constitutions (*Politics* II.9–12). The first two sections of *Politics* II concerned "cities in speech," as it were, and the excurses those sections occasioned were similarly theoretical or abstract. However, the last section of *Politics* II concerns actual constitutions, and the excursus that this section generates is itself an examination – or more accurately, the juxtaposition to Sparta and Crete – of an actual constitution, namely that of Carthage. That the analysis of Carthage is an excursus that stands apart from the

[13] As Saunders puts it, the remarks in the excursus "are entirely general, and in their urbane shrewdness could practically stand alone as an independent essay in the manner of Addison or Lamb" (1995: 116).

analyses of Sparta and Carthage is indicated by several unusual features in the text. *Politics* II.9 – which serves as the transition between the second and third parts of the text – makes explicit reference to a consideration of the constitutions of Sparta and Crete, but it omits reference to Carthage (II.9, 1269b29–30), and generally treats Sparta and Crete as a pair.[14] As Newman points out, Carthage differs from Sparta and Crete in that during Aristotle's lifetime, Carthage was approaching its prime, whereas both Sparta and Crete were going into decline (Newman 1887–1902: 2.401).[15] Remarkable, also, is the fact that Carthage is a Phoenician or non-Greek polis, one that Aristotle's readers would have considered as "barbarian." Although Aristotle identifies Lycurgus and Minos as the almost-divine legislators of Sparta and Crete, he identifies no such legislator for Carthage.[16] However, most remarkable is the fact that although Aristotle offers criticism of Carthage's constitution, the criticism is mild and on the whole his remarks are praiseworthy.[17] Aristotle begins II.11 by noting that

> The Carthaginians also are thought to be well governed,[18] and in many respects in an extraordinary way (*perittôs* [1272b25])[19] compared to others ... Many of their arrangements work well for them, and it is an indication that their constitution is well organized that the people (*dêmos*) willingly stick with the way the constitution is organized, and that no faction

[14] Indeed, although *Politics* II.9 (the analysis of the Spartan constitution) and II.10 (that of the Cretan constitution) make numerous cross references to each other, the two chapters contain no reference to Carthage (although II.11, 1272b33–1273a2 draws "similarities" [*paraplêsia*] between Carthage and Sparta).

[15] Aristotle explicitly notes the decline of Sparta in his allusions to the Theban invasion of Epaminondas in 369 BC (II.9, 1269b36–39) and Sparta's defeat at the battle of Leuctra in 371 (II.9, 1270a30–34; VII.14, 1333b20–25). Aristotle is one of the only surviving sources for our knowledge of the political organization of Carthage in the fifth and fourth centuries BC. For further discussion, see Scullard (1955).

[16] For the possible religious significance of Minos in Aristotle's *Politics*, see Bartlett (1994: 145–46) and Pangle (2013: 85–88). Nichols (1992) notes that Aristotle fails to identify any legendary lawgiver for Carthage, but seems wrong to take such an omission to imply that "Carthage, in effect, has not had the care of a lawgiver" (47).

[17] Pangle goes so far as to claim that Carthage is "the best regime in human history of which Aristotle knows" (2013: 93); cf. Strauss (1964: 30). Isocrates in *Nicocles or the Cyprians* claims that the Spartans and Carthaginians are the best governed people in the world (23–24).

[18] As Aristotle notes at the end of II.11, the constitution of Carthage is *rightly* esteemed as being well governed (II.11, 1273b26).

[19] Perhaps coincidentally, Aristotle uses the same word (*peritton* – "out of the common") to describe the Socratic dialogues (II.6.1265a11), Hippodamos' lifestyle (II.8.1267b22–28), and Carthage's constitution. Davis (1996: 37) points out that Aristotle claims (II.3, 1261b29–30) that the term *peritta* ("odd" as opposed to even) can be used equivocally and thus is the source of eristic argumentation.

> even worth talking about has arisen among them, and no tyrant. (II.11, 1272b24–25, 29–33)[20]

By contrast, Aristotle describes Sparta as a poverty-stricken oligarchy that suffers from *philochrêmatia* and *oliganthrôpia* and whose men are ruled by their women; he hesitates to claim that Crete even has a constitution given its dynastic tendencies and regular suspension of the rule of law.[21] Carthage appears to be the "best" best regime of *Politics* II. Aristotle's presentation of Carthage as a non-Greek institution, which eclipses the legendary Greek constitutions of Sparta and Crete, is the capstone of the three excurses within *Politics* II, one that brings out his willingness to innovate and openness to trans-Hellenic political institutions.

The central problem(s) of *Politics* II

Is there a central theme or problem that runs through or unifies Aristotle's remarks about individual constitutions in *Politics* II? Francisco Lisi has recently argued that "the relations of property" is "the main perspective in Aristotle's consideration of other constitutions" (2008: 8).[22] Although the issue of property is central to Aristotle's criticisms of the community of possessions in the *Republic*, the egalitarian leveling of property in Phaleas' constitution, the status of women and societal inequality in Sparta, and the importance of the communal messes found in Sparta and Crete, property relations are at best peripheral to the analysis of the *Laws*, and the constitutions of Hippodamos, Carthage, and Athens. More reasonable is Richard Kraut's suggestion that *Politics* II has several major themes, including "how citizens are to be integrated into a single community and kept from dividing into hostile factions," how to derive stability from the mixing of different constitutions, and the problem of traditional institutions (Kraut 2002: 307–08).[23] Kraut also seems correct to identify a

[20] As Susemihl and Hicks note (1894: 307), the discussion of the apparent exception of the tyrant Annon (V.2, 1307a2–5) actually confirms Aristotle's point, since the people of Carthage thwarted his tyranny.

[21] See II.9, 1269b23–35, 1270a11–15, 29–34; II.10, 1272b1–3, 9–11.

[22] Lisi's claim is a commonplace: see Miller (1995: 308–09), Frank (2005: 74–75), Garver (2011: 44–45), and Nielsen (2013: 69–70). For support, Lisi cites Mayhew (1997) – which does indeed identify property as the central concern in Aristotle's criticisms of the *Republic*. However, the analysis of the *Republic* takes up less than a quarter of *Politics* II.

[23] Kraut (2001) is a much briefer – although in some places verbatim – version of Kraut (2002: 306–56). See, more recently, Deslauriers (2013) who claims that "*Politics* II is dominated by questions of commonality – what we should have in common in the best city-state, but also what we should not share" (117).

plurality of major themes in *Politics* II, even if the question of property predominates in the first half of the book. More problematic, though, is Kraut's claim that Aristotle embraces a sort of conservatism in *Politics* II, namely, an approach that rejects untried changes and embraces what he calls "social practices of great antiquity – assemblies, courts, marriage, property, common meals, music, gymnastics, and so on" (Kraut 2002: 352). Although Kraut is correct to say that in *Politics* II Aristotle relies upon previously practiced social institutions, the excurses in *Politics* II suggest that if Aristotle is a conservative, he is not adverse to embracing radical change in contemporary institutions.

Although each excursus in *Politics* II has its own focus, they are united by the problem of political innovation and change.[24] Consider the first excursus on property in *Politics* II.5: It considers three options – that land could be owned individually but used communally, owned communally but used individually, and owned and consumed communally (II.5, 1263a3–8) – but it ignores the option that prevailed in Aristotle's own time, namely private ownership and private use.[25] Thus, when Aristotle endorses private ownership and public usage, he is advocating a radical departure from the way that his contemporaries organized property in Greek city-states.[26] Aristotle notes that his arrangement is a "present practice" (*nun tropon*), one that "is already present (*nun ton tropon*) in outline form in some city-states" – by which he means in Sparta, Crete, Carthage, and Tarentum.[27] Even if Aristotle can find precedent for the institution his arguments support, it remains a major renovation of contemporary Greek practice.[28] Indeed, one wonders if Aristotle articulates his major innovation

[24] I agree with Garver (2011: 58) that a unifying thread of *Pol* II is "that all previous attempts at visualizing an ideal state get the idea of constitution wrong – wrong because they conceive of politics as *technê*, not as practice. They consequently attempt to get property arrangements, the constitution, and laws to do a job that only education and virtue can accomplish." However, as I discuss in the third part of this chapter, Garver goes too far in reducing *Politics* II solely to criticism and fails to appreciate its close connection with *Politics* VII/VIII.

[25] See Saunders (1995: 117) and Pangle (2013: 78).

[26] As Nielsen (2013: 86–87) notes, Aristotle's proposal harkens back to a period when the institution of public liturgies was one of "voluntary public service" rather than "compulsory philanthropy" (to use Matt Christ's term for the way that the Greek liturgical system evolved in the fourth century BC).

[27] For private ownership and public use in Crete (where it first takes place among Greek cities), see II.9, 1271a26–37 and VII.10, 1329b5–23; for Sparta and Crete, see II.5, 1263b40; for Carthage, see VI.5, 1320b4; and for Tarentum, see VI.5, 1320b9.

[28] Would it be accurate to call such a reform progressive? On the one hand, Aristotle's proposals would radically rearrange the contemporary ownership patterns of landed wealth (consider, for instance, his proposal that private land be organized so that every citizen have two plots – one near the frontier, the other near the city – so that each citizen would confront the prospects of foreign invasion equally [VII.10, 1330a9–15]). On the other hand, Aristotle limits property to the citizen class and has no illusions about extending property (or the franchise) to "the people" (VII.9, 1329a18–26;

concerning property against the backdrop of Plato's community of women, children, and property since Aristotle knows that his own innovation for the communal use of property will appear less radical in contrast with the almost unprecedented communism of the *Republic* (on which see II.7, 1266a34–36).

The second excursus of *Politics* II theorizes political innovation itself, namely whether it is beneficial or harmful to a polis to change its traditional laws if some other law is better. The proposals advanced by Phaleas and Hippodamos raise this problem, since although they appear beneficial, they come off as rather naïve and poorly thought through. In the former case, Phaleas sought to make property and access to education equal in order to prevent faction (II.7.1266a38–40, 1266b31–34). Although Aristotle notes that leveling property is not without precedent – Solon and others had incorporated it into their laws (1266b16–18) – he claims that such an innovation introduces faction (since people will become poor after previously having been rich) and fails to mitigate faction (since people resort to faction and injustice over many other things besides bare necessities) (1266b13–14, 38–40).[29] People who experience such a land redistribution are prone to becoming "revolutionaries" (*neôteropoioi* [1266b14]), a term close to Aristotle's decidedly negative term for "innovation" or "stirring up change," namely *neôterizein*.[30]

It is the latter case – the innovations of Hippodamos – that provides the immediate context for Aristotle's excursus on innovation in general; like in the case of Phaleas, Hippodamos' political innovations seem to evince his layperson's inexperience with politics. Aristotle's presentation of Hippodamos (including unusual remarks about his sartorial affectations)[31]

VII.10, 1329b36–38). Regardless of whether one characterizes such a change as progressive or reactionary, it would certainly be a major departure from contemporary practice.

[29] Aristotle's main problem with Phaleas' constitution is that it is guilty of what Simpson calls "political materialism," namely, it thinks that human behavior can be changed solely through the arrangement of institutions and neglects that it is the desires (*epithumiai*) in need of education that are the real causes of faction and injustice (1998: 103); cf. Garver (2011: 58–59).

[30] Aristotle unequivocally characterizes *neôterizein* negatively; see II.4, 1262b3; V.7., 1307b19; V.8., 1308b20; VII.10, 1330a28; VII.14, 1332b29; cf. the term's Socratic range: *Rep*. 424B, *Euthphr*. 2A.

[31] Aristotle notes that Hippodamos adopted a rather extraordinary (*perittoteros*) lifestyle due to his love of honor (including wearing his hair long and expensive ornaments) and aspired to understand nature as a whole (II.8.1267b22–28). Lord claims that such "character" remarks are unique in Aristotle's works (2013: 42, n. 62), although that seems to go too far; in II.12 Aristotle incorporates Philolaus' love escapades into his account of Philolaus' legislation (1274a31–b1). Saunders claims that in his remarks about Hippodamos, Aristotle is "perhaps sailing (whimsically?) close to the wind: [Aristotle] himself dressed stylishly (D.L. V.1), took no part in running at any rate Athens' constitution (he was a resident alien), yet had a lot to say about the best state, and indeed about nature" (1995: 140). I would argue that Aristotle is showing a kind of *eidôlon* of himself – but one that

as an honor-loving but politically inexperienced city-planner highlights the pitfalls of innovation.[32] For instance, Hippodamos' (perhaps Pythagorean) fascination with the number three leads him to delimit law to just three categories, namely laws against hubristic behavior, against injury to persons or property, and against killing. Such a reform would curtail the educational force of Greek law and delimit justice to violations of the harm principle (Susemihl and Hicks 1894: 332–333). However, it is Hippodamos' proposal that those who discover something beneficial to the polis should receive honor that raises the question of Aristotle's second excursus in *Politics* II.

Aristotle's excursus on political innovation takes the form of an inquiry organized around an aporia, namely whether it is beneficial or harmful to change a community's traditional laws for better laws (II.8, 1269b27–28).[33] Although Aristotle presents a number of arguments in favor of and against replacing traditional laws with better laws – both of which include qualifications about what "seems" to be the case (1268b33, 1269a14) – the central impediment to resolution concerns the similarity between the political art and other *epistêmai* and *technai*. On the one hand, one might argue that the arts of medicine and other crafts have progressed over time, and if statesmanship (*politikê* [1268b37]) is like those arts, then it too should progress from the simplistic and barbaric practices of tradition (II.8, 1268b34–38).[34] On the other hand, one might argue, the model (*paradeigma* [1269b19]) drawn from the arts is unlike that of the case of laws, since the law has no basis to secure obedience except through habits, and change weakens the power of law (II.8, 1269b19–24).[35]

underscores the difference between innovations proposed by philosophers and non-philosophers (cf. Pangle [2013: 84]). Aristotle also critiques Hippodamean city planning in his own account of the best regime (see VII.11, 1330b22–30 and VII.10, 1330a9–13).

[32] For Hippodamos' prowess as a city planner, see Burns (1976), Gill (2006), and Wycherley (1964).

[33] Aristotle claims that he will return to the question of whether to change traditional laws with better laws at a more opportune time. Brunschwig (1980) argues that the problem of *Politics* II.8 is an "une veritable aporia," one incapable of resolution – and thus "il est des promesses qu'il est d'un philosophe de ne pas tenir" (530, 540). By contrast, Saunders and Simpson take Aristotle to have resolved the aporia with a qualified notion of progressivism (Saunders [1995: 147], Simpson [1998: 110–112]). For Aristotle's treatment of aporetic inquiry elsewhere in the corpus, see *Top.* I.2, *Metaph.* III.1, and *EN* VII.1.

[34] Nussbaum (1988: 37–39) presents a paradigmatic reading of what one might call the "progressive" Aristotle who would endorse this side of the aporia. Destrée (Chapter 11 in this volume) also leans toward this reading.

[35] Strauss (1964: 21–25) presents a paradigmatic reading of what one might call the "Burkean" Aristotle who would endorse this side of the aporia (which also appears to echo Kleon's speech in the Mytilean debate [Thuc. III.37]). Pangle (2013: 8) correctly notes that Aristotle holds together both "Burkean" and "progressive" sides of the problem.

Aristotle's excursus lays out quite persuasively both sides of the question about innovating laws. If Aristotle's promissory note to resolve the issue theoretically remains unfulfilled, nonetheless his willingness to innovate politically resolves the question on a practical level: The statesman must propose change as and when needed. In addition to his proposal for a radical reform of Greek property arrangements, Aristotle also praises Solon's innovation of auditing legislators (II.12, 1274a14–17; III.11, 1281b30–35) and innovative responses to siege warfare (VII.11, 1331a1–18).[36] Aristotle also claims to be the first person to discover what is distinctive about political rule and the mixed regime of polity.[37] Nonetheless, in an important sense truly novel innovation is rare.[38] In his criticisms of Socrates' property proposals, Aristotle notes that

> we should consider the immense period of time and the many years during which it would not have gone unnoticed if [Socrates' proposals] were any good. For practically speaking all things have been discovered, although some have not been collected, and others are known about but not used. (II.5, 1264a2–5)[39]

The form of communal property Aristotle advocates – public messes – is an ancient institution (VII.10, 1329b5–33). However, the ancient origins of the property arrangement Aristotle proposes do not make it any less a radical change to his contemporary audience.

Aristotle's first two excurses on property and innovation clearly are based on, but stand apart from, the theoretical proposals of Socrates and Hippodamos; the first excursus results in a theoretical proposal about the organization of property and the second excursus results in the actual practice of proposing innovation. Aristotle's third excursus is analogous. Sparta and Crete present historically existent institutions that embody a perspective on the extent of the legislator's domain; Carthage's constitution is also a historically existent institution, but one that surpasses the constitutions of Sparta and Crete in almost every way, including the extent to which the legislator should leave political

[36] Aristotle's debate with Plato's *Laws* (778B–779D) about whether cities should use defensive walls is an excellent textual example of "progressive" Aristotle: He explicitly notes that it is "old fashioned" (*archaiôs* [VII.11, 1330b33]) for a polis to pride itself on having no walls and encourages the discovery of inventions for defensive arrangements (1331a16).

[37] *Pol* VI.2, 1317a40–b17; IV.7, 1293a40–41; cf. IV.11, 1296a36–38. I explore these claims at greater length in Lockwood (2006).

[38] I am grateful for Richard Kraut for suggesting this contrast to my interpretation.

[39] Commentators note that Aristotle's claim is grounded in his belief in the eternality of human existence and the cyclical development and restoration of human civilization. See, for instance, *Mete.* 352b16–17; *GA* 731b24–732a3, 742b17–743a1; *de An.* 415a25–b7.

matters to chance.[40] The problem of chance figures most prominently in Aristotle's treatment of female education in Sparta. Although Sparta is one of the sole city-states to adopt a regimen of public education for its citizens (the famous *agôgê*), according to Aristotle its focus upon martial virtue for male citizens neglects female education; such neglect made Spartan women licentious and resulted in the inculcation of a love of money (*philochrêmatia* [1270a14–15]), a habit that wives transmit to their families (both husbands and children).[41] Elsewhere in the *Politics* Aristotle makes clear that since women make up half the polis, legislative neglect of their situation is ruinous.[42] In the case of Sparta, such legislative neglect ultimately led to Sparta's decline.

Aristotle's analysis of the Cretan constitution also underscores the folly of leaving what is the domain of political theorizing to the vicissitudes of chance. He identifies the most prominent feature about Crete as its island location, something that makes it "beautifully situated to rule the Greek world" (II.10, 1271b32–33). And yet its chance location is apparently the sole source of Crete's reputed claim to being well governed. Crete, unlike Sparta, solved the problem of its subject population, but the solution was the result of its island location rather than any planning or design (II.9, 1269a38–40; II.10, 1272b17–19). Although Sparta incorporated the people (*dêmos*) into its constitution by making the office of the *ephoreia* or "overseers" open to all citizens,[43] in the case of Crete "the fact that the people remain quiescent even though they do not participate is no indication that it has been well organized. For unlike the overseers, the order keepers[44] have no profit, because they live on an island, far away at least from any who might corrupt them" (II.10, 1272a39–72b1). Location is also what saves Crete from external stasis during its dynastic successions, since its distance keeps foreigners away (II.10, 1272b16–17). Although Crete's public messes – its only redeeming legislative accomplishment – were the result of "much philosophizing" (*polla*

[40] Nichols (1992: 46–47) makes a similar observation, although she denies the contrast I articulate between Sparta and Crete, on the one hand, and Carthage, on the other hand; cf. Rubin (2012: 26–28).

[41] II.9, 1269b12–24, 1269b39–1270a15. The historical accuracy of Aristotle's remarks about Spartan women is the source of much disagreement. Plutarch, writing in the first century AD, already contested the accuracy of Aristotle's remarks about the education of Spartan women (see *Life of Lycurgus*, 26.2–3). See Cartledge (1981) and Pomeroy (2002: 159–60).

[42] Aristotle's remarks about Spartan women making up half the polis in II.9, 1269b18–19, appear to be an allusion to I.13, 1260b19; Aristotle's own remarks about women's education are scattered through VII.16 (including explicit guidelines for physical education for men and women, see 1335b10–11).

[43] Aristotle also notes that such inclusion of the parts of the polis is crucial to the health and stability of a constitution. See II.9, 1270b17–32; cf. IV.12, 1296b14–16; V.9, 1309b16–18; VI.5, 1320a14–17.

[44] *kosmoi* – or the Cretan equivalent to the *ephoreia*; see II.10, 1272a4–6.

pephilosophêken [II.10, 1272a22–23]), Crete is an example of what happens when chance takes the place of political theorizing.[45]

Aristotle contrasts the neglectful theorizing of the Spartan and Cretan legislators with the constitution of Carthage, which epitomizes forethought and stability. Aristotle repeatedly claims that Carthaginian institutions eclipse their parallels in Sparta and Crete. *Politics* II.9 initiates a comparison concerning the status of subject or working populations in each polis; although Sparta and Crete exhibit problems with their populations, the treatment of the Carthaginian subject population is a source of friendly feeling in the city.[46] Sparta, Crete, and Carthage all share analogous political offices, namely an executive oversight board (the overseers, order keepers, or the 104), a senate, and kings; Aristotle judges Carthage as having the best organization of each office in all three cases.[47] In several places Aristotle criticizes the "underlying principle" or *hypothesis* of Sparta and Crete because they are focused on military virtue and its object of domination; Aristotle makes no such claim about Carthage.[48]

Unlike Sparta and Crete (at least in *Politics* II), Aristotle identifies Carthage as an aristocracy – albeit one with both oligarchic and democratic deviations. Unique to Carthage is the democratic practice of giving the people authority over matters about which the kings and senators are incapable of agreeing to and the power to speak against their proposals (II.11, 1273a8–11). Carthage elects its officers on the basis of merit and wealth, rather than on the basis of lot or seniority, since office requires leisure to rule well [II.11, 1273a23–30]). Aristotle explicitly criticizes Carthage's legislator for legislating such a deviation from aristocracy (1273a31–32); but the error springs from an appreciation that ruling requires leisure (a belief that oligarchs and the people actually agree

[45] Although I omit discussion of Aristotle's treatment of the Solonic constitution, it illustrates Aristotle's point in reverse. Although Aristotle claims that Athens became the worst sort of democracy following its success after the Persian wars, he attributes that decline to an "accident" (*apo sumptômatos* [II.12, 1274a11–12]) rather than Solon's deliberate choice. Aristotle attributes the demagoguery that plagued Periclean democracy on the elevation of the *dêmos* following its naval supremacy (1274a12–13; cf. V.4, 1304a17–24). Aristotle's reflection on Athens' naval empire informs his own treatment of the question of naval power in his best regime; see VII.6, 1327a40 ff.

[46] See II.9, 1269a36–b12, and II.11, 1273b18–20; cf. VI.5, 1320b4–7.

[47] Aristotle judges the Spartan overseers as superior to the Cretan order keepers, and the Carthaginian 104 as superior to the overseers (II.10.1272a27–35; II.11.1272b34–36); he makes extended criticisms of the Spartan and Cretan senates, but his criticisms of Carthage's senate are minor and ultimately he praises it as aristocratic (II.9, 1270b36–71a8; II.10, 1272a35–39; II.11, 1273a13–18); and he judges the Carthaginian office of king better than that of the Spartan office (II.11, 1272b37–1273a1).

[48] See II.9, 1271a41–b9; VII.2, 1324b3–15; VII.14, 1333b6–33. Aristotle does note that Carthage uses armlets to recognize the number of military campaigns its soldiers participate in (VII.2, 1324b13–15); see further Newman (1887–1902: 2.403).

upon [1273a24–25]). The legislator's error consisting in thinking that leisure should be distributed in society by chance in the same fashion that wealth is distributed in society.[49] Such an error appears far less serious than those found in Sparta and Crete, and indeed it is an error that Aristotle's own constitution will rectify by proposing a property arrangement that provides all citizens with leisure by design rather than by chance (a proposal far more audacious than those found in an existing constitution).

Whereas the constitutions of Sparta and Crete illustrate the problem of letting chance, rather than deliberation, organize a polis, the examination of Carthage is an excursus on how an existing constitution approximates the proper balance between deliberate innovation and the domain, in Aristotle's terms, of prayer or hope (VII.13, 1332a28–33). Aristotle's willingness to praise, with minor qualifications, a non-Greek constitution as superior to the best theoretical and existing Greek constitutions embodies a theoretical attitude that transcends (and problematizes) the distinction between Greeks and "barbarians." Aristotle's willingness to look beyond Greek institutions for models of the best constitution shows his appreciation for the institutional changes of the fourth-century Mediterranean world.[50]

The place of *Politics* II within the *Politics*

Aristotle's examination of constitutions is connected to the *Politics* by numerous cross-references and allusions. In addition to apparent allusions to the text in the transitional sentences in *Nicomachean Ethics* X.9 and *Politics* I.13,[51] implicit and explicit references within *Politics* II clearly connect it to the remainder of the *Politics*, including *Politics* I.[52]

[49] Aristotle also notes that Carthage used colonization as a safety valve to alleviate faction, an effect that stabilized its constitution. However, he claims that such a "cure" was the result of luck rather than thanks to the legislator (II.11, 1273b18–23; cf. VI.5, 1320b4–7).

[50] Although Dietz (2012) does not consider the case of Aristotle's endorsement of Carthage, it supports her claim that the *Politics* actually undermines what she calls "hegemonic Greek binary oppositions" (275). Frank (this volume) makes a similar point in her account of Aristotle's use of "middle-voice" persuasion to discuss Greek/barbarian oppositions.

[51] *EN* X.9 claims that the subject of legislation has been neglected (1181b12–17), but *Politics* II identifies numerous individuals who have proposed legislation or laws, and indeed Aristotle faults Plato for speaking too much about legislation (II.6, 1264b28–65a2). The transitional sentence between *Politics* I.13 and *Politics* II omits reference to inquiry concerning existing constitutions (1260b23–24). See further Newman (1887–1902: 2.225–26), Schütrumpf (1991–2005: 2.92–93), Saunders (1995: 104), and Simpson (1998: 72, n. 1).

[52] Claims in *Politics* II that implicitly draw upon *Politics* I include that the polis is a self-sufficient community (II.2, 1261b10–15; cf. I.2, 1252b27–1253a1), that the love each person feels for himself or

However, the largest number of implicit cross-references within *Politics* II connect it to *Politics* VII/VIII; indeed, almost every chapter of *Politics* VII/VIII (excluding those on music) discuss topics already raised in *Politics* II. That there is a link between *Politics* II and *Politics* VII/VIII is unsurprising since both texts are concerned with the nature of the best regime; but elucidating that link is more difficult. Generally, *Politics* II presents shorter, incomplete criticisms of topics, which *Politics* VII/VIII then treats at greater length and specification.[53] The exceptions to this generalization underscore the problematic nature of political theorizing.

Consider the case of population size in the best regime, a topic taken up in both *Politics* II.6 (in the discussion of the *Laws*) and in VII.4. Comments in the former text are brief and the question of optimum population size is unresolved. Thus, in his critique of the size of the population in Plato's *Laws* (i.e., a city with 5,000 weapon owners [II.6, 1265a9–10]), Aristotle writes

> Consider, for example, the multitude just mentioned. We must not forget that it would need a territory the size of Babylon or some other unlimitedly large territory to keep five thousand people in idleness, and a crowd of women and servants along with them, many times as great. We should assume conditions that can be prayed for, to be sure, but nothing that is impossible. (II.6, 1265a13–18)

By contrast, Aristotle's discussion of ideal population size in *Politics* VII.4 is philosophically richer and arrives at an answer. The discussion in *Politics* VII.4 begins by noting that he has previously discussed various constitutions (VII.4, 1325b34),[54] and then echoes the claim in II.6 that although preexisting conditions can be "ideal" (*euchomenous*), they cannot be impossible (1325b39). *Politics* VII.4 then argues that the sign of a "megalopolis" is not

herself is not without purpose but natural (II.5, 1263b1; cf. I.1, 1253a10; I.3, 1256b20), or that there is no natural limit to desire (II.7, 1267b1; cf. I.8, 1256b32; I.9, 1257b40). Explicit cross-references include: the discussion of population size and poverty (II.6, 1265b16–17 refers to VII.16, 1335b19–26); the analysis of the mixed regime in Plato's *Laws* (II.6, 1266a13–25 refers to IV.7–9); and the discussion of the Spartan kingship (II.9, 1271a18–25 refers to III.14). The discussion of political innovation in II.9 (1269a28) and that of male homosexuality in II.10 (II.10, 1272a24–25; but cf. VII.16, 1335b37–42) are both unfulfilled promissory notes.

[53] Garver's claim (2011: 62) that all the thinkers of *Politics* II are guilty of thinking of politics as the application of *technê* rather than an exercise in praxis seems incapable of making sense of the continuities between *Politics* II and *Politics* VII/VIII.

[54] Kraut (1997: 150) suggests that Aristotle's reference may be to the constitutions collected by Aristotle's school (of which the *Athenian Constitution* is the sole survivor); but given the immediate implicit reference to *Politics* II.6, it seems more likely that Aristotle is adverting back to the study of the best constitutions in *Politics* II. As Peter Simpson has pointed out to me, determining the location of Aristotle's reference here may have significant ramifications for the ordering of the books in the *Politics*.

its overall population size but rather the size of those who are truly a part of the city, that a criterion for proper population size is beauty, and that ultimately ideal population size is determined by the fact that in a good participatory government, the population cannot be so large that people are unfamiliar with those whom they are electing or judging in lawsuits.[55] Although Aristotle's remarks about population size in Plato's *Laws* problematize the issue and stipulate an important principle (e.g., that impossibility is a constraint on theorizing), the topic is decisively resolved only in *Politics* VII.4.

Aristotle's treatment of property in *Politics* II and *Politics* VII/VIII provides a very different pattern. Aristotle's complete discussion of the public versus private distribution of property in *Politics* VII.10 consists in a few lines, which state

> We do not agree with those who claim that property should be communally owned, but it should be commonly used, as it is among friends and no citizens should be in need of sustenance. As for messes, everyone agrees that it is useful for well-organized states to have them. (VII.10, 1329b41–1330a4)[56]

As we have seen earlier, *Politics* II.5 provides an extensive and self-contained excursus on the distribution of property that lays out the various options for the distribution of property, considers contemporary examples of communal use of property, and presents extended arguments – based in a discussion of self-love – for the superiority of private ownership and communal use. The pattern found in the discussion of population size is reversed: It is the discussion in *Politics* II that is far more expansive and philosophically rich, whereas the discussion in *Politics* VII/VIII is terse and unphilosophical.

We thus have two different models for the division of labor between *Politics* II and *Politics* VII/VIII: I call the first model (i.e., that found in the analysis of population size) "aporetic" because although *Politics* II raises a problem about how to organize the best regime, the solution of the problem is found in *Politics* VII/VIII. I call the second model (i.e., that found in the analysis of the distribution of property) euporetic because *Politics* II not only raises a problem, but it largely resolves it independently of *Politics* VII/VIII. The aporetic model certainly predominates: Topics such as whether a polis should aim at domination, the proper use of leisure, the ideal extent and location of territory, the political status of agricultural

[55] See II.6, 1326a20–25, 1326a33–35, 1326b14–20.

[56] Aristotle goes on to note that the reasons for agreeing with the desirability of messes will be stated later (1330a4–5), although that promise is unfulfilled in the *Politics* as we have it.

or artisan populations, the relationship between chance and political science, and the place of education in the best constitution are all raised aporetically in *Politics* II and resolved in *Politics* VII/VIII. There are a couple of euporetic exceptions. For instance, the relationship between population size and the problem of poverty is raised and solved in *Politics* II: Aristotle raises the question in his critique of the *Laws*, discusses historical solutions to the problem, and stipulates that the issue of economic equality is less a problem of property distribution and more an issue of population and the number of children per estate (something he subsequently also points out in his critiques of Phaleas and Sparta).[57] Although the discussion in II.6. includes an explicit cross-reference (1265b17) to Aristotle's treatment of the problem in *Politics* VII.16, the discussion of population control in VII.16 is largely stipulative and takes for granted the philosophical solution offered in *Politics* II.6. If I am correct to say that Aristotle's excursuses on political innovation both propose and resolve a question practically (i.e., Aristotle proposes a political innovation while appreciating its problematic nature), then *Politics* II.8 is also euporetic: It raises the problem of innovation, explores both sides of the issue, and then proposes a major innovation, namely communal use of private property.[58]

Even if there are important exceptions to the aporetic model in *Politics* II, nonetheless the aporetic model predominates and thus allows us to elucidate the connection between *Politics* II and *Politics* VII/VIII. Within the *Politics* as a whole, *Politics* II for the most part performs an aporetic function, namely a survey of reputable constitutions – either those only proposed in theory or those actually enacted by legislators – which is analogous to the survey of *endoxa* or "reputable opinions" elsewhere in Aristotle's writings. It is not the function of *Politics* II (for the most part) to resolve the problems it raises, but it does problematize what will be the central issues for Aristotle's analysis in *Politics* VII/VIII. The case of education and the use of leisure illustrate the point. In *Politics* II, Aristotle notices in several places that education (*paideia*) is a central tool for the legislator: It is what the legislator should use to dispose people properly to the communal use of property, to form their desires to avoid acquisitiveness, and to prepare persons for the proper use of leisure.[59]

[57] See II.6, 1265a39–17; II.7, 1266b7–14; II.9, 1270a34–70b7.

[58] *Pace* Brunschwig (1980), which claims that Aristotle cannot resolve the problem. Admittedly, I propose that Aristotle resolves the problem on a practical level (i.e., he proposes an innovation), not a theoretical one.

[59] See, for instance, II.5, 1263a35–40; II.7, 1267b4–8; II.9, 1271b3–6. On this point, Garver (2011: 52) and I are in agreement.

Further, Aristotle faults Socrates, Phaleas, Lycurgus, and the constitution of Carthage in a number of places for their failure to make use of education within their constitutions.[60] Although the reader of *Politics* II will sense that education and the use of leisure are topics Aristotle's predecessors have dealt with problematically, it is only when one arrives at *Politics* VII/VIII (more specifically, *Politics* VII.13–VIII.7) that the reader sees that proper education – both in preparing a citizen for the regime in which he lives and in preparing that citizen to use leisure properly – is the solution to some of the apparently insoluble or aporetic problems of *Politics* II.[61]

Conclusion

Although *Politics* II assembles the reputable opinions and institutional examples relevant to an inquiry about the best regime, it is much more than a survey of opinions. First and foremost, the fact that most of the proposals Aristotle incorporates into his account of the best regime have their institutional antecedents – either in theory or practice – is itself a reason (albeit necessary rather than sufficient) for their adoption or incorporation into the best regime. As Aristotle notes at one point, the political scientist "should make adequate use of what has been discovered, but also try to investigate what has been overlooked" (1329b33–35). *Politics* II is precisely the first part of that exercise, and the numerous connections between *Politics* II and *Politics* VII/VIII illustrate the importance Aristotle places on that exercise.

Second, my analyses suggest that *Politics* II is a self-conscious reflection on the very activity of political critique and innovation. In different ways, each of the excursuses I have analyzed, theorizes, as it were, political theorizing. The first excursus in *Politics* II.5 presents a philosophical argument for a reform that, although arising out of a critique of the community of women, children, and property in Plato's *Republic*, is independent of that critique. The second excursus in *Politics* II.8 presents a philosophical analysis of the positive and negative political consequences of political innovation that, although arising out of a critique of a law proposed by

[60] See II.5, 1263b36–37; II.5, 1264a30; II.7, 1266b33; II.9, 1269b19 ff.; II.11, 1273a31–1273b8.

[61] See VIII.1, 1337a10–20 and VIII.3, 1337b29 ff. I thus endorse Kraut's suggestion that it is generally helpful to read *Politics* II with the hindsight provided by *Politics* VII/VIII (for his use of the principle, see Kraut [2002: 322, 325, 327–29, 335]). Although it goes beyond the extent of my argument, the tight connection between *Politics* II and *Politics* VII/VIII suggest that Aristotle may be using the literary device of "ring construction." For further discussion of the phenomenon, see Lockwood (2014).

Hippodamos, is independent of that critique. The third excursus of *Politics* II.11 presents an analogous case study: Whereas the analyses of the Spartan and Cretan constitutions show the problems obtained when political science abdicates its responsibility to chance, the Carthaginian constitution is an example of an almost perfect mix of deliberate choice and natural circumstances. Although the analysis of Carthage's constitution emerges in juxtaposition to those of Sparta and Crete, its non-Greek status simply underscores – to Aristotle's Greek audience – the almost limitless domain of radical political theorizing.

However, although Aristotle can note that "practically speaking all things have been discovered" (II.5, 1264a3–5) or indeed that "pretty well everything has been discovered many times, or rather an infinite number of times, in the long course of history" (VII.10, 1329b25–26), political innovation – and more generally, political theorizing – is hardly limited to recycling previous discoveries. Aristotelian political theorizing sees in previously existing and proposed constitutions elements that have been misunderstood, misapplied, or underappreciated. As Aristotle makes clear – perhaps with intended rhetorical force – his most radical innovation, the arrangement for the communal use of property in public messes, is also one of the oldest political institutions in human memory (VII.10, 1329b5–23). How and when the political theorist needs to bottle afresh such old wine is the theoretical lesson that rises above the political critique of Aristotle's predecessors in *Politics* II – and remains equally relevant to the neoAristotelian political theorist today.[62]

[62] I am grateful for comments on my chapter from fellow contributors to this volume who offered both oral comments (at our conference in Boulder) and written remarks, including those by Thanassis Samaras, Pierre Destrée, Eckart Schütrumpf, Arlene Saxonhouse, John Mulhern, and Marguerite Deslauriers. I am also grateful to Richard Kraut, Peter Simpson, and Gene Garver for reading my chapter and providing stimulating comments.

CHAPTER 5

Politeia *in Greek literature, inscriptions, and in Aristotle's* Politics*: Reflections on translation and interpretation*[1]

J. J. Mulhern

In this chapter I shall describe Aristotle's use of *politeia* in the *Politics*. I leave the word untranslated here because part of the thrust of this chapter is that several different renderings are required. Although, during the current revival of interest in the *Politics*, which dates back to the middle of the twentieth century,[2] some translators and interpreters have tried to use one word for *politeia* in the target language throughout, such as "constitution" or "regime" or *Verfassung*, I hope to go back beyond the current revival to recapture some of the complexity of Aristotle's thought.[3]

I shall argue that Aristotle had in mind mainly four distinct senses in using *politeia* in the *Politics* – citizenship, citizen-body, constitution or arrangement of offices, and regime; also, that sometimes he may have had more than one in mind. Even when he mentioned the so-called or so-named *politeia* – the mixture – he had in mind one or more of these distinct senses. Further, in some cases it is difficult to tell what Aristotle intends because the text is inexplicit. The translator might be well advised to mark these occurrences in some way rather than to fall back on a default translation. My argument will rely in part on an annotated catalogue of the 522 occurrences of *politeia* in the

[1] I wish to acknowledge assistance over many years with this and related material from Mary Mulhern and on several key points from the late Martin Ostwald. Other acknowledgments appear in subsequent notes.

[2] In a 1995 supplementary essay to Robinson (1995: 125–26), David Keyt wrote, "The original publication of Robinson's slender volume marked the beginning of a revival of philosophical interest in the *Politics*, which, as the accompanying bibliography makes plain, is now in full flood." Robinson's book was important to the revival, which apparently was occasioned in part by the appearance of new or reissued texts. Sir David Ross's convenient Oxford Classical Text, which Robinson used, appeared in 1957. The Bekker edition of 1831 was reprinted in an handsome large-format version in 1960 by de Gruyter. Dreizehnter's investigations into the history of the text came out in 1962, to be followed by his edition in 1970.

[3] As Harte and Lane (2013: 1) recently have observed, "*politeia* as such – the meaning and range of the term – has received surprisingly little attention as a lens into ancient ideas of politics and ethics," citing Schofield as the exception.

Politics.[4] In the first half of this chapter I shall offer a few signal examples from Greek literature and inscriptions that illustrate the living language in which Aristotle was working along with translations of Aristotle from different periods. In the second half I shall characterize Aristotle's use of *politeia* in the *Politics* book by book to illustrate the opportunities for interpretation that come from being open to the variety of senses and uses of *politeia* that Greek literature and inscriptions and the translation tradition provide. At the end I shall suggest some consequences.

Literature, inscriptions, translations

Literature and inscriptions

Politeia makes its debut in literature in Herodotus IX.34.3 in its Ionic form (*politêiên*). At this point in the narrative, the year is 479, the Spartans are hard pressed by Mardonius at Plataea, and they have reason to believe that the Elean Tisamenus might be able to help them. Tisamenus offers as his price that the Spartans make him their citizen (*politêtên spheteron poiêsôntai*), giving him a share of all the things connected with citizenship (*tôn pantôn metadidontes*, 33.18–19).[5] Tisamenus is not done. Once the Spartans agree to give him what he has asked for, he raises the price: His brother Hegias also will have to become a Spartiate. And so, at the end, Herodotus compares Tisamenus with the mythical Melampus and his demand on behalf of himself and his brother Bias that they both be given kingships at Argos.

There are three formulae in IX – make him a citizen, give him the citizenship (though once with a substitute), and become a Spartiate (*ginesthai Spartiêtên*, 33.25). These three formulae in Herodotus are paralleled in inscriptions for grants of citizenship. As Osborne has suggested, there are three formulae in inscriptions for decrees that grant the citizenship – the ethnic, which uses the name of the people of which the new citizen will become one; the generic, which uses *politeia*; and the intermediate, which states that someone is to be a *politês*.[6]

One might expect *politeia* to occur also in Herodotus III.80–84, where Herodotus has the assassins discuss the rule of the multitude, the oligarchy, and the monarchy. But, Herodotus and the assassins do not associate the

[4] Mulhern (2014). [5] *min politêtên spheteron poiêsôntai tôn pantôn metadidontes*.
[6] Osborne (1981: 155).

politeia with the rule of the multitude or with the oligarchy or with the monarchy. For Herodotus, the *politeia* is just the citizenship.

Although *politeia* as citizenship can be found in Plato's *Republic* (*metadôsi politeias te kai archôn*, 557A4) and as citizen-body as well (*autous eis tên politeian ou paradexometha*, 568B7), usage had changed in the century since Herodotus as oligarchy and democracy and others came to be called *politeiai*, which led to a certain amount of confusion, as Plato shows in the *Laws*. In 712B8–C1, the Stranger asks what *politeia* the interlocutors have in mind to place on the city they are about to found. Cleinias considers democracy, oligarchy, aristocracy, and kingship, excluding tyranny, but he can't settle on any of them. Megillus likewise cannot settle on any of them. The Athenian then tells them that the items they have been naming are not *politeiai* but ways of administering (*oikêseis*) that rule or serve parts of themselves,[7] and each is called after the ruling part (712E9–713A2). So, according to the Stranger here, the language had become confused, and things that were not *politeiai* had come to be called by this word. That he has the citizenship at least somewhat in mind is suggested by his use of *metechete* in 712E9, where he tells his interlocutors that they do share in *politeiai* or are citizens, although what they have just named are not *politeiai*.

In 715, the Athenian pursues his point about the exclusivity of the items he has been naming, which are not *politeiai*. Alluding to the stasis common in the Greek cities, he notes that the victors do not give a share of rule (*archês . . . metadidonai*, 715A10) to the losers or to their descendants (*mête autois mête ekgonois*, 715A10–11). Here *archês metadidonai*, a substitute idiom for *politeias metadidonai*, recalls *tôn pantôn metadidontes* in Herodotus. That the Athenian is talking about the *politeia* in using this substitute is made clear in the lines that follow. Since, for him, citizenship involves sharing in the *archai*, the Athenian holds out for the view that those who are excluded completely from sharing in the *archai* do not enjoy the *politeia* or citizenship. As the language had developed to this point, while the understanding of *politeia* as citizenship had not been lost, it was being encroached upon by the understanding of *politeia* as *taxis* and especially the *taxis* of the *archai*.

The Athenian comes back to this point in Book VIII. Here again he alludes to usage – "what I have said often in the previous discourses" (*has pollakis eirêka en tois prosthen logois*, 832B10–C1). And so he is proposing here a linguistic reform, in which democracy, oligarchy, and tyranny – the

[7] Saunders (1972: 17 *ad* 712E10).

noncitizenships (*tas ou politeias*) the Athenian has just identified as the causes of inadequate military exercises – at least will not be called *politeiai* anymore; only the appropriate mixture will.[8] This passage points to the situation in which the understanding of *politeia* as citizenship is abridged in favor of the understanding of *politeia* as *taxis* and in which the *taxis* may not have for its purpose the interest of the whole city.[9] The contrast of usage with the proposed reform is drawn clearly by the phrases *politeia men oudemia, stasiôteiai de* (832C2–3) with their particles – not a citizenship, but partisanships. *Stasiôteia* is not a common word and apparently is used to emphasize the Athenian's point.[10] Thus, in the *Laws* it becomes clear that *politeia* had come to be used for a *taxis*, which included less than the whole citizen-body. The suggested linguistic reform reserves *politeia* for a mixture in which the whole citizen-body would be included.

Perhaps two decades after Plato's death, the author of the Peripatetic *Politeia of the Athenians* alerts us to his knowledge of the use of *politeia* in inscriptions in 54.3, where he observes that the prytany secretary was named on the stone *stêlai* or slabs on which were recorded alliances, grants of proxenies, and [grants of] citizenship.[11] Grants of citizenship are cited by Wycherley,[12] and illustrative examples of grants of citizenship can be found in the *Supplementum Epigraphicum Graecum* (*SEG*). One of these inscriptions, which is identified as a citizenship decree from Athens of the year 303–02 BC – a generation after Aristotle's death – includes the words "they gave valid citizenship to him and to his descendants according to the decree of the demos of the Athenians."[13] 'To him and to his descendants'' (*autôi kai [ekgo][nois*) is the formula noted above in *Laws* 715A10–11. Another inscription, which is identified as a citizenship decree from Athens circa 215–10 BC,

[8] "I say that the causes are the noncitizenships (*tas ou politeias*) that I have mentioned often in the previous discourses – democracy and oligarchy and tyranny. For of these none is a citizenship, but all of them would be called partisanships most correctly."

[9] Two other Platonic passages that might be cited for substitutes are the *Republic* 503D9 (*metadidonai mête timês mête archês*, to give a share of neither honor nor office) and the *Laws* 768A1 (*tôi plêthei metadidonai tês kriseôs*, to give a share in judging to the multitude).

[10] "Noncitizenship" is an unusual expression but surely not much more incomprehensible on reflection than other abstract nouns with "non-" in English, such as nonpartisanship, which seem to give English speakers no difficulty. In any case, the Athenian makes it more comprehensible immediately by the mentioning of 'partisanship', for which the Greek apparently is a coinage of Plato's, since the only other occurrence (at least as given in *LSJ*) is in the late antique and spurious oration *In Alcibiadem* attributed to Andocides. See Denniston (1952: 28) on "negatived abstracts."

[11] *kai gar en tais stêlais pros tais summachiais kai proxeniais kai politeiais houtos anagraphetai*.

[12] Wycherley (1957: 81, 221; 142, 456; 135, 419=IG, II², 1055, ll. 24–26).

[13] *SEG* XXVI, 90. *kurian tên poli]te[ian] autôi kai [ekgo][nois, tên dotheisan kata to psêph]is[ma tou] dêmou t[ou Ath][ênaiôn*.

indicates that someone "should be given the *politeia* and that he should be enrolled in the tribe and the deme and the phratry which he wished."[14] There are others as well.[15] Thus, *politeia* was used in decrees granting citizenship, which were recorded on *stêlai*, widely and for a very long time; literature and inscriptions perhaps represent some intertextuality here.[16]

It is worth noting that the use of *politeia* for citizenship did not go away after Aristotle, as it can be found in, for example, Diodorus Siculus in the age of Augustus, and even occasionally in Plutarch.[17] In XII.9.2 of his history, we see Diodorus using the expression *politeia* in its original sense of citizenship, just as we saw it at its first occurrence in Herodotus IX and with the same verb for giving a share of the citizenship to someone – *metadidonai*. This is a clear sign, I think, that the noun retained its original sense of citizenship throughout the classical period, even though it came also to acquire other senses. Note that, unlike what we see in Herodotus, where the Spartans are very stingy about granting citizenship, Diodorus tells us that the Sybarites had a practice of granting citizenship to many.

In writers other than Aristotle, abstract nouns, of which *politeia* is one, can be used for the concrete, as in Thucydides. And so one can anticipate that *politeia* will be used by Aristotle not only for the citizenship, but also for the citizen-body, as Thucydides used *neotês* (youth) for the *neoi* (young men).[18]

Translations

Translations have shown variety in the understanding of *politeia*. Anciently, Cicero used both *res publica* and *civitas* for *politeia*. As Zetzel points out, "*res publica* is a technical term for Cicero, used to translate Plato's and Aristotle's *politeia*," and "there are many occasions in which *civitas* is a synonym for *res publica*." The difference, according to Zetzel, is that, at least in the *de re publica, res publica* refers to "the way in which power is structured internally," while *civitas* "emphasizes the corporate collection of individuals (derived from *civis*, 'citizen') that make up a

[14] *SEG* XXVI, 97. *dedosthai de autôi kai] politeian kai g[ra][psasthai phulês kai dêmou kai phratria]s hês an thelei*. Professor J. McInerney, Department of Classical Studies and Ancient History, University of Pennsylvania, has advised me on the translation of this inscription.
[15] Other examples can be found in *SEG* XXVI, 83 and 96; XXIX, 94 and 121; and XXXVII, 90.
[16] For further information, see Mulhern (2012: 41–47).
[17] For example, *Solon* 18.3.1 with *meteichen*; and *Lucullus* 19.7.5, with *meteichon*.
[18] Denniston (1952: 28 *et passim*).

society" (1999: xxxvii–xxxviii). Idiom suggests other correspondences. As Zetzel says, "*Res publica* is used idiomatically in a number of phrases (notably *rem publicam adire* or *gerere*, lit. 'to approach' or 'to perform the public thing') that simply mean participation in the work of government and holding office." Idiom is helpful here, and it suggests that there are correspondences in Cicero to Aristotle's different uses of *politeia. Civitas* is used for citizenship in the *Pro Archia*, for example, where Cicero is defending the poet Archias, whose Roman citizenship under the *lex Plautia Papiria* has been disputed. Cicero is a good place to start since he might have learned of Aristotle's treatises when they arrived at Rome after the sack of Athens in 86.

William of Moerbeke used a variety of renderings in his translation of the eighteen occurrences of the term *politeia* in the *Nicomachean Ethics* – *civilitas* twice, *politia* five times (transliterating), *politica* five times, and *urbanitas* six times.[19] But, so far as I can tell, William transliterated it rather than translating it in his version of the *Politics*, giving *politia* in all of the passages I have consulted.[20]

One can find multiple senses for *politeia* in the many editions of *Liddell & Scott*, which began appearing in 1843 and depended on earlier lexicographers, and in Bonitz's *Index Aristotelicus*, which was published in 1870. Bonitz classified the occurrences of *politeia* under eight main heads:

1. The whole body of citizens (*universitas civium*, my citizen-body).
2. The form and order of the state (*civitatis forma et ordo*, my constitution or arrangement of offices).
3. Right to the state (*ius civitatis, potestas in civitate*, my (a) citizenship and (b) regime).
4. *Politeia* as a genus with species (see below).
5. *Politeiai* (plural) as subjects of stasis, change, and preservation.
6. References to the best *politeia* (see below).
7. *Politeia* as designated, so called, reckoned (my polity; see below).
8. The *politeiai* of various politicians and philosophers (*civitatis formae descriptae a philosophis*).[21]

[19] Spiazzi (1964). [20] Susemihl (1872). I have consulted the first three books.

[21] Bonitz (1870: 612b–613b). I acknowledge gratefully the guidance of the Reverend Arthur Madigan, S.J. of Boston College, in incorporating Bonitz into the present framework.

In this list, (1) citizen-body, (2) arrangement of offices, (3a) citizenship, and (3b) regime are senses, while the other items or topics are uses rather than senses.

Jowett probably was aware of Bonitz, since Bonitz was known to Jowett's protégé Newman. Many readers of Aristotle's *Politics*, including those who use the Greek version, have been helped by Jowett's work, which appeared in 1885 and which has been reprinted more than once but only in part, as recently in the 1984 Revised Oxford Translation.[22] In this and previous reprints, including the widely used Random House volume of the mid-century,[23] the translation is presented, not as Jowett's original title page says, "with introduction, marginal analysis, essays, notes and indices," but as something complete in itself. Using Jowett's apparatus provides a richer view of what Jowett thought Aristotle was about in using *politeia* than does reading the translation alone.

In his introduction to Book III, for example, Jowett observed: "Many meanings grow out of the one (e.g. *politeia*) . . . Such variations in the use of words often occur in the same page" (1885: I, li). Although we don't have his final thoughts on this point in a published form,[24] in his notes he explained his thinking a bit. In a note on III.6.1, 2, for example, he wrote, in a combination of translation and observation:

> Lit. "The state [*politeia*] is the ordering of the powers of a state, and especially of the supreme power. The government [*politeuma*] is this supreme power, and the state or constitution [*hê politeia* subj.] is what the government is. In democracies, for example, the people are the ruling power, in oligarchies the few. Accordingly they say that they differ in their constitutions." The three words *politeuma, politeia, polis* have three primary gradations of meaning: *politeuma* = the government, i.e. the persons through whom the government acts; *politeia* = the government administering and being administered, i.e. the state or constitution; *polis* = the whole state including the government. But these senses pass into one another. (1885: 2.I: 121–22)

Jowett's note recognizes both Aristotle's technical sense of *politeia* as the arrangement of offices (magistracies or powers), our constitution, as well as its use for the *politeuma* – Jowett's "government" or "ruling power" and my regime, as we shall see.

[22] Barnes (1984). [23] McKeon (1941).

[24] Jowett had projected a group of essays, whose titles are listed on I.i, that remain unrescued in his papers at Balliol – papers that later editors have failed to bring into a perspicuous order. After communicating with the archivist there, I suspect that they never will be brought into a perspicuous order.

However, the point to which I wish to draw attention now is Jowett's "these senses pass into one another." For many Aristotelian scholars, if they knew about it, this reflection would be disturbing. If these senses pass into one another, how can we know what Aristotle is talking about? And what if there are still more senses? I think that when Jowett is talking about senses' passing into one another he has in mind that we can observe Aristotle moving from one sense to another.

A couple of other notes also deserve attention here. On V.6.5, Jowett says that *politeia* means "the members of the governing body" or *politeuma* and refers the reader to his note on V.1.10. There he identifies the *politeuma* as the ruling class or the governing body, observing that "The two meanings cannot always be clearly distinguished" (1885: II, I: 186). Jowett was reflecting his view that sometimes the text is inexplicit, though one might not know that without access to his apparatus.

Leo Strauss delivered two lectures in Jerusalem in 1955 in which he spoke of "the whole social and political order, the *politeia*, the regime," and since then some scholars have favored 'regime' throughout.[25] Strauss appears not to have been suggesting anything especially analytic here. Quite the contrary. As he went on to say: "Regime means the whole, which we today are in the habit of viewing primarily in a fragmentized form: regime means simultaneously the form of life of a society, its style of life, its moral taste, form of society, form of state, form of government, spirit of laws." And of course he said much more, partly in objection to what he viewed as spurious divisions in the social sciences. I agree that Aristotle has different things in mind when he uses this expression, including at least some of the ones Strauss mentions, though 'form,' as in "form of state" and "form of government," is overdone from the standpoint of the text of the *Politics*, which has only seven occurrences of *politeias eidos/ê*; but perhaps not all of these things always are in Aristotle's mind at once or equally so. And I shall argue for the view that one sometimes can distinguish one of these different senses in the *Politics*, though not in every case, especially not in formulae at the beginnings and ends of sections.

'Constitution' remains the rendering of choice in the Clarendon Aristotle series. Richard Robinson, in his 1962 inaugural volume, used the expression 'constitution' while arguing that Aristotle intended by

[25] Strauss (1959: 33–34). Although this language is introduced by a discussion of the *Laws*, it leads into a discussion of the citizen in Aristotle.

politeia the "politically active members" of a society – what I shall call the citizen-body. As he said with reference to Aristotle, "A constitution tends to be laws to us, but men to him" (1995: xvi–xvii). So although he continued to use it, 'constitution' was for him a poor translation by his own standard. He also found places where he was unsure whether Aristotle meant constitution, whatever Robinson had in mind here, presumably the citizen-body, or the polity – the mixture of oligarchy and democracy; he gave as examples 1297a6, 8, 12, and 14 (1995: 24). Thus, he recognized that the text sometimes was inexplicit. But he denied that Aristotle used *politeia* "in the sense of citizenship or franchise, as Thucydides often did" (1995: xvii). In this last instance, it appears, Robinson was mistaken. He went on to challenge the one-few-many core of the established view: As he said, "the one-few-many scheme is dropped as soon as stated" (1995: 26).[26] If he is right in this last case, as it seems to me that in a sense he is, there is a good deal of historical rewriting to be done.

In any case, for whatever reason, and despite complaints from some fastidious scholars,[27] translations of the current revival overall still favor 'constitution' and its equivalents in other languages or 'regime,' as do works on the history of political thought so far as it might be connected with modern written constitutions.[28] And so a picture of the *politeia* in Aristotle's *Politics* and subsequent history has emerged that fails to convey Aristotle's complexity. Doubtless this picture has been reinforced by the modern stucturalist preoccupation of constitution-makers, derived perhaps in part from earlier phases of organization theory, which stressed structure to the practical exclusion of all else.[29] Aristotle does recognize the importance of the structural subsystem, but with a difference. Modern constitution-makers sometimes seem to have thought that changing the arrangement of the offices would be decisive and effective in changing habits and customs – for example, in writing the Iraqi constitution of 2005 or the Egyptian constitution of 2012. The constitution-makers were wrong, as we know now and as Aristotelians might have suspected all along. Aristotle understood, as modern systems theorists have recognized, that organizations are more than structure.

[26] Robinson did not show what replaced the traditional scheme. Hansen (1993: 91–101) has offered a systematic account of Aristotle's new scheme.

[27] Ryffel (1949: 3–4). [28] McIlwain (1940).

[29] Some organization theorists have found a legitimate but limited place for structure in systems theory, where the structural subsystem is only one of several in any organization. See, for example, Kast and Rosensweig (1985: 113–15).

The same structure might have different results under different circumstances, and it might have different results if it were imposed upon different people. Also, the same nominal structure might lead to different results if different people were in charge of it.

About 1980, some scholars began to publish fresh looks at the multiple senses of *politeia* in Aristotle. The newer scholarship is exemplified by Peter Rhodes's monumental Oxford commentary on the *Politeia of the Athenians* along with his translation and by the writings of Jacqueline Bordes.[30] Rhodes observed that, in the *Politeia of the Athenians*, this expression "most commonly means 'régime', 'constitution', 'government of the state' "; and he went on to say that sometimes it has the sense of 'citizenship' and sometimes 'the body of those possessing citizenship' (1981: 89–90). In his translation, Rhodes used 'constitution' in rendering 40 of the 62 occurrences, with 'citizenship' twice, 'citizen-body' thrice, and 'regime' once. The other 16 occurrences were rendered by expressions such as 'state' and 'political rights'.[31] Rhodes's work is important because the *Politeia of the Athenians* seems to be the only almost fully surviving example of the 158 Peripatetic studies of cities Aristotle used in writing the *Politics*; it probably gives some insight into the vocabulary of the *Politics*. Bordes published a short paper on Aristotle in 1980.[32] In her subsequent book, Bordes presented the received vocabulary and idioms with which Aristotle was familiar, though little further on Aristotle himself. She, like Strauss, gave a range of renderings – "*constitution, organization politique, vie politique, politique (de la cité), république, démocratie, pouvoir politique, gouvernement, droit de cité, droits politiques, politique (du citoyen)*" (1982: 13). Again there is overlap with the senses that I find, though it is questionable whether Aristotle ever intends *droit*.[33]

It will be clear at this point that *politeia* had a range of senses in literature and that it meant citizenship in inscriptions and that it has been understood to have a range of senses by some translators of the *Politics* and by lexicographers. Bringing this information to bear in a systematic way may refresh our understanding of *politeia* in Aristotle as well as of the issues he was addressing. My question at this point thus is not whether there are

[30] Rhodes (1981), Rhodes (1984), Bordes (1980), and Bordes (1982).

[31] Rhodes (1984). I have compared my results not only with Rhodes's commentary but also, and principally, with this translation. My results are 'citizenship' 17 times, 'citizen-body' 10 times, 'constitution' 25 times, and 'regime' 26 times – a total larger than the number of occurrences (62) because sometimes the author seems to have had more than one sense in mind.

[32] Bordes (1980).

[33] Schofield (1996: 831–39) airs some of the issues with attributing a doctrine of rights to Aristotle.

different senses in Greek literature and inscriptions and in the translation tradition, but rather what Aristotle had in mind in each instance. In the pages that follow, I shall present a book-by-book précis of Aristotle's use of *politeia* in the *Politics*.

The *Politics*

In considering the *Politics*, I have used mainly the text of Ross and the translation of Sinclair-Saunders. Sinclair-Saunders opts for 'constitution' most of the time, though not without second thoughts on occasion, as examples will show. I have compared what I believe to be Aristotle's intent in each place where it can be discerned to the Sinclair-Saunders translation in each place.

In the *Politics*, identifying the senses from line to line or even within a line sometimes is helped by Aristotle's reliance on idiom. With *metechein*, for example, the most likely choice may be citizenship, since one certainly can participate in the citizenship; this idiom is the usual one for being a citizen, as Martin Ostwald has shown (2009: 17–19). So also with *metadidonai* and *metalambanein*. One can participate in the regime as well. Again, where *taxis* or a cognate is used, there is a presumption that 'constitution' will be the best translation. When *en* or *ektos* or *exô* is used, the presumption is that 'citizen-body' or 'regime' might be most appropriate, since one can be in or outside both of these. A special case is the use of *en* with the title of a literary work – the *Politeia* of Plato. And where *kaloumenê* or *onomazomenê* or *prosagoreuomenê* is used as a modifier, in the sense of 'so-called,' and perhaps where other inflections of these verbs are used, the choice often is 'polity,' for the mixture of oligarchy and democracy, though what is being mixed might be the *politeia* in one or more of the four senses and though 'polity' is little more than a transliteration, recalling Moerbeke's *politia*.

In Book I, *politeia* occurs four times, all in the last Bekker column, in a discussion that leads from Aristotle's treatment of the household to that of the city. In 1260b20, which is the third occurrence, Aristotle says that from the children come those who will become partners in the citizenship (*koinônoi tês politeias*). In the first two occurrences also the sense seems to be citizenship, while in the fourth the text is inexplicit; the fourth is the first occurrence of *aristê politeia* in the *Politics*.

Book II contains 85 occurrences. Not all of these occurrences are very informative about Aristotle's intention, since they represent the language and views of others. Further, some of the occurrences in this book simply

say, for example, that this is the *politeia* of the so and so, which leaves open what may be intended. These formulaic occurrences are part of the frame rather than part of the content, and little can be gotten from them. They occur at 1266a29, for example, where Aristotle says "Thus the things about the *politeia* in the *Laws* are this way (*touton ton tropon*)"; also at 1271b18 ("Let so much be said about the *politeia* of the Lacedaemonians"), 1272b23 ("Let so much be said about this *politea*"), 1273b25 ("Thus about the *politeia* of the Lacedaemonians and the Cretan one and the one of the Carthaginians, which are justly well thought of, it is this way"), and 1274b26 ("So then, about the *politeiai*, those in force and those spoken about by some, let it be completed this way [*ton tropon touton*]"). The text is inexplicit. Again, in three of the occurrences in this book, Aristotle is referring to Plato's *Politeia.* Thus, some of the occurrences here can be set aside when it comes to investigating Aristotle's intention.

Still, some items are informative. Where Aristotle begins his critique of the division of the citizens in Hippodamus, he uses both *koinônousi tês politeias* (1268a18) and *metechein tês politeias* (once as a participle at 1268a24 and then the infinitive at a27). Sinclair-Saunders gives "constitution" in all three places but also refers to the same footnote in all three places: "That is to say, enjoy citizenship, the right to hold office under the constitution." The reason for the footnote is clear: It makes little sense to say "share in the constitution."

In Book III, Barker thought that, in the first five chapters, Aristotle was addressing citizenship (1946: 105–26). And that may be so, though *politeia* in these chapters appears to mean citizenship in only six cases, citizen-body in five, constitution in five, and regime in four. I find the text inexplicit in three cases. At the same time, as the discussion has been going on, Aristotle has been giving successive definitions of *politeia* as he iterates his way toward a measure of clarity about two senses – the *taxis* or constitution and the *politeuma* or regime, as I have shown elsewhere (Mulhern, 2007: 285). Having added some precision to the language here, Aristotle might be expected to use *politeia* only or chiefly for the *taxis* and the regime in what follows. And while he does come back to these senses repeatedly, he continues to use it in other senses as well.

In Book IV (following the traditional order of the books), the focus often is on mixture, since that is what Aristotle's hearers, in his view, would be well advised to attempt, if circumstances allow it, in order to preserve their *politeiai*. There are 154 occurrences here. The book includes multiple occurrences in each of the four senses and is inexplicit in many cases. *Politeia* as mixture appears here not as a fifth sense alongside the four; it might be viewed as a

second-order use – for a mixture of the citizen bodies, or a mixture of the arrangements of offices, for example. And of course it might be used for a mixture of more than one of these.

Newman observed that "the broad object which Aristotle has in view" in this book "is to uproot the general impression that there are but two or three constitutions – monarchy, oligarchy, and democracy . . . or at the outside four – these three and aristocracy . . . and that oligarchy and democracy have each of them only one form" (1887–1902: 1.498). Newman's observation here looks at first glance as if he has *politeia* in mind throughout as an arrangement of offices. And this appearance continues where, in discussing the mixture, Newman notes that Aristotle

> describes in detail the way in which it is instituted and organized. The framer of a polity must effect a fusion of oligarchy and democracy. Sometimes he will adopt an institution from both, sometimes he will steer a midway course between them, sometimes he will borrow partly from the one, partly from the other. He may count himself successful, if the constitution framed by him can be called both a democracy and an oligarchy. (1887–1902: 1.498–99)

Newman's position, like the text, actually is more complex, as can be seen, for example, in his note on 1292a32, which includes the occurrence of *politeia* in 1292a34. Aristotle here argues that it is necessary for the law to rule over all and for the officials and the *politeia* to rule in each case. Newman refers to Bonitz and to Liddell and Scott on the *politeia* in this passage as the *universitas civium* – the "citizen-body" (1887–1902: 4.182). In this case, the *politeia* seems most likely, as Newman suggests, to be the citizen-body. So Newman sometimes sees more than the *taxis* here.

But then again, on 1297b1: It is necessary, says Aristotle, that the *politeia* be from those who possess arms only. In Sinclair-Saunders we find a paraphrase: "Citizenship [very unusual in Sinclair-Saunders] ought to be reserved for those who carry arms." This paraphrase has the advantage of being coherent; we can understand it. It may even be what Aristotle believed, more or less. It is not quite what he says here. Although I have argued that citizenship is intended in some places, I don't think that it is intended here. The translators dig themselves in deeper in a footnote: "Literally, 'the *politeia*, constitution, should be made up exclusively of those who carry arms,' i.e., they alone should be *politai*." There is little that is literal about this. It doesn't explain the translation; it offers a different and conflicting translation; it doesn't mirror the Greek. And then a third alternative: "By *politeia* Aristotle

may however mean polity." This is another acknowledgment that the text sometimes is inexplicit. So what is the student to think? There is a wonderful history of confusion here. Newman renders: "'but the constitution [of the polity] should indeed be composed of' (or in other words 'should give political rights to') 'the possessors of heavy arms and none others'" (1887–1902: 4.230). This is not the clarity that we expect and usually get from Newman. So the translations on offer so far are citizenship, constitution, polity, and political rights. Jowett gives "government," Simpson gives "regime," and Robinson adds "political community." Here it seems to me that Aristotle probably intends the citizen-body. In that case the translation would be that it is necessary that the citizen-body be from those who possess arms only. He may well have in mind the situation in the polity. The sense apparently is citizen-body, as Bonitz thought, though Newman *ad loc.* disagreed, opting for constitution.

Book V is the longest book in the surviving text at 32 Bekker columns, and it contains 133 occurrences – the second highest total, second only to Book IV. This book is marked by continuous discussions where the meaning of *politeia* seems to be mostly the same (allowing for exceptions) from one end to the other – constitution from early in 1301b to early in 1302a, regime from the middle of 1303a to the middle of 1306a, constitution from that point to the end of 1308a, citizen-body often from the end of 1309a to the beginning of 1310b, and regime from that point to the end of the book in 1316b. Again, Aristotle frequently in this book uses *politeia* for the mixture of democracy and oligarchy, or polity. Polity seems to be the subject from early in 1306b to the end of 1307a and again from the end of 1308a into the beginning of 1308b. Also, there are cases in which the text is inexplicit.

Because the mixture may be intended both where it is not clear what is being mixed and where one or more of the four items usually intended is being mixed, a special challenge in reading this book is to determine, where one can, what Aristotle has in mind as being mixed. In 1306a26, Aristotle is talking about how oligarchies change in war. He says that they give a share of the *politeia* to the multitude because they are compelled to use the demos [as warriors]. Here the traditional idiom with *metadidoasi* is helpful and probably indicates that the oligarchs are giving a share in the citizenship.

In 1306b11, he observes that if there were an output qualification for office fixed at a certain level, which would include some and exclude others, it would determine who participated in the *politeia* in each case – the citizenship here. However, if then there were a widespread rise in output so

that many more qualified for office, and everyone were to share (*metechein*, b14), then there would be a change in the citizenship, even though it might be gradual. The result would be a mixture in the citizen-body and in the regime, assuming that the arrangement of offices remained the same, though that might become mixed as well over time, with new offices established for the new group or some old offices disestablished or weakened.

Book VI is a short book, at only 12 Bekker columns, and it has been thought to repeat material from the prior two books. It contains 36 occurrences. The text is inexplicit in 11 instances and has mostly the first three senses and polity up through 1318a9; but after this, there are eight cases where the sense is regime. In 1320b22, the polity appears to be a mixture of regimes. Here Aristotle is dealing with oligarchies in a chapter that often is considered to be about the preservation of oligarchies, though he doesn't say that exactly until the end of the chapter – the very last word. In any case, the idiom here is that of the so-called *politeia*, and so he has in mind the mixture, as he explains. The mixture is a mixture of assessments first of all, which permits people of different assessments to share in different offices. As a result, people of low assessments hold some offices and people of high assessments hold other offices. So here the so-called *politeia* is identified as a mixture of regimes, though the citizenship and the citizen-body doubtless would change as well with the mixture of regimes. There is no suggestion that the arrangement of offices will change.

Book VII runs to 28 Bekker columns and contains 35 occurrences. The text is inexplicit in 13 cases. The sense is structural – arrangement of offices or constitution – in two cases. For the rest, the sense is citizenship in 12 cases, citizen-body in five cases, and regime in four cases. Polity has disappeared. Sinclair-Saunders gives constitution in all but one case (1329a41), in which no translation is given.

Many scholars look to Book VII for Aristotle's own view of the best *politeia*, hoping perhaps to find some structural arrangement that will be best everywhere and always, assuming, more or less, that Aristotle must be addressing some arrangement of offices, as David Keyt does.[34] This is approximately the approach of Newman (1887–1902: 3.xxxiv–xxxvi), who uses this approach to Book VII to justify reordering the books, following Susemihl (1872), so that VII and VIII come before IV, V, and VI. Sir David Ross rejected this reordering, as had Jowett long before. Aristotle does recognize the importance of structure elsewhere, but he is concerned

[34] Keyt (1991: 257, n. 3). For my response, see Mulhern (2007: 293–95).

here with the best *politeia* as that in which citizens can do best and live blessedly (see 1324a23–25), and so not only or mainly with structure. In fact, in this passage he subordinates *taxis* and thus the arrangement of offices or constitution to doing best and living blessedly. He does not stop here. In 1328b34, he observes that the best is the one in which the city (the multitude of citizens or citizen-body) would be happy most of all; and in 1332a4, he observes similarly that the best is that which will be best managed, so that it will be possible for the city to be able to be happy most of all. In these latter two cases, he does not mention the *taxis*. And so, in Book VII, it appears that Aristotle is concerned with the citizenship, the citizen-body, and the regime far more than with the constitution or arrangement of offices.

One case of citizenship can be found in 1326b21. Here Aristotle is finishing up with the big city, and he observes that it is easy for foreigners and metics to share in the *politeia*, here citizenship, in the big city. For it is not difficult not to be noticed (or to evade notice) because of the excess of the multitude. Here the verb for sharing is *metalambanein*. Bonitz also takes *politeia* as citizenship here. Sinclair and Saunders actually render "to become possessed of citizenship," but then insert a note "Literally, 'get a share in the constitution' " (1981: 405). No reason is given for the note; certainly there is nothing literal here, unless one simply assumes that *politeia* always should be rendered by 'constitution.'

In 1329b37, Aristotle reminds us that it has been said before that it is necessary for the land to be of those possessing arms and of those sharing in the *politeia*. The idiom leaves no doubt that he intends the citizenship. The verb is the participle *metechontôn*, and Bonitz again seems to understand *politeia* as citizenship here.

To the extent that historians of political thought have supposed, based in part on Book VII of the *Politics*, that Aristotle proposed something or other as the best constitution consistent with their view that Book VII should follow Book III, my results suggest that one might take another look. The historians' proposal presupposes that Aristotle is using *politeia* throughout in the sense of constitution or arrangement of offices in Book VII, following his definition of *politeia* along these lines in Book III; but that view is made more difficult to accept by the examples just cited in which the sense clearly is citizenship. Here also the inadvisability of attempting to attract Aristotle into the history of constitutions, which are modern artifacts, as the history of the word in English shows, reveals itself with especial clarity. We cannot know that Aristotle was talking about the best constitution throughout this book, since he mostly was

talking about other things that we can identify except when he was inexplicit, as he often was.

Book VIII, with 12 Bekker columns and only five occurrences, has little to tell us. The last occurrence is for Plato's *Politeia*. One occurrence might have the sense of citizen-body but is not entirely explicit. There again is no trace of polity in this book. Aristotle begins this book by linking education to the *politeia*; the first four occurrences are in 1337a. After this, *politeia* does not occur again until the end with the allusion to the *Republic*. Aristotle's focus has shifted to something else related to the citizen – his education. From a causal standpoint, the first thing that education is intended to affect is the character of the citizens, and so citizen-body would seem to be what he is most likely to have in mind when he uses *politeia* at the outset here.

Some consequences for translation and interpretation

Up to the present, this chapter has been concerned mainly with ascertaining what Aristotle's words seem to tell us about what he had in mind. Because of Aristotle's pivotal position in the history of thought and culture, both Eastern and Western, there may be some value in considering what an exact understanding of Aristotle's teaching on the *politeia* tells us in a substantive way that differs from what we might expect. There are differences, and I shall suggest a couple here.

An exact understanding leads away from treating Aristotle's argument as focused on constitutions or forms of government in every case. Indeed, despite what is suggested by some translators, the expression that 'forms of government' might be expected to render – *eidos/ê tês politeias* – is very rare in the *Politics*. And when it does occur, it does not appear always to have the sense of form of government. Translators who render this way when only *politeia* occurs in the text, especially in the plural, are likely to distract their readers from Aristotle's argument. Rackham's Loeb translation (1932) in particular is in need of revision here. 'Form' introduces the notion of something visual, whereas not every sense of *politeia* is visual for Aristotle. And so it could prejudice the translation and interpretation in an unfortunate way. Or it may suggest that Aristotle has in mind something like a logical genus-species relation, which does not seem to be the case either; *politeia* is not a logical genus. Rather, the democracy might be a genus, as also the oligarchy, since, although there are different kinds of them, all the

democracies have the same *horos*, as do all the oligarchies and aristocracies (1294a10–11; see also a20).

The form-of-government line of argument seems to have propelled some writers to suppose that Aristotle must have been suggesting that there was some best form of government without regard to circumstances. However, while Aristotle uses the expression *aristê politeia*, he does not use the expression *ariston eidos tês politeias*. Much has been written on the related notion of the ideal constitution in Aristotle, though Aristotle has no word quite corresponding to 'ideal'; 'ideal' comes from other sources. Nor is the city of God in question, since, for Aristotle, cities are for things that are neither beasts nor gods (1253a26–29); of course divine direction would help, though there is little reason to believe that it would make everything work out quite as one would like.

Malcolm Schofield has suggested that "The core meaning of politeia is 'citizenship,' 'the condition of being a citizen' " (2006: 33). Citizenship may be regarded as primary in a historical sense, as I have tried to show. It is the earliest sense of which we have a record in literature; it is well represented in inscriptions for grants of citizenship, which are of great institutional importance, over an extended period; and it endures as a readily identifiable meaning into later Greek literature. But language develops, and words acquire new senses that encroach on the old ones, and words are especially subject to perversion and abuse in political discourse, as users appropriate words with favorable emotive meanings to their own advantage, changing their descriptive meanings, as Stevenson has shown in detail (1944: 206–26). Aristotle appeared at a critical time in the history of this word, and, drawing on his extensive knowledge of Greek literature and material culture, he seems to have devoted considerable attention to sorting out its senses and uses. Perhaps his attention contributed to the continued use of *politeia* for citizenship in later authors, especially where the traditional idioms were preserved.

Aristotle does not give a categorical analysis of *politeia* in the *Politics*, nor is *politeia* known to the *Categories*. Citizenship is not primary in the logical sense in which the definition of citizenship would be required for the definition of citizen-body, arrangement of offices, or regime. If Aristotle had wanted to suggest this kind of logical relation, he could have done as he does in Book III, where he requires that the citizen be defined before the city, since the city is the multitude of the citizens (1274b41). In the framework of the *Categories*, it seems to me, *politeia* would be a homonym, since only the name is the same for the four senses while the *logos tês ousias* is different in each case.

Conclusion

In this chapter I have presented some examples of the use of the word *politeia* in Greek literary and material sources as well as some examples from the history of translation as context for understanding Aristotle's use of the word in the *Politics*. These examples suggest that the word had a variety of senses and uses that were available to Aristotle when he set out to write. In the discourses that we know as the *Politics*, Aristotle apparently availed himself of these senses and uses. For him, the four senses – citizenship, citizen-body, arrangement of offices, and regime – would not have been entirely independent of one another, since they were related to one another by historical development as well as by idiom, where, for instance, the abstract could be used for the concrete. Perhaps more importantly, they were related as well because achieving or preserving stability required attention to the condition of citizenship in which the citizens partook, to the citizen-body or men, to the constitution or arrangement of citizens and offices, and to the regime that occupied these offices. Over the last half-century or so, translators and others have tended to make this complexity more difficult to perceive by using mainly one expression to render *politeia*, typically 'constitution' or 'regime' or *Verfassung*, perhaps in the belief that structure was the key variable, in policymaking parlance, in setting up a government; and that, once a structure was offered, behavior would change to conform to it. Aristotle, as the evidence suggests, took a different and more comprehensive view, about which he and some of the older scholars have much to tell us.

CHAPTER 6

The "mixed regime" in Aristotle's Politics

Ryan Balot

By the time Aristotle wrote the *Politics*, the idea of constitutional mixture, or of the "mixed regime," already had a long history in Greek political thought and behavior. One of its earliest literary expressions can be found in Thucydides, who admiringly described the regime of the 5,000, in 411 BC, as a "moderate blend" that served the interests of both the many and the few (8.97).[1] The Athenian Stranger of Plato's *Laws* says that democracy and monarchy are the "mothers" of all regimes and that all successful regimes are "woven" together from these (693D). In practice, however, the idea had had currency over a century earlier: in instituting his "law-code" in 594 BC, for example, Solon emphasized that he protected Athens from the unjust encroachments of both rich and poor, giving to the poor as much honor and political power as they deserved, while preventing the overthrow of privileges enjoyed by the wealthy. Sparta, on the other hand, had had experience of the mixed regime since its very earliest beginnings: Two kings, a council of elders, and democratically elected "ephors" shared power with an assembly of the people. Aristotle's older contemporary Isocrates, finally, explained in the *Areopagiticus* that Athens's ancestral democracy was the city's finest regime because it allowed the people to choose its own magistrates and hold them accountable, while enabling upper-class citizens to serve Athens as its leaders and to take control of its affairs (Isocr. 7.2–27).

Within this complex intellectual history, there was a divide between those who praised political mixture without reservation, because it helped to ensure civic stability and embodied justice for both rich and poor, on the one hand, and those who, on the other hand, viewed the mixed regime as a compromise or even a retreat from the highest political ideals available to humanity. This division maps closely onto a thinker's orientation toward

[1] Herodotus' description of the three "pure" regimes – monarchy, oligarchy, and democracy – did not mention the possibility of the mixed regime: cf. Hdt. 3.80–83.

either active civic and historical engagement (as with Solon and Thucydides, for example) or a greater attraction to utopian or idealist thought (particularly Plato). It is with the latter group that Aristotle is more closely allied, although he too recognized the virtues of the mixed regime and typically presented it as the best available possibility in most circumstances. As a result, Aristotle's own account of the mixed regime is ambivalent: While he unhesitatingly presents the most prominent mixed regimes of the *Politics* as distantly inferior to the best regime, he also found in those regimes the likeliest solution to fourth-century Greece's most profound political problem: *stasis*, or factionalism. In order to grasp the distinctiveness of Aristotle's account, we will need to understand both his attraction to political mixture and his criticisms even of durable and apparently successful mixed regimes.

Neither the positive nor the negative dimensions of Aristotle's account, however, can be understood without reference to the best regime, the regime "of our prayers" (e.g., IV.1, 1288b23). This regime was dedicated to unqualified human flourishing (*eudaimonia*), as described in the *Nicomachean Ethics*: a life of human excellence, which consisted in the full development of our capacities for ethical virtue (such as courage, moderation, and justice), for practical wisdom (*phronêsis*), and, in rare cases, for theoretical speculation into the unchanging realities of metaphysics, natural science, theology, and mathematics. It is only within the framework of Aristotle's teleological account of human flourishing that we can correctly locate his presentation of the mixed regime. For Aristotle's practical philosophy was intended not simply to explicate the central problems of ethical and political life; instead, and more importantly, it was intended to improve the quality of human lives. To this end Aristotle wanted his readers to grasp the purposes appropriate to themselves as human beings. While the *Nicomachean Ethics* primarily clarifies our ethical ends, Aristotle was significantly more "directive" in the *Politics*: He offered practical solutions and advice designed to make regimes better.[2] This is why he made it clear when discussing existing regimes, such as Sparta and Crete, that it was necessary not only to examine the internal consistency of their provisions, but also to look carefully at whether their principles corresponded to the objectively good standards of the best regime (II.9, 1269a29–34).

The implications of locating Aristotle's mixed regime within this framework are twofold. First, Aristotle's practical philosophy was unified, whether

[2] On the contrast, see Garver (2011).

Aristotle focused his attention on political particulars or on the highest questions of the human good. Second, Aristotle's political philosophy was devoted to the flourishing of individuals more than the salvation of the city as a reified entity. The political life of the city existed in order to enable citizens to flourish, and not the other way around. Even if Aristotle said that the polis was by nature "prior" to the individual (I.2, 1253a25–26), his view is that politics would make no sense unless it enabled individuals to develop their highest capacities.

What is the mixed regime?

From well-known histories of political thought, one might form the impression that Aristotle favored the mixed regime for its stability and active citizenship.[3] In fact, however, Aristotle presents a wide variety of mixed regimes and political institutions, virtually all of which are at least partly commendable, or commendable for a specific purpose or under particular circumstances. Carthage, for example, based its fundamental laws on a mixture of three principles – wealth, virtue (*aretê*), and the people (IV.7, 1293b14–16), while the Spartan regime was a mixture (*mixis*) of two principles – democracy and virtue (IV.7, 1293b16–18). Or, alternatively, the Spartan regime could be considered a mixture of kingship, aristocracy or oligarchy, and democracy (II.9, 1270b23–26); and some writers had praised it for that reason, even if they disagreed over the precise details (II.6, 1265b35–1266a1). The Cretans have a citizen assembly that is governed by democratically elected cosmoi and an unaccountable council of elders with lifelong tenure in office (II.10, 1272a4–12, II.10, 1272a36–38). Solon of Athens is said to have established a successful mixed regime, the *patrios politeia*, although Aristotle himself voices a number of criticisms of that widely held view (II.12, 1273b35–1274a21). Even apart from the works of statesmen and the activities of existing regimes, moreover, Aristotle was conscious that certain previous writers had regarded the mixture of all the pure forms of constitution as the best regime (II.6, 1265b33–34). Plato's *Laws*, he said, had advocated a regime that was "in the middle of" (*mesê*) democracy and oligarchy without being either (II.6, 1265b26–28). There was no shortage of previous mixtures to consider when Aristotle came to explore the topic of "the mixed regime."

Amidst all the diversity that Aristotle did so much to document and explain, though, is it possible that he himself drew attention to a specific

[3] See Pocock (1975), Arendt (1958), and Salkever (1990).

type of mixed regime and held it up for special examination and praise? Given his teleological standards, such a move would make sense or even prove necessary; but devising a scalar model was more difficult than initial appearances might suggest. To be more specific, Aristotle offered clear statements about a certain mixed regime, but then he complicated those statements as he drew closer to the real-world regimes that he himself observed or knew. That regime goes by the generic Greek name for "constitution" or "regime": *politeia* (normally translated "polity," although *politeia* is a term best left untranslated). According to Aristotle, *politeia* is at its most basic level "a mixture of oligarchy and democracy" (IV.8, 1293b33–34), although people typically use the term to describe mixtures that incline more toward democracy. However, despite reporting what people "are accustomed to call" (IV.8, 1293b34–35) this regime, and despite his later notice that *politeia* qua political blending of the rich and poor occurs "in most cities" (IV.8, 1294a15–16), Aristotle insists that *politeia* "escapes the notice" of constitutional theorists because it occurs infrequently; that Aristotle singles out *politeia* for special treatment is signaled by his claim to be the first to take it seriously (IV.7, 1293a39–1293b1).

At the same time, Aristotle's discussion indicates that it is difficult, if not impossible, to single out *politeia*, if by that we mean to differentiate this regime from its closest comparanda, for example, the "so-called aristocracy" (e.g., IV.11, 1295a31–32). Aristotle introduces *politeia* within his familiar taxonomy of regimes: *Politeia* is the regime ruled by "the many" (*to plêthos*) in accordance with law and with a view to the common advantage (III.7, 1279a37–39). The philosopher immediately links this regime to a certain type of character: Since it is impossible to find superlative excellence in more than one or a few people, this regime is characterized by military excellence, or courage, and this characteristic virtue explains why *politeia* is ruled by hoplite soldiers (III.7, 1279a40–1279b4). At first glance, Aristotle seems strict in distinguishing between aristocracy and *politeia* on the grounds of virtue. True aristocracy looks only to excellence in distributing political power (IV.7, 1293b1–7); but there are secondary aristocracies, such as Carthage and Sparta, which pay attention, in electing their officials, to both ethical virtue (*aretê*) and other factors such as wealth and free birth (IV.7, 1293b14–18). Finally, there is a third group of aristocracies, which overlaps with those examples of *politeia* that lean more toward oligarchy than democracy (IV.7, 1293b20–21).

Hence, even though Aristotle concerns himself with distinguishing *politeia* from other regimes, he also recognizes overlap between the closely allied regimes, including the best kinds of democracy and oligarchy (see,

for example, IV.6, 1292b25–33; VI.1, 1316b39–1317a10; VI.4, 1318b6–1319a4; VI.6, 1320b18–29).[4] Yet, after further discussion, Aristotle himself concludes that, among the healthy regimes, we should distinguish "aristocracy" and *politeia* because aristocracy considers virtue along with wealth and free birth in its distributions of power, but he concedes that *politeia* and aristocracy are "not far from one another" (IV.8, 1294a28–29; cf. III.17, 1288a12–15 for the idea that *politeia* also distributes offices in accordance with merit, *axia*). Perhaps keeping these lines indistinct furthers the goal of improving existing cities with respect to stability and even virtue.

When Aristotle turns from considering the singularity of *politeia* (or the lack thereof) to examining the nature and quality of the regime itself, he begins, surprisingly, by classifying both *politeia* and the secondary and tertiary aristocracies with "deviant regimes" (*parekbaseis*, sing. *parekbasis*), on the grounds that they all fall short of the "correct regime" (*tês orthotatês politeias,* IV.8, 1293b23–27). This new classification is the clearest sign that *politeia* represents a retreat from the best regime. Among "correct" regimes, a clear hierarchy exists. Kingship and aristocracy look to virtue appropriately equipped with external goods (*aretê kechorêgêmenê*) as the chief criterion by which to distribute power and offices; in that sense, to study the best regime is equivalent to studying those two regimes (IV.2, 1289a31–33; cf. IV.8, 1294a9–10 and IV.3, 1290a24–29). On the other hand, *politeia* and so-called aristocracy fall so short of the best regime that the defective regimes grow directly out of them (IV.8, 1293b23–27). This claim, too, represents a revision of Aristotle's earlier classification of regimes (III.7), both because it downgrades *politeia* and because it reveals that aristocracy is an internally diverse category only one of whose members embodies the highest political ideal. However, it makes sense, at least in retrospect and for the most part (for exceptions see V.7, 1307a20–27), that oligarchy would grow out of limited or "so-called" aristocracy rather than aristocracy proper, and that democracy would grow out of the demotic instances of *politeia*, rather than those that incline toward oligarchy. These two "mixed regimes" – *politeia* and limited aristocracy – tend to lose the appropriately balanced mixture that enables them to focus on the common good; often contingencies arise that produce disproportion in one of their elements, which leads to unstable mixtures and thus to political instability or oppression (e.g., V.7, 1307a5–23). These problems of imbalance and disproportion are unlikely to arise in kingship and aristocracy, because those regimes are unmixed in the first place.

[4] See Samaras (Chapter 7 in this volume).

What kind of mixture characterizes *politeia* and limited aristocracy? A mixture of oligarchic and democratic principles or practices, of course, but the question itself, Aristotle shows, can be answered only with reference to specific examples. Two common types of political mixture involve striking a "middle way" (*to meson*) between oligarchy and democracy: for example, by using laws that are characteristic of both regimes at the same time, such as giving the poor payment for jury service but also fining the rich if they do not serve; or by striking the mean between having a high and a low property qualification for admission to the assembly (IV.9, 1294a36–1294b6). The third way involves taking an element from each: for example, in choosing office-holders by voting (which is oligarchic), but requiring no property qualification for office holding (which is democratic) (IV.9, 1294b6–13). The "middle way" is the key to Aristotle's proposal because, he says, a well-mixed regime will be perceived by observers and citizens alike as both democratic and oligarchic, and as neither (IV.9, 1294b14–18; IV.9, 1294b34–36). Since the institutions and practices of the regime will partake of both oligarchy and democracy, citizens will find trace elements of their favored regime within it and describe the regime as they see fit. The regime's very ambiguities in this regard explain its strength and stability: No citizens will promote a revolution, because they believe and "feel" (*paschousin*: IV.9, 1294b16) that their own preferred regime principles are embodied in the mixed regime. However, Aristotle is quick to point out that their attachment to the regime is less than enthusiastic: The mixed regime does not attract enthusiastic support among a majority who favor it, but rather it deflects criticism to such an extent that no group feels a powerful interest in overthrowing it (IV.9, 1294b36–40).

At a more general level, Aristotle chooses Sparta as an example – a telling choice, since both ancient and modern constitutional thinkers have always considered the Spartan regime a taxonomic puzzle. Aristotle had already listed Sparta among the limited aristocracies because of its attention to virtue (IV.7, 1293b14–18), but now he points out that "many" (*polloi*, IV.9, 1294b19) are willing to describe Sparta as democratic because (for example) age-cohorts among children, and all "peers" (*homoioi*) among the adults, live similar lives in a material and practical sense.[5] On the other hand, others describe Sparta as an oligarchy because only a few members of the elite decide on cases of capital punishment, while all offices are elective rather than chosen by lot. Sparta serves well to illustrate the kind of mixture

[5] Aristotle distances himself from the typical classification of Sparta, perhaps because Spartan "equality" obscured significant inequalities in wealth; see Hodkinson (2000).

appropriate to a polity, at least in common opinion; having earlier listed Sparta among the limited aristocracies because of its attention to virtue (IV.7, 1293b14–18), Aristotle says that he himself has illustrated how the mixed regime should be designed in cases of both *politeia* and limited aristocracy (IV.9, 1294b40–41). Aristotle's emphasis on ambiguity in all his discussions of the mixed constitution should suggest to us, already, that ambiguity is partly his point. And he has now explained why he wants to make that point: He aspires to encourage citizens to see in these mixed or ambiguous provisions the constitutional elements that they themselves find most attractive, whether they think of those elements as democratic, oligarchic, or even aristocratic.[6]

The mixed regime in motion

Aristotle introduces still further ambiguities in the chapters of Book IV that immediately follow. In chapter 10, Aristotle apparently wishes to complete his initial classification of regimes by considering tyranny. (It is notable that even in his discussion of tyranny Aristotle emphasizes the clear signs of overlap between actual tyrannies and the various monarchies that he had already described: see IV.10, 1295a7–17.) His language ("it remains for us to speak about tyranny . . . ": IV.10, 1295a1) suggests powerfully that his treatment of *politeia* and the limited aristocracies has been completed. However, in chapter 11 he proceeds to discuss a regime that many have thought to be a prototypical *politeia*.[7] Aristotle offers this description in order to identify which regime is best for most cities and most human beings (IV.11, 1295a25–26). Instead of focusing on the rich and the poor as the city's primary classes, as he had done previously, Aristotle now declares that each city is made up of three parts: the very rich, the very poor, and "the third in the middle of these" (IV.11, 1295b1–3). This new sociological group – "the middling group," *hoi mesoi* – could easily have figured in Aristotle's earlier descriptions of *politeia*, for example when he mentioned the "mean" between high and low property qualifications, but it made no such appearance. What are we to make, then, of the regime described in IV.11? Is it, in fact, an example of *politeia*?

There are strong arguments on either side of the question. On the one hand, beyond the apparent completion of his taxonomy in IV.10, Aristotle does not specifically call the regime of IV.11 a *politeia*. Nor does he even

[6] Cf. Samaras, Chapter 7 in this volume.
[7] See Kraut (2002), Mulgan (1977), and Samaras (Chapter 7 in this volume).

mention the idea of "constitutional mixture," which had been the defining feature of *politeia*. Finally, Aristotle's description of the rich and the very poor suggests that they will not, as in *politeia*, be satisfied with this regime, even in an unenthusiastic way. Instead, they will continue to desire power for themselves, but they will be prevented from overreaching by the existence of a powerful group of *hoi mesoi*, who, if necessary, will keep them in check by siding with the other element (IV.11, 1295b34–39; IV.12, 1296b40–1297a5). This characterization suggests that the "middling" regime is in that respect, at least, a retreat even from *politeia* itself – a regime that is already a retreat from kingship and (unqualified or unlimited) aristocracy.

Nonetheless, I believe that IV.11 represents a form of *politeia* that Aristotle intends to be the best regime of which most cities are capable.[8] Aristotle's extensive description of this regime explains why he favors it in practical terms, for most cities. With respect to these ordinary conditions, Aristotle argues that "it is clear that the middle [regime] is best" (*hê mesê beltistê*, IV.11, 1296a7), particularly because it is free of faction (*astasiastos*, IV.11, 1296a7). Like *politeia*, the middling regime has the great political virtue of stability; it is a durable regime (*monimos*, IV.12, 1296b40). Aristotle even points out that "good government" (*eu politeuesthai*) is possible for this city (IV.11, 1295b36), by which he means not only that citizens will obey whichever laws happen to exist, but also that those laws themselves will be good ones (cf. IV.8, 1294a3–9). He persistently praises this regime and keeps it in mind as a standard by which to judge the "deviant" regimes of democracy and oligarchy, according to their proximity to the mean (*to meson*) (IV.11, 1296b2–12). If the middling regime of IV.11 is a good regime that is nonaristocratic, and is furthermore a regime to which democracies and oligarchies should aspire, then it stands to reason that this regime is a certain type of *politeia*. Otherwise, what kind of regime would it be? This line of reasoning is reinforced by Aristotle's observation that the "middling" regime has been rare in Greek history (IV.11, 1296a36–38), which corresponds to his view that *politeia* is also rare (IV.7, 1293a39–42). It is reinforced, too, by Aristotle's tendency to oppose this regime to most existing regimes, which are either democratic or oligarchic, and which are generally characterized by faction: Since their group of *hoi mesoi* remains small, either the poor citizens (*ho dêmos*) or the few, rich citizens (*hoi oligoi, hoi euporoi*), having turned the city into a sort of battleground, will use their "victory" in order to dominate the other group, abandoning any ideals of the common good or of sharing equally in the

[8] *Contra* Johnson (1990), which argues that the regime of IV.11 differs from *politeia* and is meant to be equated with the best regime of Books VII–VIII.

regime – ideals that the middling regime typically exhibits (IV.11, 1296a27–32; IV.11, 1295a40–1296b2). Aristotle's emphasis on "the mean" in this section also links this regime closely to the practices of "mixture" that we found in an earlier chapter (IV.9), which had emphasized the necessity of drawing the extremes of oligarchy and democracy toward a "mean" or a "middle" condition (cf. V.9, 1309b18–35). This link explains why, at the end of his discussion of *hoi mesoi*, Aristotle reemphasizes that the better the constitutional mixture, the more durable the regime will be (IV.12, 1297a6–7).

However, why doesn't Aristotle call the regime of IV.11 a *politeia* explicitly or give it a specific name? Why is it only now that he emphasizes *hoi mesoi*? One clue is that, after pointing out that "we" must not assume any special natural talents or material endowments in most cities, Aristotle mentions that the limited aristocracies, such as Carthage or Sparta, are either mostly unattainable or approach *politeia* to such an extent that the two should be considered a single regime type. Aristotle thereby implies that a limited aristocracy is, paradoxically, attainable by most cities if their constitutional mixture creates an enlarged "middle" group that both preserves stability and remains open to being governed by reason (IV.11, 1295b5–6). This possibility might even be realized by the best types of democracy and oligarchy, which overlap with the "middle" regime (cf. VI.1, 1316b39–1317a10; VI.4, 1318b6–1319a4; VI.6, 1320b18–29). Perhaps Aristotle did not want to repel anyone invested in democracy or oligarchy by using the label *politeia*. However, he did not advise lawgivers to deceive any of the sociological groups he had in mind. He says explicitly that lawgivers designing aristocratic regimes tend to err particularly in misleading or deceiving the people; a "true evil" will eventually result from such "false goods" (IV.12, 1297a7–11). Instead, he encouraged lawgivers to devise regimes, suitable for their own circumstances, that could be intelligibly described as either democracy or oligarchy, or as neither. Such regimes would therefore invite the sympathies of diverse social groups or classes. A suitable mixture might create not only a durable regime, but also one that embodied significant ethical and political virtues.

The virtues of the mixed regime

Aristotle judged the merits of this regime with reference to its capacity to promote the "flourishing" (*eudaimonia*) of its citizens. Such flourishing involved a life in accordance with virtue (*aretê*), and one supplied by adequate means of subsistence (IV.11, 1295a35–37). Virtue is a "mean" or "middle state" (*mesotês*) (IV.11, 1295a37) between extremes of emotion,

desire, and action. Aristotle's point is not merely a verbal one, as though the "middle" regime somehow corresponded to virtue as a "middle state." Rather, Aristotle argued that *hoi mesoi* tend to embody the ethical excellences, precisely because they avoid the vicious extremes to which the very rich and the very poor are typically subject.

The key is that the middle group is most likely "to obey reason" (*tô[i] logô[i] peitharchein*, IV.11, 1295b6), by contrast with both the very rich (who are too arrogant to follow reason) and the very poor (whose neediness drives them to wrongdoing). The very rich never learn how to obey, whereas the very poor are too dispirited either to learn how to rule or to think themselves worthy of rule. As a result, these groups are inclined either to practice mastery or to accept slavery, rather than to enter into a properly political relationship that naturally pertains among equals and that consists of ruling and being ruled in turn (cf. I.1, 1252a7–16; I.7, 1255b16–20; I.12, 1259b4–6). By contrast, and by implication, the prominence of *hoi mesoi* in the mixed regime creates a polis of "free men" (*eleutheroi*, IV.11, 1295b22). Freedom within the mixed regime depends upon the citizens' capacity to exhibit civic virtues rooted in self-respect – an egalitarian attitude based on the knowledge of how to rule and be ruled. This attitude carries with it an equal respect for others, a willingness to discipline one's own inclinations to display arrogance or servility, and an openness to civic friendship. By "civic friendship" Aristotle implies an enlarged outlook that avoids class-based hatreds and encourages a willingness to take the perspective of others.[9]

In these ways the city's virtues enable it to avoid characteristic problems of both democracy and oligarchy. The key problem, which is exhibited by democrats and oligarchs alike, is that political partisans advance one-sided conceptions of justice that fail to recognize the reasonable claims of others. They promote one element of justice to hegemonic status, as though their beliefs were definitive (III.9, 1280a7–25).[10] This tendency to be partial to oneself, and to justify the pursuit of one's own advantage, is rooted in human nature and is a central feature of the origins of the polis itself; discussions of justice and injustice grow out of the pursuit of advantage and the avoidance of disadvantage (I.2, 1253a14–18).[11] What we see in the deficient regimes, in general, is the tendency of human beings to fall short of their full self-realization, because of the prominence of the biological legacies and needs that still

[9] On the enlarged mentality of civic friendship, see Frank (2005).

[10] At III.12, 1282b22–23, Aristotle speaks to the role he sees for a "political philosopher" to help settle the disputes over rule created by diverse groups that all advance just claims to rule.

[11] See Salkever (1990).

operate beyond the origins of the polis: Human beings overemphasize money (the need for mere life and the satisfaction of desire) or security (military activities) or even birth (originally the king as leader of the family was also political leader, as though the developed polis should still operate on the principles of a family).[12] Even the three "justly admired" regimes of Sparta, Crete, and Carthage tend to be undermined by their overemphasis on fighting and money-making, both of which grow out of concern for the body rather than the soul.[13]

For the sake of their own full growth, individuals and cities are called upon to transcend the narrow pursuit of advantage. In order to maintain their sense of balance, they must reason their way through to a more generous conception than the narrowly self-interested one characteristic of their initial inclinations. In general, both democratic and oligarchic principles are tolerable, but pushed too far in one direction they become disproportionate and unsustainable, like a nose whose curviness becomes so extreme that it ceases to look like a nose at all; the mean remains the key to success in politics (V.9, 1309b18–35). Hence, the middling regime can avoid the drift into ideological extremism that hobbles those who are narrowly dedicated to the principles of either oligarchy or democracy (cf. V.8, 1308b25–31). It is an error, in fact, for legislators to design their regimes so as to gather together all the norms and principles that are characteristic of the regime type, since what is needed to avoid excess is the inclusion of certain principles that run contrary to the regime (VI.1, 1317a35–37).

Aristotle's characterization of the city differentiates it from the "republican," participatory city that many scholars discern in his works.[14] Although *politeia* is a regime in which citizens share the practice of ruling in turns, Aristotle does not picture those citizens rushing from one meeting to the next, debating pressing issues, or staking their reputations in a contentious open-air forum. In fact, the first type of democracy, which overlaps with *politeia*, is governed by a large, middling class of farmers with little leisure to engage in civic activity; they allow the law to rule rather than majority decree (IV.6, 1292b25–33; VI.4, 1318b6–1319a4; cf. IV.6, 1293a12–20). In his description of *politeia*, Aristotle emphasizes that the best achievable polis for most cities embodies a set of healthy political relationships that approximate to civic friendship. It is within

[12] Cf. Salkever (1990).

[13] To the extent that its development might be stalled in these ways, at least, even the mixed regime will occasionally manifest political immaturity, a lack of complete development.

[14] See n. 3, with Zuckert (2011).

this context that individuals can achieve the life of ethical virtue, which consists of a variety of human excellences and activities, including those of both public and private life, as well as the leisure to appreciate one's life and the material means to do so without anxiety or persistent frustration.

Aristotle's mixed regime also embodies a different conception of "freedom" from the one found in contemporary republican theory, namely "nondomination." Naturally, the civic friendship found in *politeia* implies that citizens do not arbitrarily dominate one another, while their role in legislating for the city implies that they are self-governing. Their regime is not characterized by the "license" favored by democracy (V.9, 1310a25–36). But the key is that this regime establishes the political and psychological conditions in which individuals can develop their worthwhile natural capacities for healthy social and political relationships (IV.11, 1295b23–27). Specifically, Aristotle emphasizes that these middling citizens are free, first of all, of the envy (*phthonos*) and contempt (*kataphronêsis*) that ruin the growth of wholesome civic friendships (IV.11, 1295b22–23). They are also free from coveting the goods of their fellow citizens and free from the dangers of being targeted by others who envy their possessions (IV.11, 1295b29–33); that is, they are freer from anxiety than many others. Internally, so to speak, their freedom is rooted in their ethical character, on the one hand, but its outward expression is the set of wholesome relationships that define the city in its mature growth: "but the polis aims, at any rate, to be made up of equals (*isoi*) and 'similars' (*homoioi*) to the greatest extent possible, and this is available to *hoi mesoi* most of all, so that it follows necessarily that this polis is the best governed (*arista politeuesthai*), which is made up of those elements of which we say that the city is naturally composed" (IV.11, 1295b25–28). Aristotle's mixed regime is a free and equal one, but those terms must be understood within Aristotle's teleological framework of human nature and human flourishing.

In light of this governing intellectual framework, readers will be aware that Aristotle's mixed regime is the "best governed" not in an absolute, teleological sense, but rather in the sense that it is best suited to most cities of ordinary means and ordinary manpower. This *politeia* is not the aristocracy presented as the best regime in *Politics* Books VII–VIII; even the limited aristocracies described in Book IV are out of reach for most cities and most human beings (IV.11, 1295a25–34). All the same, the citizens of the mixed regime go beyond merely thoughtless or conventional decency in that, as Aristotle stresses, they "obey" (*peitharchein*) and "follow" (*akolouthein*)

reason (*tôi logôi*) (IV.11, 1295b5–9).[15] The *logos* that they obey is their own and that of their fellow citizens.

One of the chief merits of a regime characterized by civic friendship is that *hoi mesoi* will have relaxed their possible anxieties about which regime principles govern them. Their regime is ambiguous, mixed, and even nameless, so that, hopefully, the precise categorization or regime type will matter less, and to fewer people. It is a perhaps paradoxical truth that the success of the mixed regime depends upon the citizens' ability to forget the "mixing" itself, to maintain a collective "amnesia" about the identity of the constituent principles themselves. Aristotle hopes that citizens will begin to interpret their relationships as part of an altogether different species of regime, rather than one whose constituent principles are constantly in view. Hence, he says that a well-mixed regime will seem to be both democratic and oligarchic, and also to be neither (IV.9, 1294b14–18; IV.9, 1294b34–36). Each of the groups involved in the mixed regime – the free-born but poor, the wealthy, perhaps rare individuals of virtue – will have a just claim to rule based on those attributes, but their just claim will not be so strong as to overrule the just claim of their diverse fellow-citizens, who are also entitled to rule (III.13, 1283a23–1284a3). Instead of being overwhelmed by antagonisms about those competing claims, the citizens might instead join together in forgetting the basis of each claim and accept that their fellow citizens deserve their respect and support. If they do so, then they will have achieved a "mixed" form of political justice, which constitutes a new form of political justice, rather than several different types jumbled together.[16]

If this type of wholesome collective amnesia proves to be feasible, then the citizens will become more open to simply thinking through what seems best to them, based on public discussions, for the city as a whole. They will do so free, as Aristotle says, of envy and contempt, and of the constant reminders of one another's origins or "background." If so, then Aristotle's mixed regime will be able to put into practice his ideal of rhetoric as a form of ordinary, but respectable and rational, civic discourse as presented in the *Rhetoric*.[17] Ordinary discourse of this sort goes beyond thoughtless

[15] Here I disagree with Kraut (2002: 439–43), who stresses the "conventional decency" of the citizens of this regime. It is striking to observe the extent to which Aristotle's account of the middling regime takes over, virtually wholesale, the "middling or *metrios* ideology" that characterized political discourse in democratic Athens: see Morris (1996). This comparison deserves a separate treatment in its own right. By contrast with Kraut (2002: 441), I believe that members of this regime are represented as having a particular ideology – that is, the *metrios* ideology, which taught, as Phocylides said, that "many things are best for *hoi mesoi*" (quoted at *Politics* IV.11, 1295b34).

[16] Lockwood (2006). [17] Garver (1994) and Frank (Chapter 1 in this volume).

conventionality or conformism, but does not, of course, reach the even more admirable heights of *phronêsis* and *politikê epistêmê* embodied by the citizens of the highest aristocracies. With this characterization, we have discovered a mixed regime that is worthy of choice and genuinely valuable, and no longer one to be lamented as a "retreat" from the regimes that accord with "our prayers."[18]

Limitations of the mixed regime

One of Aristotle's chief political worries is that citizens engaged in ordinary life, political or otherwise, might fail to appreciate that theirs is not the highest life or that the objects of their concern are much more limited than the marvelous objects of natural science (such as the motions of heavenly bodies) or of theoretical philosophy (such as logic or mathematics). His worry is based not only on the possibility that the practice of philosophy itself might be outlawed or extinguished in certain cities. Instead, his discussion of the lively dispute between philosophers and "political men" (*politikoi*) in the opening chapters of Book VII (VII.2–3) points toward one possible limitation of the mixed regime. Its ordinary citizens are not likely, without much further instruction, to acknowledge the importance of philosophy, not only for philosophers themselves, but also for the well-being of their own cities. Without appreciating the greatness of philosophy itself, the citizens of *politeia* might commit an injustice against those human beings capable of attaining humanity's highest purposes.

This worry is intensified when we observe Aristotle's persistent emphasis on the militaristic qualities that characterize *politeia*. Despite Aristotle's recognition of the virtues of the mixed regime, he stresses that its greatest virtue is its stability, which derives from the physical or military strength of *hoi mesoi* – their ability to predominate over any other groups that might desire a fundamental change in the regime (IV.11, 1295b34–1296b2; IV.12, 1296b15–16; IV.12, 1296b34–1297a7). "It is necessary that the regime be made up only of those with arms" (IV.13, 1297b1–2; cf. IV.13, 1297b22–25). As a regime type, Aristotle says, *politeia* is naturally made up of a military body of people (*plêthos polemikon*) capable of ruling and being ruled in turn (III.17, 1288a12–15). Aristotle had made a similar point about *politeia* when

[18] Aristotle's statement that "it is the greatest good fortune (*eutuchia*) for citizens to have a middling and adequate property" (IV.11, 1295b39–40) shows, perhaps, that his intense criticisms of the egalitarian regime proposed by Phaleas of Chalcedon (*Pol.* II.7) are less charitable than we might have expected; cf. Lockwood (Chapter 4 in this volume).

he first introduced his classification of regimes (III.7), although in that discussion the key was that outstanding excellence is rare (cf. V.1, 1302a1–2), and, as a result, we should expect to find in *politeia* not virtue realized according to an exacting standard, but rather military virtue (*aretê polemikê*), which comes to exist in a "mass" of people (*en plêthei*) (III.7, 1279a40–1279b4). In one of the overlapping types of democracy, Aristotle stresses that the citizens' pastoral activities train them to be ready for war (VI.4, 1319a19–24).

When he refers to a mass of people with military virtue, Aristotle clearly has in mind "manliness" or "courage" (*andreia*), the virtue characteristic of the Greek hoplite (*EN* III.6–9). However, since *hoi mesoi* or the ordinary citizens of *politeia* are not individuals of outstanding virtue, they are likely to fall short of the highest form of courage that Aristotle presents in the *Nicomachean Ethics*; they should be imagined as exhibiting a "citizen's courage" (*andreia politikê, EN* III.8, 1116a15–17). This type of courage is inferior to the highest form of courage, because it is motivated by a desire for honor and by fear of social shame, rather than by a desire for what is good for its own sake (*EN* III.8, 1116a18–29). To be sure, Aristotle is willing to grant that the warlike element (*to polemikon*) of the city is essential to its well-being, even more so than its productive citizens such as farmers or laborers (IV.4, 1291a24–33). Moreover, Aristotle points out that the military life requires many different kinds of human excellence, not only courage (II.9, 1270a5–6). At the same time, he emphasizes that the citizen's proper functions are to share in "judgment" (*krisis*) and "rule" (*archê*) (III.1, 1275a22–23) – which implies that the citizen's military functions are less prototypical of the citizen's status than these higher, intellectual virtues. That is why, in the best city, the young men will be warriors, while the men over 35 will be rulers who judge and deliberate; nature itself, Aristotle says, has established this division within the citizen body, and the young men are expected to obey until they learn enough to carry out judicial and deliberative functions properly (VII.14, 1332b35–41). Accordingly, even if work and war are essential to the city, they are less essential than leisure (*scholê*) and peace, because the former activities are merely useful, whereas the latter are intrinsically good (VII.14, 1333a30–b5). This hierarchy is rooted in the human soul, where there is a sharp distinction between the soul's most end-like goods and its more instrumentally useful goods.

Speaking teleologically, then, courage should not be the highest virtue of any city. As we have seen, *politeia* practices a form of "mixed political justice" that corresponds to its general practice of mixing the institutions of

democracy and oligarchy.[19] However, *politeia* tends to elevate courage to the top of its table of virtues, because of the character of the citizenry. They will at least allow courage to compete with political justice as the city's highest virtue. If they do so, then, whether knowingly or not, the citizens of *politeia* will be trading the higher goods of the soul for the merely necessary good of security. In that case, the city's chief virtue, courage, will be focused on maintaining material goods, rather than realizing the more end-like goods of justice and deliberative prudence, not to mention theoretical wisdom. While it is true that the citizens of a *politeia* obey their own reason, as we have seen, Aristotle's worry is that they will turn their rationality into an instrument of war and production.

This concern surfaces in Aristotle's specific criticisms of the Spartan "mixed regime." Aristotle presents Sparta as a limited aristocracy, of course, but many also consider it a *politeia*-style mixed regime, as we saw earlier, and Aristotle himself blurs these categories to a large extent. (In Aristotle's day, Sparta had a number of uncritical admirers, although Plato and Aristotle alike found fault with its militarism, its imperialistic tendencies, and its neglect of the virtues of peace). Even though Sparta is, he says, "deservedly admired" (II.11, 1273b25–26), and even though many would praise Sparta for focusing on the public education of citizens in virtue (VIII.1, 1337a31–32), the Spartan lawgiver went astray in dedicating all the city's practices and laws to successful war-making (II.9, 1271b2–3). This focus on courage and warfare had the consequence that, even when they were successful, the Spartans were more dedicated to mastery than to practicing fulfilling political relationships with other cities or exercising proper leadership within the Greek world (VII.14, 1333b12–29). The Spartans instrumentalized their rationality and raised courage from its comparatively lower position in the hierarchical framework that alone makes sense of this virtue – that is, as providing the material foundations on which a life of excellence can be based. Paradoxically, Sparta became so "manly" that since its men were abroad on campaign for so long, the city itself came to be dominated by women, with the result that it grew avaricious and self-indulgent (II.9, 1269b19–1270a11), and it failed to see that material goods or military success were less important than virtue itself (II.9, 1271b7–10).

These theoretical points are confirmed by the inadequate life that the Spartan legislator created for his citizens, especially when they were not at war. Aristotle points out that if the regime is dedicated solely to winning

[19] Lockwood (2006).

wars and producing courageous men, then it will have little idea how to enjoy the peaceful times that war makes possible (II.9, 1271a41–1271b6). Those capable of working, but incapable of enjoying the leisure made possible by their work, have committed themselves to a misguided conception of the human good. Imperial and "macho" cities, such as Sparta and the "mixed regime" in general, educate individual citizens to seek mastery over their fellow citizens, within the city, just as the city itself seeks mastery over other cities within the Pan-Hellenic community (VII.14, 1333b29–35). To the extent that Sparta is representative of the mixed regime, then, the mixed regime is a fragile construct whose self-destructive tendencies explain why it rates a distant third compared to unqualified aristocracy and kingship.

However, the situation is more complex than this pessimistic conclusion might lead us to think. For, admittedly, militarism is merely a characteristic tendency of the mixed regime, not a tendency that necessarily shows itself in each case. It is crucial for the intended audience of Aristotle's text – perhaps political men, such as statesmen or legislators, or young men who aspire to those roles – to appreciate the dangers to which the mixed regime is frequently exposed. The lawgiver's goal must be to enable citizens of the mixed regime to live in a way that has value, through appreciating that war is for the sake of peace, that work is for the sake of leisure, and that the goods and virtues of the body exist for the sake of the goods and virtues of the soul (VII.14, 1333a30–b5). *Politeia* tends – misguidedly, according to Aristotle – to favor democratic principles of rule (IV.14, 1298b34–1299a1), and its tendency to err in the direction of democracy corresponds to its tendency to favor materialistic goods and bodily oriented virtues such as courage, rather than the higher goods of the soul, such as justice or wisdom. At the same time, if the life on military campaign requires many sorts of (presumably nonmilitary) excellences (II.9, 1270a5–6), then it is possible that courage and its associated activities will act as gateways to other, more important virtues, such as justice and friendship, along with appropriate activities of leisure that engage the highest parts of our rational souls. Aristotle's educational system, as outlined in Book VIII, draws on the traditional image of the warlike Homeric heroes sitting down to a banquet and listening to bards singing traditional poetry – not (or not only) because it was useful or educational for them to do so, but rather because such are the proper activities of leisure that befit a free man (VIII.3, 1338a9–32). Seen in that light, we might be right in thinking that courage and the military virtues can, after all, act as a half-way house for cities on the road to the higher, more important virtues – as the warlike virtues appear to have

done, according to Aristotle, in the case of the Homeric heroes.[20] An appropriate education might lift the citizens of *politeia* out of their concern with stability, with the body, and with military security, and lead them to prize the more complete realization of their higher human faculties.

In a regime characterized by the militaristic ideals of *hoi mesoi*, the civic friendship and agreement (*homonoia*)[21] that hold the city together might have the unintended consequence of enabling the citizens to turn their aggressiveness outward against other cities in destructive, and even paradoxically self-destructive, military ventures. However, what of the possibility that the envisioned political mixture itself might be fragile enough to break apart in the wake of the various contingencies that are characteristic of politics, and that lead to a lack of balance in the regime? In his discussion of revolution and civic conflict in Book V of the *Politics*, Aristotle shows that he is distinctly aware of the fragility of ordinary politics: "every difference (*diaphora*) is likely to make a division (*diastasis*)" (V.3, 1303b14). It is difficult to combine oligarchic and democratic principles correctly, either in limited aristocracies or in *politeiai* (V.7, 1305a5–23). Imbalance arises particularly in times of war, Aristotle says, because war makes it easier for citizens to become richer or poorer to an unprecedented degree and with dramatic speed – which happened in Sparta during the Messenian War, for example, when calls for a redistribution of land pressed the city (V.7, 1306b37–1307a2; cf.V.8, 1308a35–b10).

Strikingly, Aristotle hinted at these possibilities when he first introduced the idea of the mixed regime. He suggests that oligarchy and democracy must first be distinguished and then that a combination should be formed between them by "taking from each, so to speak, a *sumbolon*" (IV.9, 1294a34–35). The metaphor itself repays careful attention. When fourth-century Greeks made contracts or treaties, they often broke into two pieces a coin or knucklebone that could then be fitted back onto its corresponding piece in order to validate the identity of each party to the agreement; each piece was known as a *sumbolon*. On the one hand, Aristotle's metaphor illustrates the complementarity that he expects to characterize the resulting combination of democracy and oligarchy. However, the metaphor also reveals the fault lines that inevitably characterize the mixed regime. Indeed, the resulting relationship among citizens might amount,

[20] See Depew (1991), which argues that the poetic education described in Book VIII might act as a "gateway" to the higher forms of reasoning involved in theoretical speculation. I borrow the "gateway" concept for my own purposes here and apply it to courage, which has often been seen as the "footstool" of the virtues (a term generally attributed to Robert Louis Stevenson).

[21] On *homonoia*, see Kraut (2002: 438–44).

in its "unconcealed" form, to a merely contractual arrangement that would, under stress, come apart at the joint. Even if the city does not disintegrate, however, the contractual metaphor raises the concern that the mixed regime will face significant difficulties in establishing an ethos of friendship among the citizens. Aristotle is adamant in saying that a mere alliance or covenant of justice cannot constitute the association in living well that is a fully realized polis (III.9, 1280b6–12). The worry is that *politeia* will not embody a consensus on what constitutes the best life and why.

Whatever the associated worries may be, however, Aristotle's analysis shows that the mixed regime is the regime from which we have the most to learn about politics, if we view politics as the activity of negotiating diverse, and at least partially just, claims to rule the city. For the mixed regime is unlike other healthy regimes in being characterized by the nonviolent, political coexistence of groups with diverse just claims, rather than by either the rule of an undisputed single ruling group (as in aristocracy) or individual (as in monarchy). And it of course differs markedly, also, from the contentious, stasis-ridden governance of a group that rules in its own interests, as in oligarchy or democracy. "The middle is best" not only for ordinary citizens, but also for students of politics and political philosophy.

Conclusion: novelty and forgetting, as opposed to fighting

Within the longstanding republican tradition, ancient or modern, one of the distinctive hallmarks of Aristotle's account is the emergence of *homonoia*, or "like-mindedness," among citizens who view themselves as friends and who view their own regime not as a jumble of parts that could be broken down into democratic and oligarchic constituents, but rather as a thing apart, as something new and worth embracing for its own virtues. Reduced or relaxed is the sense of antagonism that usually characterizes the mixed regime. Antagonism between rich and poor, or among a city's different juridical orders, does not necessarily produce instability. In fact, the most famous example of the mixed regime – Rome – has often been celebrated precisely because the contentiousness of its politics led, as many have claimed, to the city's stability and greatness. This is the picture that we derive from Polybius' *Histories*, from Cicero's *de re publica*, and from Machiavelli's *Discourses on Livy*.

Aristotle offered a different model of the mixed regime and of its resulting freedoms and virtues. While others, such as Machiavelli, embraced the friction and machismo of the mixed regime, Aristotle saw these features as important grounds for criticizing this type of regime and

others that might approximate to it. By contrast, in fact, the key to Aristotle's own mixed regime is that it is (as he says) a *politeia*, a "regime" in its own right, with its own characteristic way of life (*bios*), aims or purposes (*telê*, sing. *telos*), civic virtues (*aretai*, sing. *aretê*), and methods of distributing power and making laws. *Politeia* is not intended to be a mishmash of other regimes that preserves class tension in a fragile, and possibly imperialistic, political mixing bowl. Nor is it a regime whose political compromises are the result of centuries of possibly violent struggle, as in the Roman Republic. Aristotle expects the lawgiver himself to design the constitution so that the different groups do not have to assert their own claims violently or through deception. Rather, like Solon, the lawgiver should stand with a shield over the city and give a just share in the regime to all contending groups, before violent conflict breaks out (Solon fr.5.5–6). Aristotle envisions these contending groups as law-abiding, rather than continuously participatory and law-making; and he praises *politeia*, surprisingly, for its superiority to aristocracy at least in point of stability (V.7, 1307a12–20).

In Aristotle's treatment, the fundamental purpose (*telos*) of the mixed regime is to enable its citizens to live a life of civic friendship, governed by practical reason, in a spirit of generosity. Citizens acknowledge the necessary diversity of the city, but, unlike those who drift into excessive ideological partisanship, they are more willing than citizens of other regimes to take into account the perspective of those they view as "other."[22] They are taught to react in this generous-minded way precisely by the institutional arrangements of the regime, which integrate elements of both democracy and oligarchy in an impartial way, a way designed specifically to make the good life possible for its citizens. Hence, without being democratic, Aristotle's *politeia* is a mixture with an egalitarian bent, since it combines oligarchy and democracy; in this respect, it differs from the more hierarchical and elitist mixture of democracy and monarchy found in the Platonic *Laws*. As Aristotle's citizens are taught by the city's "mixed" laws and institutions, however, they too react openly to their mixed regime. They identify with it and adopt it as their own, not as a wholly imperfect bric-a-brac of misshapen oligarchic and democratic elements, but rather as a newly conceived, dynamic, and organic political regime that is worth identifying with and choosing as the best practicable ideal.

[22] On the citizens' capacity to develop an "enlarged mentality," see Frank (2005).

CHAPTER 7

Aristotle and the question of citizenship

Thanassis Samaras

The central theses of this chapter are that the specific constitution that Aristotle calls *politeia* ("polity") in the middle books of the *Politics* is a constitution in which a "middling" class of *hoi mesoi* is sovereign and that it is his answer to the critical question of the political role of "potential citizens," or *banausics*, in the extant Greek *poleis* of his time.[1] The former proposition entails that, in his constitutional taxonomy in the third book, Aristotle uses the terms "the many" (*hoi polloi*) and "the multitude" (*to plêthos*) to mean a certain group in the case of polity and a different one in the case of democracy.[2] It also means that Aristotle's qualified approval of polity cannot be interpreted as in any way signifying a pro-democratic stance, as long as democracy is understood as the constitution in which all native adult males, including *banausics*, have full citizenship and the Assembly is sovereign.[3] Although there may be other properties of Greek democracy that one may deem important, these two are essential, and they

[1] In this chapter *politeia* in the generic sense is translated as "constitution" and the specific constitution under the same name as "polity." No one English word can, of course, cover all the occurrences of the term (on the multiple meanings of *politeia* in the *Politics*, see Mulhern, Chapter 5 in this volume), but "constitution" and "polity" are adequate for the purposes of the present argument. The translations of the *Politics* followed, with modifications, are those of the Clarendon Aristotle Series: Books I–II Saunders (1995), Books III–IV Robinson (1995), and Books VII–VIII Kraut (1997). The text is that of Oxford Classical Texts (Ross: 1957).

[2] Aristotle uses *tous pollous* (1279a27), *tou plêthous* (1279a31) and *to plêthos* (1279a37). The two terms are meant as synonymous, as demonstrated by the use of *men* and *de* in 1279a29–30.

[3] On the sovereignty of the Assembly, see Strauss (1991: 222) and Hansen (1991: 150), who states that in "virtually all modern accounts of Athenian democracy we meet the statement that the Assembly of the people was 'sovereign.'" Ostwald (1985) and, more reservedly, Hansen (1991) argue that in the fourth century BC the sovereignty of the Athenian Assembly was restricted by an established legal framework and thus Athens moved from popular rule to the sovereignty of law. Although this view is not without merit, the distinction between fifth and fourth centuries BC Athenian democracy can be overstated: Athenian democracy under Pericles, and even during the Peloponnesian War, was not any kind of unprincipled mob rule, even if the difference between law (*nomos*) and decree (*psêphisma*) was not always clear. Ostwald's and Hansen's interpretation do not, however, pose a problem for the argument of this chapter, since there can be no doubt that even in the fourth century BC the *kyrion* in Athens was the full demos.

are recognized as such not only by present-day historians but, more importantly, by Aristotle himself.[4]

The four instances of polity in the *Politics*

In *Politics* III.7, Aristotle provides a classification of constitutions based on two criteria, the number of those in power and whether or not the ruling party rules in the common interest. On the basis of these criteria he identifies six constitutions: When the ruler or rulers act in the interest of all, including the ruled, we have kingship, aristocracy, and polity; when they do not we have tyranny, oligarchy, and democracy. In advancing this sixfold division, Aristotle ostensibly follows Plato's constitutional classification of *Politicus* 302B–303B,[5] with two inconsequential modifications.[6]

On the basis of this taxonomy, two versions of polity can be unequivocally identified in the *Politics*: the constitution of III.7 where the multitude governs in the common interest and the "mixed" *politeia* of IV.8–9. The city with the large middle class of IV.11 is also a polity. Although Aristotle never calls it by that name, it is ruled by the *mesoi*, who in this city are many, not few (1295b34–38). Given that the list of the six constitutional types of III.7 appears to cover all possible constitutions (1279b33–34), that the *politeia* of IV.11 is highly praised and therefore cannot be a deviant one, and that it is sharply distinguished from ultimate democracy (1296a3–4), there cannot be any question that it is a polity.[7]

I propose that there is a fourth constitution that must be regarded as polity. In 1291b30–39 and 1292b22–34 Aristotle describes what he calls "the first kind of democracy." This is a democracy because "the demos is a

[4] Aristotle explicitly defines democracy as the constitution in which all native adult males, including *banausics*, are citizens (1278a15–26, 1317b38–41, 1319a24–30, and 1328b32–33) and in which the Assembly is *kyrion* (*"to tên ekklêsian kyrian einai pantôn ê tôn megistôn,"* 1317b28–29; cf. 1292a6–7 and 23–27, 1293a8–9, and *Ath. Pol.* 41.2).

[5] In *Politics* IV.7, where Aristotle criticizes Plato for having "missed" (*lanthanei*, 1293a41) polity in his enumeration of the constitutions and using only four types of them, the reference is clearly to *Republic* VIII–IX and Aristotle is therefore thinking of another part of the Platonic corpus.

[6] The first modification is that Plato's criterion is not the common interest, but adherence to (written) law. The second is that in the *Politicus* there is a seventh constitution, the rule of the philosopher, which, given the philosopher's absolute knowledge and therefore ability to solve all political problems, makes written law redundant. Neither of these differences, however, is sufficiently significant to put into question that the classification of Plato's *Politicus* forms the basis of Aristotle's classification in *Politics* III.7.

[7] For different arguments in favor of this view, see Robinson (1995: 100–01) and Balot (Chapter 6 in this volume); cf. also Barker (1946: 179), Newman (1887–1902: 4.218 *ad* 1296a10), Simpson (1998: 332–33), Kraut (2002: 438), and Lockwood (2006: 210). For a dissenting opinion, see Johnson (1988: 197–99).

majority and the opinion of the majority is sovereign" (1291b37–38) and because its fundamental principle is equality. In this constitution, however, equality takes the form of a balance between those who have substantial means and those who do not. "Neither class is in power," writes Aristotle (1291b33), but both are alike in terms of political power. Although the description of this constitution is incomplete, it is clear that a sharing of power between the rich and the poor takes place in it. Since in the middle books of the *Politics* Aristotle identifies rule by the rich with oligarchy and rule by the poor with democracy, this sharing makes it a "mixture of oligarchy and democracy," which is verbatim Aristotle's definition of polity in 1293b33–34. Remarkably, then, the "first kind of democracy" turns out to be a polity. Why then does Aristotle call it a democracy?

Part of the answer lies in the fact that, in the framework of Aristotle's classification, constitutions can overlap. Polity, for example, can share some features with aristocracy (from which it does not differ a lot, 1294a28–29) and some with democracy. As Aristotle writes, "people are used to calling polities the mixtures that incline towards democracy, but those that incline toward oligarchy they call aristocracies" (1293b35–37). It is therefore possible to have a constitution that will have some features of the deviant constitutional type of democracy and some of the correct one of polity. This is exactly what happens with the "first kind of democracy." Aristotle calls this constitution a democracy because the demos, which is explicitly identified with the greatest number (*pleiôn*, 1291b37) and thus with "the many," is the sovereign element in the city. Nevertheless, as we shall see later, when Aristotle talks about "the many" in the three indisputable instances of polity, he means a "middling" class significantly smaller than the full demos in a democracy. This entails that if the demos of the "first kind of democracy" turns out to be a "middling" class rather than the whole population of adult native males including the destitute,[8] it will be more precise to call this constitution a polity.

What is the social composition of the demos in the "first kind of democracy"? The answer is provided in 1292b25–26, where Aristotle specifies that not the whole demos is in power, but the farmers and those of moderate property (*to geôrgikon kai to kektêmenon metrian ousian*). This means that the *kyrion* in this city is a middle class economically and, in consequence, can be identified with the "middling" class of polity of IV.11. This identification is confirmed in 1292b30, where Aristotle specifies that in

[8] Despite the use of *aporous* in 1291b32.

the "first kind of democracy" there will be a property qualification. Given that democracy entailed the absence of such a qualification for citizenship, a constitution in which there exists a *timêma* and in which the *kyrion* is a "middling" class rather than the whole demos should not be classified as a democracy, but rather as a polity.[9]

Josiah Ober finds another reason why Aristotle may be inclined to call democracies constitutions that would be better described as belonging to other constitutional forms:

> Defining a broad spectrum of sociopolitical arrangements as "democracy" allowed what might be regarded as revolutionary changes to be subsumed under the rubric of internal constitutional adjustments. Very significant meliorative reforms . . . of the "extreme" version of democracy actually pertaining in Athens (and elsewhere) could be undertaken, but the *politeia* would remain a "generic" democracy . . . one prudential reason that a writer such as Aristotle, writing in the late fourth century B.C., might be especially sensitive to [the] charges [of having overthrown an existing regime is that] subversion of existing polis regimes was forbidden by the regulations of the League of Corinth, established by King Philip II of Macedon in 337 B.C.[10]

This suggestion is definitely plausible, but Aristotle's willingness to present as "democratic" a constitutional form, the implementation of which would mean the end of what the Athenians knew as democracy, can also be interpreted as part of a wider strategy adopted by proponents of the "mixed constitution" long before the League of Corinth. Plato, whose agrarian utopia in the *Laws* includes independent farmers but not *banausics*,[11] makes democracy one of the "mothers" of his "mixed" constitution (693D2). Isocrates, the undisputed master of this strategy, presents as "ancestral democracy" a constitution that involves the mixing of different constitutional perspectives and allows the poor, the great majority of Athenian citizens, very limited rights (*Areopagiticus*, 31–35).[12] This de facto disenfranchisement of the majority makes, of course, Isocrates' version of "ancestral democracy" fundamentally different from its fifth and fourth centuries BC namesake, since the latter was firmly based on full citizenship for all native adult males. Aristotle's presentation of what is on his own terms effectively a polity as the first and best kind of democracy can be best

[9] Aristotle confirms this understanding of democracy in IV.9, where he writes that in democracy there is "either no property qualification or a very small one (*mikrou pampan)*" for participation in the Assembly (1294b3–4) and no qualification for holding office (1294b9–10). Cf. also 1291b39–40, 1305a29–30, and 1317b22–23.

[10] Ober (1998: 338–39).

[11] Morrow (1960a: 152), Stalley (1983: 102 and 110), Bobonich (2002: 389–91), and Samaras (2012: 2–7).

[12] See Fuks (1953: 8).

understood as falling under this pattern. The place of polity within the tradition of the "mixed constitution" is an issue that will be dealt with more thoroughly in the third part of this chapter.

"The many" of democracy and "the many" of polity

Despite the fact that according to the classification of the constitutions it is "the many" (*hoi polloi, to plêthos*) who rule in polity, a careful reading of the text shows that when Aristotle refers to "the many" in any of the four instances where he discusses polity, he does not have in mind all native adult males, but a smaller "middling" or *hoplite* group.[13] In the previous section it was argued that in the "first kind of democracy," which actually constitutes an instance of polity, there is a property qualification for citizenship and "the many" are not the totality of native adult males, but a "middling" class consisting of farmers and the moderately wealthy. This is what occurs in the other three instances: In 1279a37–b4, Aristotle asserts that the constitution in which the multitude (*plêthos*) governs in the common interest is called by the common name of all constitutions, *politeia.* He proceeds to state that this is the reasonable usage of the term (*sumbainei d' eulogôs*), because (*gar*) it is difficult for "most people" (*pleious*) to be perfect in every virtue (*pros pasan aretên*), but they can achieve military (*polemikên*) virtue; it is precisely for this reason, he continues, that the most sovereign element (*kyriôtaton*) in this constitution is the fighting one and those who participate in it are those who fight.

However, why does the limited virtue of "most people" make it reasonable for polity to carry the name generally used for constitutions, *politeia*? Aristotle's argument is patently elliptical, but one plausible reconstruction is offered by Peter Simpson. Simpson rightly notes that for the philosopher "correct regimes must be in the hands of the virtuous," because they are the ones who "rule the city for the common advantage, and the common advantage is noble living, which only the

[13] This is a different issue from the well-known problem of reconciling Aristotle's definition of citizenship in 1275b22–23 with the notion of a common good extending beyond the citizen-body. Since the citizen is there defined in terms of ruling, the common good of the polis becomes identical with the common good of its ruling class and thus cannot be used as a criterion for distinguishing between correct and deviant constitutions. One solution to this problem has been proposed by David Keyt, who suggests that Aristotle assumes a group of "second-class citizens" being present in the city (1993: 140). In terms of the political reality of the Greek world, what Keyt calls "second-class citizens" could be identical with the group that I call *banausics* in this chapter. For a review of the literature on the problem, but a solution less satisfactory than Keyt's, see Morrison (1999).

virtuous pursue and realize";[14] he also observes that the whole discussion that provides the context for this passage is conducted from the point of view of the virtues of the rulers. In this framework, the term *politeia* indicates that polity is a correct constitution, because deviant constitutions do not deserve this name at all. Nevertheless, given that the multitude cannot achieve the moral perfection of one or a few virtuous individuals, but can only have military virtue, it is not as good as kingship or aristocracy and does not merit a more specific name.[15]

There may be, however, one additional reason why it is reasonable to think of this constitution as carrying the name of *politeia* and it is found a few lines above in the text, where Aristotle, right after stating that the determination of which constitutions are correct and which are deviant will be made on the basis of the number of those in power and whether or not they rule to the common advantage, adds: "For those who do not participate either should not be called citizens or ought to share in the benefit" (1279a31–32). This is a key sentence for the interpretation of Aristotle's constitutional theory as a whole and it sheds light on why polity *eulogôs* carries the name of *politeia* in the wider sense. The philosopher claims that those who are not (sufficiently virtuous) to take part in the constitution ought not to be called citizens, or if they are so-called, they must participate. An example of so-called citizens who do not participate in the *politeia* are the producers of the *Republic* – a criticism explicitly made in the second book of the *Politics* (1264a18–20). For Aristotle, those who are allowed the name of citizen must meaningfully share (*koinônein*) in the constitution. Polity is entitled to the name of constitution in the general sense (*politeia*), because it fulfills this criterion: those who are called citizens in polity enjoy real, not just nominal citizenship. The fact that *politeia* also means "citizenship"[16] further supports this interpretation.

Coming right after the delineation of the criteria according to which constitutions will be divided into correct and deviant ones, the prescription in 1279a31–32 becomes effectively a third criterion for the classification of any given constitution. Only constitutions in which all citizens are full members of the political community will be *orthai*. Taken in conjunction with the thesis that the best city will not make *banausics* citizens (1278a8, 1328b33–1329a2, and 1329a19–21), this proposition entails that

[14] Simpson (1998: 154). [15] Simpson (1998: 155).
[16] In fact, "citizenship" is, historically, the earliest meaning of *politeia*. See Mulhern (Chapter 5 in this volume).

banausics will not be part of the citizen-body in any of the three correct types, including polity.

This conclusion is borne out by what Aristotle writes in 1279a38–b4: In polity, the fighting part will be "most sovereign" (*kyriôtaton*) and those bearing arms will be citizens.[17] The fact that citizenship will be coextensive with military service is, as already noted, founded on the claim that the many cannot have every *aretê*, but they can have *polemikê aretê*. Aristotle does not explain here why this is the case, but even so, this claim is sociologically important: *Polemikê aretê* is in all probability the virtue of *andreia* that is examined in the third book of the *Nicomachean Ethics*. It is a virtue particularly appropriate for the *hoplite* class, a class of middle-income citizens who own their own land and can afford the *hoplite* armor. The identification of the *hoplitai* with a propertied but not necessarily leisured class is often made by classical authors and has become standard in modern literature.[18] Aristotle definitely shares the bias of other elite authors, notably Plato, against the moral import of serving in the navy, and there can be no doubt that he would not attribute to the lower classes, who fight mostly in the navy as rowers, *polemikê aretê* (see 1274a12–15). This entails, of course, that *banausics* are not to be citizens in polity.

So, "the many" that Aristotle poses as polity's sovereign element in III.7 are not democracy's many, the totality of native adult males, but a substantially smaller group of propertied heads of households who can afford the *hoplite* armor and can thus serve in the infantry – it is here that *polemikê aretê*, their only virtue, becomes relevant.

The second time that Aristotle discusses polity in the *Politics*, in the eighth chapter of the fourth book, he defines it as a mixture of oligarchy and democracy (*esti gar he politeia hôs haplôs eipein mixis oligarchias kai dêmokratias*, 1293b33–34). It would appear, then, that he has now abandoned the definition of polity that is given in III.7. He also writes that "it is clear that the mixture of the two, the wealthy and the destitute (*aporôn*), should be called polity" (1294a22–23). This latter statement elucidates the former: When he speaks about polity being a mixture of oligarchy and democracy in the former passage, he is thinking not of constitutional forms per se, but of *politeiai* dominated by the rich or by the poor, respectively. In an oligarchy the wealthy control the city (and thus their interests are the

[17] Aristotle makes the same point in 1265b28–29, where he writes that polity *"ek tôn hopliteuontôn estin."* Cf. also 1279b12–16.

[18] The connection between *hoplite* service and socioeconomic status in the context of Aristotle's discussion of polity is pointed out by Rowe (2000: 371–72), Ostwald (2000: 42), and Hansen (2005: 201).

only ones recognized in the constitution), in a democracy the many do (and so their interests are recognized). In other words, Aristotle thinks of the rich and the poor as social classes.

It is for this reason that the conception of polity in IV.8 is not really different from the one in III.7. A polity is for Aristotle a constitution in which the conflicting interests of the two social classes, the rich and the poor, are given some degree of recognition and in which neither side dominates the city politically. This is essentially the same understanding of the correct relationship between rich and poor that Plato advances in the *Laws,* when he claims that constitutions in which either class dominates are not real *politeiai* but *stasiôteiai*, the result of civil strife (832B–C). When this is understood, it becomes clear that Aristotle has not abandoned the definition of the third book in his analysis of polity in IV.8, but has rather reshaped it. Like Plato, Aristotle recognizes that different classes have different interests and different social and political beliefs. This recognition, coupled with his use of "oligarchy" and "democracy" as designating the unmixed constitutions in which only one side's interests prevail and become law, means that his analysis of polity in IV.8 is not irreconcilable to its definition in III.7.[19]

However, how poor are the poor of polity in IV.8? The use of *aporôn*, a term that literally means "those without means," in 1294a23 seems to indicate that Aristotle is here thinking of the very poor as members of the citizen-body. Nevertheless, this is not the case. When, in the next chapter, he proceeds to discuss the forms that polity takes in practice more specifically, Aristotle makes it abundantly clear that "the many" will not actually be the poor, but a more prosperous group excluding *banausics*. In that chapter he proposes three ways in which polity can come into being. The relevant one from our perspective is the second one. It is the introduction of a moderate property qualification for citizenship, one

[19] Robinson (1995: 90), expecting Aristotle to apply his own criteria of chapter III.7, argues that "In the original definitions of the six constitutions we were told that 'constitution' in the specific sense is the constitution where the majority governs for the common advantage (III 7, 1279a37). The scheme there implied that the number of persons 'sharing in the constitution' is no smaller in 'constitution' [polity] than in democracy. What is the definition of 'constitution' in Book IV? The answer is obscure and uncertain; but clearly it is no longer the definition of III.7. Nothing more is said about government either by a majority or in the common advantage; and there is a tendency to imply that those 'sharing in the constitution' are fewer in 'constitution' than they are in democracy." Robinson is right to think that those "sharing in the constitution" in III.7 ought to be the same in democracy and in polity. But Aristotle does not violate his own criteria by changing the assumed composition of "the many" between the third and the fourth book. He violates them by using a different definition of "the many" for polity and for democracy right from the start: As it has been argued, Aristotle thinks of "the many" in polity as a "middling" *hoplite* group already in III.7 (1279a38–1279b4).

that will be in the middle (*to meson*, 1294b2) between the high one of oligarchies and the nonexistent or very small one of democracies. Since democracies did not normally impose a property qualification for citizenship or imposed an insignificant one, as Aristotle acknowledges in the same passage (1294b3–4), this measure makes it clear that the many in polity will not include the landless, artisans, or menial workers. Although the exact inclusiveness of the constitution will be determined by the level of the *timêma*, there is no question that *banausics* will be excluded; and Aristotle's explicit preference for a middle-range qualification entails that the percentage of individuals who would be citizens in democracy and will not be in this form of polity will be significant.[20]

We are presented, then, with the following picture: In IV.8 Aristotle uses a term indicating that "the many" in polity will include the very poor. In IV.9, at the only place where specific measures determining the composition of the citizen-body are discussed, he makes it clear that they will not. The two chapters cannot be separated: They form part of a continuous analysis, as proved beyond doubt by the expression *ephexês tois eirêmenois* in 1294a32.

The continuity of the two chapters entails that, from a strictly logical point of view, Aristotle is inconsistent on this point. The issue then becomes whether we ought to choose *aporôn* in 1294a23 or the introduction of the *timêma* in 1294b1–6 as expressing his real position on the subject. It is not a difficult choice. First of all, the latter passage is the only one in either chapter where a specific measure directly pertaining to the social composition of polity is proposed. Second, as already pointed out, in the eighth chapter Aristotle attempts to define polity from the point of view of constitutional theory, and in this context *hoi aporoi* can be used simply (and maybe unreflectively) as a synonym for *hoi polloi*. In fact, there are more ways in which Aristotle is imprecise with his terminology in the eighth chapter. By oligarchy, for example, he means any kind of rule by the few, whether the correct one that ought to be called aristocracy, or the deviant one that is properly named oligarchy; and by democracy he means any rule by the many, whether or not it is a correct one. This is the most plausible reading of the text, because if Aristotle meant by oligarchy the deviant form of rule by the few and by democracy the deviant form of rule

[20] Technically, what Aristotle's proposal for a *meson timêma* creates is a "middle" constitution, not a "mixed" one. The fact that this proposal is part of his prescription for a "mixed" constitution indicates that he thinks of the two as belonging to the same constitutional type, which can be explained as "mixed" when looked at from a certain angle and as "middle" when looked at from another.

by the many, there would be one *orthê politeia*, polity, born out of a mixture of two *parekbaseis* – a logically problematic proposition. Like the use of *aporoi*, this lack of precision can be explained by the perspective of the whole chapter.

In conclusion, "the many" of IV.8 and 9 exclude native adult males with little or no property and are not coextensive with "the many" of democracy.

Finally, in IV.11 Aristotle discusses the "middle" (*meson*) constitution. Two striking aspects of this chapter are that there is much more emphasis on sociological than on constitutional analysis and that the whole discussion is conducted based on the assumption that a polis comprises three classes, as opposed to two, which was the rule so far. So, two questions arise here: Is the *mesê politeia* identical to the *meiktê* one and therefore a polity? And if the wealthy make up the highest class and those without property the lowest one, what group makes up the class in the middle?

On the first question: Aristotle writes in 1296a22–25 that cities become either oligarchies or democracies because their middle class is small in number (the whole argument is predicated on the assumption of an ideal middle constitutional form from which cities deviate because one class is stronger; implicitly, Aristotle takes it for granted that the stronger class will act in its own interest and impose its will on the other ones). Since, as we have seen, this "middle" constitution must belong to one of the six types identified in III.7 (1279b33–34), since "the many" rule in it and thus it is not an aristocracy or oligarchy, and since it is not a democracy either, given that it is strongly commended and that power belongs not to the *aporoi* but to the *mesoi*, it can only be polity and thus a "mixed" constitution.

However, if the "mixed" and the "middle" constitutions are identical, why does Aristotle never say so? According to his analysis, every "middle" constitution will be "mixed": In this constitution, the middle class dominates the city politically and this class shares characteristics with both the wealthy and the poor, so the result will be a *politeia* with elements of both oligarchy and democracy – precisely the definition of the "mixed" constitution. But is every "mixed" constitution a "middle" one? This is a more difficult question. Essentially, it can be rephrased as follows: Is it possible to have a "mixed" constitution without a large (and, in consequence, politically dominant) middle class?

There is no explicit answer in the *Politics*. I propose, however, that it is possible to arrive at a solution once we determine what group makes up Aristotle's middle class. Both III.8 and IV.7 provide evidence for the class composition of Aristotle's polity. In the former chapter the citizen-body is

identified as those bearing arms, thus indicating a city dominated by *hoplitai* (1279a37–b4), and in the latter one the imposition of a *meson* property qualification means that the "middling" class dominating the city will be a propertied, though probably not leisured, class. In IV.11 Aristotle praises the character of the *mesoi*, who are likely to "follow reason" (1295b8–9), and places them between those with substantial means and those without means. This characterization is repeatedly emphasized in 1295b1–34. So, the middle class is, first and foremost, a middle class economically. In terms of the social composition of classical Greek cities, the members of such a class would be likely to be in their majority middle-income independent farmers and possibly some merchants or craftsmen who are sufficiently rich to serve in the infantry as *hoplitai*. Aristotle's description of the *kyrion* in polity is therefore consistent in all the places where he analyzes this constitution. The philosopher uniformly thinks of this class as the social bedrock of polity.[21]

The question that remains is if it can be argued that it is the members of this class who are "the many" in IV.11. *Prima facie*, it would appear that the *mesoi* are neither the few nor the many, since they are explicitly distinguished from both groups. If, however, the poor are not citizens in the middle constitution, the *mesoi* become, in the strict sense from a constitutional point of view, "the many" in this *politeia*. Is this the case?

There is no explicit answer in the text. Although Aristotle attacks the character of both the wealthy and the poor with equal zeal, there can be no question of disenfranchising the rich on moral or any other grounds. Such a proposal would be inconceivably radical, since for classical Greek political theory the issue always was whether or not to include in the polis the poorest free adult males, never whether to include the wealthy. No ancient author ever endorses such a suggestion. The chapter leaves entirely unclear, however, what is to happen at the other end: Should there be a property qualification that will keep the poor outside of the *politeia*? As we have seen, Aristotle thinks of a moderate *timêma* as an important part of the mixed constitution in IV.9 and argues that the best city – and polity is a "correct" constitution – will not make a *banauson politên* (1278a8). The logic of the middle books of the *Politics*, then, makes their disenfranchisement the most probable solution in IV.11. However,

[21] Understanding that the presence in the city of a politically strong *hoplite* middle class is the sociological presupposition for polity resolves the problems involved in the identification of the "mixed" and the "middle" constitution that are raised by Johnson (1988).

if the *aporoi* are denied citizenship, the *mesoi* become, at least technically, "the many" in this kind of polity; and even if this was not the case, it would still be true that the *kyrion* in this constitution are not "the many" of democracy. The *kyrion* are quite clearly the *mesoi*, and the *mesoi* are sharply differentiated from the poor, that is the *hoi polloi* of democracy.

This means that if we treat the "mixed" constitution as a constitutional form *in abstracto*, it is possible that it may arise even without the existence of a large middle class. Nevertheless, for Aristotle, this cannot really happen in practice. A "mixed" constitution, a polity, can only come about if the city includes such a class. From this point of view, it is possible to claim that in the *Politics* "middle" is the way to describe such a constitution from a sociological perspective and "mixed" from the perspective of constitutional theory. Polity is a "mixed" constitution in terms of the constitutional principles that it embodies and a "middle" one in that, in practice, a large middle class must be present in the polis for the mixing to occur at all.

To sum up: Whenever Aristotle refers to "the many" in any of the four instances where he discusses polity, he does not have in mind all native adult males, but a substantially narrower group. This group is designated sometimes as those who bear arms (1279a38–b4, 1297b1–2; cf. 1265b28–29), sometimes as the farmers (1292b25) and sometimes as those with moderate property (1292b25–26, 1294b2), all of them descriptions strongly associated with the "middling" class.

Polity, democracy, and the question of citizenship

One critical function that polity performs in the *Politics* is to be Aristotle's solution to one of the most pressing political problems of the fourth century BC, that is determining the appropriate political status of *banausics*. Although taken literally the term designates free citizens who engage in a trade or art for their living,[22] Aristotle patently uses it to cover all native adult males who do not own (or own insufficient) property[23] and this is how I have been using it in this chapter. According to Aristotle, *banausics* are given citizenship in democracies, but not in other constitutions (1278a15–26, 1317b38–41, 1319a24–30). The reason that they present a problem for political theory, as Aristotle's following analysis of civil

[22] As Nightingale (1995: 56) points out, in the classical period the term *banausia* and its cognates are pejorative and are "virtually monopolized by Xenophon, Plato and Aristotle."

[23] *Thêtes*, wage-earners who own little or no land, are clearly included in Aristotle's *banausous* in 1277b35.

war, *stasis*, makes unmistakably clear, is that they regard themselves as entitled to citizenship (or, at the very least, recognition of their interests) and thus excluding them from the *politeia* threatens to destabilize the state (1305b20–22, 1306b27–29, 1307a23–25, 1308a3–10, 1308b25–31, 1309a20–32).

One possibility for Aristotle would be to accept their claim to citizenship. Indeed, as Ober has demonstrated, given the philosopher's assumption that "adult free males, as complete humans, are natural citizens,"[24] this would be the most obvious solution to the problem and democracy "the most natural of regimes,"[25] since democracy implemented this solution. Moreover, the architectonic of the *Politics* itself appears to suggest the inclusion of *banausics.* The first book, where the naturalness of the polis is expounded, involves an analysis of the natural hierarchical relationships within the *oikos*, as a result of which several groups (women, minors, the very old, foreigners, slaves) are excluded from participation in the public space of the polis proper. The second book is a digression dealing with antecedent political theories.[26] When Aristotle begins his discussion of citizenship in Book III, the reader may be excused to think that all those not belonging to the excluded groups must be natural citizens. Aristotle's definition of the citizen in 1275a22–23 appears to confirm this conclusion: It is given with a democratic constitution in mind – a point that Aristotle himself confirms in 1275b5–7.[27]

Nevertheless, not only does Aristotle fail to endorse this solution, but, on the contrary, he unequivocally commits himself to the political exclusion of *banausics* (1278a8, 1328b33–1329a2, and 1329a19–21). The problem with this commitment is that it is not founded on an analysis of their rational deficiency[28] comparable to that offered in the case of natural slaves and women and therefore it remains, even within the premises of Aristotle's ethical and political philosophy as a whole, insufficiently

[24] Ober (1998: 302). Ober calls the social group that I call here *banausics* "potential citizens" (1998: 306) and "culturally imaginable as citizens" (2005: 227). Cf. also Miller (2013: 43–47).

[25] Ober (1998: 308).

[26] On the position of the second book in the overall structure of the *Politics*, see Lockwood, Chapter 4 in this volume.

[27] See also Taylor (1995: 247).

[28] The closest that Aristotle comes to offering such an analysis is in 1260a36–b2, where he writes that "virtue pertains to [*banausics*] to the precise extent that slavery does," because they have "a kind of delimited slavery" (1260a41–b1). But this whole passage, whose main point is that artisans need a limited virtue analogous to that of slaves to do their jobs, does not include either an explicit claim that slaves and *banausics* are identical in terms of cognitive ability or a definitive explanation of the psychological incapacity of *banausics* similar to that given for natural slaves and women.

defended.[29] As David Keyt remarks, referring to the disenfranchisement of manual workers in the last two books of the *Politics*, "Aristotle offers no justification for the subservient position of the lower order in his best polis beyond that which is implicit in his theory of natural slavery."[30]

In this context, polity becomes the best attainable solution to the *banausic* problem. Aristotle accepts the following theses:

(a) The correct constitutions of monarchy and aristocracy are unavailable options for cities with large *banausic* populations.
(b) A correctly governed city will not include *banausics* in the *politeia.*

On the first thesis, since Aristotle follows the classification of Plato's *Politicus*, monarchy is the best constitution *simpliciter* and aristocracy the second best.[31] Nevertheless, in the fourth century BC, monarchy, in the form of either hereditary rule or tyranny, existed only in the fringes of the Greek world, in places like Sicily, Macedonia, and (usually under Persian oversight) Asia Minor.[32] Whatever its theoretical merits, monarchy is not even remotely feasible in mainland Greek cities like Athens, where for almost two hundred years the political poles had been oligarchy and democracy.[33] Aristocracy, rule by the virtuous members of the few, would be conceivable for these cities, but as a solution to the *banausic* problem it faces two problems: first, it is hard to find the right kind of aristocrats to bring it into existence; and second, and perhaps more importantly, the restriction of citizenship to a small group of upper

[29] Aristotle also makes the claim that "a *banausic* or a commercial (*agoraion*) life . . . is ignoble and contrary to virtue" (1328b39–41; the same point is made in 1277a38–b6, 1278a9–11 and 20–21). Since in the *Politics* political participation is morally legitimized through the possession of virtue, this thesis is sufficient to justify the disenfranchisement of *banausics*. Nevertheless, in the absence of an explicit argument that would explain how manual labor renders the soul incapable of achieving virtue, it remains unfounded itself. As Miller (1995: 244–45) accurately points out, "[Aristotle's] claim that the refined class of his day is morally superior to the productive classes is not adequately defended. He does not make plausible the claim that productive activities, which aim at goods and services intended to be consumed by others, are inherently inferior . . . Nor does he show that the life of a person engaged in production, even manual labour, cannot be on the whole intrinsically valuable. The presumption that physical labour as such is detrimental to the soul seems to rely on a dualistic view pitting the body against the mind which is in conflict with his own hylomorphic psychology."

[30] Keyt (1991: 264). Cf. Schofield (2000: 320).

[31] Although from a certain perspective monarchy and aristocracy can be conceived of as equivalent, since a correct constitution is characterized by rule by virtuous citizens, if one such citizen is available, the best constitution should be a monarchy and if a few, an aristocracy.

[32] Hansen (1991: 66) makes the stronger claim that "Monarchy was virtually non-existent in Greece in the classical age."

[33] Whether monarchy is even relevant to Greek political theory in the fourth century BC is an open question.

class heads of households would hardly contribute to the stability of the polis. Although, according to Aristotle, "the many" may acquiesce to the rule of "the few" as long as they do not feel oppressed and do not have their property taken away from them (1297b6–8, 1308b34–1309a9, 1318b16–20), in practice it will always be difficult for a few rulers to restrain themselves from oppressing the poor (1297b8–10, 1307a30–31). This means that any form of rule by the few will be subject to an increased risk of *stasis.* In Athens in particular, oligarchy/aristocracy was wholly discredited after the Thirty Tyrants in 404–03 BC and never recovered in the fourth century.[34]

The second thesis, Aristotle's categorical rejection of the political inclusion of *banausics* is, as noted, repeatedly stated in the text. Moreover, such an inclusion would make the constitution a democracy (1278a15–26, 1317b38–41, 1319a24–30) and democracy is a deviant and therefore inadmissible *politeia.*

The fact that monarchy and aristocracy are unattainable and democracy unacceptable means that polity is the best – indeed, the only correct – constitutional form that Greek cities with significant *banausic* populations may hope for. This theoretical position is especially relevant to most of Aristotle's contemporary Greek cities south of Macedonia, including Athens.[35]

From Aristotle's perspective, as the remedy to the *banausic* problem, polity offers some remarkable advantages:

It is likely to be more stable, given that it has a wider social basis than either monarchy or aristocracy.[36]

It involves a political alliance between the leisured and the "middling" or *hoplite* classes, the kind of alliance that antidemocratic authors of the period view as the prerequisite for the elimination of the full democracy that they dislike.

It entails the "mixing" of democracy, the constitution of Athens, and a number of other cities in the Greek world. Essentially, of course, it entails the termination of democracy, since the majority of the full demos is disenfranchised. The vocabulary of "mixing," however, could be useful in making polity acceptable to larger segments of the population, especially

[34] It is indicative of this attitude that fourth-century orators are unfailingly hostile toward oligarchy. For a selective list of examples, see Ostawld (2000: 29 n. 77).

[35] Although it does not apply to Sparta, where craftsmen were foreigners with no aspiration to citizenship.

[36] See Balot (2006: 259–60).

those *mesoi* citizens whose support would be necessary for this constitution to come into being and maintained.

This same vocabulary demonstrates that, although the analysis of polity in the middle books of the *Politics* is distinctly Aristotelian, it is at the same time part of a wider set of constitutional ideas centered around the concept of the "mixed constitution." This concept appears in the late fifth century BC and is eventually identified with the so-called "ancestral constitution,"[37] under the assumption that the constitutions of Solon and/or Cleisthenes were more moderate (and therefore inherently better) than the full post-Periclean democracy. What may be described as the theory of the "mixed constitution" in all probability becomes part of Athenian political discourse in 413 BC, when Cleitophon uses for the first time the slogan of the "ancestral constitution" (*patrios politeia)* in support of Pythodorus' motion for the replacement of the democracy by a "Cleisthenian" *politeia*.[38] Presenting the "ancestral" and the "mixed" constitutions as practically indistinguishable became the hallmark of the group of "moderate oligarchs" around Theramenes. The political program of this group probably involved little more than restricting the franchise to those with landed property and moderate wealth. According to Ostwald, the Theramenian ideal "included the abolition of pay for office and the restriction of the franchise to those able to serve with their fortunes and persons, that is, to the hoplites and the upper classes."[39] It was with aims such as these that the regime of the so-called Five Thousand succeeded the narrow oligarchy of the Four Hundred in 411–10 BC, with Theramenes playing a principal role in the constitutional change.[40] This regime lasted only a few months and was followed by the restored democracy, with its program never implemented. Notably, one of its admirers is Thucydides, who claims that it was the best type of government Athens had in his own time.[41] Since this high praise is entirely unsupported by any sort of argument or claim that this regime achieved anything at all, it can only be the result of the historian's subscription to the ideal of the "mixed constitution." In sociological terms, this movement has been justifiably interpreted as representing an invitation by the oligarchs to the moderately wealthy Athenian farmers for a sharing of power between the two groups at the expense of the landless.[42]

With oligarchic ideas wholly discredited in Athens after the disastrous reign of the Thirty and for the whole of the fourth century BC, the theory of the mixed constitution becomes one of the main, if not *the* main,

[37] On this connection, see Fuks (1953: 8) and Von Fritz (1955: 77). [38] *Ath. Pol.* 29.3.
[39] Ostwald (1985: 472). [40] Thuc. VIII 68.4. [41] Thuc. VIII 97.2. [42] Hanson (1999: 375).

conceptual framework within which antidemocratic political views are expressed around the middle of the century. It has already been noted how the *Laws* and the *Areopagiticus* present themselves as partly or wholly sympathetic to democracy, respectively, and what the reasons behind this strategy may be. What is beyond question, however, is that these works, exactly like Aristotle's analysis of polity, use the notion of the *meiktê politeia* to offer an answer to the *banausic* question. The answer is based on the disenfranchisement of the native manual workers and those without property and the establishment of a *politeia* in which the leisured classes will enjoy considerable political advantages that they did not have under democracy. Plato's Magnesia, which embodies these ideas, is explicitly a "mixed constitution."[43] Isocrates demonstrates his adherence to the theory by his promotion of a moderate "ancestral" (and thus identifiable with the "mixed") constitution[44] and his praise of Sparta, at the time widely thought of in elite circles as the model "mixed" constitution. Crucially, Sparta is the primary example of a "mixed constitution" that Aristotle himself gives in 1294b18–34.

Two related questions that might be addressed at this point are how feasible and how desirable polity is for Aristotle. In 1296a36–37, he writes that the middle constitution has "never occurred, or very few times." His explanation for this is that both the democrats and the oligarchs, when they have power, legislate with a view to their own interest, and thus the constitution ends up being either an oligarchy or a democracy. Implicit here is the assumption that only the presence of a large middle class would prevent this and that this was a rare occurrence in Greek history.

But how desirable is polity? According to Aristotle's classification of constitutions, kingship is the absolute best, followed by aristocracy. Polity is a poor third. However, although this ranking may be valid *in abstracto*, Aristotle also acknowledges in the *Politics* that different constitutions can be best for different places and different people (1287b36–1288a6 and 1295a25–35). It follows that different *orthai politeiai* can be best under different conditions. *Pambasileia*, the correct type of monarchy, may cover the rule of either Platonic philosopher-rulers, or, rather less plausibly, Macedonian kings. The right kind of aristocracy is described in Books VII and VIII of the *Politics*, but it presupposes

[43] Although not every citizen is fully leisured in Magnesia. See Samaras (2010).

[44] Fuks (1953: 8) comments that "[f]or Isocrates the 'good democracy of yore' (*ekeinê* or *alêthês dêmokratia*) is clearly a constitution of the right blend of different elements."

an entirely leisured citizen-body and thus a large number of slaves cultivating the land.[45] These were conditions unachievable in the cities of mainland Greece, but were possible if the Greeks conquered parts of Asia Minor and turned the local barbarian populations to agricultural slaves.[46] This idea was definitely discussed at the time of the composition of the *Politics*, and it materialized during Aristotle's lifetime. For the "old" cities of mainland Greece, however, none of these solutions was even remotely possible. From an Aristotelian point of view, a constitution dominated by a middling class was the only type of *orthê politeia* that these cities could realistically hope for.[47] The idea of a "mixing" of Athenian democracy, involving the disenfranchisement of the poor, was popular in elite Athenian circles and the theory of the "mixed constitution" was used to provide both a conceptual framework and an attractive political slogan for it. Polity in the *Politics* forms part of this discourse.

One further conclusion that follows from this analysis is that Aristotle's understanding of polity does not indicate sympathy for or partial acceptance of democracy. Although this claim has been made,[48] and although endorsing some form of "rule by the many" may appear as democratic in the abstract, in the fourth century BC any constitutional form that denies citizenship to the majority of native adult males cannot possibly be regarded as a democracy either in Aristotelian terms or on the basis of the common meaning of *dêmokratia* at the time.[49] Applying Aristotle's prescription for polity to any extant democratic city would necessarily entail the disenfranchisement of the majority of its citizens and the termination of democracy as the Greeks understood it. The transition from democracy to a constitution that fulfills the fundamental socioeconomic criterion of Aristotle's polity, in that a *hoplite* class of *hoi mesoi* retains citizenship but that a *hoi polloi* class is deprived of it, is exactly what happened in Athens in 322 BC, under the Macedonian rule imposed by Aristotle's patron Antipater. In the event, 9,000 Athenians kept their

[45] This city is primarily an aristocracy, since it is ruled by a fully leisured class whose members possess moral virtue (see Samaras [2007: 77–79]), but it also involves certain elements of polity. This can be explained by the fact that it is next to polity in the taxonomy of Book III and therefore it is possible for the two to overlap in certain ways.

[46] This proposal is offered by Huxley (1985: 147) and more convincingly by Ober (1998: 339–49).

[47] In IV.11 Aristotle makes it clear that the "constitution that most cities can share" (*politeian hês tas pleistas poleis endechetai metaschein*, 1295a30–31) is the "middle constitution."

[48] Bluhm (1962: 743–53), Nichols (1992: 85–123), Murray (1993: 201), and Frank (2005: 138–80).

[49] See n. 3.

citizenship, whereas 12,000 lost it.[50] Both the main sources for the event, Diodorus Siculus and Plutarch, take this *metabolê* to signify the overthrow of democracy in Athens[51] and modern scholarship commonly accepts 322 as the *terminus* of Athenian democracy. This political defeat of the city's *banausics*, and the abolition of the constitution that granted them citizenship, is a change that Aristotle would undoubtedly welcome, since he had already effectively proposed it in the *Politics*.[52]

[50] The number 12,000 is given in Plut. *Phoc.* 28.4 and is more plausible than 22,000, which is proposed by Diod. Sic. XVIII.18.5.

[51] Diod. Sic. VIII.18 and Plut. *Phoc.* 32.1.

[52] I would like to express my gratitude to Richard Kraut, Melissa Lane, Thornton Lockwood, John Mulhern, and Josiah Ober for their detailed comments on earlier drafts of this chapter. I would also like to thank the participants of the Boulder Conference and the audience at the Stanford Humanities Center for their useful suggestions.

CHAPTER 8

Aristotle, political decision making, and the many

Christopher Bobonich

Introduction

In *Politics* III.11, Aristotle presents considerations in favor of the claim that the many – none of whom is virtuous – when they come together should, at least in some cases, be politically authoritative. This chapter, especially in recent years, has attracted considerable scholarly attention. Part of the reason for its popularity may simply be that it comes as a relief to our moral sensibilities after Aristotle's remarks about natural slavery, non-Greeks, women, and those who work for a living (*banausoi*).

However, there are better reasons for interest. The above claim about the many is in sharp conflict not only with Plato's basic political principles, but with those of Aristotle himself in the *Protrepticus*.[1] Nor is it obviously what one would expect from the author of the *Eudemian* and the *Nicomachean Ethics* (or even *Politics* Book VIII). We might thus anticipate that the arguments in its favor would be clear and well worked out. Aristotle instead relies on a series of analogies and developing arguments from them is problematic. Finally, in this very chapter, Aristotle apparently endorses much less ambitious proposals about the proper political role for the many that may be incompatible with the above claim. In sum, it is unusually difficult to tell what Aristotle is doing in III.11 and how he goes about it.

In this chapter, I provide a close analysis of III.11's main features while highlighting its connections with other aspects of Aristotle's ethics and politics. We cannot resolve all the important questions, but I hope that we shall see more clearly what is genuinely puzzling.

[1] For example, 84.9–85.23 des Places (1989), B46–50 Düring (1961).

The basics

Aristotle announces III.11's main concern near its beginning.

> (The proposition) that the many (*plêthos*) ought to be in authority (*kurion*) rather than the few best would seem to be held and to have some difficulty (*aporian*) and perhaps also truth. (*Pol.* III.11, 1281a40–42)[2]

Before considering Aristotle's attitude to this thesis, let us note two related theses in III.11. These are: the many, when they have come together in an appropriate way (I shall call this "combination"), are (1) better than the virtuous few (1281a42–1281b2), and (2) judge better about political matters than the virtuous few (1281b7–9, 1282a16–23). The question of who should be authoritative is politically fundamental, so it is unsurprising that Aristotle begins with it. Aristotle thinks that political authority should be distributed in proportion to the relevant kind of merit and in the case of a city, this is a group's virtue. Virtue is the relevant attribute, since it is what allows a group to contribute to the city's ultimate end, that is, the citizens' happiness.[3] Since rulers advance the city's end by their decisions, the many's claim to judge better, that is (2), is especially important. In turn, an agent's decisions are the outcome of its rational and nonrational dispositions, so an agent that is better with respect to these dispositions will make better judgments [i.e., (1) makes (2) true].[4] The thesis that is defended by the best worked out analogies is (2), so I shall call (2) "the many thesis," although its connections to the other two claims should be borne in mind.

Quoted above, 1281a40–42 is hardly an unequivocal endorsement of the many's claim to rule. Indeed, some interpreters have even held that Aristotle's endorsement of it and (1) and (2) is merely ironic or aporetic and is not Aristotle's own view.[5] Although there are difficulties in finding a convincing Aristotelian argument for the many thesis, Aristotle offers

[2] Bekker numbers without identification are from *Politics* III.11. At 1281a41, I translate Richards's emendation *legesthai*. The sentence's last words could equally well be translated as "perhaps even truth." For discussion, see Newman (1887–1902: 3.212–14). The translation of III.11 is mine; other Aristotle translations are based on Barnes (1984).

[3] More precision would require discussion of controversial issues in Aristotle's theory of distributive justice. For a start, see Keyt (1991) and Miller (1995: 123–28). Also, the above claims need qualification, since Aristotle recognizes that a just distribution of political authority may not be overall best, if, for example, it leads to destabilizing faction.

[4] Aristotle endorses the inference from (1) to (2) at 1281b7, note *dio*. Some have suggested that III.11 is only concerned with aggregating virtue, not with decision making, but such a contrast overlooks the link between (1) and (2).

[5] For example, Winthrop (1978); the idea goes back at least to Trendelenburg.

less-hedged endorsements of it in III.11 at 1282a14–23 (cf. 1282a32–3) and especially at *Politics* III.15, 1286a24–31 (where Aristotle seems to endorse the many thesis with respect to matters not settled by the law). So it appears that Aristotle does in fact intend to endorse the many thesis, at least in some form; our task is to discover why.

The second general preliminary point concerns restrictions of the many thesis in III.11. The authoritativeness claim, as well as (1) and (2), seem to apply to all political matters without restriction. However, at the chapter's end (1282b1–6), Aristotle adds a major qualification. Correct laws should be authoritative and the ruler, whether one or many, should be authoritative only over those things that laws cannot specify, because of their generality. This raises much broader questions in Aristotle's political philosophy than I can discuss here and I shall focus on the analogies without trying to work out the exact boundaries of this restriction.[6]

As commentators have long noticed, Aristotle also endorses much more restricted participation by the many in III.11. Starting at 1281b25, Aristotle focuses on, and seems to approve in some way, Solon's proposal that the many have a share in elections and audits of officials, but not rule by themselves. Some think that this shows this is the only form in which Aristotle endorses a political role for the many and that (1), (2), and the analogies are to be understood in correspondingly restricted forms.[7] This would radically change our understanding of III.11, but is unlikely to be correct.

First, the analogies are stated in fully general terms with no suggestion of such restriction. Second, the analogies' point that the many judge better would on this interpretation simply be overkill.[8] As long as their judgments were as good, there would be no harm in enfranchising them. Indeed, it is only in connection with this proposal that Aristotle points out that excluding the many risks filling the city with enemies (1281b30). In this case, enfranchising the many may well be a good idea even if their judgments are worse. Third, the initial issue was the comparative goodness of the virtuous's and the many's judgments. The Solonic proposal concerns

[6] More general questions (to mention only a few) needing examination include: (1) What is it for laws to be authoritative and does it preclude all change in them? If correct laws were made by the virtuous, why cannot the virtuous sometimes change them?, (2) How broad are such laws and what is the exact difference between laws (*nomoi*) and decrees (*psêphismata*)?, (3) What is the relation between the law and the citizens' authority in Aristotle's best city?, and (4) Who or what should be authoritative when the laws are incorrect?

[7] For example, Lane (2013).

[8] On the other hand, applying a general thesis to a restricted case (in which the many is very deficient) might well be reasonable.

the very different idea of mixing the better and the worse. As we shall see, the only analogy – the food analogy – that seems intended to support the Solonic proposal directly is incompatible with the others since it suggests that the many's judgments are simply bad until they combine with the virtuous.[9] Finally, the Solonic proposal only enters the text after Aristotle asks what kind of many is such that the theses in question are true of them (1281b15–18). Some men are no better than beasts and the many thesis could not hold of them (1281b18–20). The many enfranchised by the Solonic proposal are the free in general and thus especially the poor (1281b23 and 1281b29). Aristotle is highly critical of the ethical character of the poor, but, as we shall see, more optimistic about the middle class.[10] Aristotle would have no reason to examine the many's possible claims only in the worst case (that with the least promising many) or to assume that what is appropriate for them is appropriate for a better many.

So, in what follows, I consider the many thesis and the analogies in their general forms.

General considerations

Analogies are often hard to interpret because it is unclear what features are supposed to transfer to the target case and Aristotle's brevity only makes things worse. So rather than try to establish a single correct interpretation, I shall explore broadly how they might work. But let us first consider some general issues.

If the judgments of some many after combination are better or at least no worse than those of the virtuous few, there must be some unapparent deficiencies (i.e., features militating against making correct decisions) in the virtuous or good qualities in the nonvirtuous. After all, if the virtuous were infallible, no many could be better and the closer they approach to infallibility, the harder the task for the many. But the many are only capable of such good decision making after combination, so it is especially important to understand the nature of this combination and how it produces good results. It might be straightforwardly aggregative in the manner of Condorcet's jury theorem or it might involve extensive deliberation including belief revisions. As we shall see, there are other options.

[9] Solon's proposal also differs greatly from Aristotle's announced question in that the previously enfranchised "better" (i.e., the better off) were hardly all genuinely virtuous in Aristotle's view.

[10] See, for example, Irwin (1988b: 453–56), Kraut (2002: 438–44), and Samaras's contribution to this volume. On the middle and the common good, see, for example, *Pol.* 1279a27–b4.

The second general point concerns the interest of the many thesis. First, the many thesis' direct political significance is limited, since few Greek cities faced the option of entrusting their political decision making to a virtuous few. However, determining how good the many's decision making is can be politically important. And even if the many thesis is false (or its truth requires highly implausible assumptions), it would be significant if the many could, under certain conditions, at least approximate the virtuous few's decision-making success. Even only a passably good approximation might be better than, for example, the rule of oligarchs.

Next, let us consider the general possibilities with respect to the deficiencies of the virtuous and the many's good qualities. There are significant limits to how deficient the virtuous can be. Since practical wisdom is "a reasoned and true state productive of action with regard to human goods" (*EN* 1140b20–21), it is hard to find room for systematic error. A virtuous person might, however, act out of character occasionally and thus nonvirtuously.[11] However, since this will only be occasional and nonvirtuous people are also subject to acting out of character, this possibility does little to close the gap between them. Nor will it do to suggest that a virtuous person, who possesses courage, but not justice, may go wrong in cases involving justice. Aristotle is committed, in some strong form, to the Reciprocity of the Virtues, that is, the thesis that one cannot have one virtue without having all the virtues.[12]

Once we allow (as we should), that the virtuous here possess practical wisdom and a fully intact virtuous character, two general possibilities remain. I return to them in connection with specific analogies, but some brief prior discussion may be useful. First, the virtuous may lack relevant information. If we must repel an enemy attack coming at one of ten points, the many may obtain the information more quickly and thus make better decisions. The most plausible such cases are those, like the one just described, in which the virtuous and the non-virtuous share the same goal and the latter would use the information just as well. When these conditions do not hold, the cognitive and character defects of the many may outweigh any advantage in information. But their advantage may also be precarious, since typically nothing prevents the virtuous from acquiring the same information (e.g., by transmission from the many).[13]

[11] For example, Curzer (2005). Virtue may come in degrees (*EN* 1173a18–22), but this should not make a radical difference.

[12] On reciprocity, see Cooper (1999) and Irwin (1988a).

[13] *Laws* 964E–965A uses bodily metaphors to describe the less virtuous transmitting information to more virtuous decision makers.

Second, it is intuitively plausible that the many may have greater experience than the virtuous few and Aristotle has great respect for the cognitive value of experience (e.g., *Metaph*. 1.1). Experience may not only increase one's information, but also improve one's abilities to discern and judge. The process of gaining experience – especially ethical experience – is influenced by one's cognitive capacities and character. The nonvirtuous were presumably much less well habituated than the virtuous, so their defective habituation will have hindered their chances of gaining ethical experience and their developed defective dispositions will limit their ability to benefit from experience as adults.

More specifically, some have suggested that the virtuous of III.11 lack political experience. But I see no reason to accept this. Aristotle, unlike Plato in some works, does not discourage the virtuous from political activity. Indeed, such political activity constitutes the second-best kind of happiness. Further, experience would confer a cognitive benefit and it is hard to accept that there is such a cognitive defect in the virtuous. Although practical wisdom is "especially" identified with wisdom concerning what is best for its individual possessor (*EN* 1141b29–30), Aristotle does think that practical wisdom and political science or wisdom are the same state (*hexis*), although they differ in being, that is, in definition (*EN* 1141b24–5). Although this is a surprisingly strong claim, it gives Aristotle good reason to reject the idea that the virtuous lack the sort of general political experience necessary for political wisdom. (I say more about experience in discussing the user analogy.)

I cannot here discuss in detail Aristotle's view of the many.[14] But to see what combination must overcome, let us briefly consider their deficiencies. To begin, the *Eudemian* and the *Nicomachean Ethics* make it clear that the many hold mistaken views about happiness (and this is the ultimate end of political science).[15] Moreover, their views are unstable because they are not rationally based, but rather depend on the desires and emotions in the nonrational part of the soul.[16] Nor do they have "a conception of what is truly fine and pleasant, since they have never tasted it" (*EN* 1179b15–16) and are moved by fear of punishment rather than shame.[17]

In particular, they will not think that virtue is good for its own sake. (Not even the Spartans, who are among the most admirable non-virtuous character types in Greece [*EE* 1248b37–1249a16], nor the more refined men [*charientes*] who pursue politics [*EN* 1095b22–3], think that virtue is good

[14] Garrett (1993) is helpful. [15] For example, *EE* 1214b35–1215a2, *EN* 1095a23–5, 1168b15–21.
[16] For example, *EE* 1214b35–1215a2, *EN* 1172b3, 1179b13.
[17] *EN* 1121b13–15, 1179b7–15, *Rh*. 1382b4–5.

in itself.)[18] Not having been brought up in good habits, the many would not benefit from discussions of the good and fine even if they were to hear them.[19] In sum, both the rational and the non-rational parts of their souls are defective. So as the good person tends to choose and act correctly with respect to the advantageous, the fine and the pleasant, the non-virtuous will go wrong (*EN* 1104b30–34). Thus, Aristotle is insistent that the two character types that in some significant way approximate virtue – natural virtue and the Spartan character – often lead their possessors to go badly astray in choice and action.[20]

The many thesis thus seems to face serious challenges.

Aristotle's analogies

Aristotle's defense of the many thesis begins with a flurry of analogies.

> It is possible for the many (*pollous*), each of whom is not a virtuous man, nevertheless when they have come together to be better than them (i.e. the virtuous few) – not individually, but altogether – as meals to which many contribute can be better than those supplied at one person's expense. For being many, each can have a part of virtue and practical wisdom (*phronêseôs*), and when they have come together, just as the many become a single man – having many feet and many hands and many senses – so too for their characters and mind (*dianoian*). For this reason, the many (*polloi*) also judge better both about musical works and those of the poets. For some (judge) some one part, others another part, and all (judge) all. (1281a42–b10)[21]

At 1281b10–15, there is a painting analogy that is merely supplementary to the judging analogy and offers no independent support for the theses about the many.[22]

Aristotle adds three further analogies. First, he offers a justification of the Solonic proposal as such. As we shall see, this analogy seems inconsistent with the others.

[18] Nor will they appreciate the value of philosophy.

[19] For example, *EN* 1095a2–11, 1095b2–6, 1179b4–20.

[20] On natural virtue, *EN* 1144b1–17; on the Spartans, *Pol.* 1271b2–12, 1333b11–1334a10. I have benefitted from Hitz (2012) and Benjamin Miller's unpublished work.

[21] In the last sentence, we should probably supply the stronger "judge better" from b8. In any case, the problems I raise below remain. Aristotle refuses to identify a whole with all its parts (*Metaph.* Z.17). It is, rather, very roughly, a unity of parts with a certain structure. As we shall see, there are serious problems about combining these partial judgments.

[22] The painting analogy only highlights the difficulties of combination. Merely aggregating the scattered most beautiful parts of real humans into a painting of a person would not produce the most beautiful painting of a whole human. This emphasizes the difficulty, but makes no positive suggestion.

> For when all have come together, they have sufficient perception (*aisthêsin*), and when mixed with the better people benefit cities, just as nourishment that is not pure mixed with some pure nourishment makes the whole more useful than some little pure nourishment. Apart each is incomplete (*atelês*) about judging. (1281b34–38)

Finally, he gives two more analogies responding to objections to Solon, although these analogies have wider application and are consistent with the others. To the objection that only doctors are fit judges of doctors, the reply is that

> The craftsman and the master craftsman and, third, the person educated (*pepaideumenos*) about the art are doctors (for there are also some such people in almost all the arts). We give judging no less to the educated than to the knowers. (1282a3–7)

To the renewed objection that, at any rate, nonprofessionals do not share in judging more than professionals, Aristotle adds a final analogy:

> About some things the maker would not be the only or the best judge – the ones where those who lack the art also have some knowledge of their products. For example, it does not only belong to the maker to know a house, but rather the one using it judges better (and the householder is the user) and the captain (judges better) a rudder than the carpenter, and of a feast the guest, not the cook (judges better). (1282a17–23)

In sum, Aristotle offers six main analogies:

(1) the feast, (1281b2–3)
(2) the single man, (1281b4–7)
(3) judging poetry and music, (1281b7–10)
(4) pure and impure food, (1281b34–38)
(5) professionals and the educated, (1281b38–1282a17)
(6) makers and users. (1282a17–23)

As we shall see, they display a certain progression.

The feast

This analogy's popularity is not matched by its informativeness. A standard interpretation holds that the common meal is better than one cooked by an expert chef because of its variety.[23] (It is not clear whether the criterion is the diners' pleasure or that of haute cuisine.) This has the advantage of

[23] For a standard interpretation, see Ober (2013a: 109–11); for the alternate, see Lane (2013: 253–59).

locating the benefit in some feature of the meal as such. Appealing instead to, for example, the friendship engendered by the activity focuses on a nonessential feature of the meal and strains what should be, as the opening analogy, something readily intelligible without unobvious assumptions.[24] Clearly, some coordination is needed so that not everyone brings the same casserole. But even granting this, is such a meal likely to better than one produced by Wolfgang Puck, even in respect of variety?

A recent revisionary interpretation, offered by Melissa Lane, holds that the key contrast is between a meal at one person's expense and a common meal at many's expense. The value or goodness of the meal is simply its total expense.[25] Assuming the many collectively can contribute more money than a single person, the common meal is better in virtue of being more expensive. The benefit of combination is "sheer aggregation": The value of the meal is an additive function of the monetary value of the individual contributions. Indeed, Lane holds that sheer aggregation also accounts for the result's goodness in the other analogies.[26]

This view faces problems. First, a meal's expense is also a nonessential feature of it and is a deeply implausible criterion of goodness (unlike healthfulness, the diners' pleasure, or the standards of fine dining) and highly unAristotelian. Aristotle hardly thinks that the goodness of a flute or a rudder is defined in terms of its expense. Second, it is crucial to this interpretation that the meal's goodness consists in its overall expense, not expense per participant. Sheer aggregation requires that overall goodness goes up with any added expense and this is not true of average expense. So Lane's interpretation would require that a meal of greater total expense that gave each diner one grain of wheat was a better meal than any meal of lesser total, but greater average, expense. This is hardly intuitively compelling. Matters, as the judging analogy will show, are no better in aggregating dispositions.[27]

Although the standard interpretation is more plausible with respect to the meal itself, it does not provide much political illumination. Even granting that variety is strongly associated with diners' pleasure or gastronomic excellence, it is not at all clear that variety in belief or disposition is similarly associated with arriving at correct decisions about what to do. We must turn to the other analogies.

[24] Wilson (2011: 263) offers a friendship interpretation; Bouchard (2011: 166) rightly rejects it.
[25] Lane (2013: 257). [26] Lane (2013: 260).
[27] Cf. n. 29. The painting analogy's point is that merely aggregating best parts does not produce the most beautiful whole.

The man

Although this analogy concerns the many's power to act, rather than decide, it marks an advance insofar as it points to the need for an appropriate combination for the product to be good. We are, I think, to conceive of the single resulting creature as an ordinary animal. In an animal, what guarantees that its parts, however many or powerful, function well together is the activity of the species form. We would not obtain such a good result simply by, for example, sewing many men together. We would have at best a heap (cf. *Metaph*. Z.6), not a unitary thing.[28] Since a gathering of the many is not a single natural organism, Aristotle still needs to specify the nature of the combination and show how it produces a good result.

Although this passage does not specify the combination's nature, we learn more about what is combined. In the analogy, bodies or body parts, that is, organs having certain abilities are combined. The idea that we combine differentiated organs having characteristic abilities takes us beyond the feast analogy and Aristotle goes further. Each of the many can have a "part" (*morion*) of virtue or of practical wisdom (1281b4–5). Unfortunately, it is not clear what this means.[29] The Reciprocity of the Virtues excludes the possibility of possessing just one virtue. Perhaps the best that we can do is to take this as the suggestion that each of the many possesses some dispositions of the rational or nonrational parts of the soul that bear some significant resemblance to those of a virtuous person. The resemblance cannot be too minimal or it should not be called a part of virtue, but the notion remains vague. (Must there, for example, be at least a 75 percent match between when this person grows angry and when a virtuous person does? Must their anger be based on a true ethical description of the harm occasioning it?) We can add the following points that are at least strongly suggested by Aristotle's phrasing.

1. In someone having a part of virtue, the rest of his dispositions do not significantly resemble those of a virtuous person.
2. Each individual has only one part of virtue.
3. All the parts of virtue are represented in the many in such a way that a proper combination of them produces a group that is an analogue of the virtuous person.

[28] *Contra* Lane (2013: 260) who holds that the creature is better simply in virtue of having more hands, feet, and so on.

[29] *Morion* can refer to one genuine virtue that is part of complete genuine virtue, for example, *EE* 1219a37.

(1) and (2) make it clear that despite having a part of virtue, the person is mediocre in other respects.[30]

The next analogy draws out some of the political implications.

Judging poetry and music, paintings, and users

According to the judging analogy, one subgroup judges one part well, a distinct subgroup another part well, and so on and combining these judgments somehow produces an overall excellent judgment. This analogy further advances the discussion, since it attributes to the many abilities that are explicitly judgment-making and suggests something about the combination of the resulting judgments. Our two basic worries are: (1) do the subgroups really have such abilities? and (2) how are these individual good judgments combined into an overall excellent judgment that is endorsed by a majority? I shall focus on the relevant general considerations, since it is often difficult to reach a fully determinate conclusion.

I have noted some of the many's deficiencies, but first let us consider an underappreciated worry about (1). The worry is not simply whether subgroups are capable of superlative judgment (i.e., at least as good as those of the virtuous) in a given domain, but whether it is possible for those making such superlative judgments to be mediocre in others. After all, the abilities allowing one to make superlative judgments about odd numbers also allow one to make superlative judgments about even numbers. For some domains, the knowledge and ability that suffices for superlative judgment in one of them also makes for superlative judgment in the other.[31] Are the domains relevant to political decision making like this?

I have the space for only the briefest discussion. The most natural idea is that those with a given part of virtue are responsible for judging the domain related to that part.[32] Those, for example, with "courage" (this is not, of course, the genuine virtue, but rather the part that corresponds to it by

[30] Combining dispositions to produce a good result is not straightforwardly additive: for example, what is added must qualify as a part of virtue, and all the parts of virtue must be represented (adding more tokens of one part is not enough). Virtue is the relevant attribute for distributing power just because it contributes to the city's ultimate end. Any criteria for an entity being more virtuous must preserve this link, and showing that an entity would make better decisions is complex. For example, a group 99 percent of whose members have the same part may make skewed decisions.

[31] This is true for domains such that grasp of the same principles is necessary and sufficient for good judgment in both. The more overlap among principles, the less variation there will be. The point is easiest to state in terms of principles, but they are not necessary: What matters are the relations among the types of knowledge in the domains.

[32] And since having a part of virtue is worse than having the corresponding genuine virtue, why would the judgment of parts be at least as good?

satisfying our previous characterization) judge of the courage-related aspects of problems. But ethics is not a field that lends itself well to such compartmentalization. To determine what actions are courageous, one must consider the norms or values relevant to courage not merely by themselves, but as part of a global scheme of values that includes those relevant to every other virtue. Since one of the virtues is practical wisdom that takes happiness as its end, determining what is courageous must thus be sensitive to the human good comprehensively understood.[33] So the knowledge that makes for excellent judgment in any domain will be the same. The holistic character of ethical judgment makes it very hard to see how such superlative judgment in one ethical domain is possible for people who are mediocre in the rest. This seems to be a grave problem for the strategy we are considering.[34]

Let us turn to combination. There are many possibilities here, but I focus on two of the most important proposals, those of Jeremy Waldron and Josiah Ober.[35] On Waldron's deliberative proposal, after the initial proposals and arguments are given (Waldron does not give special weight to subgroup experts), there is an extended process of common deliberation that results in a majority sharing both a correct view about what to do as well as the reasons supporting this judgment.[36] This proposal may not have close historical parallels. Speeches were made in the Athenian Assembly before voting, but practical constraints would sharply limit the time for discussion, the range of participants, and the opportunity for extended dialectical examination.[37] An Assembly meeting is not a philosophical seminar. Nor does anything in III.11 suggest, I think, that Aristotle has in mind a full discussion and evaluation by all that results in a majority coming to a worked out and shared understanding. But, given Aristotle's lack of explanation, any detailed suggestion has to go beyond the text and we might consider ways that the ideal could be better embodied in practice.

[33] I accept Cooper's (1999) and Irwin's analyses (1988a) here.

[34] Partitioning political issues is problematic, but assigning (antecedently fixed?) weights is more so. Should considerations about moderation always be worth 25 percent, courage 10 percent, and so on? But partitioning and weighting are only likely to produce good results if they are established by someone with overall knowledge of the field. If not, the results will be worse.

[35] Ober (2013a) and Waldron (1995).

[36] Waldron (1995: 569–71). Unless a majority endorses the correct judgment, its generation by deliberation is politically irrelevant and the many thesis fails.

[37] For example, Hansen (1979: 49) suggests that a typical meeting of the Assembly might have 6,000 members, each of which had at least a theoretical right to speak, lasted a few hours, and dealt with perhaps a dozen decrees. For Plato's attempt to craft a more adequately deliberative structure within the legal system of Magnesia, see *Laws* 855C–856A. Note how time-consuming and demanding on its deliberative participants the procedure is.

What the deliberative option requires is that the majority of the many, after deliberation, make choices about what to do that are at least as good as those of the virtuous person. However, it is hard to see why this should be the case. As we have seen, the many have the wrong ultimate ends, so they will tend to go wrong with respect to choices about human goods in their own lives. Why would they get right choices about human goods in the larger context of the city? The sort of dialectical deliberation that Waldron envisages might bring to light good reasons for the virtuous' choice, but why think that the majority would rationally appreciate or be moved by them? As Aristotle remarks toward the end of the *Nicomachean Ethics*, "[i]f arguments were by themselves capable of making men good, they would justly, as Theognis says, have won very great rewards" (1179b4–6). But they are not. All of the many are adults and Aristotle thinks that the character of adults is, at the minimum, exceedingly hard to change.[38] Nor is character established or changed simply by listening to speeches. It would require, if it were in fact possible, a long process of counter habituation for the many to change their defective characters. We cannot, I think, expect that political deliberation will do so.

One might suggest that deliberation brings it about that the many choose the right things, but not for the reasons that the virtuous do. This cannot, I think, explain how the many could make superlative right choices across a wide range of political topics. Those with natural virtue stumble frequently and the Spartans go wrong in peace.[39] Nevertheless, there is something important in this suggestion. Since the many have the wrong ends, they will not share the virtuous' reasons. But if we restrict the decisions to be made, we may be able to find not only areas of extensional equivalence, but also of partially shared reasons. This falls far short of the many thesis, but I return to it later.[40]

Before examining the details of Ober's view, let us note that at 1281b25 Aristotle turns to consider a much restricted version of the many thesis that applies only to elections and audits. It is in connection with this proposal that Aristotle presents his next three analogies, that is, those concerning impure food, the educated, and makers and users. Ober draws on the last two in his interpretation and I shall discuss them in light of the unrestricted thesis. This is reasonable, since there is nothing in the analogies themselves that suggests a restricted

[38] See Muzio (2000). [39] See n. 20.

[40] Proponents sometimes cite passages (e.g., *Metaph*. 993a30–b7) that seem optimistic about humans' capacity to hit on the truth. But these general passages should be interpreted so as to be consistent with Aristotle's express and specific views about the many.

application.[41] The impure food analogy is an anomaly, since it never suggests that the judgment of the many can be better or as good as that of the virtuous few. I shall thus leave it for last.

Ober offers an innovative alternative to the deliberative interpretation. Ober's suggestion is that the rest of the many do not accept the experts' judgments because they come through extended deliberation to grasp and share the experts' reasons, but rather because they are capable of recognizing the experts as such. Once the majority accepts the experts' judgments of the parts and also a predetermined weighting of the parts, the majority will endorse the correct judgment.[42] To show that it is plausible that the many can recognize experts, Ober turns to the opening of *Parts of Animals*.[43] In this passage (639a1–12), Aristotle distinguishes two kinds of proficiency with respect to a study or investigation, that is, that resulting in having understanding (*epistêmê*) of the subject and that resulting from being educated (*pepaideumenos*). Education makes one able to judge well what has been said finely in an exposition. General education allows one to do so with respect to almost all subjects; more particular education allows one to do so for some limited subject.

Despite its greater attractiveness than the deliberative option, this interpretation faces serious worries. In addition to those mentioned earlier, I note two. First, the possibility of success by nonexperts in judging plays may be misleading. Although judging plays or zoological methodologies may not always be disinterested, political and legal decisions are much more likely to be adversely affected by emotions and mistaken views about self-interest.[44] So the defective character of the many is all the more relevant. Thus, even if they recognize experts, they may not be motivated to accept their judgments.

However, let us focus on the educated's ability to judge. The *Parts of Animals* passage deserves longer discussion, but the first point to note is that the education in question produces an ability to examine the method of an exposition that is independent of the truth-value of the statements in that exposition (639a12–16). This is the ability, roughly, to judge whether

[41] For example, the educated analogy suggests that the many's judgment is at least as good (1282a7, cf. 1282a16–17) as that of the virtuous and so justifies something much stronger than the Solonic restriction. The analogy requires that the contrast be between the virtuous who possess political wisdom and those well educated with respect to it. But neither characterization is true of the better and worse in the Solon case. The analogy would have to be radically revised if its intent were to apply to real-life Solonic proposals.

[42] Ober (2013a) considers some deliberative variants, but I focus on his most novel suggestion.

[43] Ober (2013a: 107, n. 8). This is by far the most promising passage he cites.

[44] For example, *Rh.* 1354b4–11.

the exposition proceeds in accordance with the right standards for that kind of inquiry, not whether it expresses the truth. In the *Parts of Animals* passage, it involves judging whether one should proceed by considering each substantial being separately or by focusing on common attributes (639a16–19). In *Metaphysics* Book IV, it involves grasping, in general, what one should (or should not) seek to demonstrate (1006a5–11). In the *Nicomachean Ethics*, it involves grasping the appropriate degree of exactness to seek in different subjects (1094a23–7).

C. D. C. Reeve plausibly suggests that the relevant education must be, at least in large part, philosophical and dialectical.[45] What else could enable one to make the sorts of judgments just noted and to grasp the proper methods of different kinds of inquiry? However, it is even clearer that whatever this education is, it is a very sophisticated attainment and not something provided by the run-of-the-mill education of the average Greek in the streets. But if so, the many will certainly not possess it. So I do not think that we can accept Ober's interpretation and thus we have not yet found a convincing argument for the many thesis in these analogies.

Makers and users

The chapter's final analogy has entirely general application, but differs from the previous analogies in important ways. The judging analogy attributed to the many restricted knowledge (i.e., their knowledge of parts was of the same kind as that had by overall experts). In the educated analogy, the knowledge attributed was not the partial possession of the same science, but a distinctive knowledge of the norms and standards for that science. In the user analogy, what is attributed is neither of these and initially seems to be a homelier kind of experience. But this may be misleading.

The analogy's basic idea is that a product's user is a better judge of it than the maker, for example, a house's user is a better judge of it than the housebuilder. Filling this out, a product's user knows better than its maker how it is used and this knowledge of actual or appropriate use should determine how the product is made. The political analogue seems to be that the makers of decrees, laws, or political decisions generally are not the best judges of them, but rather those who use them, that is, are governed by them. Since the virtuous few typically live under the laws made, *prima facie* they and the many should be equally well off in judging these decisions,

[45] Reeve (1996: 192–93).

even if the virtuous few possessed, for example, some special knowledge about drafting decrees. But the many will, in fact, have a wider and more varied experience of using the laws. For example, the virtuous will not have experience of laws governing manual trades, since the virtuous do not practice them. And even when the laws affect the conduct of the virtuous directly, the many will collectively have a significantly broader and more varied experience, since they live under the laws in a much wider set of circumstances. More could be said, but this is enough, I think, to see the argument's general outline.

The problems for the analogy can be stated briefly. To begin, in the cases it mentions, there seems be a fairly sharp distinction intended between the maker's knowledge (understood fairly narrowly as knowledge of how to make a given product) and the user's knowledge that is a grasp of the ends for which the product is used. To be sure, in grasping that a house is to be built, the housebuilder must realize what a house is, for example, a shelter for human beings from weather, so the builder must have some idea of the use of houses. But turning to rudders and steersmen, it is clear why the user's knowledge is decisive.[46] It is not just that the user has more detailed experience of the product than the maker, but that the user's knowledge is normatively authoritative. Only the steersman has knowledge of what good steering consists in and it is such knowledge that should determine how the rudder is constructed. This is so for two reasons: (1) the value of a rudder as such consists simply in the good steering that it enables, and (2) by identifying the user as the steersman we identify him as someone who possesses the art of steering and thus knows what good steering is, that is, what the *telos* of the rudder is and thus what its proper form is.[47] That the user possesses the relevant art is crucial; rudder makers should not seek design advice from first-time steersmen.

The problem for the analogy is that neither of these points straightforwardly holds in the political case. The knowledge that should guide political decision making is political science and this embodies knowledge of the end of the laws, that is, human happiness at the level of the city. Political science is the most authoritative (*kuriôtatê*) of the sciences and thus architectonic (*architektonikê*) (*EN* 1094a24–b7, cf. *Pol.* 1282b14–18). It determines what other kinds of knowledge should exist in the city and how

[46] Understanding the *kubernêtês* as a pilot would also stress his architectonic function. Cf. *Pol.* 1276b16–26.

[47] Cf. *Ph.* 194a36–b8.

they are to be pursued and, more generally, what the citizens should do and refrain from. It does so appropriately because its end, the human good for the city, embraces all others. Thus, although it may include technical knowledge of certain kinds of makings, what is crucial is that political science possesses, in the best way, knowledge of the right use or end of political decisions.[48] This is, as we have seen, the knowledge the virtuous should have. On the other hand, merely using the laws in the sense of being governed by them is not sufficient for such knowledge. As we have also seen, the many lack practical wisdom and have a number of other ethical deficiencies. In sum, the analogy does not provide much support for the idea that they would be able to make better judgments.

So far I have interpreted the analogies in light of Aristotle's treatment of similar cases and his other general views. We might try to salvage something by appealing to other possibilities that seem plausible, but are not so directly grounded. In particular, we might appeal to the many's experience.[49] Since collectively they do have much wider experience of the laws' operation, they may have better information about the actual working of a policy. They may, for example, see that a measure, despite benefitting the city's treasury, has done so only at the cost of weakening military preparedness. It is easy to see how such information could result in better political decisions and there may be significant agreement between the virtuous and the nonvirtuous on the importance of military preparedness.

These considerations do not, however, even show that particular decisions about these issues would be better made if the many were allowed to vote along with the virtuous. They only show that such decisions will be better made if the decision makers possess such information and this result can be obtained if the many transmit the information to the virtuous. Of course, the many might be unwilling to pass on the information if they are excluded from voting, but that is another matter. If the virtuous do possess such information, it is not clear why giving the many a vote would tend to produce a better result. None of the many possesses practical wisdom, but it is also unlikely that a significant number of them possess the ability of cleverness (*deinotês*). This is an ability to determine well the appropriate means (including constitutive means) to whatever ends one has

[48] Plato at *Euthydemus* 288D–292D claims that the knowledge that makes us happy must include knowledge of how to use correctly whatever it makes or controls and identifies it with *politikê*.

[49] On experience, see Gregorić and Grgić (2006). Experience may arguably include universal generalizations; what it lacks is any grasp of an explanatory item. Cf. *EN* 1143b11–14. It is thus well suited to the many. *Metaph.* I.1, 981a12–13 suggests that experience is no worse than art with respect to action, but grasping explanatory connections should often aid practice.

(*EN* 1144a23–29). Although it can exist without practical wisdom and probably is possessed by some of the many, it is a kind of intellectual ability that is out of the commonplace and thus unlikely to be found in a majority of the many. So, even if the many's ethical defects were not immediately relevant to decision making in some area because no disagreement with the virtuous is relevant to deciding among live options, the virtuous seem better equipped to deal with the complexities of such choices that are not straightforwardly rule-governed.

Once again, there may be further possibilities to explore that are more or less loosely related to the user analogy, but the present discussion indicates, I think, the difficulties in appealing to it to sustain the many thesis or even a weaker claim about combined voting.

Pure and impure food

I close this section by returning to the food analogy. There is much that is obscure in this analogy. Aristotle says that some impure food mixed with some pure food is more nourishing than a little pure food (1281b35–38). He does not anywhere say that a sufficient quantity of impure food is equally or more nourishing than a little pure food (which is the analogical equivalent of the many thesis). Clearly, even mere silence on this point is a significant difference from the other analogies. Although certainty is not possible, it is tempting to read the claim "when (or if) (the many are) mixed with the better people, (they) benefit the cities" (1281b35–36) as conversationally implying the biconditional. (Ordinary language conditionals are often closer to biconditionals.) This would, of course, be inconsistent with the many thesis.

If we interpret the *Politics* passage in light of the *Generation of Animals*, this is what we would expect.[50] Impure food is food in a relatively raw state, and although nourishment may be present in it, it needs working up (*ergasia*) in order to purify it and render it nutritious (*GA* 728a25–30). In its unworked up state, impure food does not nourish, but such working up can be effected by mixing it with pure food (*GA* 728a30–31, cf. 725a14 ff., and 744b32 ff.).[51]

Either the conditional or the biconditional would support the Solonic proposal and this seems to be the analogy's intent. I do not think that the food analogy shows that Aristotle intends to reject the many thesis, since, as

[50] The chronological relation of this part of the *Politics* to the *Generation of Animals* is unclear.
[51] For a helpful discussion of related issues, see Lloyd (1996).

I have suggested, the many intended here is not the optimal many.[52] The distance of the food analogy from the political case (like the meal analogy) leaves us with many unanswered questions. We would like to know, for example, how the mixing makes the many useful. Is it by improving their judgment? Or are they only better because they have come, perhaps in part because of shame, to support the judgments of the better people, and are no longer prone to faction? Next, the claim that the better are incomplete (1281b38) without the many plays a crucial role in the argument. Even if the many are improved by mixing, this would not show that the mixed group is superior to the better people by themselves. But Aristotle does not even hint as to why the better are incomplete. Is this because the judgments of the better are less likely to be effective without the many's support or because the many actually improve the better people's judgments (e.g., by furnishing information)? Do the many play some substantial and essential role in making the virtuous more complete? Aristotle's presentation of the analogy is much too brief to answer these questions. Given its incompleteness, I do not think that this analogy adds greatly to our understanding of Aristotle's general political views.

Conclusion

None of the analogies seems to provide a convincing argument for the many thesis. In particular, we have not found a good account of how combination overcomes the many's deficiencies. In closing, I note some avenues for further exploration. First, as we have noted, even if the many thesis fails, it would be politically significant to show that the many's decisions could be better than expected. The *Politics* provides especially rich material for study, since although its discussion of the many is not as informed by ethical theory as that in the two *Ethics*, it examines the many and the kinds of people composing it in much greater detail. Both the idea that the many contains subgroups whose judgments in certain areas are relatively good and that the many can draw on wide experience, even if they do not vindicate the many thesis, might be developed to show that its judgments can be better than one might have thought.

Second, the idea of restricting the field of the many's judgments deserves further analysis. This is particularly so, since it was especially difficult to vindicate the many's claim to excellence in all-around good judgment. To

[52] Unlike, for example, the objection classed as part of an *aporia* at 1281b39, running from 1281b38–1282a3 and answered at 1282a3–7, there is no textual indication that the food analogy is only aporetic.

take one example, elections and audits might be areas in which the many do relatively well. Both the virtuous and the nonvirtuous (in general) desire to punish those embezzling from the city and to avoid entrusting offices to unscrupulous self-seekers. The many can also draw on a wider range of interaction with officeholders and candidates in these cases. The middle class may be capable of significantly more.

However, the *Politics* often points in more than one direction. As we have seen, the end of III.11 claims that the laws should be authoritative and that only matters that they cannot specify because of their inherent generality should be left to the rulers, whether one or many. At *Politics* 1286a24–31, in a difficult passage, Aristotle seems to endorse the many thesis with respect to such questions that cannot be settled by law. This is puzzling, since we have seen reason to think that the many will not be especially good at getting right highly complicated issues that require more than application of a rule. Matters are made worse by a passage at *Rhetoric* 1354a31–1354b11 where Aristotle says that correct laws should leave as little as possible open to judges and the Assembly. Here one reason for this restriction is that "it is easier to find one or a few men who have good judgment (*eu phronountas*) and are capable of framing laws and giving verdicts" (*Rh*. 1354a33–1354b1). We need a better understanding of how these claims fit together and of Aristotle's ultimate views.

Finally, there is one especially important example of restricting the range of the many's political decisions. Aristotle tends to think that in the vast majority of cities, the best that is possible is maintaining the stability of the current constitution and making small moderating changes for the better. This bounds the political decision making of the many: They do not have to decide how best to get from the current situation to the city of our prayers or a close possible approximation of it. We have also seen that the middle class is an especially promising many since they lack many of the worst defects of the wealthy and the poor and have some tendency to promote the common good.[53] Here their wide experience may prove particularly useful, for example, in determining how policies actually work to increase law abidingness, reduce resentment among the citizens, and in general promote the common good. Indeed, their motivation for pursuing such small-scale improvements may, at least in some ways, be superior to the virtuous who would see such efforts as only a second best forced on them by defective circumstances.

[53] Cf. n. 10. Although this raises disputed issues, they may – even while not valuing virtue for its own sake, being virtuous, or having a conception of the fine – be capable of at least limited altruistic action.

We may have more puzzles than when we began and may well have strengthened our suspicion that *Politics* III.11 is a curious text indeed. There remains a persistent gap between Aristotle's apparent endorsement of the many thesis and the arguments we can develop from the analogies. However, a clearer view of a text's puzzles is a necessary and important step in eventually finding a full resolution of them. I cannot offer the latter, but I hope to have made a start on the former. Even if we do not yet possess an adequate outline of the full resolution, time is, as Aristotle reminds us, a good coworker.[54]

[54] I would like to thank Huw Duffy for his comments on this chapter.

CHAPTER 9

Little to do with justice: Aristotle on distributing political power

Eckart Schütrumpf

Section 1: Introduction

"Little to do with justice" in a context of political theory could be a judgment about states, societies, or rulers that do not care about justice. This sentiment one finds expressed in ancient political philosophy. In Plato's *Republic*, whose subtitle is "On Justice," we find an imaginary account of ever worsening political conditions in a polis that undergoes a number of constitutional changes that are marked by an ever stronger erosion of justice. The decline ends with the rule of a tyrant who is the most unjust man (IX.587E). The constitution in which the greatest number of people participates in government, democracy, is the second worst and violates the principle of justice just by one notch less than tyranny. Starting in *Republic* I (331C), the subject "justice" dominates this work.

It is only too tempting to read Aristotle's practical philosophy along these lines, and the more so since he devoted one book of *Nicomachean Ethics,* Book V, to justice. Justice has received considerable attention in studies on his *Politics*.[1] It is prominently referred to in recent scholarship – although in my view not always as Aristotle had presented it. In particular the concept of "distributive justice" is considered an important part – and legacy – of his political philosophy, regulating the allocation of goods or honors to members of the political community. In *Nicomachean Ethics* V, Aristotle discusses most briefly[2] distribution of political power, however, *not* by reference to "distributive justice" (the *term* "distributive justice" is at best hinted at in the *Nicomachean Ethics* [V.5, 1130b30]), but by reference to "what is just in distribution." And while in the *Politics* "justice" occurs in

[1] Irwin (1988b), Miller (1995), Roberts (2000), and Young (2009). The longest chapter (80 pages) in Kraut (2002: 98–177) is on "Justice in the *Nicomachean Ethics*," as if justice was an important part of Aristotle's political theory, as it had been in Plato, so that one needed to get an understanding of this concept in its wider ramifications as put forward by Aristotle in *Nicomachean Ethics* V as a prerequisite for an understanding of the *Politics*.

[2] In "just five lines," Bostock (2000: 58).

prominent places,[3] it is overall used relatively rarely, and "distributive justice" never.

Section 2: What is just without justice

In a different context, I have argued that the pervasive modern use of justice in scholarly literature on Aristotle makes the Aristotelian concept all but unintelligible (Schütrumpf, in press). Justice (*dikaiosunê*) is in Aristotle first of all a quality of men, individuals, or a community like the polis (*Pol.* VII.1, 1323b34), *and* as universal justice it comprises all ethical virtues. The adjective "just" (*dikaios*) refers to people or the actions they perform. However, "what is just in distribution"[4] or "just in correction"[5] are principles or norms that should determine the correct way of allocating power or correcting unfair, unjust, actions. Since just is defined as equal (*isos*),[6] the two principles of what is just in distribution or correction establish or restore the form of equality (*isotês*) appropriate to the specific kind of interaction;[7] the former aims at creating an order among people that satisfies equality and the latter at restoring an equal value of things.

In the same way as universal justice is practiced by one person affecting another, furthering the advantage of the other (*EN* V.3, 1130a3–10), so (*mutatis mutandis*) what is just in distribution involves at least two (groups of) people who are the recipients of the distribution. However, here the decision is made about the two *things* that are distributed to them in the required amount (*EN* V.6, 1131a18 ff.; a31 ff.). The determination that what is equal is the mean (*meson*)[8] serves as the starting point for a conceptual clarification of the parameters involved in distribution: as far as the middle is *just*, it exists for certain people (*tisin, hois*), and as far as the middle is *equal*, it is established between two "things" (*en hois, ta pragmata* [*EN* V.6, 1131a15 ff.]). The kinds of what is just in the particular sense differ from one another in that these aspects count differently: In what is just in *correction*, the focus is on "the things," the matter to be corrected – its application "takes away the gain" (V.7, 1132a9 ff.) – while the quality of the people involved, both the perpetrator and victim, are irrelevant (1132a2–4).

[3] I.2, 1253a37–39; III.4, 1277b17; III.13, 1283a38–41; V.9, 1309a36; VII.15, 1334a24–33. Injustice (*adikia*) is used only five times: notably I.2, 1253a33; for III.11, 1281a16–b27 see Section 3.

[4] *to en tais dianomais timês* (*EN* V.5, 1130b31); *to en dianomêi dikaion* (V.6, 1131b10); *to dianemêtikon dikaion* (V.6, 1131b27–32). For honors, see *Pol.* III.10, 1281a31: "we state that political offices are honors."

[5] *to dikaion diorthôtikon* (*EN* V.8, 1132b24).

[6] *EN* V.2, 1129a34; V.5, 1130b9; V.6, 1131a13.

[7] *EN* V.6, 1131a21; 1132b33; V.8, 1133b4, b18.

[8] *EN* V.6, 1131a11; V.7, 1131b10 ff.; 1132a17.

The second aspect of the mean, the people affected (*tisin, hois*) in *distribution*, is conveniently overlooked by the parties involved in this process (*Pol.* III.9, 1280a11–14). The Aristotelian analysis of what is just in distribution corrects this flaw by determining the merit of the different claims competing groups have.

There is no counterpart to any of this in what is just in the universal sense, which presupposes the ethical quality of justice (*dikaiosunê*) of *one* person whose action affects another person. Here the "*other*," the recipient, is not assessed in his value,[9] whereas in the decisions that fall under what is just in distribution or exchange, this is the crucial factor (*EN* V.8, 1133b4 ff.). And what is more important for the difference between universal justice and what is just in the particular sense, under what is just in distribution *the person who conducts it* is not mentioned in *EN* V or *Politics* III.9 – in Aristotle's political philosophy he should be the lawgiver and statesman.[10] What is the crucial element in justice (*dikaiosunê*) in the universal sense, the ethical quality of justice of the person who acts is omitted in the analysis of what is just in distribution. Where is distributive *justice*?

Justice as an ethical attitude is not necessarily an element of even a correct interaction in another application of what is just in the particular sense: The "right applied in mutual exchange" (*dikaion to antipeponthos*) of goods is explained by reference to the business dealings of a shoemaker, builder, or farmer.[11] However, Aristotle denies to men who practice these professions the possession of virtue (*aretê*).[12] Their interactions cannot be guided by *justice*, and Aristotle never says that they are. Yet, in mutual exchange of goods *what is just or right* is observed between the parties. In distribution, correction, or exchange of goods, what is right can be implemented without justice having any part in it.[13]

However, justice is invoked on a higher level, namely for judges who, as the part in the polis that has "a share in *justice* as it pertains to courts," "make the decision on *what is just* for those who dispute," and this group of citizens "must share *aretê*" (*Pol.* IV.4, 1291a27; a39–b2), which is justice and allocates what is just or right (*tou dikaiou* [*EN* V.7, 1132a22–24]).[14]

[9] It is a different issue whether actions affecting certain classes of people are just (or unjust), for example, affecting children: *EN* V.10, 1134b8–17.

[10] *Pol.* III.1, 1274b36; see Schütrumpf (1991–2005: 1.384, n. 49, 7).

[11] *EN* V.8, 1133a7 ff.; a22 ff.; b4 ff.

[12] *Pol.* VII.9, 1328b40 ff.; 1329a19–21; see Schütrumpf (1991–2005: 4.374, n. on 1328b40).

[13] Irwin (1988b: 432) does not show that "special justice depends on general (justice)." Cf. Irwin (1988b: 437).

[14] "Right," for example, as considered just by the judge, but not as "rights" an individual possesses, *contra* Miller (1995).

The virtue of *justice* is employed by judges in order to restore *what is just* in disputes, and this scenario illustrates in which way the two concepts, the virtue of *justice* and *what is just,* are related and the former can under certain conditions affect the latter.[15]

While Aristotle can call the just man "equal,"[16] the equality to be established or restored in correction or distribution is never an ethical quality. In their application, equality (*isotês*) and equal (*isos*) in what is just in correction or distribution are not the equivalent of justice (*dikaiosunê*) and what is just (*dikaios*) in universal justice. "Justice" on the one hand and "what is just in distribution or correction" on the other differ in terms of who acts, to whom they apply, what they accomplish, and other aspects. Lifting the terminology of universal justice to the operations of what is "right in distribution or correction" by using the terms of "distributive" or "corrective justice" prevents the understanding of the principles in question. The indiscriminate use of justice for the norms to be followed in interactions of distribution, correction, and exchange of goods falls short of coming to grips with Aristotle's rather sophisticated and complex notion of what is just. Employing the term *justice* turns the forms of what is just in the particular sense into issues of the moral character of the person who acts, which Aristotle choose to ignore here when he deals exclusively with the categories of people affected and things to be allocated instead. Universal justice comprises all virtues, and the proof of *Nicomachean Ethics* II.5, that *aretê* is a *middle attitude of the person who acts* and strives after the middle, applies to universal justice as well. By contrast, the *middle* to be allocated or restored in particular justice focuses exclusively on the *result* to be achieved.

Where translators of Aristotle's *Politics* like Jowett, Rackham, and Simpson, or Burnet's commentary on the *Nicomachean Ethics,* translated the Greek term *dikaion* as "justice," H. Joachim in his commentary on the *Nicomachean Ethics* insisted on "right."[17] Among the very few who have

[15] "Of *justice* in the particular sense and the *right* in accordance with it one kind is that practiced in distributions . . . " (*EN* V.5, 1130b30).

[16] *EN* V.1, 1129a33 ff.; the unjust man is unequal (V.2, 1129b10; V.6, 1131a10). This language is unusual and avoided when describing a judge (V.7, 1132a19–32).

[17] Jowett translates *Politics* III.9, 1280b10, as "law is . . . a surety to one another of justice" (*enguetês tôn dikaiôn*). Rackham translates *Politics* III.9, 1280a9, as "all men lay hold on justice of some sort" (*dikaiou tinos*); 1280a10f. as "the principle of absolute justice" (*to kuriôs dikaion*); 1280a11 "justice is equality" (*ison to dikaion*). Simpson (1998: 159) uses "oligarchic and democratic justice." Burnet (1900: 220, n. on V.7, 1132a19) uses "corrective justice." Joachim (1951: 136), in his note to 1130b30–1134a16, uses "rights" and rejects the common assumption that Aristotle deals with *dikaiosunê.* Cf. (1951: 138): "rights of redress" (*dikaia diorthôtika*) and "dianemetic rights" (*to dianemêtikon dikaion*).

made this distinction, after Joachim, is the commentator on the *Nicomachean Ethics*, F. Dirlmeier, who described these forms of right as "vom handelnden Subjekt ablösbare äußere Tatbestände des Rechts," that is, "external facts of right that can be viewed in isolation from the acting subject."[18] This is certainly the opposite of the language of "justice" used commonly in scholarly literature on Aristotle, a term that is in Aristotle a quality of men.

Here I am not dealing again with the misleading use of justice where Aristotle discusses a different concept, namely what is right. Focusing in this chapter on Aristotle's *Politics,* I will pay particular attention to the distribution of political power and argue that Aristotle develops more than one principle for states to assign political influence to competing groups within the free populace. My concern here is the alleged presence of the notion of justice in the *Politics* and its overuse, when Aristotle's discussion of the subject of distribution of power has "little to do with justice." I will show that Aristotle in fact not only does not use justice, but discards it and replaces it with not just one, but a variety of different principles, concepts, or strategies to determine who should have which powers in the polis.

I will start with the concept of right practiced in distribution. It is based on merit. The idea that all men should be considered equal and that there should not be prerogatives for certain groups with regard to political rights had not yet gained acceptance at least among philosophers of the classical period in ancient Greece, with the result that the question of which qualities should be considered when giving men a share in politics was disputed among different groups,[19] and Aristotle makes an effort to contribute to resolving this controversy. However, he himself assumes that not one solution, one single constitution, fits the conditions of all societies and a mixed constitution with a strong democratic element appears the one preferred option.

Section 3: Allocation of political power in *Politics* III.9–11: Little to do with justice

Under the concept of what is "just in distribution," different groups are described as putting forward different qualities that support their claim to

[18] Dirlmeier (1974: 404, n. 100, 5) and Gigon (2001: 195 ff.) are correct as well; see Schütrumpf (2011: 226–31).

[19] *EN* V.6, 1131a23 ff., *Pol.* V.1, 1301a25 ff.

govern: supporters of democracy name freedom, that is to be born free; oligarchs name wealth; and aristocrats virtue (*aretê, EN* V.6, 1131a26–29). The relevant passage in the *Politics* (III.9, 1280a 7–12, 16–18) that uses this concept of *Nicomachean Ethics* V (and actually refers to it with the remark "as it has been explained earlier in the *Ethics"* [III.9, 1280a18 f.]) introduces as well the positions on what is understood as "just" or "equal" by supporters of oligarchy and democracy.[20] In *Politics* III.9 Aristotle declares that both the partisans of oligarchy and democracy "submit a part of what is just" (*tou dikaiou*)[21] but fail to meet the requirement of what is "just in the decisive sense,"[22] since they do not contribute to the living well of the political community.[23] Those who possess *aretê* contribute most to this end, they have the right to political participation in the strict sense,[24] and they participate in the polis "more" (*pleion*) than those who are wealthy or free born but inferior in *aretê*. In proposing this arrangement in *Politics* III.9, Aristotle distinguishes different levels of participation in the polis[25] and alludes to a mixed constitution that includes more than one social group and allocates to different groups different political prerogatives (see Section 4 in this chapter).

What is just in the distribution of political participation and to what degree claims are just is determined by identifying first and at great length the purpose for which the polis is formed. *Politics* III.9 contains the lengthiest and most detailed argument in the *Politics* that demonstrates that happiness is the goal of the polis[26] and concludes that "therefore those who contribute most to such a community have a greater share in the polis" than those of free birth or wealth.[27] This is Aristotle's teleological approach that in this context assesses the merit of different claims made by different groups to justify their participation in (governing) the polis based on the contribution to the end of the state, which is happiness or living well. As

[20] *dikaion oligarchikon, dikaion dêmokratikon*. The concept was anticipated by Thrasymachos in Plato's *Republic* I (338E).

[21] Wrongly translated as "justice" by Jowett and Irwin (1988b: 432).

[22] *Pol.* III.9, 1280a9–11 – "decisive": *kuriôs.*

[23] *Pol.* III.9, 1281a2–8: "One must posit that the community of a city exists for the sake of noble actions but not for the sake of living together."

[24] For the "rights" discussion, this should be an important passage. If only men with *aretê* possess the right in its highest form to political participation, then this is not a "natural right," since in Aristotle *aretê* is not by nature but a quality that is acquired through habituation – and not by all men.

[25] III.9, 1280a27; 1281a5, see Schütrumpf (1991–2005: 1.269–270, n. 31.11 on II.8, 1268a16). Compare Walter (1993: 21) for the terminology.

[26] 1280b34 f.; b39 ff. This concept is presented as undisputed in *Politics* I.1, 1252a1 ff.; I.2, 1252b29 ff., and for the best state in VII.1, 1323a17 ff.

[27] It is only *Politics* that determines the rank of these claims, not *Nicomachean Ethics* V.6, 1131a25 ff. where they are simply listed.

happiness consists in being active in accordance with *aretê* (*EN* I.8, 1098b31 ff.), so the political community to which one needs to contribute in order to meet fully the standard of what is just "exists for the sake of noble actions . . ." (*Pol.* III.9, 1281a2 ff.). In a very Aristotelian manner the standard used for the decision on participation in the polis is an accomplishment, an activity,[28] and the full members of this state are capable of it, since "a truly called state cares about the *aretê*" of its citizens (1280a7).

Nonetheless, with its focus on the contribution by the full members of this state to happiness, this chapter remains remarkably oblivious of the *qualification* to serve in government and make the right decisions[29] – I say "remarkably" because elsewhere Aristotle is aware that *in addition to aretê*, the *ability* to rule is required[30] and is explicitly mentioned in *Politics* III.11. I would call the outcome of III.9 unsatisfactory, considering that elsewhere he deals with this ability. When Aristotle in III.9 concludes that full participation in the polis must be restricted to those who possess *aretê* because they can fulfill the requirement for the best life, he does not take the additional step of identifying the qualification for political rule. This is not surprising since in III.9 the claim that it is the task of the polis "to make the citizens good and just" was the position Socrates had expressed in Plato's *Gorgias*,[31] a position Aristotle repeats in the *Nicomachean Ethics* (1.13, 1102a8 f.). Competence for governing is not part of this understanding of politics. And at *Politics* III.9 Aristotle is oblivious to any other consideration of political reality. This lopsided approach provides an opening for the objections in III.10 and a new and different solution of the problem of political leadership in III.11.

Do we find in *Politics* III.9 Aristotle's canonical version of what is just, of the right practiced in distribution of power, so that we can credit him with a view that recognizes different shades of what is just and gives preference to a constitution in which men of high moral quality exercise political power while an inferior role is granted to men of wealth and free birth? By no means. The discussion that started in *Politics* III.9 does not end there, and the result reached so far is not Aristotle's final answer to the question of

[28] Not as part of "past contributions," contra Irwin (1988b: 428).

[29] The ability "to make sound political judgments" is ascribed to the members of the *demos* in III.11, 1281b7, b31–38, but it is not mentioned when dealing with the men who possess *aretê* in III.9 as Kraut (2002: 147) writes; similarly Irwin writes: "it seems reasonable to distribute power and office to the virtuous people, those who are competent to rule well" (1988b: 427); "virtue and competence" (1988b: 428).

[30] *Pol.* VII.3, 1325b13, cf. 1325a37 (*dunamenon archein*); V.9, 1309a35 f.; III.4, 1277a25 ff.; III.13, 1284a10; IV.4, 1291a36.

[31] *Grg.* 513E5 ff.; 515A4 ff.; 521D6 ff.; see Schütrumpf (1991–2005: 1.78–93).

who should rule. His interest in this question finds its focused expression right in the introductory statement of the next chapter: "The question of who should be the sovereign of the city contains an unresolved problem."[32] Turning to the *sovereign* of the city could be considered as narrowing the subject of the preceding inquiry about *who participates in the* polis since there different levels of political participation were distinguished, whereas in III.10 focus is just on the top echelon of political power. However, why should this be an unresolved problem? Should not the concept of right practiced in distribution in III.9 have provided the one and only answer?

The introductory remark "The question of who should be the sovereign of the city contains an unresolved problem" is an understatement since Aristotle voices objections against *all* political systems distinguished in traditional political philosophy, first democracy.

> If the poor, because they form the majority, distribute among themselves the possessions of the wealthy, is that not unjust? "But by Zeus it was decided in a just, legitimate way by the sovereign." What should one call ultimate injustice (if not this)? (1281a14–18)

Aristotle plays here with two concepts of what is just, oscillating between the notion of legitimacy of decisions passed by the majority (*Pol.* VI.2, 1317b5–7) and a moral notion of injustice as plundering the wealth of others. This is not an isolated remark since he goes on to raise the *same* objections against the government of a majority, of a tyrant, or of the wealthy:

> If they as well practice these things and plunder and take away the possessions of the many, is this *just*? . . . That this all is bad and *not just* is obvious. (1281a25–28)

One could argue that this chapter builds on, and goes beyond, the result of the previous one: There the free born and wealthy could make in a limited sense a claim to political participation under what is just in distribution. Here at III.10 we learn: After closer examination, there appears a problem with the outcome of the previous investigation since groups that were recognized to possess "a part of what is just" in their political claims (III.9, 1281a9) act unjustly and abuse the power to which they have a subordinate claim under the right of distribution. The logic of the sequence of

[32] III.10, 1281a11. *Politics* III.10 is completely aporetic, and the question it raises is answered by III.11, but not by the concept of III.9 as Irwin construes the context when he refers to "the claims of those who will feel aggrieved" and argues that "distributive justice will recognize this interest" (1988b: 427). See Section 5 in this chapter.

arguments as we have it – it might not be the original order[33] – means nothing less than that the right practiced in distribution is now scrutinized by applying a different form of right, that of keeping one's property.[34] Wanting to have more is the mark of particular injustice according to *Nicomachean Ethics* V, and among the examples of involuntary acts that need to be corrected theft and robbery are mentioned (V.5, 1131a5 ff.) – as they are practiced by the governments listed in *Politics* III.10. The right practiced in distribution that was used in *Politics* III.9 is undermined in III.10 since it ignores that groups recognized to some degree under that principle fail by the standards of a different form of right. They are guilty of violation of particular justice, which consists in involuntary interactions in which one party secures a material advantage at the expense of the other. The behavior of the poor and rich who use their power for their own advantage could be considered as well a violation of a different kind of right, the "right of the polis," or "the right to be observed among citizens" (*politikon dikaion*).[35] Its violation is described as the practice of rulers to misappropriate for themselves from members of the political community too great an amount of things that are generally good (see Section 5 in this chapter).

It gets worse for the right practiced in distribution since Aristotle goes on to question the government of good men:

> But must the good men rule and be in control of all matters? But in this case all the others will be disenfranchised if they are not honored with political offices . . . and if the same men are always in office the rest must necessarily be excluded from honor. But is it better that the one best man rules? But that is even more oligarchical, for the men excluded from honor will be more numerous. (*Pol.* III.10, 1281a29–34)

Now those few whose claim was in the decisive sense just in III.9 (1280a12) are rejected in III.10 as rulers because they leave the great number of the populace without political rights. Plato's political philosophy in the *Republic* had culminated in the demand that the one best man, the philosopher, becomes king; for Aristotle this is an unacceptable concept since it ignores the reaction of the subjects who do not accept being excluded from participating in political decisions, and he says so explicitly in *Politics* II.5. There he raises objections against Plato's *Republic* in which

[33] See Schütrumpf (2009: 92–113).

[34] *EN* V.5, 1131a5–7; V.7, 1132a28: "They say they possess what is theirs when they receive an equal share."

[35] *EN* V.10, 1134a24 ff. Burnet (1900: 232), n. on 10 1134a26 and Roberts (2000: 345) renders *politikon dikaion* as "justice in the state." Von Fritz (1980: 257) correctly renders the phrase as "Polis-Recht."

the same persons rule all the time. Aristotle comments that this is often the cause of political unrest, not only among men of courage and warlike character, but as well among those who have no claim for anything.[36] Could one find a political order that meets better the principle of what is just in distribution than the *Republic*? Is not the political system in that work the perfect example of a state in which men participate – or are excluded from participation – in accordance with their merit and the contribution they make to its well-being (*Rep.* IV.434A9 ff.)? This is clearly the case, however; for Aristotle its elitist political order creates political problems simply because the majority is excluded.

In the first group of constitutions rejected in III.10, Aristotle based his objections on a different form of what is *just*, that of keeping one's property, than the one used in III.9, whereas in the second half of III.10 the *ratio of numbers* between those who wield political power and those who are excluded becomes the decisive argument against specific forms of government – regardless of how good the ruling class is.[37] Now the government of the prime contenders for political power under the right practiced in distribution, of men who are good (III.9), is open to fundamental criticism because of its oligarchic character – and here "oligarchic" does not mean "dominated by the wealthy" as oligarchy was defined earlier (III.8, 1280a1 f.) but "governed by few." The privileged access to positions of power accorded in III.9 to good men under what is just in distribution can no longer be supported unconditionally. Aristotle has pulled the rug from under the concept of what is *just* or *right* in distribution. Most importantly, the *objection* against any minority regime no longer refers to a specific form of what is *just*, as this was a concern of the past. Irwin (1988b: 427), referring to *Politics* III.10, writes: "Those excluded from them [i.e., power and offices] will rightly resent their exclusion because it is a denial of honour (1281b28–30)." In this quote "rightly" is added by Irwin who creates the impression that Aristotle, when stating the fact that the majority is without honor, continues the discussion about what is just[38] or

[36] *Pol.* II.5, 1264b6–10: "The way Socrates establishes the rulers is dangerous; for he makes the same persons rule all the time. And this is often a cause of political unrest among those who have no claim for anything (*tois mêden axiōma kektêmenois*), how much more among men of courage and warlike character?" "Have no claim" is even stronger than III.11 where at 1281b24 f. Aristotle denies that they possess "any claim for *aretê*" (*mête axiōma echousin aretês mêde hen*).

[37] *Pace* Irwin (1988b: 451–52), who argues that political conflicts reflect errors about justice and happiness, but ignores the Aristotelian objection against noninclusive governments of good or the best men.

[38] Roberts (2000: 363) expresses the same view (n. 31): insofar as exclusion from political participation "suggests instability it also points to injustice."

right when in fact he doesn't – which form of right is violated? Which legitimate "claim" or "claims" (Irwin: 1988b: 427) under any form of right does the majority have which need to be recognized? There is none in Aristotle. "Denial of honor" is not per se and for all unfair so that those excluded may "rightly resent their exclusion."

One needs to recognize first that there is a development of thought in *Politics* III.9–11, which, following the last argument of III.10, marks a complete shift of paradigms.[39] The concept of right practiced in distribution contained claims based on contributions to the state about whose importance the representatives of these qualities were quite aware (*Pol.* III.13, 1283a29 ff.). The objections against a regime in which good men have a greater part in the polis, as it was favored under the right practiced in distribution, deny the relevance of subjective claims but express the dynamics within a society. There is more to be done by the lawgiver who assigns political prerogatives than testing and evaluating who is qualified to contribute to the well-being of the state: One has to consider instead whether the subjects of such an outstanding rule will accept it (cf. *Pol.* IV.1, 1289a1). Aristotle takes seriously the expectations of the free populace of a given state that demands to be included in the decision-making process – no matter how imperfect they themselves are or how perfect their rulers might be and how much they deserve to rule under what is just in distribution.

For one reason or another in III.10 *every* regime mentioned was rejected. Does any form of government pass muster? Aristotle does not leave the reader in the lurch. He recommends in the following section one constitution, and this is the one least expected after what he had discussed until now: "That the great number of men rather than the best who are few should possess supreme power seems to . . . contain a certain problem, but probably truth" (*Pol.* III.11, 1281a40 ff.).

In the preceding chapter it was assumed that the great number will deprive the minority of their wealth (III.10, 1281a17–21). Aristotle has not forgotten this assessment when he recommends in III.11 of all political systems that of the rule of the great number. He actually characterizes them in unflattering terms: "they possess *no* claim to *aretê*," and "because of their *lack of justice* they *will act unjustly* and because of their lack of judgment commit mistakes" (III.11, 128b25–28). Virtue and *justice*, together with

[39] In *Pol.* III.8, 1279b12 ff., Aristotle expressly corrects the previously reached definition of oligarchy and democracy in an investigation that proceeds in a philosophical manner and aims at providing more than instruction for the practice; for the strategy of correcting previously reached results, see Schütrumpf (2009).

good judgment, are denied to them. For these reasons Aristotle considers it dangerous to entrust them with the most important offices. But the alternative of *not* admitting them to political participation is also a danger, "for a state in which *many* are excluded from office and are poor will necessarily be full of enemies" (1281a29f.).

The previous chapter had two strategies of objections against political systems, the first based on the injustice of robbing the political enemy of his possessions (1281a16), and the second based on the ratio of numbers of rulers and subjects, respectively. In III.11, in the description of the great number of people, *both* arguments reappear: These men don't possess *justice* and having a *great number of disenfranchised people* is risky for the safety of a state. Here we find support for our attempt to deconstruct the importance of justice in *Politics*: The unjust character of these people is not taken up as an objection to their participation in politics, obviously because this flaw does not weigh that heavily, but their numbers are taken seriously.

Elsewhere Aristotle considers the assembly as the most important political body (IV.14, 1299a1), and the initial question of who should have the sovereign power in the polis (III.10) is now answered: The great number of free men should be the sovereign. This recommendation is the response to the objections of the previous chapter (III.10). Of the right practiced in distribution with which Aristotle started in III.9 and which allegedly controls his political theory, not a trace is left in the solution of III.11. That concept introduced in III.9 was the gateway that led to a more complex discussion of the problems at hand; however, in the course of the argument, it has petered out completely. The results have been reversed: According to what is *just* or *right* in distribution of III.9, the members of the demos received an inferior share in the polis, but according to III.11 they are the sovereign.

Section 4: Terence Irwin on justice in *Politics* III.9

The common misunderstanding of the Aristotelian argument in *Politics* III.9 could be documented extensively. I will illustrate it by referring to the treatment of these chapters by Irwin (1988b). He translates the pertinent section of III.9 (1280a7–25), using "justice" where Aristotle writes of "just" (1988b: 432).[40] "Justice" evokes the ethical dimension, and in Irwin it reads like this: "The institutions of a political system shaped by the wrong conception of justice will themselves be unjust . . . "; "the injustice of the

[40] See also Irwin's use of "conception of justice" (1988b: 433, 435, 449, 450, 457, 459, 460).

system encourages particular forms of injustice in individuals"; Irwin uses even stronger language when describing this scenario by "the characteristic vices of oligarchy and democracy" (1988b: 435). Earlier, when dealing with "false conceptions of justice," he had referred to "accumulation of external goods, or (. . .) freedom from direction by the state" (1988b: 433). He describes the "democratic conception of justice" (1988b: 436) as the attitude of expecting from the state that it provides "conditions for living as we please" (1988b: 433), and he writes of "gratification." These attitudes represent "the oligarchic and the democratic conception of happiness" (1988b: 436).

There is no basis in Aristotle for any of these views. First, Irwin ignores that in the *Politics* "justice" and what is "just" are clearly distinguished (V.9, 1309a38 f.). *Politics* III.9 does not deal with the flaws in the conception of "justice," which led to injustice in individuals, but sticks throughout to "what is just" – and in a positive manner. If the perception that a glass is half full stands for optimism and that it is half empty for pessimism, Aristotle's position in III.9 is optimistic since he acknowledged that the partisans of democracy and oligarchy appeal to "a part of what is just" in their political claims. This chapter proves in the end one point from the beginning, namely that the partisans of oligarchy and democracy, or even "all men" (*pantes*), grasp "a part of what is just" (1280a9–11; a21 f.; 1281a8–10), and this is repeated at III.13, 1283a29 ff. As far as the political institutions are concerned, Aristotle honors this "part of what is just" by allowing the wealthy and free some degree of participation in the polis – after all they claim "with good reason" political power, and without them the polis cannot exist (III.12, 1283a16–22). What is "just" is defined as "equal" (III.9, 1280a11); Aristotle describes the cause for the dispute between the partisans of democracy and oligarchy and offers his solution: The correction of their views, according to *Politics* III.9, is limited to reducing their exaggerated claim of being "*completely* (un)equal." The issue under investigation is not an analysis of the concepts of happiness and justice held by the freeborn and wealthy, but a clarification on how power should be distributed among competing groups according to "what is just in distribution," and that means taking into account not their imagined but their real value because otherwise the constitutions will be deviant (III.13, 1283a26–29).

The use of "justice" instead of "what is just in distribution" in the explanation of *Politics* III.9 is a bad start. One can find here a confirmation of Aristotle's statement on constitutions in *Politics* V.1, 1302a5: "It is impossible, after a mistake has been made regarding the first thing and at the beginning, not to face at the end some bad outcome." Clearly, if Aristotle had conceded *justice* to the *demos* and the wealthy to a lesser

degree, there must be areas of injustice in these groups, and one can speculate what these flaws are. However, the proposition that someone who is partially just must be partially unjust as well – and it might be desirable or necessary to change his conceptions or character – cannot be transferred to "what is just in distribution." Obviously those who hold only "part of what is just" miss, as Aristotle states, what is just in the decisive sense. However, nowhere in III.9 or the more extended treatment of these issues in III.12–13 does Aristotle shift from "the part of just" he recognizes in partisans of democracy or oligarchy to its opposite "injustice," which Irwin claims when he writes that "This oligarchic conception of justice explains the characteristic oligarchic injustice" (1988b: 435).[41]

The intention of *Politics* III.9 is not to enlighten the partisans of democracy and oligarchy about their flawed values and turn them into aristocrats. Assuming that someone succeeds in the effort to make them accept *aretê* as the true standard to be used in distribution, such an achievement would eliminate the category of what is just in distribution whose very existence is based on the existence of more than one claim – apart from the fact that the groups in question are needed in the city. This chapter deals with "what is just in distribution" and establishes the sort of mathematical proportion valid in this case. The partisans of democracy and oligarchy need to stop overreaching in their political claims, but otherwise they can remain who they are, and as such they receive their fair political share in *Politics* III.9.

Here one needs to stress that Aristotle does not indicate that democrats or oligarchs of his time used his own teleological method, had views about the "state's function" (1988b: 433), or connected with their understanding of equality a goal, happiness, satisfaction, or "seeking wealth" (1988b: 436). While Aristotle employs extensively the teleological argument in III.9 – for instance, he refutes the claims that the goals of the polis are the exchange of goods, measures for protection against injustice, and living together –he does not extend this teleological approach to the constitutions of democracy and oligarchy and their partisans' goals.[42] He does not go behind their view on equality in order to describe, and criticize, their motivation.[43] Since Aristotle does not offer a "diagnosis

[41] Irwin also writes "all the non-ideal systems have a false conception of happiness, which deforms their conception of *justice*, and explains their characteristic types of *injustice*" (1988b: 435, italics added).

[42] In *Politics* III.13, 1283a31–37, Aristotle cites the claims of wealthy and free born, which do not contain a contribution to the end of the polis.

[43] Irwin's claim that "In attributing a goal and a conception of a way of life to the deviant conceptions of justice, Aristotle ascribes more to them than their partisans have stated" (1988b: 437), is correct in the second part but incorrect in the first since Aristotle does not discuss in III.9 the goals or conceptions of the way of life of the free born and wealthy, and generally does not make happiness

of the partisan views," one cannot claim that it "rests on his own moral theory" (Irwin 1988b: 437, cf. 451). What Irwin fills in here, namely the notion of "the oligarchic or the democratic conception of happiness" (1988b: 433, cf. 436), cannot be found in *Politics* III.9,[44] but is the Platonic model of viewing and assessing constitutions in the *Republic*.[45] Happiness, justice, and the objectives of accumulation of wealth or gratification are the known key issues in the treatment of oligarchy and democracy in *Republic* VIII, but are neither addressed in *Politics* III.9 nor are they the core of his argument in the *Politics.*

The role Irwin assigns to happiness for distribution reveals the fatal flaw of his argument. He writes: "a correct answer to the question about distribution must appeal to a true conception of happiness" (1988b: 432).[46] This is at best partially true since an "appeal to a true conception of happiness" addresses the reason for the privileged role of men who possess *aretê*; however, such an appeal can only justify that the partisans of oligarchy and democracy do *not* have "a right in the decisive sense" to participate in the polis, but can neither explain why they are allowed to participate at all nor to which degree their participation is inferior. For this part of Aristotle's political theory, a different rationale is needed, which what is just in distribution in III.9 cannot provide. However, III.10–11 prepares and III.12 accomplishes this task when a contribution to the end "existence of the polis" is now added to the previously discussed contribution to "noble life of the polis" made by men who possess justice and political *aretê* (1283a20–22).[47] The free and wealthy contribute to the "existence of the polis" and because of this achievement, they "claim with good reason political honor" (1283a16 f.)

and its prerequisites the ultimate standard of what is good, just, or stable in politics. See, however, the next note.

[44] Only in *Politics* VII.8, 1328a38 ff., are the different chances and *abilities* to share happiness given as cause for the multitude of constitutions, following Plato; cf. Schütrumpf (1991–2005: 4.162 with n. 5; 4.360, nn. 24, 33).

[45] IV.420C2; E7; 421B5–7; 5.466A5; 473C5; VII.521A5; 541A6; VIII.544A; 566D5; IX.576C10; E4–6; 580B2 f. For pursuing wealth as the goal of the oligarchic man, cf. VIII.543C7 ff.; 553C–D; 554A.

[46] Earlier he writes "In the *Politics* he suggests that this dispute should be settled by reference to the proper function of a state" (1988b: 427).

[47] Irwin is mistaken to claim that "wealth, free status, and numbers do contribute to political competence and . . . distributive justice requires their recognition in the assignment of wealth and power (1283a17–20)" (1988b: 428). However, III.12 goes beyond III.9 by introducing a goal, "existence of the polis," that defines a positive role for the political claims of free born and wealthy, which what is just in distribution in III.9 could not do. And contribution to the "existence of the state" is not one "to political competence."

To be clear, if "nowhere exist one hundred men of noble birth or virtue, but wealthy (and poor) everywhere in large numbers" (V.1, 1302a1), the reference to happiness can justify the privileged political activity only of the smallest segment of the polis, a negligible small segment. However, it does nothing to assist in the distribution of power among the wealthy and poor to whom what is just in distribution should be applied (*EN* V.6, 1131a27 f.). For all practical purposes they alone count, whereas Irwin tries to make them irrelevant when he sees in them only the "injustice of individuals." Aristotle debunks in *Politics* V.1 the practical relevance of those who alone meet the requirement of happiness: "Those who excel in *aretê* have the best *right* of all to start a rebellion – for there is good reason that they alone are absolutely unequal – but they do it the least" (1301a39 ff.). Irwin's focus on happiness is an idealistic, moralistic, eclectic rewriting of Aristotle's *Politics.*

In *Politics* III.9 Aristotle does not renounce the positive aspect that some or "all" hold a part of what is just. This positive recognition of the political role of the wealthy and the free in Aristotle's constitutional theory and concept of what is just in distribution I do not find in Irwin, and the negative points he makes I do not find in *Politics* III.9 or III.12–13. For the first aspect, the political order suggested in III.9 is a kind of mixed constitution (see Section 3), and not a bad one. In *Politics* II.6, 1265b33 ff., Aristotle cites the view that the best constitution should be mixed out of all constitutions, listing oligarchy, monarchy, and democracy – aristocracy that is based in *aretê* is not mentioned – and at IV.7, 1293b14 f., he calls the mixed constitution that aims at wealth, *aretê*, and the *demos* aristocratic. It is not a mixture of one good element, *aretê*, and two large cancerous organs, groups with "deviant conception(s) of justice" (Irwin 1988b: 435, 437), but integrates all groups that "*claim an equal share* in the constitution, free birth, wealth, *aretê*," as Aristotle states at IV.8, 1294a19 ff., picking up the arguments about "what is just in distribution" from *Nicomachean Ethics* V.6 and *Politics* III.9. At IV.8 he calls again the mixture of the *three* groups an aristocracy.

Regarding the negative qualities ascribed to the free and wealthy: while Aristotle can define one democratic understanding of freedom as that one "lives as one wishes,"[48] freedom in III.9 is the status of a free man[49] (the

[48] VI.2, 1317b12. Irwin refers to the second marker (*horos*) of the partisans of democracy but omits the first one that "what is just in the democratic sense is to possess equality in the numerical sense and not according to value" (b2 ff.).

[49] 1280a24; cf. III.11, 1281b23. Irwin first describes the demos by "free status" (1988b: 428), but then switches to "satisfaction." The use of "justice" seems to create the urge to come up with moral flaws.

alternative, a city that consists of slaves, is mentioned at 1280a33 and III.12, 1283a16–22). There a city whose members are "all poor" is equally rejected since a city needs tax payers. Without any ambivalence that would include negative moral overtones, Aristotle limits the meaning of wealth and freedom at III.9 to the politically relevant quality the partisans of oligarchy and democracy possess and that they put forward in order to claim equal or superior status, which is something he elaborates on later (III.13, 1283a31 ff.). Aristotle states that their view is that "the one group believes to be completely unequal if they are unequal in one aspect like wealth or that they are completely equal if they are equal in one aspect like free birth."[50] The issue is the weight these qualities will have compared with those of others ("equality"); Aristotle, however, does not address any moral flaw such as "injustice"; rather, he does just the opposite: He recognizes their relevance for the existence of the state (III.12, 1283a14–22).

By contrast Irwin's "gratification" and "accumulation" are no longer politically relevant *qualities* the demos and the wealthy *possess* and refer to for their political claims, but become *goals* they pursue, and he ascribes an "instrumental attitude" (1988b: 433 f.) to the institutions of the state, which are used to secure their objectives. Irwin describes "the democratic conception of the state as a way of . . . arranging the laws so that individuals can gratify their own desires" (1988b: 436),[51] something Aristotle never states. In the same way, *Politics* III.9 does not conjoin wealth and "accumulation of external goods" (1988b: 434); such a claim goes against the gist of the arguments in III.9 and III.12–13, and does not suggest itself since for the best state "wealth of money" is a necessary *part* of the polis (VII.8, 1328b10 f., cf. VII.9, 1329a24 f.), a part contrasted with those providing necessary services to the polis such as farmers and artisans do.

By focusing on the moral criterion of justice, the content of *Politics* III.9 is completely misrepresented and its importance overblown since the logic of the sequence of arguments in III.9–11 is overlooked. The whole context of *Politics* III.9–11 produces results Irwin ignored. For him the remarks on "justice" (as he believes) in III.9 are a cornerstone of Aristotle's theory on justice, which provide the standard for judging constitutions; but such a view is contrary to the argument of III.9, which proves that the claim of men with *aretê* to rule according to what is just in distribution, is only preliminary because it is subjected to scrutiny that uses different standards whereby the results of III.9 are made obsolete. Another observation speaks

[50] III.9, 1280a22–25. The same stress on their understanding is found in the same context (V.1, 1301a25 ff.).
[51] Irwin's remark that "those who are equally capable of gratification" (1988b: 436) reads like a parody.

against the role Irwin assigns to III.9: Without question, in III.10 the rulers of oligarchy and democracy are criticized, but not each for his own specific reasons, corresponding to the different partially flawed claims they make according to III.9, but both for one and the same reason: They steal from their subjects. In III.10 Aristotle moves to a different form of what is right, namely keeping one's property, in the violation of which the rulers of oligarchy and democracy sadly show no difference (contrary to Irwin, "accumulation" is not limited to oligarchs) and in III.11 he ultimately assigns political rights to the many without any recourse to justice. Of the right practiced in distribution with which Aristotle started in III.9 and which allegedly controls his political theory not a trace is left in the solution of III.11 (see Section 3).

The preoccupation with "justice"[52] that is not used by Aristotle in III.9 invites scholars of a certain mindset to delve into violations of justice by certain groups and to propose a moralistic reading of this central aspect of Aristotle's political philosophy, namely the decision about who should rule the polis, stressing negative judgments on groups that compete for power. Clearly, Aristotle mentions without embellishment the ethical and intellectual shortcomings of the members of the *demos*, however, they do not sway his opinion on this matter. He articulates the dilemma of unsatisfactory consequences both of admitting the great number of people with all their flaws to power and of not admitting them.[53] The first alternative is less threatening since in *Politics* III.11 the great number of free men receive political participation not as individuals who could hold important offices – these should be in the hands of the best men – but as a collective, in the assembly or in juries (1281b31–36). Aristotle expects that the part of virtue and insight everybody has will be combined when they are assembled.[54] This suggestion contains something positive about men of individually questionable quality, but their fragmented positive quality is of a very different nature than the ability of individuals to contribute to happiness that was considered under the right practiced in distribution in III.9. This standard the free men of III.11 do not meet. The extension of political rights to the great number of free men according to *Politics* III.11 is a bold

[52] In *Politics* VI.5 Aristotle recommends measures to the effect that the many are lifted out of poverty into a lasting condition of being well off, 1320a32 ff. This is not presented by Aristotle as "the way to bring the state closer to justice . . . " (Irwin 1988b: 460). We might want to choose such language, but it is not the terminology of Aristotle and does not represent a concept of Aristotelian justice.

[53] The dilemma is similar to that of the author of the Ps.-Xenophonian *Constitution of the Athenians* who does not approve of democracy since the demos on which it is based is morally bad and intellectually unqualified, but has to admit that their constitution is stable (1.1–5).

[54] See further C. Bobonich (Chapter 8 in this volume).

step since it abandons the concept of right practiced in distribution, and political prerogatives are granted to sections of the society that do not possess the quality of justice. In the presentation of some scholars the boldness of Aristotle's move is buried under a large blanket of justice that fails to make clear what conflicting standards are used and between which dilemmas he tried to steer.

Section 5: Are there civil rights in Aristotle's political theory?

It is now time to formulate my results:

In *Politics* III.9–11 the right practiced in distribution that allocated a privileged political position to men who possess virtue was undermined by an argument that took seriously the unwillingness of the great number of free men to accept such a rule. The constitution proposed in III.11 gave the great number of free men the political functions of deliberation in the assembly and judicial decision but reserved for "the better" the privilege to hold office. The concept of what is just in distribution played no role in the solution offered to the political problem of an oligarchical constitution that was pointed out in III.10.

Aristotle moves away from a constitution that gives political privileges forever to an elite to one that allows the great number to participate in political decision making. In addition to the passages from *Politics* III and V that argue for this political model, a remark from *Politics* II.5 (1264b6–10) has been quoted that pointed in the same direction. The participation of the great number of people would give a constitution stability, and the quality of government would benefit from the inclusion of other groups (cf. IV.8–9).

In *Politics* IV.12 the standard to be followed for the allocation of political power is the superior strength among competing groups, which is determined by assessing both their quality and quantity. When introducing in IV.12 the criterion of numbers (quantity), Aristotle does not build on his concept of what is "just in distribution," extending it so that it could *justify* the political inclusion of groups because of their numbers, formulating something like "rights of a majority." Aristotle does not elevate numerical claims to the level of "right." The same is true for *Politics* III. While there is in *Politics* III.10–11 an awareness that the large number of citizens do not accept being excluded from the political process, Aristotle does not base his proposed solution on a clearly defined concept that is distinguished by a specific term – "what is just in distribution" cannot justify political participation of the many. For the political privileges the masses should

receive he refers in III.11, 1281b32 to Solon's legislation as model. Aristotle had dealt with Solon's political reforms when he argued in *Politics* II.12, 1274a15, that Solon gave to the people the power that was absolutely necessary (*anankaiotatên . . . dunamin*), and Aristotle might have paraphrased in this remark a poem of Solon, which he cited in his *Constitution of the Athenians* 12.1[55] as a primary source for his sketch on the history of that era. The lawgivers for whom Aristotle gives his recommendations (see Section 2) are reminded of the insights of their great predecessor Solon and should do what he considers as absolutely indispensable for internal peace and avoid, as Aristotle says in III.11, that "the city is filled with enemies."

For this concern no term existed and none offered itself to Aristotle. Based on the phrase "they leave the majority without honor," which Aristotle uses three times in III.10[56] when describing minority regimes of the best, I would call this concept "the necessity to give honors to the majority." This concern is not covered by existing forms of right or just: What is "just in distribution" (III.9) is too elitist in its insistence on merit or worth, and "the right to be observed among citizens" (*politikon dikaion*)[57] addresses the correct relationship of rulers to citizens, but not a right of all free men to participate somehow in government.

What is missing in Aristotle's *Politics* is, in addition to the two forms of what is right mentioned, a third concept of "right," in English "civil rights,"[58] an all-inclusive, egalitarian notion of a right to participate in politics. The acknowledgment that under a certain constitution, like democracy, certain people have specific prerogatives[59] is a description of the status quo but not the recognition of a right free born men have. Closest to the "necessity to give honors to the majority" concept comes the democratic understanding of what is just, namely that all citizens are equal and that distinctions according to worth do not count.[60] However, Aristotle does not subscribe to this concept since his preference is for a constitution that integrates more than one group (see Sections 2 and 3).

[55] Now *IEG* II Solon 5,1 f. West.
[56] III.10, 1281a30; a33; a34.
[57] *EN* V.10, 1134a24 ff.; see Section 3 in this chapter.
[58] In German: "Bürgerrechte" (based on a "Grundrechtsberechtigung").
[59] See *Politics* IV.4, 1291b41 (*exousian einai metechein*); IV.6, 1292b29 (*metechein exestin*); cf. b31; b35 f. Contra Miller (1995: 168 ff.), who in referring to *Politics* IV.14, 1298a9 ff., writes of "the right to deliberate"; however, there is no Greek word used with any such meaning.
[60] VI.2, 1317b2 f., cf. Schütrumpf (1991–2005: 1.478–80; n. 62.40 on III.9, 1280a9).

Sometimes Aristotle points out that a concept lacks still a specific term (*Pol.* I.3, 1253b9–11), however, he does not do this in the *Politics* for the concept in question – definitely it is not a "right," "civil right," or "Bürgerrecht." It is for practical reasons that Aristotle at *Politics* III.11 argues in favor of granting political prerogatives to the majority; this recommendation is a preemptive strike against civil unrest that threatens a community which disenfranchises the majority – however, Aristotle did not consider existing concepts of "justice" or "right" as fitting or appropriate to describe the principle of "the necessity to give honors to the majority." In any case, to the many forms of what is right distinguished in *EN* V, he did not add one that recognizes the need of political participation of the great numbers. He could have done so after the fifth-century author of Ps.-Xenophon´s *Constitution of the Athenians* 1.2 had declared that the demos has rightly (*dikaiôs*) political prerogatives since its members secure power to the city. This accomplishment is not recognized in *Politics* III.9 as a contribution to the well-being of the polis (a point that might reveal Plato's influence)[61] and, therefore, such achievements of the demos are not acknowledged by Aristotle as being just under what is "just under distribution."

In *Politics* IV.12 Aristotle's argument is a political calculus that tries to secure superior strength to the powers that be against the background of political and/or social conditions of hostility between citizens who enjoy, or are excluded from, political participation. This approach might be unsatisfactory from the modern perspective of civil rights, but it is satisfactory enough from the pragmatic perspective of solving political problems and accomplishes Aristotle's aim to provide insights into the "sort of things that preserve and destroy cities" (*EN* X.9, 1181b18). Like Solon to whom he refers at III.11, Aristotle knew that it was necessary to give to all free members of a polis political functions, but he did not recommend that solution based on a notion of political rights. It is the other way round: Aristotle had to free himself from the concept of the right of distribution that was inherently elitist in order to secure to all free men political participation.

[61] At *Grg.* 517BC Socrates contrasts the effort of the Athenian politicians to provide the city with ships and walls with the task of the true politician to make the citizens better; see Section 3 in this chapter with n. 31.

CHAPTER 10

Aristotle on the corruption of regimes: Resentment and justice

Arlene W. Saxonhouse

Introduction

Socrates' name concludes Book V of Aristotle's *Politics*. The last chapter of Book V is a critique of Socrates' story of regime transformation from Book VIII of Plato's *Republic*. "He does not argue rightly (*ou mentoi legetai kalôs*)," Aristotle writes (1316a1–2). In Book V of the *Politics* Aristotle explores in great detail "what things bring about *change*[1] in regimes and how many and of what sort they are" and "what are the sources of destruction (*phthorai*, corruption) and into which sort of regime a regime is most particularly transformed (*methistantai*)" (1301a20–22).[2] The critique of Socrates allows Aristotle to summarize what he has been illustrating throughout the earlier chapters. Socrates' mistake is that although "there are many sorts of oligarchies and democracies, he speaks of the *transformations* as if there were only one sort of each" (1316b26–27).

As in Book II where Aristotle criticized the cities Socrates founded in the *Republic* and the *Laws*, he once again piles on the criticisms, beginning with Socrates' formulation of the nuptial number.[3] He admits that while the problems with the number (that there may be persons born to the guardian class "who are incapable of being educated and becoming

[1] Though I use Lord's translation of the *Politics* (2013) throughout, I resist his reading of *metabolê* and its verbal form *metaballousi* as always referring to "revolution." *Stasis* may more closely relate to revolution, but with its connotations of faction, that does not work so well either. For *metabolê* I prefer the more neutral "change" or "transformation" that captures Aristotle's more tempered meaning, rather than the violent connotations associated with our use of the term "revolution." So that I do not need to note each time I disagree with Lord's translation of the term and since *metabolê* and its derivatives appear so frequently in this section of the *Politics*, I simply insert "change" or "transform" in italics wherever it is appropriate to replace Lord's "revolution." See Polansky (1991: 324, n. 5) and his discussion of Aristotle's use of both *metabolê* and *stasis* (325).

[2] Keyt (1999: 55) describes this book as one of "political pathology" with Aristotle serving as a "physician of the body politic" who sees "faction as a disease of the body politic and change from one sort of constitution to another as its death." The analogy is helpful, but I want to go a step further and ask why is keeping the polity healthy and faction-free good – and whether it is even possible.

[3] See further Lockwood (Chapter 4 in this volume).

excellent men") may have some validity, he does not see this as a cause peculiar (*idios*) to the best regime Socrates had founded in the *Republic* (1316a12). Why should this not be true of the other regimes about which he has spoken – and indeed other people? Further, Aristotle is disturbed by Socrates' insistence that the best regime changes (*metaballei*) into a timocracy. In contrast to Socrates' retelling in *Republic* 8, Aristotle suggests: "All regimes undergo a *transformation* into their opposite more frequently than into a regime of a neighbor" (1316a18–20). Further, Socrates is incorrect when he assumes that there are specific regime forms into which each regime changes. Additionally, Socrates does not identify into what the tyranny at the end of his story might change. Tyrannies, Aristotle points out with a series of specific examples, can change (*metaballei*) into another tyranny, an oligarchy, a democracy, and an aristocracy; indeed, oligarchies can turn into tyrannies, not simply democracies as Socrates claims. As Aristotle pours on his criticisms, Socrates' analysis dissolves.

Aristotle finds fault with Socrates' efforts to simplify the story of regime transformation, that is, to find a single cause for the change from democracy into tyranny or from oligarchy into democracy in the peculiar traits of each regime. Socrates' failure as a social analyst, as Aristotle sees it, lies in his resistance to investigating the variety of political regimes that Aristotle has identified and Socrates' "speak[ing] of the *changes* as if there were one sort of each" (1316a25–27). A multitude of historical examples fill this final chapter (as they do much of Book V) to support the claim that Socrates' theory, so abstracted as it is from experience, from the what "we see" of the first words of the *Politics*, is inadequate. What Aristotle "sees" is variety, the many different forms of oligarchy, the many different forms of democracies, of monarchies, and even of tyrannies. One should revel in the vast variety of regimes and consequently the variety of causes for change or "corruption." In order to understand the nature of political change, one should not rely, as Socrates does in his description of the failure of the best regime, on the simple claim that "nothing remains," that is, that over time all things change (*metaballein*), even forms of rule (1316a3–6).

In Aristotle's introductory remarks to Book V he asserts that he will look at "each sort of regime separately," as well as "in common (*koinêi*)" (1301a22), in terms of what they share. While Aristotle so insists that there is far more variety in the ways that regimes change than Socrates allows, I shall argue that he himself highlights a specific cause, what regimes have "in common," more than his concluding attack on Socrates might suggest. It may not be the resigned "nothing remains," but it unifies his analysis of the corruption/death of regimes. Throughout the discussion of

the changes he observes and records, he recurs regularly to what I shall call a "psychology of resentment" that derives from the fundamental imprecision of political justice.[4] While Socrates' tale of regime transformation tells the sad story of political decay leading to the conclusion that while Callipolis may incorporate justice, its necessary decline means that we must look to our souls patterned on the regime of Callipolis – which is only laid out up in heaven – if we are to find true and lasting justice. Aristotle's analysis does not turn us away from the city and politics, but pursues the justice possible in and, more importantly to my mind, between cities. I develop this argument by connecting the announced agenda of Book V of the *Politics* to arguments in Book III, returning there briefly – twice.

Briefly, back to Book III: iteration # 1

Immediately after his introductory remarks, Aristotle returns to questions he raised in Book III about "justice and proportional equality." Initially, in Book III he appears to show more deference to Plato than he does to Socrates in Book V by drawing from the typology of the *Statesman* with its six distinct regimes (three good and three deformed) rather than the five regimes flowing into one another described in the *Republic*. Nevertheless, after he details those six regimes according to the number of who has authority over all things and whether the regimes are straight (*orthai*), attending to the common benefit (*to koinêi sumpheron*), or mistaken (*hêmartêmenai . . . parekbaseis tôn orthôn politeiôn*), attending to the benefit of those in power (1279a17–20), he swiftly changes focus noting that wealth and poverty, not numbers, is a more accurate divisor; from the question of whether the regime focuses on *to koinêi sumpheron*, he turns to various claims to authority such as knowledge, numbers, wealth, birth, and virtue. Whereas Plato's Eleatic Stranger had lingered on the question of whether the regime was governed by law or wisdom, Aristotle considers the challenge entailed in distributing authority in the city, and whether it should be the many or the few, the wealthy (those with resources, the *poroi*) or those without resources (the *aporoi*), those who have knowledge or the many

[4] I am certainly not the first one to note that "resentment" marks the discussion of Book V of the *Politics*. See Polansky (1991), Swanson and Corbin (2009), Davis (1996), and Garver (2011) who uses the language of the "excluded." I want, however, to consider resentment as essential to Book V because of its connection to justice. Too often Book V with its advice to tyrants and its historical catalogues is judged as ignoring justice. Davis comes close to part of my argument when he writes: "Every regime takes its characteristic shape as a reaction to a perceived injustice; it is not determined by a notion of justice positively understood" (1996: 97).

with their collective wisdom. These are the questions, the *aporiai* (1279b15), that challenge Aristotle and ourselves, and as Aristotle puzzles over these problems in Book III, he reveals the inherently problematic nature of any effort to resolve definitively such questions.[5] The various subgroups have all – in some sense – just claims to political power and much of the debate for the rest of Books III and IV focuses on these alternative claims and the institutional mechanisms that might moderate and overcome the conflicts that arise because of the partial justice of each claim. Every guideline for the distribution of political authority is subject to debate, he explains, and, as he notes over and over, all are prepared to claim that according to justice they are the political authority in the city. However, since all such claims can never be satisfied simultaneously, since political justice is always subject to debate – even the claim to rule of the completely virtuous man who by ruling as such would not be sharing in rule (1284b30–31) – the political challenge becomes stability, not the assurance of justice. Political justice based on proportional justice is ephemeral, criteria for participation changing as regimes change. It is here that Book V enters.

Book V: iteration # 1

Immediately following his introductory remarks in Book V, Aristotle returns to themes begun in Book III identifying the "beginning point (*archên*)" of why there are so many different regimes: "While all agree regarding justice and proportionate equality (*to dikaion kai to kat' analogian ison*), they err about this" (1301a26–27). He explains: "proportionate justice" depends on identifying the criterion according to which the equals, who are to be treated as equals, are to be considered equals. While all agree that equals are to be treated equally, the varieties of regimes arise because of the disagreement about what constitutes that criterion of equality. Thus,

> rule of the people arose as a result of those who are equal in any respect supposing they are equal simply; and oligarchy arose as a result of those who are unequal in some respect conceiving themselves to be wholly unequal, for as they are unequal in regard to property they conceive themselves to be unequal simply. (1301a28–33)

Aristotle reiterates the point made back in Book III that each part of the city will make a claim that they deserve to take part in things equally (the democrats) or unequally (the oligarchs). However, as Aristotle now reaffirms,

[5] A point that Pangle (2013) rightly emphasizes in his chapter on *Politics* III. See also Schütrumpf (Chapter 9 in this volume) for a contrasting view of the place of justice in these discussions.

each claim has a "certain sort of justice (*ti . . . dikaion*)"; yet, they each also in "an unqualified sense (*haplôs*)" are mistaken (1301a37). This, he identifies as the cause (*aition*) that when either group happens not to participate in the regime (*metexôsi tês politeias*), they engage in *stasis* or factional conflict (1301a37–39).[6]

Debates about equality and inequality and the form of justice that goes along with them lie at the heart of *stasis*. As Garver writes: "People can quarrel over anything, but citizens form factions because of differences over justice" (2011: 140–41). Aristotle concludes a catalogue of possible changes of regimes from a complete transformation of one regime into another (a democracy into an oligarchy and the reverse, a democracy into a polity or monarchy and the reverse) to more modest changes such as an oligarchy becoming more oligarchic or a democracy more democratic by introducing new offices and abolishing old ones, when he summarizes: "Factional conflict is everywhere (*pantachou*) the result of inequality (*anison*) . . . in general it is equality they seek when they engage in factional conflict" (1301b26–29).[7] Or, as he writes a little further on in Book V: "Some engage in factional conflict because they aim at equality, if they consider that they have less in spite of being equal to those who are aggrandizing themselves; others because they aim at inequality and preeminence, if they conceive themselves to be unequal but not to take a greater part, but an equal or lesser one" (1302a25–29).

Aristotle develops this point when he elaborates on the nature of the different claims to equality and how they work themselves out in the political realm. He argues that while "good birth and virtue exist among few persons," their numbers are sufficiently few that most regimes respond to the claims of the many and of the propertied.[8] Thus, most regimes have either of the two forms of equality, numerical equality or equality in accord with property. But this, Aristotle tells us, is a paltry thing (*phaulon*) because "none of these sorts of regimes is lasting" (1302a5); the *aition* (cause) for this

[6] The phrase "*metechein politeias*" implies "possession of" as well as "participation in." See further Mulhern (Chapter 5 in this volume) on the meaning of this idiom.

[7] Lord extends Aristotle's terse *holôs gar to ison zêtountes stasiazousin* (1301b28–29). See also Polansky (1991: 335): "Since the disposition fostering change or sedition is ultimately the sense of injustice in distribution in the community, this must be the most general of all the causes operative in change." Polansky's "disposition" becomes my "resentment" later in this chapter.

[8] Aristotle had taken note of those who are "outstanding in virtue (*aretên diapherontes*)" who would most justly (*dikaiotata*) engage in *stasis* in order to acquire the political power they deserve because of their virtue and yet do not (1301a39–40). I suggest these outstandingly virtuous individuals do not engage in *stasis* because they do not experience the resentment that motivates those who lack such outstanding virtue.

is that from the necessary initial mistake (*tou prôtou kai tou en archê[i] hêmartênou*), it is impossible to avoid a bad ending (1302a6–7). Built into the foundation of regimes – even those initially judged in Book III to be "good regimes" – is the dependence on partial justice establishing that some, but not others, partake in or own the regime, which in turn will lead to cries of injustice. All regimes founded in error – as all are – are subject to the *stasis* that brings about regime change as those denied the power they believe they deserve by the partiality of political justice protest the application of whatever criterion defines the regime in which they live. Any regime based on partial justice – that is, again, all regimes – will be unable to persevere across time. The imprecision of proportional justice leaves open this crack in political foundations everywhere, engendering conflict and the ensuing regime transformation.[9]

Aristotle admits that in democracies factional conflict may be less likely to arise than in oligarchies, but that is only because the oligarchs, already arguing that the distribution of political power must be based on merit – but of what sort? – are prepared to separate themselves out from each other. Oligarchical groups will make claims against each other as well as against the people, whereas for the democrats the oligarchs are the only enemy. All democrats making the same claim to equality do not disagree about the criterion. If the criterion, however, were obvious to all – democrats and oligarchs – *and* if humans were not driven by jealousy and resentment, we could enjoy faction-free politics. But neither condition holds and so regimes fester and die. Whereas Socrates in the *Republic* had found in the unique psychology of each regime (after the best regime) the specific cause of its demise, Aristotle identifies a cause that applies to all regimes.

The imprecision of knowing what one deserves and multiple possible claims mean some will always feel the prick of exclusion.[10] And since no one is satisfied when deprived of the honors one thinks one deserves, unrest always lies just beneath the surface. Aristotle had noted in Book IV: "All men lay claim even to virtue, and suppose themselves capable of ruling in most offices" (1291b5–6). We think more highly of ourselves and what we deserve than perhaps we should. But on some level we are justified in our claims. In Book V he presents the simple, confusing, aporetic conclusion:

[9] Davis has an interesting way of exploring this incompleteness of the political regime by connecting the argument of Book V of the *Politics* to Aristophanes' speech in Plato's *Symposium* (1996: 93–97). Davis focuses on eros while I focus on resentment, but we both see the passions aroused by the absence of what is desired as leading to instability in regimes. As he graphically phrases it: "The demand for justice is rooted in our sense of our own castration" (1996: 97).

[10] For a contrasting view, see Skultety (2009).

"To strive for these things [sharing in the regime] is done justly (*dikaiôs*) and it is also done unjustly (*adikôs*)."[11] He tries to explain this paradox: "The lesser engage in factional conflict in order to be equal; those who are unequal so that they may be greater" (1302a30–31). Both claims are just *and* unjust, both based on "justifiable" understandings of equality and inequality. Factions surface because dissatisfaction with a distribution can never be erased. The lesser always think they are equal to the greater and the greater always see themselves as deserving of more.

Aristotle delves more deeply in *Politics* V.2 into the psychology of why this uncertainty concerning the distributive criteria – "the things over which they engage in factional conflict" (1302a32) – promotes the transformation of regimes. First on the list and what he considers most thoroughly are profit and honor, factors that become relevant when men set themselves in comparison with others. He explains that men are not "stirred up" by simply wanting to acquire honor or profit, but because "they see others aggrandizing themselves *whether justly or unjustly* with respect to these things" (1302b1–2).[12] Observing others in possession of what they themselves do not have arouses those competitive human feelings. Political power – sharing in/owning the regime – is one of those distributed goods whereby men "aggrandiz[e] themselves *whether justly or unjustly*." Without immediate comment Aristotle follows with a list of "causes" from hubris to "electioneering" to dissimilarity to the disproportionate growth of one group or another in the city, all of which lead to competing claims for authority by one set of equals or another, all creating resentment toward those who possess political power and the benefits that accrue from that power.

The practice of ostracism arises in such places as Argos and Athens precisely because of the worry about excessive honors for one or a few: "It is better to see to it from the beginning that no one is preeminent," Aristotle explains, "than to let them arise and heal later" (1302b19–21). Here Aristotle urges the creation of institutions to protect the city from resentments that surface when one individual or group has more honor, prestige, power than another – whether justly or not. Ostracism defuses the potential for resentment, though it may not attend to justice.[13] Later, Aristotle will

[11] My translation. [12] Italics added. See also Garver (2011: 158).

[13] In Book III Aristotle poses the possibility that ostracism does not arise from resentment, but from the injustice that would be done to one who is "so outstanding by his excess of virtue . . . that the virtue of all the others and their political capacity is not commensurable with their own" (1284a5–8). The injustice, Aristotle suggests, is done to such individuals, these men who are "like a god among human beings," though he illustrates his point by reference to what lions might say to hares claiming

speculate as to why kingships no longer arise; it is, he suggests, "because kingship is a voluntary sort of rule, with authority over relatively great matters, but [today] there are many persons who are similar, with none of them so outstanding as to match the extent and claim to merit of the office (*axiôma tês arches*). So on this account men do not voluntarily endure it" (1313a5–9). His contemporaries, unlike men of old, resist the rule of those who claim an unconfirmed or uncontested inequality. A violation of their sense of justice engenders that resistance.

Aristotle devotes considerable energy to cataloguing historical examples in order to identify additional causes of faction: instances when contempt led to the overthrow of a ruler, when demographic changes resulting from wars led to an increase in some portion of the population (be it the wealthy or the poor), when populations of one city do not live in contiguous lands, and when there is "a dissimilarity of stock" (1303a25) arising from the assimilation of ethnically diverse peoples. Amidst the richness of these historical examples, Aristotle also treats his readers to stories recounting private vendettas and love affairs gone awry, conflicts of the most personal sort that sparked the overthrow of regimes: There is the story from Syracuse where one friend seduced the wife of another and each allied himself with opposing parties thereby creating political unrest. Or, there was the case at Delphi when a bridegroom seemed to offend the bride's family, with dire repercussions for the bridegroom. Or from Mytilene, where the failure of one nobleman to acquire an heiress for his son led to conflict and sedition. In Epidamnus the bride's father imposed a fine on the bridegroom's father. In Hestiaea there was a dispute about inheritance (1303b19–1304a17). All of these private affairs led to factional strife and regime change, but while each story has its peculiar characteristics,[14] each illustrates Aristotle's point: "Factional conflicts arise, then, not over small things but from small things – it is over great things that men engage in factional conflict" (1303b18–19). Whether it is a dispute about inheritance, about adultery, about a jilted bride, heiresses, marriage plans aborted that precipitates the troubles (1303b23–1304a18), the imperfections of political justice enable those small things, those minor disputes, to become big things affecting the whole city, so that imperfect regimes die to be replaced by other imperfect regimes. A love affair gone awry alone would not cause a regime to change, but it does so because such a controversy taps into the

that all merit equality (1284a11–16). Although Aristotle begins his discussion of ostracism with a focus on the injustice of treating equally the exceptional, god-like men, he proceeds to show how any outstanding individual is a threat to all forms of regime.

[14] Though Davis (1996: 89–90) points suggestively to the theme of eros in all of them.

deepest resentments deriving from the uncertain criteria that determine who partakes of the honors and the power in the city.[15] Minor offenses and insults chip away at the fragile life of a city.

Aristotle also explores circumstances where it may not be "small things" that trigger the death of regimes, but grander issues such as changes arising from "part of the city acquiring reputation or in some way growing" (1304a19–20). Thus, the victory of the "seafaring mass" at the Battle of Salamis strengthened democracy at Athens. Similar victories reinforce this point, whether they be those of the nobles at Argos, the democrats at Syracuse, the nobles and the democrats at Phoxus. Aristotle's list goes on and on. It is not merely that one group has become more distinguished as the result of some heroic deed or military victory. Aristotle looks more deeply. Factional conflict occurs because those who may not be responsible for the victories feel envy (*phthonountes*) toward those who are now being honored and, as Aristotle puts it, those behind the success in foreign wars "are unwilling to remain on an equal footing on account of their preeminence" (1304a37–38). Imprecise proportional justice again raises its ugly head. As the status of groups changes, so will claims to honors and authority; new groups will demand greater privileges, diminishing the authority and honors of those who may hold political power. Change may not come from war; it may be population growth, increased wealth, or the result of force or deceit or even persuasion, but any change leads to a reassessment of the present distribution and sows the seeds for regime transformation (1304b7–17).

Having established that change occurs because of the inadequacy of the principles of distributive justice and the resentment that that inadequacy fosters, Aristotle next analyzes how those feelings of resentment manifest themselves in the beginning moments of change in different regimes. First he discusses democracies, then oligarchies, then aristocracies. At Cos, at Rhodes, at Megara, at Cyme, the actions of leaders (called "vicious leaders," [*ponêrôn . . . dêmagôgôn*, 1304b26]) favoring the people stir up revolutionary fervor in the notables in democracies. Aristotle makes special note of the demagogues at Rhodes who prevented the triarchs from "getting what was owed them" (1304b30) and at Heracleia where the exiled notables who had been treated unjustly (*adikoumenoi*, 1304b34) returned to

[15] Garver (2011: 141) writes: "As kinds of causes become more historical, the connection between faction and constitutional change becomes more attenuated. The causes aren't tied to the particular constitution and its faults." I would argue that the "faults" are universal, irrespective of the regime. Later Garver (2011: 148) does admit that "factions come into existence because constitutions are imperfect," but he does not dwell on what makes them imperfect.

overthrow the people. The events in these democracies illustrate the effects of the sting of perceived injustice, provoked by demagogues whom the wealthy and notables saw favoring the people. Invoking a series of other examples, he shows tyrants encouraging hostility and resentment in the people toward the wealthy who enjoy power in the city (1305a15–29).

Why oligarchies change is the focus of *Politics* V.6. This time it is the injustice of how oligarchs treat the many (1304a39), or, stated more generally, when "those who had no share in the offices sought change" in order to have a share. In such cases oligarchy might turn into a polity (1305b5–12). Again, historical examples abound, as Aristotle surveys one oligarchy after another changing within itself who partakes in the offices of the city or even ceasing to be an oligarchy when others, demagogues or the many, acquire political power. In the cases of Cnidus and Chios he specifically states that those regimes dissolved when the oligarchs acted too much like despots (*agan despotikas*) and were overthrown by those who found themselves unable to endure their rule (1306b4). Aristotle acknowledges that chance sometimes causes changes – and sometimes regimes just change into another form of the same type of regime, as when previously authoritative law yields to the "ruling element" becoming authoritative – or the other way around (1306b19–22). The persistent theme throughout is that regime change is endemic to cities, not an aberration. How regimes change and in which direction is variable, but change they will.

Socrates at the end of Book VIII of the *Republic* – eager to speak of the "mistaken" regimes he had tried to discuss back in Book IV – prays to the Muses "as does Homer . . . to tell us how 'faction first attacked.'" He imagines the Muses speaking "to us with high tragic talk, as they were speaking seriously, playing and jesting with us like children" (545DE). He finds that he must call on the Muses because a "city so composed (as is Callipolis) is hard to be moved (*chalepon men kinêthênai*). But, since for everything that comes into being there is decay, not even a composition such as this will remain for all time" (546A). And so Socrates leads his interlocutors to the weird, challenging, and ultimately unsatisfying nuptial number as he searches for a cause for the movement from Callipolis to timocracy. The search for the cause of decay of the best regime is so challenging, requiring an appeal to the Muses, to flights of poetic fancy and to inordinate mathematical exertion, because its transformation seems so contrary to the principles upon which it has been built. For Aristotle regimes change because built into their very structure is the fragility that allows even minor external events to transform them.

Aristotle concludes this section of Book V by turning to aristocracies that, he admits, are really like oligarchies insofar as we understand both as dealing with the distribution of honors. The difficulty for aristocracies is that there are "few who partake of the prerogatives (*timôn*), which is what was said to be what effects change in oligarchies as well" (1306b23–24). Though virtue may be the criterion for distribution in aristocracies, factional conflict nevertheless emerges – as in oligarchies, as in all regimes – when "a certain multitude of persons . . . presumes themselves to be similar on the basis of virtue . . . or when those who are great . . . in virtue are dishonored by persons held in greater honor" (1306b29–34). Such was the case with Lysander and the kings at Sparta. Here Aristotle draws on the language of the poet Tyrtaeus to show the same dissatisfaction at play when the "hard pressed . . . on account of war claimed to merit a redivision of the land" (1307a1–2). Summarizing all his examples, Aristotle asserts "both polities and aristocracies are overturned above all (*malista*) through a deviation from justice in the regime itself . . . and when [in polities] democracy and oligarchy have not been finely mixed" (1307a6–9). The justice from which these regimes deviate is, of course, the distributive justice of political office. Within this chapter, Aristotle also assesses the comparative instability of polities that incline to the rule of the many and those that incline to the rule of the few, arguing that the more democratic ones are more stable. With the many being superior, they are satisfied with equality and will not demand more for themselves, but those regimes where the wealthy (*hoi d' en tais euporiais*, 1307a19) rule, there the wealthy will be arrogant, seeking to enrich themselves unjustly by claiming more for themselves, therefore arousing the resentment of the many.

Aristotle ends this professed chapter on aristocracies (chapter 7) declaring, as he often does, that the topic is closed and offers the general statement: All regimes dissolve: *pasai d' hai politeia luontai* (1307b26). They dissolve from internal causes and from external causes, but in all cases regimes change not simply as a fact of nature, but from a dissatisfaction with the always subject-to-dispute distribution of political power and resources. In the *Nicomachean Ethics* Aristotle speaking of both ethics and politics had alerted his readers that "one should not seek out precision in *all* arguments alike . . . It would certainly be desirable enough, then, if one who speaks about the basis of such things [politics and ethics] demonstrate the truth roughly and in outline" (1094b13–22).[16] With this imprecision, *phronêsis* or judgment and choice enter political life. As Mary Nichols

[16] I use the translation of the *Nicomachean Ethics* by Bartlett and Collins (2011).

perceptively notes (1992: 111–14), if the dissolution of regimes like all aspects of politics can only be understood "roughly," change and its prevention is subject to human choice; it is not the result of a predetermined nature. Nevertheless, the impermanence of regimes does result from a human nature that rebels against perceptions of unfair treatment. Given that power and honor are distributed according to principles of equality and inequality, human judgment and choice can, however, address how best to delay or modify the changes in regimes, though they will never eliminate the instability arising from a political justice that is always partial and from the human demands to be treated equally – or unequally.

Politics V.7 concludes with a sense of finality: "Where *changes* in regimes come from, then, and factional conflicts (*staseis*) has for the most part been spoken of" (1307b24–25). We have seen politics in action; we have seen the squabbling over who deserves to have honors and resources and power and have come to understand that squabbling arises because in matters of politics we can only speak about such things "roughly and in outline." Aristotle does not criticize the members of various regimes for their sense of deprivation; rather, he is fascinated by the multiple ways in which the sense of resentment manifests itself as regimes transform. While Socrates responds to the inevitability of regime change by retreating into the justice of the soul, looking for justice in a pattern laid out in heaven, Aristotle seeks institutions that forestall change by reducing the resentment citizens experience, by ensuring that the desire for honors is not frustrated. It is here that the institution of polity enters.[17]

Book V began by announcing that in addition to investigating the many causes that bring about the death of one regime and the birth of another, Aristotle would also ask "what are the sources of preservation (*sôtêriai*) for both regimes in common and for each sort of regime separately; and further, by what things each sort of regime might most particularly be preserved" (1301a23–25). Half way through this book of the *Politics*, at the beginning of chapter 8, Aristotle declares that he will now consider this initial question of how each regime – in common and separately – is preserved. However, we must ask, why must this question be "investigated in conformity with what has been spoken of before" (1301a25–26)? Why care about stability, given the endemic nature of regimes to be unstable?

[17] Of course, the issue of education of the soul cannot be ignored when discussing Aristotle's *Politics*. Most vividly, there is the criticism of Phaleas' regime of imagined economic equality. As Aristotle notes, Phaleas failed to recognize that laws cannot ensure equality of wealth, but the citizens must be educated by the laws to moderate their desires (1266b31), that is, not to feel the resentments that bring about regime change.

Thucydides' *History* had shown the tragedy of stasis at Corcyra, but not all changes need to be considered bad.[18] Cities may benefit from tyrants overthrown. To address why this question of preservation deserves such a serious investigation, I again return to Book III. There Aristotle, I believe, indicates why preservation, *sôtêria*, is so important for thinking about the challenges of political justice and why regimes ought to address the politics of resentment not only for the sake of stability within, but also for the sake of justice. This might help move us beyond the troubling question that haunts many readers of Book V who find it a Machiavellian textbook for tyrants.[19]

Very briefly, back to Book III: iteration # 2

In the first lines of Book III Aristotle asks: "What in the world is a city (polis)?" Before turning this into the question of who is a member of the polis and offering his famous definition of a citizen as one who shares in the decisions and judgments of a city, he ponders the question of action and tells us: "There are disputes, some arguing that the city performed an action (*tên polin peprachenai*), others that it was not the city but the oligarchy or the tyrant" (1274b33–35). Who acts when we say, "the city acts"? Aristotle pursues his question further when he introduces into the discussion the language of "regime" and specifically regime change that is the topic of Book V. Who is the actor when those who have political power change from one moment to the next? The question takes us to the problem of assigning responsibility, for Aristotle does not simply ask his readers to identify who acts in the unsettling situations where regimes change; he also ties this issue to justice by noting a question that "some raise . . . of when the city performed an action and when it did not – for example, at the time when a democracy replaces an oligarchy or a tyranny . . . some do not want to fulfill [public] agreements on the ground that it was not the city but the tyrant who entered into them" (1276a7–13). The "agreements" (*ta sumbolaia*) – treaties, debts, and so forth – introduce the problem of what is owed into this question of what it means to say that states or cities act. If there is a change in regime, can one hold accountable the city that was under the rule of a different regime? How are debts to be

[18] On this point see further Destrée's chapter (Chapter 2 in this volume).

[19] A number of scholars are offended by Aristotle's attention to the preservation of regimes such as tyranny, finding Book V almost Machiavellian in its approach to the study of politics. See, for example: Nichols (1992: 100); Coby (1988: 906) resists this reading; Keyt (1999: 176–81) both accepts and modifies the connection; Garver (2011: 153–54) offers a more subtle reading of the relationship.

paid, treaties to be honored? How is this understanding of justice to be served?

Aristotle returns to this puzzle again in chapter 3 of Book III:

> For some raise the question of (are confused by, *aporousi*) when the city performed an action and when it did not – for example, at the time when a democracy replaces an oligarchy or a tyranny. At these times, some do not want to fulfill contractual agreements on the grounds that it was not the city but the tyrant who entered into them, or many other things of this sort, the assumption being that some regimes exist through domination and not because they are to the common advantage. However, if some are run democratically in this same fashion, the actions of this regime must then be admitted to belong to the city in just the same way as the actions of the oligarchy or the tyranny. (1276a8–17)

Aristotle proceeds to explore the "sense in which the city ought to be spoken of as the same, or not the same but different" and considers whether location defines a city. He does not in Book III answer that question, the *aporia*, of who acts when regimes change, nor does he do so as he proceeds in the rest of the *Politics*. However, he has raised a puzzle that we must keep in mind as we read Book V. He worries in Book III about the death of regimes because such changes leave us with the uncertainty of who owes whom what, of "paying debts" and "fulfilling contracts," whether we are referring to the individuals who inhabit the same location though regimes change or cities with whom treaties and trade relations have been established. The preservation of regimes – good or bad ones – ensures that the identification of who acts when we say a city acts is not in question. Responsibility for debts and the adherence to treaties is clear. When regimes change, responsibility for an unjust action can be questioned: Is the unjust action the current or the past regime's responsibility? As a consequence, justice between citizens or former citizens and between states suffers when regimes change.

Book V: iteration # 2

Having identified the multiple beginnings and causes of the corruption of regimes in the first seven chapters of Book V, Aristotle now speaks explicitly to the *politikos* (1308a34), the expert in politics, and considers the promised question of the *sôtêria* of regimes. The previous discussion explaining what brings about the corruption of regimes enables one to know what will preserve them, "for opposites are productive of opposite things and destruction is the opposite of preservation" (1307b29–30).

Thus, introducing the discussion, Aristotle signals that he is not going to propose preserving regimes by making them just. As Michael Davis notes: "Not only will the polis always be conceived as unjust; it will always be unjust" (1996: 97). Instead of aiming at internal justice, the statesman must understand how to address the inherent instability created by the injustice of all regimes and the resentments that perceived injustice evokes.

The previous discussion had emphasized resentments that explode when some in the population do not enjoy the equality they believe they deserve; preserving regimes, then, entails addressing those resentments. Thus, after a brief discussion on the importance of maintaining the laws and avoiding the accumulation of small transgressions, Aristotle affirms that some aristocracies and even some oligarchies endure not because they are inherently stable, "but because those occupying the offices treat well those outside the regime" (1308a5–6). In other words, those regimes survive because they protect themselves from the resentments that arise when some of the city's inhabitants experience the prick of exclusion. Aristocracies and oligarchies preserve themselves by enabling popular participation in the regime and not depriving the people of the honors they believe they deserve. "For the equality that those of the popular sort seek for the multitude is not only just but advantageous for persons who are similar" (1308a12–14).

Aristotle offers basically the same advice to all regimes when he urges every regime "not to allow any person to grow overly great contrary to proportion, but to attempt to give small prerogatives (*timas*) over a long period of time rather than great ones quickly" (1308b10–14). Concern about the dangers of excessive honors for one or the few remains: "Above all, one should try to shape matters by means of laws so that there arises no one especially preeminent by the power of his friends or riches" (1308b17–19). Though recommendations for avoiding the corruption of regimes are many, especially in terms of balancing the opposites of wealth and poverty as in polity or increasing the "middling element," Aristotle regularly returns in this section to what I have referred to as the psychology of resentment. He warns that it is a "very great thing in every regime to have the laws and management of the rest arranged in such a way that it is impossible to profit from the offices" (1308b33–34). The reason: "The many do not chafe as much at being kept away from ruling . . . as they do when they suppose that their rulers are stealing common funds" (1308b35–38). It is then that resentment builds, causing the excluded the irritation of not partaking of either the honors or the profit that derives from those honors.

Regimes last when they are so structured that offices do not produce profit for the office-holders. Then, the many will not feel deprived and will happily, Aristotle imagines, attend to their own affairs, while the rich will not become overly wealthy benefiting from what should be common funds. In democracies, care needs to be taken not to take advantage of the wealthy, while in oligarchies "much care should be taken of the poor" (1309a21).

Aristotle goes even further at the end of chapter 8: "It is advantageous both in a democracy and in an oligarchy to assign equality or precedence to those who share least in the regime" (1309a26–27) and he continues in the next set of chapters to reiterate the variety of ways that each regime can avoid becoming an extreme version of itself. Thus, he urges those in power to acknowledge the claims of those who have been excluded from "sharing" in the regime, so that instead of "fighting with the well-off" or "bearing ill will towards the people," the leaders in a democracy must "always be held to be spokesmen for the well-off" (1310a6–7) and the oligarch must say "I will not act unjustly toward the people" (1310a11–12). Nichols appropriately emphasizes how these prescriptions foster polity (1996: 102–03), but I want to emphasize how Aristotle is making his recommendations with a view specifically to softening the potential for resentment that comes from the perceived unjust distribution of honors. In a highlight of this section, Aristotle introduces the image of the nose: "A too straight nose will not even appear to be a nose, on account of the preeminence and the deficiency of the opposites" (1309b24–30). As with noses, so too with regimes. Too much perfection of a type means the exclusion of the opposite. The beautiful nose, to be a nose, must include the deviations from its perfection; politics likewise must encompass deviations from the perfection of type.

Turning finally to monarchies and tyrannies, Aristotle indicates that they change for the same reasons as polities: injustice, fear, and contempt. "Though arrogance is of many sorts, each of them gives rise to anger, and most of those who are angry attack for the sake of revenge rather than preeminence" (1311a25–28). The angry attackers don't want others to have what they themselves do not. Aristotle analyzes the decline in the number of kings over time: "Kingship is a voluntary sort of rule, with authority over relatively great matters, but [today] there are many persons who are similar, with none of them so outstanding as to match the extent and the claim to merit of office. So on this account men do not voluntarily endure it" (1313a6–10). Not only does resentment lead to the corruption of monarchies, it appears that it can prevent their very founding.

With a series of colorful historical examples Aristotle outlines the various forms of resentment[20] that arise from the actions of tyrants and monarchs, actions such as the taking away of wives or brides or the pursuing of sexual favors. Summing up his many stories, he remarks: "Many, in anger at physical outrages and feeling arrogantly treated, have killed, or attempted to, persons holding office or with royal connections" (1311b25–27). But it is not only the offenses committed against the ruled that stir up change. A long paragraph describes those rulers overthrown because of their subjects' contempt for them: Sardanapalus was seen carding wool like a woman, Dionysius regularly appeared drunk, Astyages lived luxuriously. Subjects observing such leaders question whether those with political power deserve the power they have. Such questioning, in turn, builds resentment about the justice of the rule of such contemptible men and so, Aristotle concludes, rulers need to avoid contempt lest their subjects displace them.

The prescription articulated earlier as to how regimes endure recurs in the penultimate chapter of Book V: "By the opposite things, simply speaking," in other words, by drawing regimes "toward greater moderateness" (1313a18–20). So, with monarchies, Aristotle affirms that the fewer things over which kings have authority, the longer their rule will be. They will become less like masters (*despotikoi*) and thus less envied (*phthonountai*) by those whom they rule (1313a20–24). A moderate ruler avoids resentment in his/their subjects. To buttress his point, Aristotle speaks of Theopompus who instituted "overseers" for his monarchy. When his wife complained that this would mean their son would inherit a kingship weaker than the one he himself received from his father, Theopompus responded: "Not at all – I am handing over one that will be longer lasting" (1313a33).

For the preservation of tyranny, Aristotle initially offers three suggestions, starting with having "only modest thoughts (*mikra phronein*)" (1314a16).[21] Observing grandiose thoughts in others moves men to demand their own deserts, to esteem themselves highly enough to demand honors and political participation. Further, the tyrant must not provoke the small-souled man, the *mikropsuchos*, to develop a grand soul that would then seek recognition of his own worth. The small-souled man with modest thoughts, unless "enraged" by the lavish actions of his tyrant, will not feel resentment. The tyrant can keep the small-souled man subservient, if he, the tyrant, appears to attend to the proper distribution and collection of funds with a view to the general welfare. Then his subjects will not feel

[20] The word that I am translating as "resentment" (*bareôs*) appears several times in this section, 1311b.
[21] See further Destrée (Chapter 11 in this volume).

deprived of what they deserve and the tyrant not appearing arrogant (*hubrizonta*) will preserve his authority and his regime (1314b24). Attention to the gods is also important, Aristotle tells us, since "men are less afraid of being treated in some respect contrary to the law by such a person, if they consider the ruler a god-fearing sort who takes thought for the gods" (1314b49–50). Aristotle concludes that, in addition, the tyrant should distribute honors to those who "have proven themselves good in some respect" (1315a3–5).

We do not need agreement about what is due to each individual, but we do need to recognize the psychology that expects the honors one believes one deserves. And so Aristotle adds that the tyrant needs to attend to both parts of the city – the wealthy and the poor – so that neither perceives itself treated unjustly by the other on account of the tyrant's rule (1315a32–37). As he is wont to do, he summarizes his advice for monarchs and tyrants: Their rule will last longer if they rule over persons who are "better" and have not been humbled (1315b5–9). Tyrants and monarchs will then be neither feared nor hated.

Conclusion

After studying the causes of corruption and offering suggestions for the preservation of the many regimes he analyzes throughout Book V, we must ask why it is so important for Aristotle to pursue these questions. This takes us back to the "who acts" issue raised in Book III. Longevity is good. It postpones, although it can never prevent, the problems associated with the "who acts" question and the problem of justice that that question raises.[22] Change is inevitable. Given the absence of precision in political life, as Aristotle had affirmed in the *Nicomachean Ethics*, debates will always arise over distribution and resentments leading to regime change will always occur. The art of politics, then, is to ensure that the resentments – the hostility felt toward those who have the rewards, honors, and power by those who do not – are softened insofar as is possible. How does the statesman accomplish that? There is no way that he can identify the indisputable criteria for the distribution of honors that will satisfy everyone, but by understanding the sources of resentment he can minimize the

[22] Nichols points out that Aristotle's proposals for the preservation of regimes is to make them "more just," a feat accomplished by making them more moderate, that is, turning democracies and oligarchies into polities and mitigating the extremes of all regimes. But it is not exactly clear what she means by "more just." As Nichols notes "all this is done not in the name of justice, although this is its effect, but in the name of stability and preservation" (1996: 102–03).

potential for change by reducing the effects of exclusion, thereby facilitating the longevity of regimes. To do so offers clarity about who acts, about who is responsible for fulfilling debts and for keeping treaties.

Eugene Garver in his excellent analysis of the *Politics* remarks that making "stability a political end and mark of a good constitution is . . . odd" (2011: 156) and notes: "While we have to know the causes of factions, we are never invited to join one . . . stability becomes a value apart from all regard for the justice of the regime defended" (2011: 135). Garver continues: "Justice itself plays little role in *Politics* V. Emphasizing stability makes us neglect justice" (2011: 136). I would argue, though, that given the insecurity of all justice claims *within* cities, stability itself is connected to justice *between* cities and valued for ensuring the continued existence of an existing regime within the complex set of relations between cities.[23] No regime can have complete justice given the uncertainty about the criteria for distribution. But, by preserving the regime, we have a consistent actor across time and the city itself will be just, paying its debts and honoring its treaties.[24] As Aristotle had noted earlier, "Whether it is just to fulfill or not to fulfill contractual agreements when the city undergoes *change* into another regime, that is another argument" (1276b13–15). Justice may not reign within the regime. It never can, but justice, with contractual agreements preserved, debts paid, and treaties observed, may endure in the relations between cities. Insofar as regimes remain stable, we can escape the problem of who acts when speaking of cities and the nagging *aporiai* of Book III.

Aristotle acknowledges, though, that such stability requires certain economic conditions and an absence of demographic and sociological changes. Time does not stand still, no more for Aristotle than for Socrates' Callipolis. While statesmen should endeavor to reduce resentment through the actions and institutions Aristotle proposes, given changing circumstances resentment will never disappear. The political world will always be marked by it. And so, we live with a sense of what we deserve and when deprived of it, we respond with demands against those who have treated us unjustly, taking what we consider to be ours according to our

[23] Thus, I would disagree with Garver's conclusion: "The relativism of stability is ethically neutral and so the project of preserving states ethically dubious . . . Stability seems to go beyond the relative to the arbitrary" (2011: 136).

[24] Consider the case of the Thebans in Thucydides' *History*: They excuse their Medizing during the Persian Wars by telling the Spartans that the city was run by a small cabal and therefore the current regime should not be held responsible for the actions taken by Thebes during the wars (III.62). Had the regime remained stable, they suggest, Thebes would have honored its commitment to the welfare of the whole of Greece.

own understanding of the criteria for proportional justice. We demand justice – as we understand it. And because of that, we will never achieve the security that justice demands. Each claimant can justify his claim. However much we may work to delay change, it is inevitable and thus we will never be able to answer the question of "who acts." The fluidity – or corruption – of regimes means the actors change. Debts will continue to be unpaid and treaties agreed to by one regime ignored by the next. Politics is a world neither of justice nor of permanence.

Politics, as Aristotle teaches us through this study of the corruption and preservation of regimes, is a complex realm with a multitude of *aporiai*. To bring precision into this world where it does not belong is to ignore that complexity, a point to which Aristotle alludes when he chides Socrates for identifying (whether seriously or not) the "beginning point" for the *metabolê* of the best regime in his nuptial number where "a basic ratio of four to three, yoked to five, produced two modes." Aristotle's illumination of the complexity in Book V illustrates the limits of political life with regard to claims of justice. At the same time that he forces us to see those limits, he moves us to the greater justice that comes from reducing the constant fluctuation of regimes that plagued the Greek political world. Socrates' explanation that the corruption of the best regime happens because "nothing remains," that is, that over time all things change (*metaballein*), even forms of rule (1316a3–6), avoids addressing the real question of why regimes change. Aristotle, by finding an answer in the psychology of resentment, offers ways to mitigate the resentments born of inequalities, thus moderating the tendency of regimes to dissolve, even if no statesman can ultimately preserve them. By understanding the power of resentment and the need to control its effects, Aristotle promises a more just world than that in which the change of regimes leaves cities with no answer to the question of who acts. We have a more just world between cities, even as cities themselves continue to struggle with the debates about the just distribution of power, wealth, and honor within them.

CHAPTER 11

Aristotle on improving imperfect cities

Pierre Destrée

In the most extensive presentation of the program Aristotle provides us with for his political lectures at the beginning of *Politics* IV, he forcefully says:

> One should not study only the best constitution, but also the one that is possible, and similarly the one that is easier and more attainable by all city-states. As it is, however, some seek only the constitution that is highest and requires a lot of resources, while others, though they discuss a more attainable constitution, do away with the constitutions actually in place and praise the Spartan or some other. But what should be done is to describe the sort of organization that people will be easily persuaded to accept and be able to attain,[1] given what they already have, as it is no less a task to reform a constitution than to establish one initially, just as it is no less a task to correct what we have learned than to learn it in the first place. That is why, in addition to what has just been mentioned, a statesman should also be able to help existing constitutions. (1288b37–89a7)[2]

As not only Books VII and VIII but also numerous passages throughout the *Politics* testify, analyzing the absolutely best possible, ideal constitution is an important (perhaps, from a normative perspective, the most important) part of this research. But it cannot be its sole business; one should also, Aristotle proposes, dedicate our study of politics to the excellent constitution that is more feasible and attainable, and that must be done for the sake of reforming existing, necessarily much less than perfect, constitutions; that is, it is through aiming at this excellent, yet realistically attainable, constitution that one will be able to actually improve or reform imperfect constitutions such as, as the context of the

[1] Manuscripts have different readings here, and many emendations have been proposed. I read with some manuscripts *koinônein*, but other manuscripts have *kinein* ("that people will be easily persuaded to accept and be able to put in move/make it work"); Moerbeke has *prosequi* ("that people will be easily persuaded to accept and be able to follow"); Ross has suggested *kainizein* ("that people will be easily persuaded to accept and be able to use for the first time").

[2] I quote the Reeve (1998) translation of the *Politics* (sometimes with slight modifications).

passage indicates, democracies and oligarchies, which are by far the most widespread existing constitutions. It is most probably Plato that is here criticized for restricting his thoughts on constructing ideal cities, and apparently dismissing the task of improving existing constitutions.[3] However, Aristotle criticizes other people as well, who instead of trying to think about how to improve their own imperfect cities, advocate some other existing constitution such as Sparta (which makes us suppose that Aristotle is talking from an Athenian perspective, perhaps addressing an Athenian audience).[4] It is between these two rather ineffective solutions that Aristotle wants to make his own offer as to how to improve and reform the (more or less) bad constitutions, either democratic (as is the case in Athens) or oligarchic. But how is this improvement supposed to be justified and implemented? And what role, if any, may the reflection on an ideal city (which Aristotle says is the first part of his program in *Politics* IV.1) play in such an improvement? These are the questions I will be considering in the following pages.

The priority of improving cities

Before getting to the heart of the matter, let me briefly consider why improving one's city, or constitution, must be thought of as a priority for Aristotle. One central idea is that the science he is offering must be useful. By this I refer of course to the idea, many times expressed in Aristotle's *Ethics* as if it were almost a motto for this research: His "political science" (as he calls the research on human affairs presented in what we call his *Politics* and *Ethics*) is not pure knowledge for its own sake, or not only that, but primarily for the sake of action (*EN* I.3, 1095a5–6; II.2, 1103b26–28). Aristotle never plainly explains how this is supposed to work, but the famous remarks he makes at the beginning of the *Nicomachean Ethics* about his suitable audience may certainly be read as providing an answer to this. Aristotle emphatically says there that his intended audience should be composed of people who have been already (more or less) properly educated in the sense that they must already have acquired some good

[3] To be sure, Plato had presented such an excellent, realizable constitution in the *Laws*, but he never suggests that reflecting on Magnesia should help one to reform actual cities. It is interesting to note that a passage from *Letter* VII (330C–331D) insists on the task of improving imperfect cities (but perhaps this may be added to other reasons why Plato himself may indeed not be its author).

[4] In Athens, there were of course lots of people admiring Sparta (including Plato in some ways): see II.6, 1265b33–35; or Plato *Rep*. VIII, 544C. One of the most admiring statements comes, unsurprisingly, from Xenophon who has Kritias praise the constitution of Sparta as the best one (*Hell.* II.3.34).

habits, and have some experience in moral matters – otherwise, he says, they won't be able to follow their reason, but will be bound to their passions (I.3, 1095a2–11). If they are already (more or less) morally good people, they now will understand the reason why they act because they have been trained that acting in such a fashion is indeed good, that is, they will now learn the truth about it. But this includes a practical goal, too: Once they have learned the truth about happiness and morality, they will be further motivated to act in a morally good way.[5]

Now, what about the "political science" in the more restricted sense of the term that Aristotle is going to deliver in his *Politics*? There too, one must suppose that the science he is offering must be useful in the sense that it should help his audience (whether his direct auditors, or perhaps putative future readers) toward the well-being of their cities, which is of course the condition for their own happiness. Aristotle does not explicitly state this in his *Politics*, but this is what he clearly implies when he says, in the beginning of the *Nicomachean Ethics*, that the good, or the happiness of one's city, or nation, "is evidently a greater and a more complete good to acquire and preserve" than one's own, and that it is therefore "nobler and more divine to do so for a nation and city – these are what our inquiry aims at, being a sort of politics" (I.2, 1094b8–11). It is not quite clear what Aristotle exactly wants to mean by this qualification, "being a sort of politics" (perhaps he wants to make his ideal of politics different from usual political business that has not the good of one's city in mind?). However, what seems to be very clear is that his inquiry should aim not only at acquiring the knowledge of how to get and preserve our own good and the good of our city, but also at actually getting and preserving those goods. And getting and preserving the good of one's city is "nobler and more divine" because, one may suppose, it is more admirable to care about the good of one's city and one's fellow citizens' happiness than just about one's own happiness (in the same way Aristotle says that justice is more admirable than any other virtue because it necessarily implies other people, and not only oneself – see *EN* V.4, 1129b27–34). Admittedly, Aristotle is talking here about preservation of the good of one's city, not about improving the constitution one happens to live under. But if one happens to live in a less than good city, for example in a democracy or an oligarchy, wouldn't it be evident that in that case aiming at a better situation for one's city, that is trying to improve or reform it, would be what Aristotle would have praised as the noble and divine thing to do? Without doubt, one

[5] On this, see especially Cooper (2012: 74–79).

should preserve the well-being of one's city when its constitution is good. But given the fact that the happiness of people depends on how good the constitution they live under is, it would have been very odd if Aristotle had praised the citizens of a bad constitution for trying all they can to preserve it at all costs!

The same conclusion can also be reached from another perspective. In an important passage from *Politics* II.8, Aristotle asks whether one may, and if so under which condition, change some laws, or even whether one may be allowed to dissolve them as well as the constitution on which they depend if this were for the sake of the good (see 1268b26–31). If Aristotle is cautious to avoid any rash or untimely changes that might lead to a situation that would prove worse in the end (see my further remarks on this later in this chapter),[6] his answer to this problem is without hesitation positive: As is the case in other sciences where changes have proven beneficial, Aristotle cites examples of traditional laws and customs that were "exceedingly simple and barbarian" and "silly," which Greeks were well advised to change, concluding with a strong principle: "Generally speaking, everyone seeks not what is traditional but what is good" (1268b34–69a4). In other words, wishing to obey laws that one knows are bad would be not only stupid but morally reprehensible insofar as we human beings should do what depends on us in order to reach the eudaimonia that we all desire. Improving the laws, and therefore the constitution on which the laws depend, is then nothing but the logical consequence of Aristotle's eudaimonism, and of his teleological account of the good. According to Aristotle's own logic, improving one's imperfect constitution is thus not only something that one may wish for, but also something that one *should* do, as Richard Kraut has emphatically stated (2002: 375 – his italics). And this is what, so Aristotle proposes, a genuine political science should be able to help achieve properly.

Improving, or correcting one's city, or the constitution one happens to live under, can hardly be implemented, or even imagined, though, if one does not have one goal or end toward which one seeks to do this; and from a psychological perspective, the desire to improve one's city can hardly be felt if there is not an ideal in comparison to which one may feel dissatisfied with one's own city. Although Aristotle briefly alludes to this at least once,[7] he never plainly states this issue. But it seems that a natural

[6] On this passage, and the problems it poses, see also Lockwood's chapter (Chapter 4 in this volume).

[7] See II.9, 1269a1269a31–32, where he says that one question to be considered is whether existing constitutions such as Sparta and Crete are "well oriented towards the best constitution or not."

candidate offers itself: Aristotle's description of his own ideal city perfectly corresponds to the way happiness would be best implemented. As interpreters such as Richard Kraut and Fred Miller have suggested, the best, ideal city Aristotle describes in Books VII and VIII must be taken to play a role in improving actual cities.[8] Whatever the order of reading Aristotle may have wanted for these books (they come last in all our manuscripts, but as many have suggested from the late Middle Age onward, they might perhaps be better relocated before our Books IV through VI, just after our Book III), it seems rather obvious that any reader acquainted with what Aristotle strongly advocates there must feel profoundly dissatisfied with the imperfect city they happen to live in, and thus motivated to propose some improvements. But not only that. As is well known, the best constitution that is advocated there is called the "the city of our dreams" (or more literally: "the city that is the most one could hope and pray for")[9]: As the expression implies, the description of this absolutely best city should be best taken as a sort of thought experiment that corresponds to Aristotle's eudaimonistic principles, and not as providing the practical outline for the foundation of a colony as many interpreters have claimed (even if, from a rhetorical perspective, founding a colony may be seen as a sort of historical background for Aristotle's construction).[10] And indeed, the description of this best city is actually nothing but what we should have expected from what we already know from the *Nicomachean Ethics* (as Aristotle repeatedly reminds his reader of, especially in the beginning of *Politics* VII): It is the description of the best possible city that would perfectly match the normative principles that Aristotle has defended throughout his *Ethics* (and also in some parts of his *Politics*). And this is why Aristotle can say, rather unexpectedly, that in fact all cities, even the good ones (he there mentions polities and aristocracies), are "deviations" from that best, ideal city (*Pol.* IV 8, 1293b23–27); that is, all existing cities, even the good ones, must be considered as imperfect and inadequate realizations of that city "of our dreams."

[8] Kraut (2002: 193); Miller (1995: 191–94).

[9] This is Kraut's formulation for the Greek expression *kat' euchên*. See also his illuminating note on this expression (Kraut 2002: 192, n. 1). The fact that Aristotle uses it (or the equivalent verb *euchesthai*) several times in Book VII (VII.4, 1325b36; VII.5, 1327a4; VII.10, 1330a26; VII.11, 1330a37; VII.12, 1331b21; VII.13, 1332a29) is best interpreted, I think, as indicating his emphasis on the ideal status of that constitution, which Werner Jaeger, rightly I think, described as a "Denkkonstruktion" (1948: 291).

[10] Among recent interpreters, the influential work of Josiah Ober (see especially 1998: 339–47) has done a lot in favor of such a reading; see also Samaras (2007).

If it is true, then, that the description of his absolutely best city, or "the city of our dreams," corresponds to Aristotle's eudaimonistic principles, and that his "political science" is to be of practical relevance, it must be also true that the scientific treatise on this absolutely best city (i.e., *Politics* VII and VIII) must be of practical relevance when reflecting on how to improve less than perfect cities, which are to be considered as imperfect attempts of instantiation, so to speak, of that ideal city.

The program for political science

Now all of this, one must admit, is what interpreters can reconstruct following the logic of some of Aristotle's most important claims. Aristotle himself, though, never actually says that his ideal constitution should work as a blueprint for improving existing cities, or that political leaders (or their advisers) should try to approximate that ideal city. In fact, even if he explicitly proposes in the program in the beginning of Book IV that studying how reforming existing cities should be an important part of his political science, the reader very soon gets the strong impression that what he has actually offered instead, in *Politics* IV to VI, is a rather distinct, much less ambitious program: not how to improve existing constitutions, but how to help maintain such constitutions as they are. The aim one should seek in reflecting on politics may be, in theory, improvement and change of constitution; but what Aristotle does in practice is offer various analyses, and sometimes practical advice, as to how to save and maintain such and such a constitution, even the bad ones, the crucial issue, and indeed the aim to seek after, being now stability against disorder and anarchy.

As is well known, this change of tone between *Politics* I–III/VII–VIII and *Politics* IV–VI, where stability is the main motto, was at the center of Werner Jaeger's famous claim that Aristotle radically changed his views between the redaction of these two parts that were later put together artificially. Even if one does not accept this developmental picture, it may still be the case, as Christopher Rowe has forcefully argued, that "Aristotle tacitly attributes at least two quite different claims to political science: firstly, the creation of a virtuous city, or the closest approximation to such a city; and secondly, the achievement of political stability and order" (Rowe 1991: 69). As Rowe concedes, the description of the best city may provide a sort of motivational help to future legislators and politicians: Reflection upon the best way one may live in the best possible city might indeed evoke a critical reaction toward one's own city, or more generally, real cities, and the desire to

improve them in one way or another. But real cities, Rowe claims, cannot be dreamt of as approximating Aristotle's best city. On the contrary, when writing *Politics* IV–VI, and reflecting on how to help future legislators and politicians to improve real cities, Aristotle puts forward a different standard of perfection than the one he had considered when describing his best city; improving real cities would basically consist in making sure these cities become more stable and orderly. While Aristotle's best city aims at making sure every citizen becomes perfectly virtuous and happy, the criterion he defends for improving actual cities, that is, "relative orderliness and stability of a constitution" is, as Rowe says, "reasonable enough; at any rate, in an orderly society, an individual might go on to achieve the good life for himself" (Rowe 1991: 174).[11]

To be sure, such a view may sound very attractive to modern ears: Wouldn't we easily agree that this should best describe the work of genuine politicians or legislators? But not only that. Wouldn't it also best explain why any and every reader of Aristotle's *Politics* can't but feel unease as to the difference of tone between the two "blocks" of the *Politics*? And if we don't accept a developmental story à la Jaeger, wouldn't such ambivalence between these two teleological ideals be indicative of the obvious failure of the *Politics* as a whole, well-consistent treatise?[12]

If the two main blocks of the *Politics* do undeniably sound rather different, I nevertheless think that Aristotle's repeated emphasis on stability and order is not incompatible, and in fact goes together with his aim of improving constitutions with an eye on the best possible constitution. But before reviewing what he has actually to recommend as to how best to improve existing constitutions, let's get back to Aristotle's program as stated in IV.1. There, Aristotle first proposes an analogy with the science that a coach must have if he wants to be able to deal with all cases when training people in gymnastics:

> Among all the crafts and sciences that are not concerned only with a part but that deal completely with some one type of thing, it belongs to a single one to study what is appropriate in the case of each type. In the case of physical training, for example, it belongs to it to study what sort is advantageous for what sort of body: [1] what sort is best (for the sort that is appropriate for the sort of body that is naturally best and best equipped is necessarily best); and [2] what single sort of training is appropriate for most bodies (since this too is a task for physical training). [3]

[11] See also Rowe (1989); Rowe (2000) qualifies his previous claims.
[12] On this, see also the important study by Kahn (1990), which reaches similar conclusions as Rowe's.

> Further, if someone wants neither the condition nor the knowledge required of those involved in competition, it belongs no less to coaches and physical trainers to provide this level of ability too. We see that the same is also true with regard to medicine, shipbuilding, clothing manufacture, and every other craft. (1288b10–21)

As my numbering makes clear,[13] the text provides two main divisions: the first, and apparently more important here, is between the goal people have when being coached, that is, competing ([1] and [2]), or simply remaining healthy ([3]); the second one is, among people who want to compete, about the sort of bodies the coach needs to take care of, that is, whether they are first rate (say, in case of Olympic athletes: [1]), or just average ([2]). And as the natural division of the text makes it clear too, it is the second division that seems to be the most important to Aristotle: In any such craft or practical science, it is important to try to deal also with the cases where no competition is at stake. Were one to read Aristotle's program for his political science from this analogy, one would obtain the following picture: If cases [1] and [2] obviously allude to the regimes that aim at a certain level of perfection, case [3] announces the idea of maintenance of order and stability instead of improvement toward greater perfection. Read this way, this analogy seems to support Rowe's interpretation.

However, Aristotle's actual presentation of the task division of the political science that follows sounds rather different, and the clear-cut distinction we find in the analogy between these two tasks becomes somehow unclear. Here is the program Aristotle sets up for his political science:

It is clear that it belongs to the same science to study:

- [A] What the best constitution is, that is to say, what it must be like if it is to be most ideal of all, and if there were no external obstacles.
- Also [B] which constitution is appropriate for which city-states. For achieving the best constitution is perhaps impossible for many; and so neither the unconditionally best constitution nor the one that is best in the circumstances should be neglected by the good legislator and true statesman.
- Further, thirdly, [C] the constitution as it is given under a certain assumption (*ex hypotheseôs*): for a statesman must be able to study how any given constitution might initially come into existence, and

[13] Needless to say, given the relative imprecision of the whole passage, both the analogy and the program that follows have been variously interpreted. For a very different account than mine, see in particular Pellegrin (1987).

how, once in existence, it might be preserved for the longest time. I mean, for example, when some city-state happens to be governed neither by the best constitution (but does not even have the necessary resources) nor by the best one possible in the existing circumstances, but by a worse one.

– And besides all these things, a statesman should know [D] which constitution is most appropriate for all city-states. Consequently, those who have expressed views about constitutions, even if what they say is good in other respects, certainly fail to give useful advice. (1288b21–37)

At first sight, there seems to be a perfect correspondence with the coach analogy, even if one case only belongs to the political science: [A] obviously corresponds to [1]; [B], that is, I suggest, kingships and aristocracies, does not have its corresponding case in the coach analogy but, one may easily assume, could have been associated with second best athletes as they are the two good, yet not excellent, constitutions that Aristotle indeed makes compete as if it were for the second prize after the absolutely best city; [C] neatly corresponds to [3] where we are dealing with cases that do not compete, namely constitutions devoted to their sheer preservation of regimes as being analogous to bare maintenance of health; and [D] goes together with [2] where the most attainable constitution matches the training that is appropriate for most bodies of people who want to compete. But two discrepancies with the analogy should strike us.

First, while the main division in the coach analogy is between exercises for athletes who want to improve their skills and those for people who just want to remain healthy, the main division is here between the description of good and bad constitutions (cases A, B, and C), and the way one might, or should, improve imperfect constitutions through a constitution "that people will be easily persuaded to accept and be able to attain" (case D). And indeed, this is obviously something Aristotle is eager to propose as his own contribution to political science, as we have seen at the outset – I quote this again: "it is no less a task to reform a constitution, he forcefully writes, than to establish one initially, just as it is no less a task to correct what we have learned than to learn it in the first place. That is why, in addition to what has just been mentioned, a statesman should also be able to help existing constitutions" (1289a3–7). And second, contrary to what one should have expected given the coach analogy, in cases [C] and [D] the constitutions that are at stake are in fact the very same ones, that is, the various sorts of democracies and oligarchies – with [C] referring to the

knowledge as to how to preserve these imperfect constitutions, and [D] to the way one can improve these constitutions. And indeed, it is also striking that after insisting on reforming or improving such constitutions, Aristotle curiously adds that this amounts to "helping existing constitutions as was said earlier," that is, just a few lines above when he was presenting [C] where preserving such constitutions as they are – that is, helping them to endure – was the claimed goal! In other words, it is Aristotle himself who seems to conflate these two rather different aims, the one that consists in simply preserving such bad constitutions as they are, and the other amounting to rendering them better.

One way to solve the discrepancy is, as Rowe argued, to insist on the theme of stability (and play down the theme of improvement). A more orderly democracy or oligarchy is obviously safer, or "better," for its people than a brutal change of regime. And indeed, contrary to what one may think of our modern words "change," or "revolution," the cause of such changes that Aristotle calls *stasis*, "faction," does not sound positive in any sort of way: *Stasis* is a state of enmity of one group of a city's inhabitants against another, materializing in the worst cases as civil war that may lead to total anarchy and chaos.[14] We have seen that Aristotle emphasizes, in the important chapter II.8, that bad laws need to be improved; it stands to reason that constitutions, which are the *conditio sine qua non* of laws, also need to be changed when they are bad. And yet, in that very same chapter, Aristotle is also adamant that these changes need to be brought up very carefully, and that one must avoid at all costs ending up with the lack of laws, or anarchy, that would amount not only to disorder, but also, and most importantly, to complete immorality, and thus unhappiness. It is, I believe, for that reason that Aristotle so much (and perhaps too much) insists on the importance of stability and order: This is no conservative reaction, but something grounded on his fear that the lack of law inevitably tends to immorality, and therefore the impossibility of happiness. For order and stability are the *sine qua non* conditions for morality and happiness, the most basic achievement any and every political leader must achieve who may need help from Aristotle's political science.

And yet, despite Aristotle's insistence on order and stability, it would be odd, and contrary indeed to his eudemonistic commitments, to restrict his recommendations "to improve democracies qua democracies and oligarchies qua oligarchies," as Christoph Horn has put it (2013: 235). To be sure,

[14] On faction, see especially Hatzistavrou (2013), Skultety (2009), and Saxonhouse (Chapter 10 in this volume).

this may be one solution when every other means to improvement have proven hopeless, as indeed an orderly democracy or oligarchy, or even tyranny, may be supposed to be safer, and thus "better," for their people than chaos and anarchy that would result from a violent revolution. However, this should only be conceived of as the last resort in the worst case scenario. And indeed, if Aristotle (who also insists that his political science cover all possible cases) probably allowed some space for such worst cases, it seems that what he in fact recommends in most cases is to get stability and order through an improvement of the regime that eventually amounts to a regime change, and not sheer maintenance of the regime as it is. This, at least, is what I think gets confirmed when reviewing the way Aristotle presents the case of polity (announced here under [D]) and the case of tyranny we find in Book V, to which I now turn.

On Improving most cities

Let's first elaborate on case [D]. As Aristotle clearly says, the means of improving bad constitutions, or to use the analogy of the coach once more, the right exercise one can advise everyone who wants to improve one's bodily condition, is to introduce an order (*taxis*), that is, a constitution that every city can easily adopt and eventually attain. This is not a revolution, or a radical change of regime, but it is not just maintenance of a given regime either: The main thing is to try to reach some sort of right measure in whatever bad regime one happens to live under. Aristotle is talking here from the perspective of his *Ethics* and his theory of the right mean: Bad regimes are those that deviate from the right mean; they in one way or another miss the mark, exactly as cowardice and recklessness are both deviations, while courage consists in the right, virtuous reaction to fearful events. And the aim Aristotle is alluding to in our *Politics* IV.1 passage is that it should be possible to make these deviant constitutions approach this right mean, and transform themselves into this "middle" constitution. Now what does this middle constitution exactly amount to, and in what way it is supposed to be an improvement of democracy and oligarchy?

As many interpreters have claimed, the middle constitution, or polity, is without any doubt a good constitution, but contrary to kingship and aristocracy, its ruling citizens are not virtuous in any strong sense of the term except as regards courage.[15] And as to being a real improvement over

[15] "While it is possible for one or a few to be outstandingly virtuous, it is difficult for a larger number to be accomplished in every virtue, but can be so in military virtue particularly" (III.7, 1279a39–b2). On this, see Balot (Chapter 6 in this volume) and Samaras (Chapter 7 in this volume).

democracies and oligarchies, one could thus be tempted to read this in a minimalist way: Since polity is a much more stable regime than democracy and oligarchy because the majority of its people participate in the political administration of the city and hence have no reason to create factions, one could understand Aristotle's suggestion to transform them into polities to be a way to make sure democracies and oligarchies just become more stable, not really more virtuous.

At first sight, the beginning of *Politics* IV.11 seems to confirm such a relatively pessimistic approach; and indeed, when presenting the best possible cities that might suit most people, Aristotle does emphasize that contrary to what one might expect for the best, ideal city, such a city should not aim at a virtue that would be "beyond the reach of private individuals," nor at an education that "requires special natural gifts and resources that depend on good fortune" (1295a26–28). And also, the examples of actual polities that Aristotle gives, such as Sparta, are not very inspiring either: If Aristotle seems to agree that Sparta has been "rightly held in high esteem" (II.11, 1273b24–26), and approves that its education has been provided to all citizens (as Aristotle also requires for his best, ideal city), it is also the case that the only virtue that is required from its citizens is courage; and if courage counts as a central virtue in Aristotle's own presentations of the character virtues (see *EN* II–IV), it is also the case that it would be wrong to consider it, as Sparta obviously does, as the only needed virtue, which can have the unwelcome effect that such citizens may be tempted to consider war as a valuable activity per se – and this is the main critique Aristotle addresses to Sparta in *Politics* VII. With such passages in mind, one may doubt that Aristotle's program of improving bad constitutions such as oligarchies and democracies by turning them into polities may really amount to any substantial change, except perhaps for the number of people ruling, and therefore for the greater stability that should follow.

However, actually Aristotle not only does repeatedly say that polity is one among the three excellent (existing) constitutions (while democracies, oligarchies, and tyrannies are deviations from them), but he also stresses the closeness between polity and aristocracy when he adds that "the constitutions called aristocracies, which we discussed just now, either fall outside the reach of most city-states or border on so-called polities (that is why the two have to be spoken about as one)." That is, the constitution he is here advocating must be not very far from an aristocracy. And this must be so, one may suppose, because the middle constitution Aristotle advocates here is a polity of a rather unusual sort, and not exactly like the

historical examples he has given in the preceding chapters (and elsewhere), such as Sparta, that are without doubt very imperfect constitutions – something that Aristotle has ruled out, indeed, when rejecting the idea of praising some existing constitutions such as Sparta in his program in IV.1.

And indeed, when describing in the rest of that chapter the way a perfect polity must be thought of, Aristotle does not hesitate to start from one of the most crucial claims he famously made in his *Ethics*:

> If what is said in the *Ethics* is right, and a happy life is the unimpeded life expressing virtue, and virtue is a mean, then the middle life, the mean that each sort of person can actually achieve, must be best. These same defining principles must also govern the virtue and vice of a city-state or constitution, since the constitution is a city-state's way of life. (1295a34–41)

This does not mean, at least not directly, that all citizens are perfectly virtuous, achieving the mean in virtue that is, as Aristotle famously states in his *Ethics*, the highest excellence. As he goes further, the reader understands that what Aristotle has in mind is in fact a political application of that ethical motto: A good polity is the one that hits the mean as regards to its class of citizens, that is, the one that has reached the mean between poor and rich. Admittedly again, as Aristotle will say, such a polity won't experience *stasis* of any sort, and will remain very stable. But this must be taken as the consequence, not the goal, of the main point Aristotle stresses here, obedience to reason. Being composed of people who are neither too rich nor too poor allows them to obey reason, and consequently avoid both *hybris* (which is typical of rich people, especially when they have power) and malice (which is typical of poor people).

"Obedient to reason" (or the law that is its political instantiation) must not be seen from an external perspective as if all Aristotle required would be obedience for the sake of one's own safety against the law. As the context as well as the background of his *Ethics* show, the main point Aristotle wants to stress is that possessing the right mean of external goods will eventually make people more prompt to obey reason because they would have no temptation to do otherwise; in other words, to become a temperate person, one needs not only a moral education of one's character as Aristotle has stated in his *Ethics*, but also the right amount of external goods and the equal rights shared with one's peers. In other words, what Aristotle is presenting here is best seen as the political counterpart of what he has described in his *Ethics.* And so, trying gradually to replace the democracy or the oligarchy one happens to live in by augmenting the number of the middle-class people will eventually

amount to a significant improvement of such regimes. And thus Aristotle's political science will prove useful, indeed, for those who live under imperfect conditions and want to see the conditions of their own happiness duly implemented.

Now, how are we supposed to think that transforming a given constitution into such a polity should have anything to do with the absolutely best city? As we have seen, Aristotle does in fact admit that at least in some cases, there is no big difference between aristocracy and polity. In other words, there is a certain continuity between the two constitution types, this continuity probably consisting in the more or less virtuous *hexeis* of their respective citizens. And of course, there is also a certain continuity between the absolutely best city and aristocracy. If their central difference is in the number of citizens sharing power, then the main, and most important factor they have in common is here again the value of their citizens. Even if Aristotle does not use this term in the *Politics*, it seems rather difficult not to see here the principle of approximation. It is striking that, as several interpreters have seen,[16] the polity resembles in many crucial ways the best city. Perhaps one most evident feature is political *philia*. A polity, Aristotle repeats, is characterized by a strong sense of *koinônia* among its citizens. This is both a community of values and of political friendship. Political friendship should probably not be taken in the strong sense that you truly love your fellow citizens as is the case in the friendship between two virtuous friends.[17] It is, I take it, the bond between two citizens *qua* citizens that includes both a cognitive side, the *homonoia*, that is the shared recognition of a certain set of values, and an affective side, say the respect I feel toward my fellow citizens *qua* citizens, that is, *qua* people who share the same values as I do. Needless to say, such a friendship is closer and more stable, one may suppose, in aristocracies, and even more so in the absolutely best city. But again, it is difficult not to suppose here, even if it remains implicit in Aristotle's text, a principle of approximation.

One of the most significant differences between bad and good regimes is that in the former case, rulers rule for their own good, while in the latter, they rule for the common good. How could one bridge the gap between these two rather opposite situations? Here again, Aristotle never addresses this problem, but it seems pretty evident that by augmenting the middle, ruling class, and therefore by augmenting the political *philia* that is typical of a polity, one will by the same token diminish the rulers' propensity to

[16] See Cherry (2009), who reviews the literature on this.
[17] On this question, see further the exchange between Cooper (1990) and Annas (1990).

rule for their own good, and have them focus on the common good. Such a change won't be achieved in one day, or in a short time (to paraphrase Aristotle's famous statement on happiness – *EN* I.7, 1098a18–20), but it is nevertheless one important goal – perhaps even the most important one – Aristotle proposes for the political science he wants to transmit to future political leaders and legislators whom he addresses, and who typically live in imperfect cities such as democracies or oligarchies.

On improving tyranny

Let's now have a look at the worst case of an imperfect constitution, tyranny. This theme is one well-known conundrum of the *Politics*. For, if it is true that tyranny is the worst constitution ever (being, *stricto sensu*, a nonconstitution – *politeia* – as its inhabitants are no real citizens – *politai* – anymore), how can Aristotle apparently provide advice for maintaining it? Unless one wants to make Aristotle radically contradict himself, it can hardly be the case that this advice amounts to a quasi-defense, in a Machiavellian sort of way, of tyranny. But one should also avoid, I believe, to hold Aristotle as being the first contender of the moral obligation to overthrow tyranny (as Richard Kraut has suggested),[18] or the first philosopher who may have accommodated the right of resistance against tyranny (as Andrés Rosler has argued).[19] When he says that in case of the worst tyranny where the tyrant "rules in a non-accountable fashion over people who are equal to him or better, with an eye to his own advantage not that of the ruled," and that therefore, "no free person willingly endures such rule" (1295a20–23), he does not seem to be saying that in such cases one should overthrow the tyrant, and replace tyranny by a better constitution. And indeed, Aristotle is so concerned about avoiding any factional trouble that would lead to anarchy and chaos, that while he reckons with the fact that "Those who are outstandingly virtuous would be most justified in starting faction," he nevertheless adds approvingly that "they are the least likely to do so" (1301a39–40). In other words, fomenting troubles, or, one may add, killing the tyrant, even if perhaps morally justified, is no solution one should advise in order to improve a bad, or even a very bad situation. For Aristotle is apparently convinced that the trouble that would inevitably follow the violent overthrowing of a tyrant may too easily lead to an even worse situation. (Just think of what happens now in Iraq or Libya, and you'll see how

[18] Kraut (2002: 373–74). [19] Rosler (2005: 239 sqq.).

Aristotle is right!) But to repeat myself once again, this cannot be Aristotle's last word, and as we will see, insisting on stability turns out to be the effective way to make sure this regime finally improves.

It is from this perspective, I propose, that we must understand the rather curious way Aristotle proceeds when he teaches how to preserve tyranny. As Aristotle himself says, there are in fact two very much opposed ways to do so. There is first, as he calls it, the "traditional" way that has been reported to be instituted by the tyrant Periander of Corinth (V.11, 1313a34–38).[20] This traditional way (which, Aristotle adds, can be seen also at work by the Persians) consists of "three tenets: prevent mutual trust among his subjects; render them powerless; keep them thinking small" (1314a25–29).

One could hardly imagine devices that would be more in opposition to any of the qualities Aristotle recommends to citizens of a good constitution: trust and political *philia*, equal rights, and magnanimity, which is the peak of the moral virtues. But contrary to what one may be tempted to think, it is not on that basis that Aristotle does not endorse them: It is because they in fact don't really help achieve the goal of maintaining the tyrant, at least not in the long run (see especially 1315b6–7). And indeed, these three tenets may render people unwilling or unable to resist or overthrow the tyrant in the short term, but they will certainly fuel their feeling of being despised, and hence their hatred against the tyrant, which would generate their willingness to plot a revolution when the opportunity arises. Unless people are not rendered willing enough to bear his power, no tyrant will be able to maintain himself in power.[21]

Aristotle's own recommendations are meant to replace, thus, these "traditional" means. These recommendations can be summarized in one motto: The tyrant should be playing the benevolent king who cares about his people, that is, he should appear to be a king, or a leader similar to it, and not as the tyrant he is:

> A tyrant should appear to his subjects not as a tyrant but as a head of household and a kingly man, not as an embezzler but as a steward. He should also appear as pursuing the moderate things in life, not excess, maintaining close relations with the notables, while playing the popular leader with the many. (1315a41–b4)

[20] Diogenes Laertius (I.99) reports that Aristotle, following Herodotus, held him as one of the Seven Sages, but this is not confirmed by any extant text from Aristotle. Whatever the case may be, one may well suppose that Aristotle is keen to give us here the name that was (in)famous, among Plato's readers, for being a very tough and wicked tyrant (*Prot.* 343A; *Rep.* 336A; *Theag.* 124C).

[21] On this, see Bodéüs (1999), who makes the interesting (if disputable) case that Aristotle's proposal may even be read as adumbrating a theory of social contract in this situation.

This idea of "playing the good tyrant," that is, actually playing the king, and correlatively the idea of "appearing such to his people" is repeated again and again throughout this chapter; the tyrant, Aristotle proposes, must be like an actor who plays well his role (1314a40). How should we take this? At first sight, it is difficult not to read this along the lines of Machiavelli (who has indeed repeated this almost word for word), and consider such a measure as the most wicked one could have thought of, even if indeed this might be the best way to preserve stability in tyranny. But several passages clearly indicate that what Aristotle has in mind is improvement of the tyranny for the sake of the people living under such a regime, and also improvement of the tyrant himself. As other scholars have duly noticed,[22] even if the tyrant just plays the good leader who cares about his people's well-being, it is as a sheer matter of fact the case that their well-being will actually improve. For example, when Aristotle recommends that the tyrant plays the king by appearing to care about public money, the best way to appear such is simply to take some measures that show his (apparent) commitment to his people. In this regard, Aristotle cites such measures as using public money for public administration (1314b14–18), the embellishment of the city (b36–38), and the worship of the gods (1314b38–1315a4). So even if the tyrant may just play the king, the fact is that his people will benefit from practical measures a real king would have typically done, and they will therefore be much more willing to accept his rule, or at least not willing to foment trouble. But such recommendations that amount to an eventual improvement of the people's well-being are not the only ones. Since the feeling of being despised and even outraged is one of the most powerful reasons for fomenting trouble, Aristotle also recommends that the tyrant refrain from showing, or doing acts of, "*hybris*" of various sorts toward his people (1315a14–15; the word *hybris* ranges from simple arrogance to sexual assault). Here again, perhaps, the tyrant may simply do this without any real concern for his people, playing the honest and benevolent king, while he in fact just wants to remain in power. But it is difficult not to suppose that if he does this repeatedly, which is what Aristotle strongly recommends if he wants stability, he will not finally end up improving himself too, at least up to a certain point. And indeed this is what Aristotle tells in the passage that follows the one I have just quoted:

> For as a result, not only will his rule necessarily be nobler and more enviable, but since he rules better people, who have not been humiliated, he will not

[22] See Miller (1995: 303).

> end up being hated and feared. And his rule will also be longer lasting, and his character will either be nobly disposed to virtue or else half good, not vicious but half vicious. (1315b4–10)

This will amount to a double improvement: his people will end up "better," and the tyrant will be at least "nobly disposed toward virtue." That is, his people will be not only less inclined to hate the tyrant, and therefore less willing to foment trouble, but they also will be more generally "better people," that is, morally better people who, because they have not been humiliated one way or another, won't experience hatred, and hence desire for revenge, which can only lead one to commit immoral acts (at V.10, 1311b23–30, Aristotle cites examples of such humiliated people who ended up killing the tyrant's relatives, or his friends). As for the tyrant himself, Aristotle does not explain how he might really improve himself, but since virtue is acquired through repetition of the same virtuous acts, repeating such acts will presumably help the tyrant to acquire some degree of virtue. On the other hand, Aristotle remarks that some tyrannies were established "when kings [. . .] sought to rule more in the manner of a master" (1310b18–20): It is not totally unrealistic to think that, the other way round, a tyrant who repeatedly acts like a king, would at one point also want to become a king, or at least be inclined to make as if he were ruling a kingship, not a tyranny anymore. And indeed, this is what Aristotle in fact implies when adding some examples of tyrannies that have lasted long, his best case being the tyranny of Orthagoras and his sons in Sicyon that lasted a hundred years: "The reason for this was they treated their subjects moderately and were subservient to the laws in many areas" (V.12, 1315b14–15).

Interestingly enough, this way of advising tyrants is paralleled in the case of kingships:

> Kingships, in particular, are preserved by being made more moderate. For the fewer areas over which kings have authority, the longer must their office remain intact. For they themselves become less like masters, more equal in their characters, and less envied by those they rule. That is also why the kingships of the Molossians lasted a long time, and that of the Spartans as well. In the latter case it was because the office was divided into two parts from the beginning, and again because Theopompus, besides moderating it in other ways, instituted the office of the overseers. By diminishing the power of the kingship he increased its duration, so that in a way he made it greater, not lesser. He is supposed to have given precisely this answer, indeed, when his wife asked him whether he was not ashamed to hand over a lesser kingship to his sons than the one he had inherited from his

> father: "Certainly not," he said, "for I am handing over one that will be longer lasting." (V.11, 1313a19–33)

True, kingship is one of the two best existing constitutions; but kings are always in danger of being tempted to behave like, and therefore eventually become, tyrants. That is why Aristotle recommends kings to be more moderate, that is to diminish their power (and perhaps share it with some appointees, as Theopompus is reported to have done) and correlatively to become less eager to be omnipotent. That way, such a kingship will last longer since its people will be less prompt to envy him, and hence foment trouble. Now, one may be tempted, here again, to read all this as if Aristotle would be primarily interested in stability and maintenance of a given regime as imperfect as it may happen to be (say, in this case, an imperfect kingship on the verge of becoming a tyranny); the report of what Theopompus told his wife in order to defend himself of her accusation of having diminished the power of his kingship seems especially to imply this. However, it is difficult not to hear, I think, a certain irony on the part of Aristotle, especially if one recalls the vivid description Plato makes of the timocratic man's wife who pushes her husband to get as much power as he can (*Rep.* VIII, 548C–D): What Theopompus does not tell his wife, who will feel reassured by his bon mot ("How is it that you see my kingship smaller while I made it much greater in length?"), is that he has also made it simply better since his people will continue enjoying the rule of a good king, and not of an all-powerful king who is at risk of becoming little by little a tyrant.

Now what role may polity and the ideal city have in this sort of improvement? In the case of kingship, it is evident that the advice to make it more moderate and to share it in one way or another is nothing but an approximation, even if very imperfect, of the ideal of an equal share of power between all citizens, which is central in Aristotle's conception of polity and the ideal city. For, in doing so, the king allows his people to share and enjoy at least a little bit of his power, which is of course the right way toward the ideal of equality that prevails in a polity, and that is at its best in the absolutely best city.

As for tyranny, if one takes seriously the main passage I have quoted above (1315b4–10), it is also relatively easy to see how his best, ideal constitution must be seen as playing a role here too. The ideal constitution is not playing any role in the head of the tyrant, of course, but in the way the Aristotelian reformer should reflect on the way he is to advise the tyrant. As we have just seen, one main goal is to make sure both the tyrant and his people become

more virtuous, which is the most crucial point in Aristotle's presentation of his ideal city. But there are plenty of other features Aristotle mentions in Book V, such as taking care of the public finances, the embellishment of the city, and of the worship of the gods, that reminds us readers, and thus the would-be politicians who may happen to have to advise a tyrant too, of the same important features of the ideal city (see VII.8, 1328b10–13; V.11, 1330b21–31 and 1331a10–14). Another crucial fact in Aristotle's description of the ideal city is leisure, which is the most central principle of his ideal city (VIII.3, 1337b31–32); and indeed, leisure is not only the *sine qua non* of exercising the moral and political virtues (which is why citizens must not be workers, but must depend on the work made by others to enjoy leisure [VII.9, 1328b39–1329a2]), but also what allows them to exercise the most valuable activities, that is, musical enjoyment and (at least for the most talented citizens) philosophy, that define perfect happiness.[23] Aristotle does not invoke leisure when presenting his own advice to the tyrant, but he does repeatedly mention that the "traditional" advice includes the privation of such leisure (1313b3, 24–25, 28–29); since he obviously disagrees with this advice, one may well suppose that allowing, and perhaps even favoring, such leisure should be part of his own program of reforming tyranny.[24]

[23] On the importance of leisure in Aristotle's best city, see Destrée (2013).

[24] I am grateful to the audience at the Boulder conference for their comments on a first draft of this paper I presented there, and to Esther Rogan and Thornton Lockwood for their detailed comments and helpful suggestions on a penultimate version of it. I also express my sincere gratitude to Thornton and Zina Giannopoulou for their editing job on the final version.

CHAPTER 12

Nature, history, and Aristotle's best possible regime

Josiah Ober

Introduction

Aristotle's *Politics* is a philosophical conglomerate. It is, first, a natural/teleological account of the emergence and characteristics of the polis as the form of social organization most suited to the lives of humans as political animals. Next, it is an empirical/historical account of institutional arrangements in historical and contemporary Greek poleis, along with an account of the effects of internal political change and conflict, and recommendations for stabilizing various sorts of polis regimes. Finally, it is a description of the best practically achievable polis, that is, the "polis of our prayers," and the rules and habits into which its citizens were to be educated. Making sense of Aristotle's political philosophy requires giving appropriate attention to each of these seemingly diverse projects.

The premise of this essay is that the best possible polis described in Books VII and VIII is the *telos* of the natural polis of Book I, outfitted with institutions by a legislator who has employed the empirical evidence of the history of real poleis (especially Books III–V) to provide the polis of our prayers with all the right, and none of the wrong, equipment – that is, residents, territory, and institutions. Aristotle never names the regime of the best possible polis. There are good reasons, well rehearsed in the literature, for regarding Aristotle's best possible polis as a "*politeia*" – a regime confusingly given by Aristotle the generic title "regime," which is variously described in the *Politics* as a mix of oligarchy and democracy and as a sort of hoplite republic. Attending to the best possible polis as both a natural entity, arising from and uniquely suited to fulfilling human nature, and as the product of legislative design developed in the knowledge of Greek political history, shows that it may also be regarded as an kind of aristocracy, and – most surprisingly – as a kind of democracy.[1]

[1] Some of the ideas in this essay were first presented in a different form in Ober (2005).

Passages in Aristotle's *Politics* offering a positive account of democratic deliberation (notably III.11; see below) are sometimes cited as evidence (along with Plato's *Statesman* and *Laws*) for a moderate revaluation of democracy in mid-fourth-century Greek philosophical thought.[2] I argue that Aristotle's revaluation of democracy is fundamental, in that the political regime appropriate to the "natural polis" of *Politics* Book I and to the polis of our prayers of Book VII (which I take to be the natural polis, fully realized, through legislative enactment) is, in certain analytically important ways, to be understood as a democracy. The democracy of Athens (especially well known to Aristotle due to his long residence there), is, on this reading, an imperfect manifestation of a natural entity: the political counterpart of an oak that has grown up in sub-optimal conditions, and thus is deformed in various ways, but for all that is recognizably an oak. This in turn helps to explain why democracy is the best of the three common and corrupted regimes.

Aristotle's polis is a community (*koinônia*) of citizens (*politai*) and his model for the extended discussion of citizenship in Book III is the citizen in a democracy (1275b5–6). Because of its inclusive (by ancient Greek standards) approach to citizenship, democracy supplied an answer to the problem of social stability, a problem that featured prominently in the political histories of the poleis studied by Aristotle. In every nondemocratic polis there was a body of "would-be citizens" – that is, adult native males who (once democracy had become prevalent in Greece) had a cultural possibility of being citizens, but who lacked meaningful participation rights. Because the status of active, participatory citizenship was highly valued, would-be citizens were disposed to fight to gain it. As a result, nondemocratic regimes were constrained to devise means of suppressing, through domination, or deceiving, through constitutional gimmicks or ideological mystification, a substantial part of the native population. Aristotle disapproved of these expedients on moral and practical grounds.[3]

Greek democracies enfranchised all (or virtually all) adult native males, and so they lacked the disruptive category of would-be citizens.[4] Although

[2] Democracy in *Laws* and *Statesman*: Bobonich (2002); Hitz (2004: 68–88). It is worth noting that Plato's earlier political texts (especially *Gorgias, Protagoras, Republic*) can be read as "democratic" in the cultural/pedagogical sense of providing readers with both intellectual resources and argumentative method for contesting the apparent (non-democratic) conclusions reached by Plato's Socrates: see Monoson (2000); Euben (2003).

[3] Aristotle on deception and pseudo-citizens: 1278a34–40, 1297a7–13; cf. Mossé (1979); Ober (1998: 312–15). Mechanisms of domination and ideology as means to sustain oligarchy: Simonton (2012).

[4] Of course non-native residents and native women might be regarded as would-be citizens. Metics were occasionally naturalized: Osborne (1981). Plato (*Republic*) and Aristophanes (*Ecclesiazusae*)

there were many other ways in which a democracy could fall into civil conflict (most notably, by using majoritarian decision mechanisms to expropriate the goods of the wealthy), the absence of the category of would-be citizens is one reason why democracy was regarded by Aristotle as more stable than oligarchy (1302a8–10). Even the best of the real-world democracies studied by Aristotle remained potentially liable to factional conflict between ordinary and elite citizens, and so were not appropriate models for a best regime. But a regime that drew on the history of civil conflict to develop institutional designs capable of eliminating the sources of factional conflict, by eliminating the problematic category of would-be citizens, would have the important virtue of being stable, and for the right (Aristotelian) reasons: It would offer citizenship to all persons having the natural qualification for citizenship and the cultural/historical expectation of being citizens.

I will argue that the polis of our prayers was like a real-world Greek democracy in that there were no would-be citizens. That is, the best-possible polis described of Book VII took the set "actual (i.e., politically active, participatory) citizens" (C^a) to be coextensive with the set "all polis residents culturally imagined (by classical Greeks, outside utopian literature) as possible citizens" (C^i), and (after adding an assumption about inherent political capacity) also coextensive with the set "all polis residents qualified by nature to be citizens" (C^n). Equating actual citizens with imagined and natural citizens had the effect of squaring human political nature with institutional design based on knowledge of political history, and of removing a primary source of social conflict. The equation $C^a = C^i = C^n$ left no one holding cultural expectations of citizenship or with the natural capacity to exercise citizenship, stranded outside the actual citizen body.

Greek political development

In Book I of the *Politics* Aristotle argues that, despite the fact that there were manifestly several sorts of human community, the political nature of human beings leads ultimately to the polis as the most appropriate form of human community, that is, the natural social environment for optimal human flourishing. The polis is the social *telos* of human political nature.

famously considered the possibility of women as active citizens. However, we lack evidence (and I suppose that Aristotle did too) that the aspirations of metics and women for citizenship was a source of civil conflict. For a detailed survey of historical Greek civil conflicts, see Gehrke (1985).

The polis, as a manifestation of human political nature, must have an organizational form, a regime-type, a *politeia* in the generic sense. Given that multiple regime types were manifest in the histories of the poleis known to Aristotle, the question arises: What regime is most naturally conducive to human flourishing? Aristotle states (*Nicomachean Ethics* 1135a5) that there is only one regime type that is everywhere best according to nature. This best regime is presumably the political *telos* of the natural polis. But which among the various types of regime discussed by Greek political philosophers is naturally best?

Aristotle specifies the three developmental steps that lead to the emergence of the "natural polis," as a progressive process of instrumentally valuable growth in the size and complexity of human communities (*Politics* I.2). First comes the aggregation of individuals into families (for purposes of reproduction), then of families into villages or clans (for mutual defense and in order to achieve conditions of justice), and ultimately of villages and clans into a polis (for the achievement of autarky and, potentially, of *eudaimonia*).[5]

The natural polis having achieved its *telos* in respect to social form, it is now ready to take on a political form – a regime. But how will that happen? Two possibilities present themselves: First is that the political *telos*, the regime, inheres in the social *telos*. In this case, the "natural *politeia*" of the natural polis will be manifest immediately upon the realization of the polis, that is, upon the completion of the three developmental stages sketched earlier. In this first scenario, the pristine, original political form is already the best possible regime, and so any and all subsequent regime changes (*metabolai*) are devolutionary, corruptions of the pristine original. That sort of story is familiar from Books VIII and IX of Plato's *Republic*, where Kallipolis is the original and ideal *politeia*, and all other regime types (timocracy, oligarchy, democracy, tyranny) are degenerate devolutions. However, given Aristotle's criticism of Plato's Kallipolis (*Politics* Books II and VI), there is no reason to suppose that his polis follows Plato's developmental model. The other possibility is that, like the social development of the polis itself, the emergence of the political *telos* of the best regime is historical and sequential, requiring a development from one stage to the next, until the *telos* is achieved. I believe that this second, sequential-emergence, story is what Aristotle has in mind in the *Politics*. So we can rephrase the basic question: What is the final *politeia* toward which the

[5] Although the process is a product of natural impulses, it requires something like a social contract: Ober (1996: 168–70).

polis was naturally inclined, and what are the historical stages that will be experienced by poleis before that political *telos* is achieved?

Oswyn Murray suggests that in the final regime of the natural polis should be the hybrid regime simply called "*politeia*"; Jill Frank has argued in detail that the regime of the polis of our prayers is a "*politeia*."[6] Those seem attractive arguments, *inter alia* in that they help answer the question of why there should be a *politeia* with the regime name "*politeia*."[7] But the idea that the hybrid form "*politeia*" simply was the political *telos* of the polis and the regime of the polis of our prayers must account for the historical sequence of regimes alluded to in Book III. The passage is worth citing in full:

> If, then, the rule of a number of persons who are all good men is to be considered as aristocracy, and the rule of a single person as kingship, aristocracy would be preferable for the poleis to kingship (whether the office be conjoined with military power [*dunamis*] or without it), if it were possible to get a large number of men of similar quality. And it was perhaps because of this that they were ruled by kings in earlier times, because it was rare to find men who were very outstanding in virtue, especially as in those days they dwelt in small poleis. Moreover they used to appoint their kings on account of their public benefactions (*ap' euergesias*), something that is the work of good men. But as it began to come about that many men (*polloi*) arose who were similar with respect to virtue, they would no longer submit, but sought some form of commonality (*koinon ti*), and established a "*politeia*." As they became worse and made private profit from public affairs (*tôn koinôn*), it was reasonable that oligarchies should arise as a result; for they made wealth a thing of honor. And from oligarchies they first changed to tyrannies, and from tyrannies to democracy; for by constantly bringing the government into fewer hands owing to a base love of gain they made the multitude (*plêthos*) stronger, so that it set upon them, and democracies came into existence. Now that it has happened that the poleis have come to be even larger, it is perhaps not easy for any *politeia* other than democracy to come into existence. (*Pol.* III.15, 1286b4–22. Transl. Lord, adapted)

Here, the polis is said to experience a sequence of regime changes, in the order: kingship … "*politeia*" … oligarchy … tyranny … democracy. This historical sequence of regimes is offered in the immediate context of Aristotle's discussion of kingship, which is itself part of a complex double debate over whether laws or living persons should be authoritative in the

[6] Murray (1993: 201); Frank (2005: 138–80).

[7] I identify the hybrid regime type by putting quotes around the term: thus, "*politeia*" is the regime type, *politeia* the general term for constitution, political culture, or literary account thereof.

polis, and whether monarchy or some form of collective rule is the optimal form of *politeia*.[8]

Plato's political philosophy certainly provides Aristotle's jumping off point: The question of whether kings (quasiphilosophers in the *Republic* or knowledgeable expert rulers in the *Politicus*) should and could rule, and whether laws or men should rule, are basic Platonic questions. Moreover, Aristotle's ordered sequence of regimes seems to be modeled in part on Plato's devolutionary scheme in the *Republic* (Books VIII and IX): Plato's philosopher-kings = Aristotle's kings, Plato's timocracy = Aristotle's "*politeia*." Both include oligarchy, democracy, and tyranny in the sequence, although in different orders. Moreover, the canonical Aristotelian taxonomy of three uncorrupted regimes (monarchy, aristocracy, "*politeia*") and three corrupted regimes (democracy, oligarchy, tyranny) is adapted from the taxonomy of six imperfect regimes developed in Plato's *Politicus* (302C–303B), in which the order of regimes is lawful kingship, lawful aristocracy, lawful democracy, lawless democracy, lawless oligarchy, lawless tyranny.[9]

Aristotle introduces his own distinctive features into the familiar Platonic framework: The order of democracy and tyranny in the passage in *Politics* III.15, 1286b4–20 is reversed from the *Republic* sequence. Justice as common-good-seeking by rulers, rather than lawfulness in the *Politicus*, divides the three superior regimes from their inferior counterparts. And, while the *Politicus* list is definitively rank-ordered, there is less certainty about the ordering of the uncorrupted regimes in Aristotle's taxonomy. The rank-ordering is identical in respect to the lawless/corrupted regimes: Democracy is better than oligarchy, which is in turn better than tyranny. Aristotle's long and sometimes tortuous discussion in Book III of "which regime is best?" shows, however, that in his view the ranking of the uncorrupted regimes remains subject to dispute: There is a sense in which kingship is best, another sense in which aristocracy or "*politeia*" is best.

Aristotelian innovations are driven, at least in part, by the new roles played by nature and history. The first two regime types in the *Politics*

[8] Cf. Ober (1998: 326). A different account of *metabolai* is offered at 1316a20–16b26, in the context of an attack on Plato's sequence of regimes in the *Republic*. Here, with reference to a number of historical examples, Aristotle suggests that there is no fixed sequence for regime change, and that the most common form of *metabolé* is from one regime type to its opposite (rather than its "neighboring type"). This heavily empirical passage suggests that III.15, 1286b4–20 is intentionally schematic and, while based on empirical evidence, is put into the service of his teleological theory.

[9] See for example the schematic diagram, with discussion, in Ober (1998: 311). On the relationship between the regime lists in the *Politics* and the *Politicus*, see Samaras (Chapter 7 in this volume).

III.15, 1286b4–20 sequence (kingship, "*politeia*") seem to follow Plato's *Republic* sequence. The regime change from kingship to "*politeia*" does not, however, happen (as in Plato's *Republic*) because of an error on the part of the rulers. Rather, it is driven by historical change: As poleis grew larger over time, more individuals possessing a similar, relatively high, level of virtue were available to share in rule. Those who were suited, by dint of their virtuousness, to share in rule, naturally sought to do so. The ruling kings were therefore replaced by some sort of republican form of collective rulership. The next regime change, to oligarchy, took place because of an unexplained moral degeneration in the ruling elite ("they became worse").

If we were to suppose that kingship is indeed the best of the uncorrupted regimes (on the Kallipolis model), then the sequence of regimes passage might indeed support the notion that the political *telos* emerges simultaneously with the social *telos*, that is, with the realization of the natural polis. But the notion that kingship is simply the best form of *politeia* is effectively challenged in the course of the discussion in Book III of "which regime is best?" Kingship is the ideal form of governance only in the event that the virtue of the one individual outweighs the aggregate virtue of all others. However, as we have seen, that becomes less likely as poleis grow in size. Kingship is also subject to problems of succession (i.e., when inferior sons succeed superior fathers) and is more subject to corruption than are collective forms of rule. In any event, the "polis of our prayers" of Book VII, in which the citizens will "rule and be ruled over in turns," is certainly *not* a monarchy. And so, rather than the political *telos* itself, kingship may be a historical way station. Further political change may be required if the polis is to achieve a choiceworthy and stable political end.

Political legitimacy, for Aristotle, was predicated not only on lawfulness but on the superiority of the rulers to those ruled in respect to political virtue: A less virtuous individual ought to obey one more superior in virtue without demur (i.e., he has reason to consent to being ruled), but persons equal in virtue should have, and will demand, an equal share in ruling. Once we have embarked upon a sequence of regime changes, we might, therefore, expect that the order of changes will fit into a developmental scheme based on a progressive change in the distribution of political virtue among potential rulers. That is certainly the case in the first change, from kingship to "*politeia*": In the sequence of regimes passage, Aristotle says that in early times, when poleis were much smaller, it was difficult to find many virtuous persons – ergo kingship, requiring only one virtuous individual, was the default regime. But when "many men arose who were

similar with respect to virtue, they would no longer submit [to the king]"; so they sought for some form of *koinon*, and set up a "*politeia*."

We might suppose, that with the emergence of "*politeia,*" we have now arrived at the natural political *telos* of the polis, and that all further changes must be devolutionary. This might seem to be supported by Aristotle's subsequent claim that oligarchy, tyranny, and democracy are "corrupted" regimes that are "against nature" (1287b41). The emergence of these last three regime types cannot, therefore, be regarded as a teleological consequence of human political nature. The series of post-"*politeia*" regime changes – to oligarchy, then tyranny, and finally democracy – does not fit with a story about systematic changes in the distribution of virtue among the citizens. The change to oligarchy is said to come about because men inexplicably became "worse" (*cheirous*) and began making (private) profit out of public affairs (*koina*). The change to tyranny seems to be simply a hypertrophy of oligarchy, with wealth concentrated in ever-fewer hands.

This process of moral degeneration, along with the concentration of wealth, evidently led to the ruling coalition becoming both too small to dominate other natives, and without legitimacy in respect to the rulers' level of virtue. It is, then, in relative terms that the multitude (*plêthos*) became "stronger": They were physically capable of dominating the tyrant and his faction and superior in aggregate virtue. The resulting regime is a democracy: a regime that is more choiceworthy than either tyranny or oligarchy, but less so than any of the three uncorrupted regimes. Aristotle's historical sequence of regimes ends with democracy, which appears to be as far as polis political evolution has got by Aristotle's own time. Immediately after the sequence of regimes passage, Aristotle suggests that in his own times, now that poleis are even larger, it is "not easy" for any regime other than democracy to arise (1286b20–22). Evidently, the historical process of demographic growth that initially led to the end of kingship and the emergence of "*politeia*" – the increase in the total size of the state and the number of persons with a virtue-based claim to share in rule – has now led to the prevalence of democracy, an empirical fact that Aristotle evidently knew from his study of polis regimes.[10]

Although the historical sequence of regimes ends with democracy, we cannot suppose that the polis has, in Aristotle's time, achieved its *telos*, since democracy is, as we have seen, a corrupt regime and in that sense it is

[10] The fact of democratic prevalence in Aristotle's day has been verified by recent empirical studies: see Teegarden (2014).

by definition "against nature." Albeit, democracy is the least bad of the corrupted regimes. But surely, even though, for Aristotle, nature does not always achieve what it wants, it cannot be the case that the teleological development that began with the realization of the polis as a natural social form, suited not only to the instrumental purposes of human survival and material flourishing but also the potential achievement of philosophical *eudaimonia*, just ends in the regime of democracy – or at least in democracy as it was ordinarily understood and as it was manifested in (e.g.) Aristotle's Athens. This would leave humans with nothing to hope for beyond living in a "not too badly" corrupted political condition.

Obviously, there is more to be hoped for: The polis of our prayers described in Book VII. I have suggested that the *politeia* of the polis of our prayers is meant to represent, in a practicable sense, the political *telos* of the natural polis: After all, why would we pray for a regime that fell short of the best and final political end of what nature meant for us as political animals? Thus, if we can characterize the regime type of the polis of our prayers, we may suppose that we have arrived at the answer to the riddle of "what regime is the political *telos* of the natural polis?"

There seem initially to be two possible answers to the question "what is the *politeia* of the polis of our prayers?": The regime called "*politeia*" or aristocracy. In reference to the sequence-of-regimes passage, considered previously, we will need to choose between a reversion to the regime type that degenerated into oligarchy, or an advance to a new regime type. Given that "*politeia*" had failed to resist degeneration into oligarchy, advance to a new regime type seems, on the face of it, a more likely way forward to the political *telos* – even though it may not be easily accomplished. Notably, aristocracy is the "missing regime" in Aristotle's historical sequence of regimes at III.15, 1286b4–20: the only one of his canonical list of six regime types that is not represented in the sequential history of the polis' political development. And thus, we might guess that political teleology is to be squared with history by a political evolution of the polis through a three-stage political sequence (kingship, "*politeia*," aristocracy), which would correspond to the three-part social sequence (family, village/clan, polis) offered in Book I as leading to the realization of the polis.

If the scenario presented previously is correct, then in the case of the development toward the political *telos* there is a sort of hiatus, or detour, between the penultimate ("*politeia*") and ultimate (aristocracy) natural stages: a historical period characterized by a sub-series of three "unnatural" political regime types (oligarchy, tyranny, democracy). Like the

other two uncorrupted regimes, aristocracy is predicated on the rulers having a superabundance of virtue, relative to the other residents of the polis. Insofar as the uncorrupted regimes, like their corrupted counterparts, are based on the standard "one, few, many/all" scheme of ruling, aristocracy, as the counterpart of oligarchy, is the rule of a "few" excellent men. And so, if aristocracy is the political *telos* of the natural polis, we might suppose that the polis of our prayers will be ruled by just a few extraordinarily virtuous men. But that conclusion may be too hasty.

In Aristotle's detailed discussion of oligarchy and democracy (III.8), we learn that oligarchy is, analytically speaking, the rule not of the few but of the rich. The observable historical regularity that the rich happen to be few is epiphenomenal – were the many to be rich and were they to rule, that regime must still be considered an oligarchy (1279b32–1280a6). By extension, we might suppose that aristocracy is not properly defined by the number of the virtuous, but by their level of virtuousness. If this is right, were there many virtuous persons and were they to rule, it would still be an aristocracy. At this point, the distinction between aristocracy and "*politeia*" may seem to have become quite blurry, but perhaps that is not a serious problem: The debate over the merits of kingship, mentioned earlier, seems to pit kingship, a "single virtuous citizen" model, against a generic "multiple-virtuous-citizens" model – whether the latter is properly called aristocracy or "*politeia*" may be beside the point.

Aristotle's teleological naturalism demanded that the political *telos* be realizable, even if not yet realized. It is important to keep in mind that, if the nature/history argument I am developing is right, the teleological process had not been completed by the time of the writing of the *Politics*: The polis of our prayers remains a hope for the future, and thus the polis has not (in Aristotle's day) yet achieved its *telos*. I have argued elsewhere that the polis of our prayers is not intended as a utopia "laid up in heaven," but rather it is imagined as a real possibility that could be brought into existence within historical time as a colonial project. I have, moreover, argued that Aristotle had reason to hope that the polis of our prayers might be brought into existence in the near future, as the consequence of historical developments in his own era.[11] Thus, it seems to me likely that the polis of our prayers is an aristocracy in the sense that the rulers are all highly and (more or less) uniformly virtuous but not necessarily *few*, that it is to be equated with the political *telos* toward

[11] Ober (1998: 339–50).

which the polis was naturally inclined, and that its appearance was (at least potentially) imminent in Aristotle's own time.[12]

The polis of our prayers

I have argued that the political *telos* of the natural polis is a developmental process that will (if all goes well) end in the polis of our prayers. The development is nonlinear in that the movement from kingship to "*politeia*" to the *telos* – whatever name we give to that regime – was interrupted by a "hiatus era" of three corrupted regimes. Is the hiatus following the degeneration of "*politeia*" to be understood (in Aristotelian terms) only as an unfortunate detour – just a patch of historical bad luck that must, once the political *telos* of the polis has been achieved in the polis of our prayers, be mourned as having doomed a certain number of human generations to unnecessary misery? Or was something actually gained from that interlude, such that the final product – a genuinely choiceworthy and stable polis – has benefited as a consequence?

Even to ask this last question is to invite the objection that the categories of teleological naturalism and historical development are being incoherently conflated: In Aristotelian terms, it hardly seems possible to say that nature can have anything to learn from history. Aristotle's natural polis cannot be analogized to a Darwinian species, "designed" for fitness in a given environment by a long process of historical adaptation to environmental circumstances, driven by natural selection. I acknowledge the issue, but the problem of reconciling teleological naturalism and history is an issue with which every reader of Aristotle's *Politics* is confronted as a consequence of the text's conglomerate organization and argumentation.

We can bring history and nature together, without imposing a Darwinian conception of change on Aristotle, by invoking the necessity of a legislator for the achievement of the best possible polis. Aristotle himself points to the conjunction of human nature and willed human choice and action in his discussion of the natural polis in Book I, when he notes that, while "there is in everyone an impulse" to live in a political community, nonetheless he who first brought men together to live in a

[12] Frank (2005) offers an account of the relationship between Aristotle's naturalized political teleology and the "polis of our prayers" as an "aristocratic democracy" that is in important respects compatible with the account I offer here, although Frank's activity-centered conception of "Aristotelian political nature" and her conception of the "polis of our prayers" as a possible future for Athens are quite different from my views.

polis was the cause (*aitios*) of the greatest of goods (1253a29–31).[13] The polis of our prayers is, so I have argued, the *telos* of a natural process, and it is certainly to be the willed product of a legislator (1325a7–10). That legislator (we may call him "Aristotle") is, I believe, best imagined as having extensive knowledge of the political history of the Greek poleis – as, of course, the author of the *Politics* manifestly did, whether or not the 158 polis constitutions collected by his students in the Lyceum were yet available to him. The political history of the poleis demonstrated to Aristotle why the rule of a single individual or the few was inherently unstable in a world of relatively large poleis in which citizenship was valued and virtue was widely distributed. Furthermore, it showed him that, in some cases, constitutional change implied the emergence of a completely new polis, but that, in other cases, substantial constitutional change could be accommodated within the framework of a robustly persistent polis.

That the political *telos* of the natural polis turns out to be an aristocracy, in that the rulers are similarly virtuous, is not a surprising conclusion. But Aristotle's best possible polis has another feature that is quite unexpected in light of earlier Greek political philosophizing about the ideal state: The best possible polis appears to be democratic in that no male permanent resident need be excluded *ab initio* from active, participatory citizenship by circumstances other than that of nativity.

Aristotle never explicitly specifies that all native adult males in the polis of our prayers are participatory citizens, but that seems to be implied by what he does say in Book VII. The regime of the polis of our prayers, which aims at *eudaimonia* as the actualization and practice of virtue, is centered on citizens. Although their numbers are limited by the "rightsizing" of the polis in respect to autarky and "surveyability" (1326b22–25), the citizens are relatively numerous: They must be sufficient in numbers to defend the city against its assumed external foes, as hoplite soldiers. Furthermore, the citizen body is explicitly described as a multitude (*plêthos*: 1327b18, 1331b4) – the same term that is used of the multiple new rulers who overthrew tyranny in favor of democracy in III.15, 1286b4–20.[14] Moreover, Aristotle explicitly states that, unlike Plato's Kallipolis, all citizens (*pantes*) share actively in the *politeia* (1332a31–35) – that is, in the activities appropriate to participatory citizens. The emphasis on the ruling body being composed of "all" citizens recalls an important theme in

[13] See further, Ober (1996: 168–69 with n. 21).

[14] Some editors emend *plêthos* (which is the reading of the codices) in 1331b4, but unnecessarily so; see, for example, the translation of Lord (1984), which makes perfectly good sense of *plêthos* in this passage.

democratic discourse, the claim, made by the Syracusan democratic leader Athenagoras (Thucydides VI.39.1), that "democracy is a name for all (*xumpas*), oligarchy of a part (*meros*)." The terms *plêthos* and *pantes* in the discussion of the polis of our prayers seem carefully chosen, and are, in the relevant contexts, strongly associated with inclusive democratic regimes.

The citizens of the polis of our prayers are to be "*dêmiourgoi* of virtue" (1329a19–21) and they rule and are ruled over in turns, in age-appropriate rotation (VII.14). These citizens must be, by their nature, of a certain quality. But having the right nature is not enough: They are to be educated in virtue and habituated to virtuous action by rules established by "the legislator" (VII.13, especially 1332a28–29). The inherent (pre-education) qualities of the citizens seem to be generic: The citizens are to be characteristically "Greek," in having an appropriate mix of spiritedness and intelligence. They should be friendly to their fellows and (unlike Plato's fierce Guardians) they should be moderate in their aggressiveness toward outsiders (VII.7). They must be educable, but there is no assumption of an inherent hyper-virtuousness in advance of their education (1327b38, 1331b4).

Once they reach the appropriate age, citizens engage in politics (*tôn politeuomenôn*: 1328a17), which includes deliberation (*to bouleuomenon*: 1329a4, presumably in a legislative assembly, although this is not specified) on matters of common advantage. These matters will include, for example, decisions about whether to go to war (1330a16–18). As judges in law courts they will also decide matters concerning justice (1329a2–4). Citizens serve, when young, as infantrymen in defense of the state, and, when old, as priests. All will be wealthy enough, through state-provision of land and slaves, to enjoy adequate leisure for continued moral development (VII.9–10). Since all citizens are at least moderately well off, there is no division within the citizen body into interest-based factions of rich and poor, the sociopolitical condition that led to corruption, in Aristotle's analysis, in real-world Greek democracies and oligarchies.

Various people will inhabit the best possible polis without being citizens; in brief, no one engaged in labor under another's direction or in trade will be a citizen, or indeed a part of the polis properly so understood. There will be many slaves/serfs who will serve as agricultural laborers. These are either to be slaves from diverse "unspirited" ethnicities or "barbarian subjects" with natures similar to the aforementioned slaves (1330a25–30). Aristotle seems, here, to be speaking of persons who could be regarded, at least provisionally, as slaves by nature. These same unfree persons will man

the navy (1327b7–15) as necessary. Thus, unlike at Athens, there will be no "naval mob" of poor citizens who contribute to the defense of the community as rowers rather than as infantrymen.

Artisans (*banausoi*), and perhaps also merchants and traders, provide essential services for the society of the best possible polis (1328b20–23), but artisans are certainly not to be regarded as *parts* of the polis, much less as citizens (1329a19–21). In specifying that artisans will not be citizens in the best polis, Aristotle notes approvingly that in ancient times, among some peoples, the entirety of the "banausic element" was slave or foreign, and that many artisans are such even today (1278a6–13). There is thus no reason to suppose that any of the artisans in the polis of our prayers are to be free natives. Like other Greek poleis (1326a18–21) it is reasonable to presume the presence of a substantial population of metics and foreigners in the polis of our prayers. Relations between the various categories of polis residents (citizens, according to age classes, and noncitizens, free and unfree) are to be governed by suitable laws (1327a38–40).

Aristotle's best possible polis is an aristocracy in its unwavering focus on virtue and on the education necessary to perfect virtue; it is a "*politeia*" in its equation of citizens with infantrymen and in their possession of moderate wealth. But it is a democracy in the (admittedly limited) sense that all native males are (apparently) regarded as active citizens. The unexpected conclusion that the best polis must be a (very specific) kind of democracy is, I have suggested, the product of Aristotle's intellectual engagement with the political history of the poleis. Although it is Sparta that is, among real world poleis, the most common point of reference (and negative example) of Book VII, the history of democratic Athens (as it is presented in the Aristotelian *Athenaion Politeia*) is particularly relevant. Aristotle's ideal state borrows from historical Greek democracy a key sociopolitical characteristic, one that made democracy (in Athens' case, at least) resistant to the corrosive sorts of change engendered by *stasis*, and that allowed Athens to "remain the same polis" through a series of constitutional changes.

Natural and historical democracy

Aristotle was, as a student of Greek political thought and Greek political history, well aware of the advantages offered by democracy.[15] Greek writers before Aristotle had recognized that the equation of the actual citizens with

[15] Ober (1998: 290–351).

persons culturally imagined as potential citizens meant that there was no body of disaffected people who might suppose that they were being denied what they deserved in terms of political recognition by the fact of being unfairly stranded outside the citizen body. And they recognized that, although democratic inclusiveness did not eliminate *stasis*, it removed one of its least tractable sources (e.g., Ps-Xenophon III.12–13; Thucydides VI.39.1, cited previously). The advantages of democracy in overcoming *stasis*, and in enabling a polis to remain robustly itself through a sequence of constitutional changes, was exemplified in the history of Athens, as described in the Aristotelian *Athenaion Politeia.*

The process began with Solon's law code, which, by forbidding the enslavement of locals, initially defined the Athenian citizen body as the native adult males.[16] This move was fundamentally important in that it extended the cultural imagination of "who could be a citizen" as far as it would ever be extended in actual Greek practice (if not in Aristophanes' and Plato's imaginations). After Solon there was a progressive increase in the participation rights of citizens.[17] This progressive augmentation of the participatory aspect of citizenship was not without interruption; there were several oligarchic attempts (in 508: Isagoras and the Three Hundred, in 411: The Four Hundred, in 404: The Thirty) to narrow the definition of citizenship, by restricting the active-citizen body to some subset of the native male population. Each of these attempts failed, because most Athenians continued to treat all those "culturally imagined" potential citizens as actual citizens and continued to regard the democratic code of law (which they imagined as dating back to Solon) as continuously valid. The point is that, although antidemocratic groups occasionally succeeded in changing the democratic *politeia*, understood as the institutional arrangements by which the city was momentarily governed, they failed effectively to challenge the persistence of a democratic *politeia*, understood as a democratic identity and loyalty to a set of laws. And thus they failed to change the existing polis into a new polis.

In the *Politics* Aristotle naturalized the democratic social/political/cultural advantage in respect to regime stability and state perpetuity. He famously defined human beings as political animals – sociable beings that depend on the production of public goods, and have a unique and

[16] Solon's innovation is well analyzed (in explicitly Aristotelian terms) in Manville (1990).

[17] For a review of post-Solonian historical development of democratic institutions, see Ober (1989: 53–103).

inherent capacity to employ language to reveal the collectively advantageous and the just (1253a1–15). This initial move seems to imagine all healthy adult humans as potential sharers in political rule. The inclusiveness of the category of potential citizens is, however, quickly restricted: "Natural" slaves, women, and children are infamously excluded on the grounds that they are incapable of ruling. Aristotle accomplishes the exclusion of slaves and women through a notoriously sketchy argument about defective deliberative capacity (1260a7–14).[18] Resident foreigners are never considered as potential citizens of a non-corrupted regime in the *Politics*.[19] Although the grounds for exclusion would have varied, the exclusion of women and slaves, along with most if not all non-native males, from the category of potential citizens would have seemed painfully obvious to the great majority of Aristotle's original Greek readers, and thus the exclusion was in line with the general opinions (*endoxa*) that were used by Aristotle as a jumping-off point for practical reasoning about politics.

Aristotle's exclusion of women and natural slaves still left as potential citizens all justly free (i.e., not slave by nature) adult males. Such individuals have, *ex hypothesi*, the natural capacities (sociability, reason, and speech) required for the key political activity of deliberating on the advantageous and the just. There seems no reason, *ex ante*, to suppose that they lack the potential to develop the virtue necessary for ruling and being ruled over in their turn. That potential must, Aristotle supposed, be realized through the right kind of upbringing, education, and habituation. Voluntary human activity (notably laboring under the direction of another, as an artisan, or devoting oneself to unlimited accumulation of wealth through trade) could destroy the potential for achieving virtue, rendering a free man a sort of "slave by practice" (1260a36–b2). This sort of self-corruption was, Aristotle must have supposed, historically extremely common, which explains why uncorrupted regimes were so exceedingly rare. However, with the right circumstances – that is, a legislator who understood human nature and the historical sources of corruption, the right sort of rules could, in principle, be put into place and thus human political nature would find its *telos*.

It is a remarkable feature of the *Politics* that it makes way for the eventual emergence of a "natural democracy" by allowing (while never positively asserting) the premise that virtually every Greek male possessed, at birth, the inherent potential for developing the high level of political virtue

[18] Cf. Ober (1998: 297–300). [19] Ober (1998: 303–04).